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Clark County, Nevada

Title 30: Unified Development Code



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TRANSFORM CLARK COUNTY DEVELOPMENT CODE

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Chapter 30.01 General Provisions

30.01.01 Title and Effective Date

Title 30 shall be known as the Unified Development Code (UDC) of the Clark County Code and may be referred to internally in this document as "Title 30" and "this Title."

30.01.02 Authority

This Title is adopted under the authority of Chapter 278 (Planning and Zoning) of the Nevada Revised Statutes and all amendatory and supplementary acts and shall include any future amendments.

30.01.03 Purpose

A. Title 30 implements the Clark County Master Plan through the establishment of zoning districts and regulations governing the subdivision, use, and/or development of land.

B. In compliance with Nevada Revised Statues (NRS) 278.250, this Title is adopted to implement the Master Plan and is designed to promote public health, safety, and the general welfare of the citizens of unincorporated Clark County, by incorporating regulations intended to:

1. Preserve the quality of air and water resources.

2. Promote open space conservation and protect natural and scenic resources, and endangered or threatened species, from unreasonable impairment.

3. Consider access to solar resources by ensuring the height of new buildings will not cast shadows on surrounding residential and commercial developments.

4. Reduce energy consumption by encouraging the use of products and materials that maximize energy efficiency in the construction of buildings.

5. Provide for recreational needs.

6. Protect life and property in areas subject to floods, landslides, and other natural disasters.

7. Develop a timely, orderly, and efficient arrangement of transportation and public facilities and services.

8. Ensure development is commensurate with the character and physical limitations of the land.

9. Assess immediate and long-range financial impact as well as the relative suitability for proposed development.

10. Ensure the development of an adequate supply of housing for the community, including the development of affordable housing.

11. Protect existing neighborhoods and communities, including rural preservation neighborhoods and historic neighborhoods.

12. Promote systems that use renewable energy.

13. Foster coordination and compatibility of land uses with any military installation, with consideration to the location, purpose and stated mission of the military installation.

14. Encourage the most appropriate use of land throughout the County and ensure adequate improvements.

15. Provide harmonious development compatible with surrounding development.

16. Prohibit the development of incompatible uses detrimental to the general health, safety and welfare.

30.01.04 Applicability and Exceptions

A. Compliance Required

1. This Title shall apply to all use of property and all development in unincorporated Clark County.
2. No structure or use of any structure or land shall be established, enlarged, extended, altered, moved, divided, or maintained, and no lot shall be created, except as authorized by and in compliance with this Title, and all other applicable regulations, including Building Code and Public Works standards.
3. Following approval of any application, all proper licenses and permits are required, as indicated in the Clark County Code, to establish the use or structure. Nothing in this Title, including the approval of an application, shall be interpreted to replace such requirements.
4. Any application or permit that affects a nonconforming site feature, including but not limited to buffering, driveways, landscaping, or parking, on a site with a legally established use or structure, shall bring the affected nonconforming site features into compliance with this Title.
5. Any application or permit that affects a nonconforming site feature, including but not limited to buffering, driveways, landscaping, or parking, on a site with a use or structure not legally established, shall bring the entire site into compliance with this Title.
6. Applications or requests to waive any subsection in this Chapter 30.01 are prohibited.

B. Minimum Requirements

The standards of this Title shall be held to be minimum requirements. More restrictive standards, or standards exceeding those required, are permissible.

C. Relationship to Other Titles

1. This Title is intended to supplement: Title 6, Business Licenses; Title 7, Business Regulation; Title 8, Liquor and Gaming Licenses and Regulation; Title 9, Public Health and Sanitation; Title 10, Animals; Title 11, Abatement of Nuisances; Title 12, Public Peace, Safety and Morals; Title 13, Fire and Fire Prevention; Title 16, Roads and Highways; Title 19, Parks and Recreation; Title 20, Airports; Title 22, Buildings and Construction; and Title 24, Water, Sewage, and other Utilities.
2. Terms, definitions, rules, and regulations may differ among Titles. A property owner and applicant have the sole responsibility to review each Title for respective requirements.
3. Any waivers to standards within Title 30 do not waive the requirements of any other Title.

D. Relationship to Master Plan

The adoption of this Title furthers the goals, policies, objectives, and programs of the Clark County Master Plan.

E. Prior Approvals

1. This Title shall not affect the validity of any legally issued building or other development permit or business license issued prior to the effective date of this Title or amendment, provided the permit or license is active or reinstated according to Titles 6, 7, 8, and 22. If any such permit or license lapses and is not reinstated, any new permit or license shall only be issued in conformance with the requirements of this Title as amended.
2. Any condition of approval applied prior to the effective date of this Title or amendment shall continue to apply. The Director may exercise discretion to nullify any said condition if the use or development complies with this Title or the condition is no longer required to mitigate an impact. Building permits issued prior to the effective date of this Title or amendment do not require a change in the plans, construction, or designated use of any existing building if construction has been diligently pursued.

F. Conflicts with Other Regulations or Agreements

1. Where the requirements of this Title conflict with any other legally adopted rule, regulation, ordinance, deed restriction, or covenant in favor of a governmental entity, the most restrictive standard shall govern, to the extent permitted by law.
2. If the subsections of this Title are inconsistent with one another, or if in conflict with other adopted codes, ordinances, or regulations of Clark County, the more restrictive provision will control, unless otherwise expressly stated.
3. Any condition imposed in conflict with federal or state regulation(s) or law(s) shall not require compliance with the condition. Where two imposed conditions conflict, any condition imposed by the Board during a public hearing shall supersede the conflicting condition.
4. It is not the intent of this Title to interfere with, abrogate, annul, or prevent the private enforcement of any easement, covenant, deed restriction, or other agreement between private parties. Title 30 regulations are in addition to, and not in lieu of, any such arrangement between private parties listed above, easement, covenant, or deed restriction, or other private agreement. The County is not responsible for monitoring or enforcing private agreements or restrictions.

30.01.05 Severability

Should any Chapter, Section, subsection, paragraph, clause, word, or regulation be declared by a court of competent jurisdiction to be unconstitutional or invalid, such decision shall not affect the validity of this Title as a whole, or any part thereof, other than the part so declared to be unconstitutional or invalid.

30.01.06 Repeal

A. The previous Title 30, effective on July 1, 2000, and all amendments thereto, are repealed and replaced with the present Title 30.

B. Such repeal shall not affect the liability of any person for a violation of the prior version of this Title, or amendments thereto, or the right of the County to prosecute for such violation.

30.01.07 Enforcement

A. Unlawful Use

Any use of property, or establishment of a building or structure contrary to the provisions of this Title or in violation of any condition required in the approval of any application, is illegal and a public nuisance.

B. Legal Effect

This Title is predicated upon, and may only be enforced consistent with, the Constitutions of the United States of America and the State of Nevada. No provision or ordinance shall be enforced or mandated that would violate either.

C. Enforcement

1. The County may commence proceedings for the abatement of a violation in accordance with applicable regulations of the Clark County Code or may pursue other remedies as provided by law.
2. If an application has been submitted to legalize the use and/or structure that is the subject of an enforcement proceeding, the Code Enforcement Manager may suspend enforcement pending consideration of the application by the decision-making body.

D. Penalties and Remedies

The County shall have the following remedies and powers to enforce this Title:

1. Penalties

Violations of this Title are misdemeanors and subject to the applicable penalties per NRS 193.150 (*Punishment of Misdemeanors*). Any prohibited act, or the failure to perform required acts, shall constitute

a violation of this Title. Any person is guilty of a separate offense each day during any portion of which any violation of this Title is committed or continued. Violations may also be subject to fines in accordance with Title 1.14 or any other remedy available by law.

2. Revocation of Land Use Applications

Failure to abide by and comply with 1) this Title with respect to use, development standards, or maintenance requirements, 2) any other Clark County Code requirement(s), 3) any applicable requirement of the Nevada Revised Statutes or Nevada Administrative Code, or 4) conditions attached to the approval of any application, shall be illegal and a public nuisance, and shall constitute grounds to revoke any application, map, permit, or license issued in conjunction with the application.

i. Commence Revocation

The County may commence revocation proceedings per this subsection or may pursue other remedies as provided by law. If the Board determines there is sufficient cause for revocation, a public hearing shall be scheduled before the Board, where the property owner or other interested party may demonstrate why revocation is or is not appropriate. Notice for the hearing shall match the original application type, or at a minimum, notice is required consistent with said application type.

ii. Invalidation of Underlying Applications

Underlying applications become invalid following the revocation of a business license or other development approvals or permits without the hearing specified in subsection (i) above.

3. Deny or Withhold Permits, Licenses, or Other Forms of Authorization

Building permits, certificates of completion or occupancy, business licenses, or other forms of authorization to use or develop any land, structure, or improvements, may be denied or withheld by the appropriate responsible decision-making body until an alleged violation, associated civil penalty, and/or lien resulting from a previous final order related to such property, use, or development is corrected, no matter who is responsible for the violation.

4. Mitigation of Nuisance

If the Board determines the condition of a property constitutes a nuisance, per the procedure established in Chapter 11.06, *Abatement of Public Nuisances*, the Board shall have the authority to require improvements or conditions sufficient to mitigate the nuisance.

5. Cumulative Remedies

All remedies provided herein shall be cumulative and not exclusive.

30.01.08 RECORDS

Records submitted with any application pursuant to this Title, or at any hearing for the same, shall become a part of the official record and be maintained in accordance with Nevada Revised Statutes 239 (*Public Records*).

30.01.09 NONCONFORMITIES

A. Purpose

This Section regulates lots, structures, uses, and site features legally established, but no longer in conformance with this Title. All instances are collectively referred to in this Title as "nonconformities." It is the intent of this Section to allow nonconformities to continue until they are removed or abandoned, without enlarging, expanding, or extending, nor used as grounds to add other structures or uses prohibited in the same district.

B. Applicability

This Section applies to nonconformities created by the initial adoption of, or amendments to, this Title and those legally established nonconformities under previously applicable ordinances.

C. Illegal Uses and Structures Not Validated

This Section shall not validate or make legal any illegal use or structure existing upon the effective date of the ordinances codified in this Title. Any illegal use or structure shall remain illegal to the extent that the use or structure conflicts with the provisions of this Title.

D. Standards Applicable to All Legal Nonconformities

1. Determination of Legal Nonconforming Status

The property owner shall have the sole burden of establishing that any nonconformity is a legal nonconformity.

2. Authority to Continue

Nonconformities may continue to be used and occupied, subject to the maintenance of premises and required conditions to operate, unless or until the nonconformity is abandoned. All such nonconformities shall remain so and are subject to the standards of this Section.

3. Change of Ownership, Tenancy, or Management

Nonconforming uses shall run with the land and changes in ownership, tenancy, or management of property shall not impact the continued use or operation of existing nonconforming lots or structures.

4. Maintenance and Repair

Repair and maintenance of nonconforming structures is allowed and encouraged, without increasing the nonconformity.

5. Elimination of Nonconformity

If an adopted ordinance brings any existing legal nonconforming use or structure into compliance with this Title, the use or structure shall be conforming.

6. Nonconformity Within a Floodplain

When within a floodplain, refer to the Regional Flood Control District's Uniform Regulations for the Control of Drainage.

E. Legal Nonconforming Lots

1. Single-Family Dwellings on Nonconforming Lots

In any district in which single-family dwellings are permissible, a single-family dwelling and customary accessory buildings may be erected on a legally established lot, even if such lot does not conform with lot requirements of this Title, if otherwise in conformance with the specified zoning district setbacks.

2. Right-of-Way Dedication

i. An existing legal lot reduced by a right-of-way dedication requirement shall be considered legal nonconforming.

ii. An existing legal nonconforming lot reduced by right-of-way dedication requirements shall maintain its legal nonconforming status.

3. Establishment of Nonconforming Lots

i. Standalone Lots

Nonconforming lots include any substandard lot legally established prior to May 5, 1970; or any substandard lot subject to a contract of sale in full force and effect prior to June 20, 1962.

ii. Subdivision Lots

Lots created without a subdivision map prior to July 1, 1973, or created by a court order, shall be considered legally created. A contract for the sale of land after June 20, 1962, or a legal description on a deed recorded prior to July 1, 1973, including the legal description of adjacent parcels, does not constitute the division of land. A lot created by the County's acceptance of the dedication of a public right-of-way 60 feet or more in width shall also be considered legally created.

F. Nonconforming Structures

Any legally established structure rendered nonconforming after adopting revised regulations in this Title or prior versions of this Title may be maintained in compliance with the following provisions.

1. Enlargement, Alteration, Movement, Reconstruction, or Removal

i. Enlargement or Alteration

A nonconforming structure may not be enlarged or altered to increase its nonconformity. If construction does not increase the nonconformity, the structure may be enlarged or altered.

ii. Movement

A nonconforming structure may be moved if the move brings the structure into compliance with this Title.

iii. Relocation or Reconstruction

If a government entity required relocation of a legally constructed nonconforming structure for the construction of a public improvement, reconstruction shall be allowed on the same or adjacent property under common ownership, if the applicant applies for permits within 90 days of receiving notice of completion of the improvement from the County, and the permit remains active.

iv. Removal

After voluntary removal of a nonconforming structure, the replacement structure shall conform to all applicable regulations in this Title.

2. Damage or Destruction

Prior to the repair or reconstruction of any damaged or destroyed nonconforming structure, the estimated replacement cost shall be determined by using the estimate listed on a current insurance policy for the property or an appraisal from an individual licensed in Nevada.

i. Less than 50% Replacement/Repair Costs

A nonconforming structure damaged or destroyed by an act of God, war, natural catastrophe, or criminal act such as arson or terrorism, with replacement or repair costs at time of damage totaling less than 50% of the estimated replacement cost, may repair or replace to pre-existing configuration if construction commences within 12 months from the date of damage. To construct after the 12-month period, compliance with all applicable regulations in this Title is required.

ii. More than 50% Replacement/Repair Costs

A nonconforming structure damaged or destroyed by an act of God, war, natural catastrophe, or criminal act such as arson or terrorism, with replacement costs at time of damage totaling 50% or more of the estimated replacement cost, must reconstruct in compliance with all applicable regulations in this Title.

3. Aviation Markers

The owner of any existing nonconforming structure may be required to install, operate, and maintain thereon such markers and lights as deemed necessary by the Director of Aviation to indicate the presence of an obstruction into the Airport Airspace Overlay, as required in §30.02.26B.

4. CR District Subdivisions Recorded Prior to May 1974

In the CR district, single-family dwellings and accessory uses and structures typically associated with single-family development (including accessory living quarters) located in subdivisions recorded prior to May 1974, may be expanded and modified subject to the RS10 district standards, if the dwelling or accessory use or structure is located on a parcel of land that contained a legal nonconforming residential structure on March 1, 1998.

G. Legal Nonconforming Uses

Any legally established use rendered nonconforming after adopting revised regulations in this Title or prior versions of this Title may continue operations in compliance with the following provisions.

1. Change of Use

A nonconforming use may change to any use allowed in the zoning district where located. Once a conforming use replaces a nonconforming use, reinstatement of the previous nonconforming use is prohibited.

2. Limits on Expansion of Nonconforming Use

i. A nonconforming use within a structure may not be enlarged, increased, or extended to occupy a greater area of the structure.

ii. If the nonconforming use does not occupy a structure, it shall not be increased in intensity or expanded to occupy any greater area.

3. Damage or Destruction

i. Less than 50% Replacement/Repair Costs

Reconstruction or repair of a damaged or destroyed structure housing a legal nonconforming use, with replacement costs at time of damage totaling less than 50% of the estimated replacement cost, may repair to pre-existing configuration if commenced within 12 months from the date of damage. To construct after the 12-month period, approval of a Special Use Permit, as described in §30.06.05D, *Special Use Permit (UC)*, is required and the site must come into compliance with all applicable regulations in this Title.

ii. More than 50% Replacement/Repair Costs

To reconstruct or repair a damaged or destroyed structure housing a legal nonconforming use, with replacement costs at time of damage totaling 50% or more of the estimated replacement cost, approval of a Special Use Permit, as described in §30.06.05D, *Special Use Permit (UC)*, is required and the site must come into compliance with all applicable regulations in this Title.

4. Abandonment or Discontinuation of Legal Nonconforming Use

Except when government action impedes access to the premises, a nonconforming use may not resume operation if abandoned for:

i. Six consecutive months for uses in conjunction with structures.

ii. Thirty days for uses on land without structures.

5. Legal Nonconforming Manufactured Home Parks

This Section applies to manufactured home parks constructed and occupied prior to and including August 27, 1976, through the effective date of this Title. These requirements supersede requirements defined in other Chapters of this Title.

i. Parks established prior to and including August 27, 1976 (reference Ordinance 510), are considered legally nonconforming regarding all code requirements. New manufactured homes may be placed in conformance with the restrictions in effect upon establishment of the park.

(a) Parks with a majority of recreational vehicle spaces measuring 1,500 square feet or larger may remove a previously required laundry facility (reference Ordinance 1075).

(b) The front setback for a manufactured home may be reduced to 2 feet, where the drawbar, tongue, or other attachments to the front are removed.

ii. Parks shall lose legal nonconforming status if found not operating in compliance with the park's established design, rules, regulations, and type of home, except a manufactured home may replace a recreational vehicle.

6. Legal Nonconforming Adult Business

An adult business, as defined in §30.07.02, not in conformance with this Title and the regulations for an adult business set forth in this Title may continue until discontinuance or removal provided:

i. Continuing Operation

(a) The uses were in full compliance with Building, Fire, and Business License codes when the uses commenced; and

(b) The uses were in full compliance with the Clark County Code, including acquisition by the property owner of required use permits as applicable, when the uses commenced.

ii. Expansion within Parcel Boundary

A nonconforming adult business may expand within the parcel boundary as it existed on March 7, 2001, only if:

(a) It is within the IL district;

(b) The development conforms to all applicable development standards, including conformance with the design standards required for commercial buildings;

(c) All required parking is located on the lot;

(d) The expansion of the use is approved per §30.06.05A, *Administrative Design Review (ADR)*; and

(e) The use and structure were in compliance with i above.

Chapter 30.02 Zoning Districts

30.02.01 Zoning Districts Established

A. General Applicability

This Chapter sets forth the purpose and lot and structure standards for each zoning district in the County. In addition to the standards outlined in this Chapter, all development shall be subject to the requirements included in this Title.

B. Districts Established

Zoning districts are shown in Table 30.02-1, below. Zoning districts are established by the County's adoption of the Official Zoning Map, per §30.02.01D.

Table 30.02-1: Districts Established

District		Section
RESIDENTIAL DISTRICTS		
RS80	Residential Single-Family 80	30.02.02
RS40	Residential Single-Family 40	30.02.03
RS20	Residential Single-Family 20	30.02.04
RS10	Residential Single-Family 10	30.02.05
RS5.2	Residential Single-Family 5.2	30.02.06
RS3.3	Residential Single-Family 3.3	30.02.07
RS2	Residential Single-Family 2	30.02.08
RM18	Residential Multi-Family 18	30.02.09
RM32	Residential Multi-Family 32	30.02.10
RM50	Residential Multi-Family 50	30.02.11
COMMERCIAL DISTRICTS		
CN	Commercial Neighborhood	30.02.12
CP	Commercial Professional	30.02.13
CG	Commercial General	30.02.14
CC	Commercial Core	30.02.15
CU	Commercial Urban	30.02.16
CR	Commercial Resort	30.02.17
INDUSTRIAL DISTRICTS		
IP	Industrial Park	30.02.18
IL	Industrial Light	30.02.19
IH	Industrial Heavy	30.02.20
SPECIAL DISTRICTS		
AG	Agriculture	30.02.21
OS	Open Space	30.02.22
PF	Public Facility	30.02.23
OVERLAY DISTRICTS		
ABO	Adult Business Overlay	30.02.26A
AAO	Airport Airspace Overlay	30.02.26B
AEO	Airport Environs Overlay	30.02.26C
HDO	Historic Designation Overlay	30.02.26D
MPO	Maryland Parkway Overlay	30.02.26E
NPO	Neighborhood Protection Overlay	30.02.26F
PCO	Planned Community Overlay	30.02.26G
RRO	Red Rock Overlay	30.02.26H
SMO	Spring Mountain Overlay	30.02.26I

C. District Sequence

1. Within the residential, commercial, and industrial districts, districts are generally listed in order of intensity.
2. The special districts address areas that accommodate a specific type of activity but may include a wide range of intensities.
3. The overlay districts provide regulations in addition to those required by the underlying zoning district.

D. Official Zoning Map

1. Rules for Interpretation of District Boundaries

i. Unless otherwise indicated in this Title, district boundaries shall follow the lines, and extensions of such lines, listed below:

- **(a)** County boundaries;
- **(b)** Municipal boundaries;
- **(c)** The approximate centerlines of streets, highways, or alleys;
- **(d)** Quarter section lines, section lines, and mapped lot lines;
- **(e)** Railroad lines midway between the main tracks;
- **(f)** The centerlines of stream, rivers, canals, lakes, or other bodies of water; and
- **(g)** Shorelines (in the event of change in the shoreline, the boundary shall move with the actual shoreline).

ii. District boundaries indicated as parallel to, or extensions of, the features specified in subsection i, above, shall be so construed. Distances not specifically indicated on the Official Zoning Map shall be determined by the scale of the map, or where an ordinance exists based on the legal description.

iii. Where physical features existing on the ground do not coincide with those shown on the Official Zoning Map or are not covered by subsections i. and ii. Above, or where a district boundary is unclear or disputed, the Director shall determine the location of the district boundary.

iv. A lot within more than 1 zoning district shall be developed in conformance with the applicable district standards for each portion of the lot.

2. Zoning Map Amendment

Any amendment to the Official Zoning Map shall be initiated and adopted by ordinance per the procedures for amending the map as set forth in §30.06.04B, *Rezone (Zone Change) (ZC).*

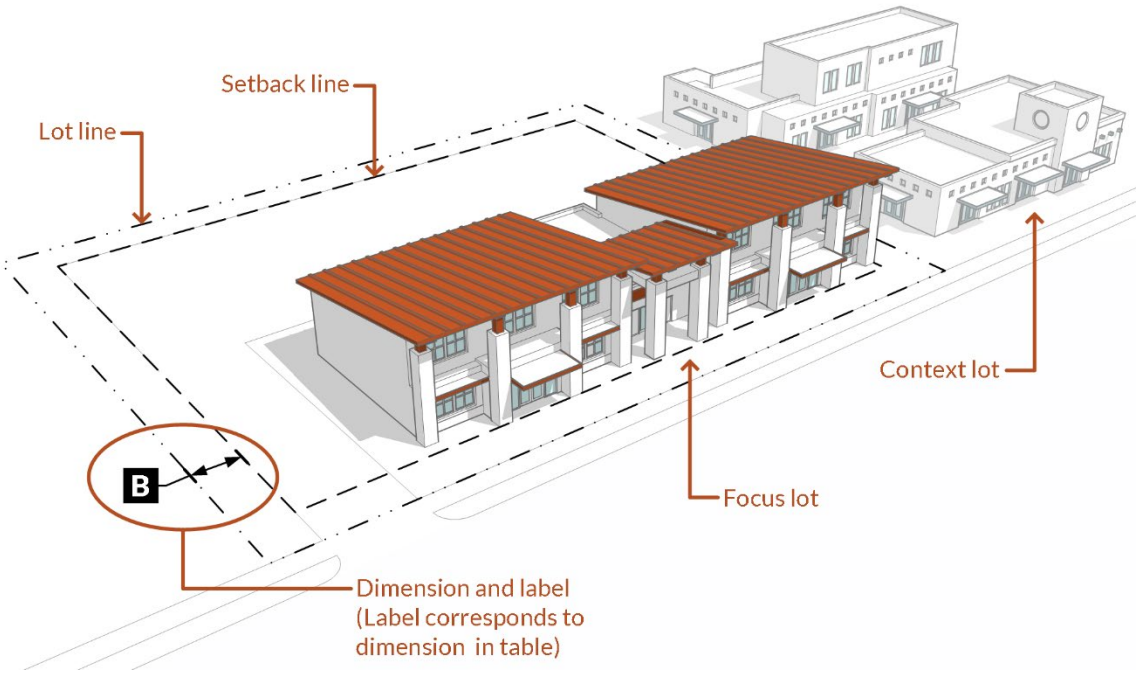
E. Organization and Format of Base Districts in this Chapter

1. §30.02.02 through §30.02.23 describe the purpose and intended character of the base zoning districts, the lot and structure standards for development, and any district-specific standards.
2. Each base district includes an illustration depicting the district's lot and structure standards for typical building forms. Illustrations are intended to exemplify the general character of the district and do not show specific locations or buildings. See Figure 30.02-1. Illustrations do not reflect all standards that may apply. If an illustration is inconsistent with the respective table of lot and structure standards, the standards in the table shall govern.
3. References to select "Other Standards" are provided but do not represent all applicable standards of this Title that may apply.

F. Overlay Districts

1. §30.02.26, *Overlay Districts*, identifies overlay districts and sets forth the purpose and standards for each overlay, which may modify those of underlying base zoning districts.
2. Overlay districts are superimposed over base zoning districts. If overlay standards conflict with the base zoning district, the overlay standards shall apply, unless otherwise stated.
3. A property may be subject to multiple overlay districts. Where standards conflict, the more restrictive standards shall apply, unless otherwise stated.

Figure 30.02-1: District Illustration Guide



30.02.02 RS80: Residential Single-Family 80

A. Purpose

The RS80 district is established to accommodate very low-density, single-family residential development, agricultural uses, and other appropriate uses of land in nonurban, outlying communities with limited infrastructure and services.

B. Standards

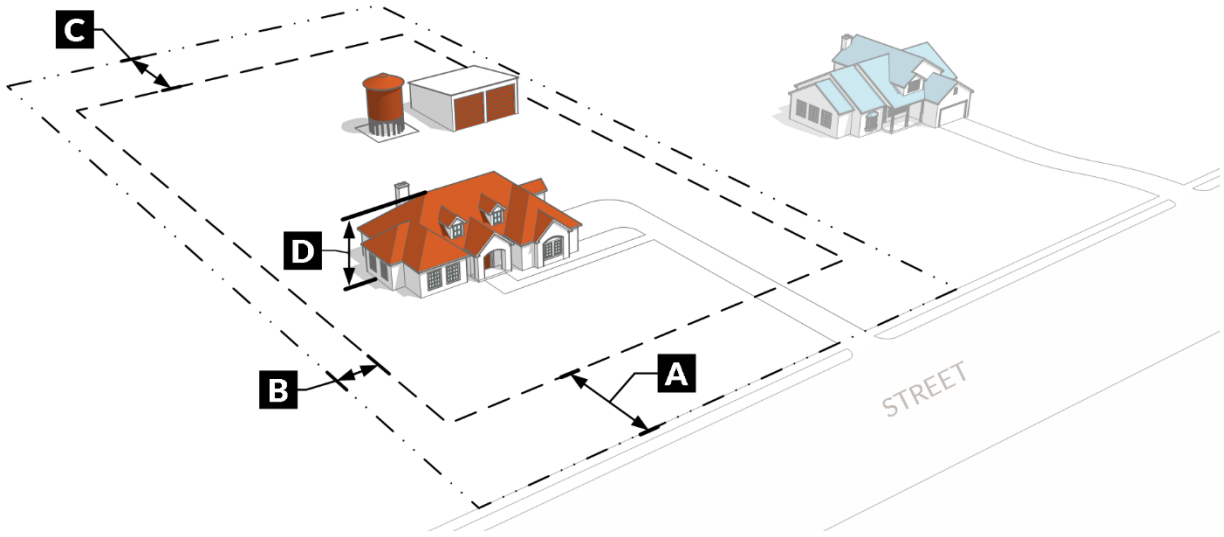
LOT [1]			OTHER STANDARDS	
	Lot area, min.	80,000 sf	Overlay Districts	§30.02.26
	Net lot area, min.	72,000 sf	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	15% [2]	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.) [1] [2]		PRIMARY / ACCESSORY	Development Standards	Chapter 30.04
A	Front	40	NOTES	
B	Side interior	15 / 5		
	Side street	25 / 10		
C	Rear	50 / 5		
	Building separation	6		
HEIGHT (MAX. FT.) [2]		PRIMARY / ACCESSORY		
D	Structure height	35 / 25 [3]		

[1] Nonconforming lots 20,000 to 80,000 sf shall conform to RS20 district standards.

[2] Mt. Charleston, Lee Canyon, and Kyle Canyon nonconforming lots may utilize the RS5.2 district standards, with the following special setbacks:
[A] Front: 15 feet;
[B] Side interior: 5 feet;
Side street: 15 feet; and
[C] Rear: 10 feet.

[3] Accessory structures may be 25 ft. or up to the primary structure height as built, whichever is greater.

Figure 30.02-2: RS80 District Standards Illustration



30.02.03 RS40: Residential Single-Family 40

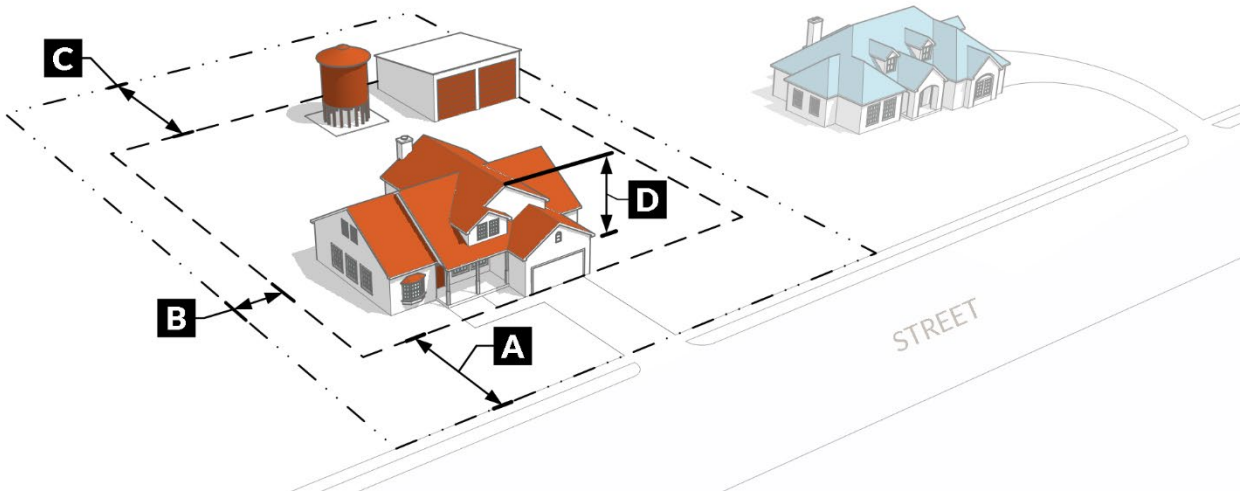
A. Purpose

The RS40 district is established to accommodate very low-density, single-family residential development and agricultural uses.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	40,000 sf	Overlay Districts	§30.02.26
	Net lot area, min.	36,000 sf	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	25%	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.)		**PRIMARY / ACCESSORY**	Development Standards	Chapter 30.04
A	Front	40	**NOTE**	
B	Side interior	15 / 5	[1] Accessory structures may be 25 ft. or up to the primary structure height as built, whichever is greater.	
	Side street	25 / 10		
C	Rear	50 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		**PRIMARY / ACCESSORY**		
D	Structure height	35 / 25 [1]		

Figure 30.02-3: RS40 District Standards Illustration



30.02.04 RS20: Residential Single-Family 20

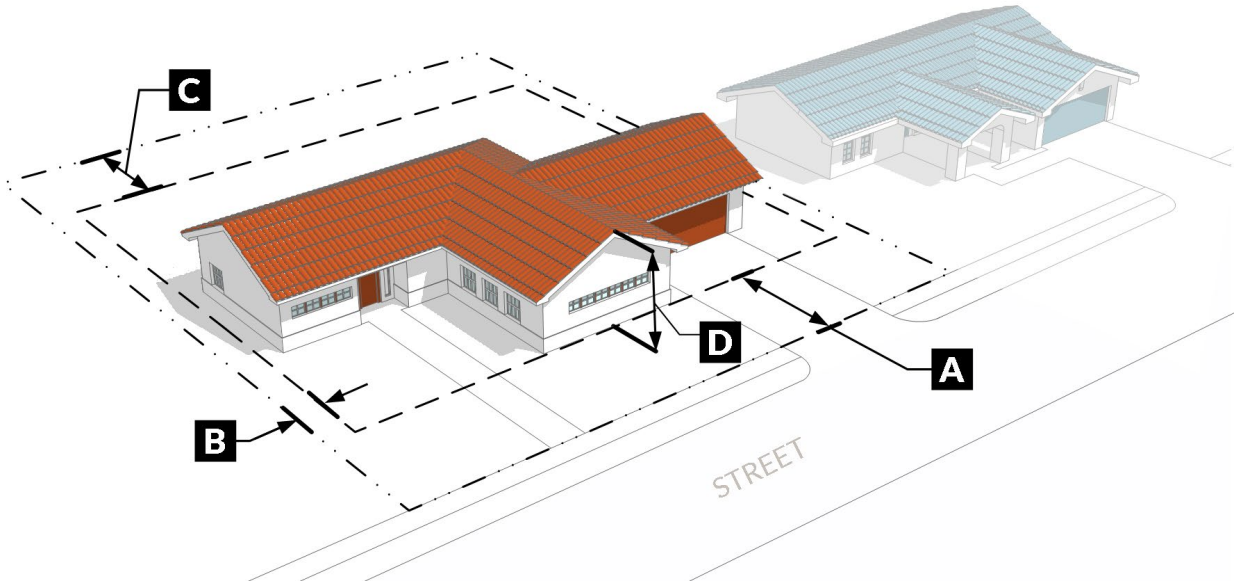
A. Purpose

The RS20 district is established to accommodate low-density, single-family residential development and agricultural uses.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	20,000 sf	Overlay Districts	§30.02.26
	Net lot area, min.	18,000 sf	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	50%	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.)		**PRIMARY / ACCESSORY**	Development Standards	Chapter 30.04
A	Front	40 Public Street 20 Private Street	**NOTE**	
B	Side interior	10 / 5	[1] Accessory structures may be 25 ft. or up to the primary structure height as built, whichever is greater.	
	Side street	15 / 10		
C	Rear	30 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		**PRIMARY / ACCESSORY**		
D	Structure height	35 / 25 [1]		

Figure 30.02-4: RS20 District Standards Illustration



30.02.05 RS10: Residential Single-Family 10

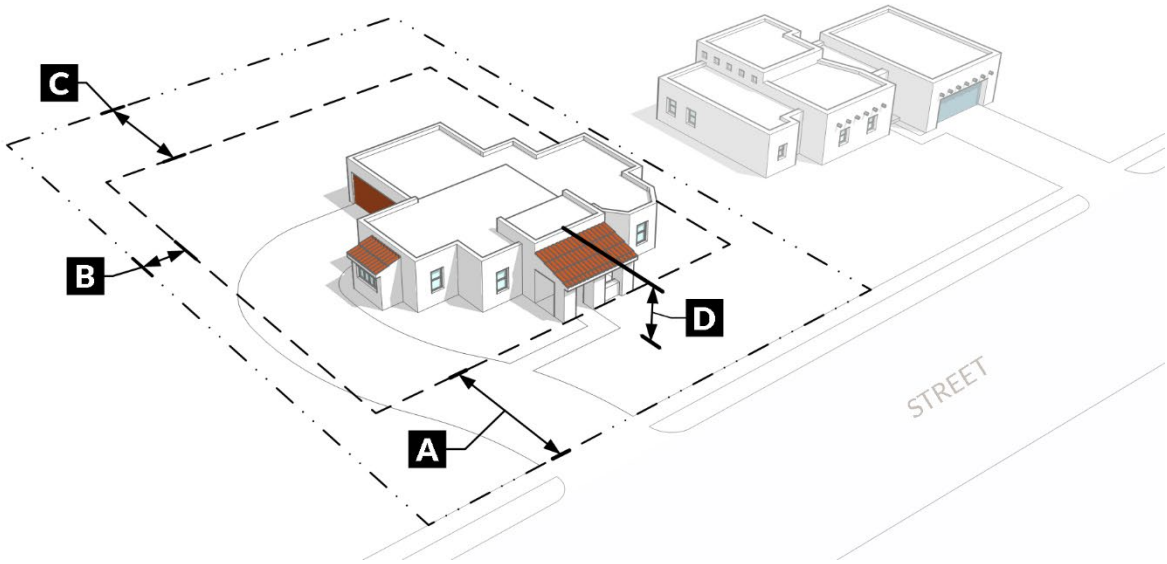
A. Purpose

The RS10 district is established to accommodate low-density, single-family residential development and is intended to transition between lower-density and moderate-density residential neighborhoods.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	10,000 sf	Overlay Districts	§30.02.26
	Net lot area, min.	9,000 sf	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	50%	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.)		**PRIMARY / ACCESSORY**	Development Standards	Chapter 30.04
A	Front	30		
B	Side interior	10 / 5		
	Side street	15 / 10		
C	Rear	25 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		**PRIMARY / ACCESSORY**		
D	Structure height	35 / 14		

Figure 30.02-5: RS10 District Standards Illustration



30.02.06 RS5.2: Residential Single-Family 5.2

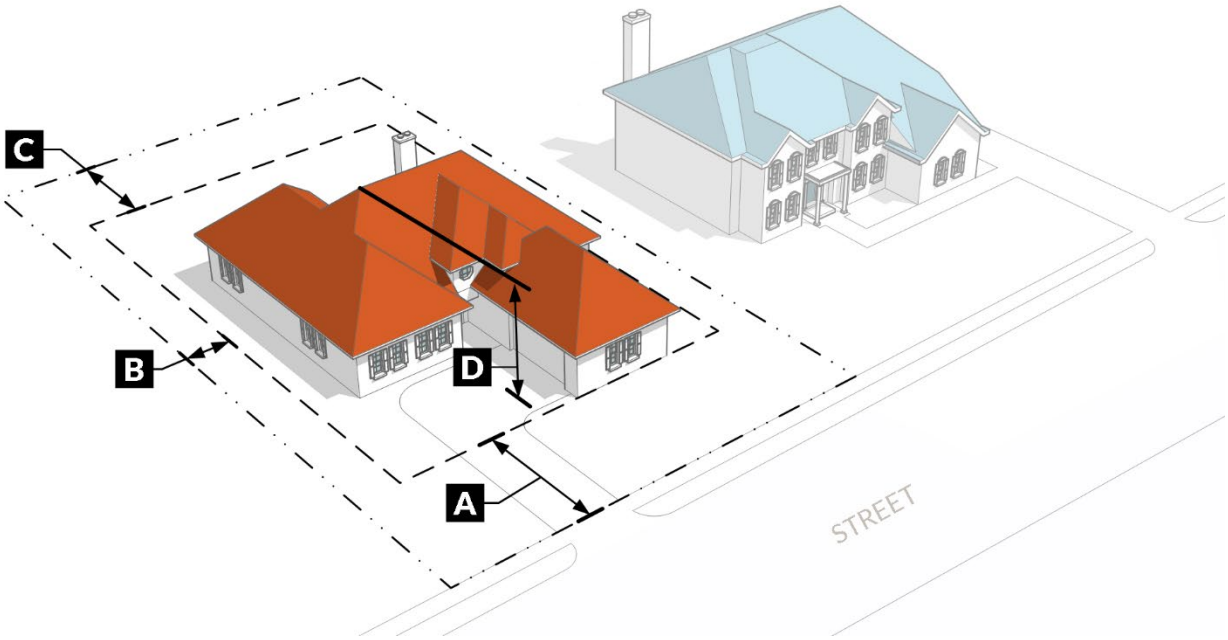
A. Purpose

The RS5.2 district is established to accommodate moderate-density, single-family residential development and is intended to transition between low-density and other moderate-density residential neighborhoods.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	5,200 sf	Overlay Districts	§30.02.26
SETBACK (MIN. FT.)		PRIMARY / ACCESSORY	Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
B	Side interior	5	Development Standards	Chapter 30.04
	Side street	10		
C	Rear	20 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		PRIMARY / ACCESSORY		
D	Structure height	35 / 14		

Figure 30.02-6: RS5.2 District Standards Illustration



30.02.07 RS3.3: Residential Single-Family 3.3

A. Purpose

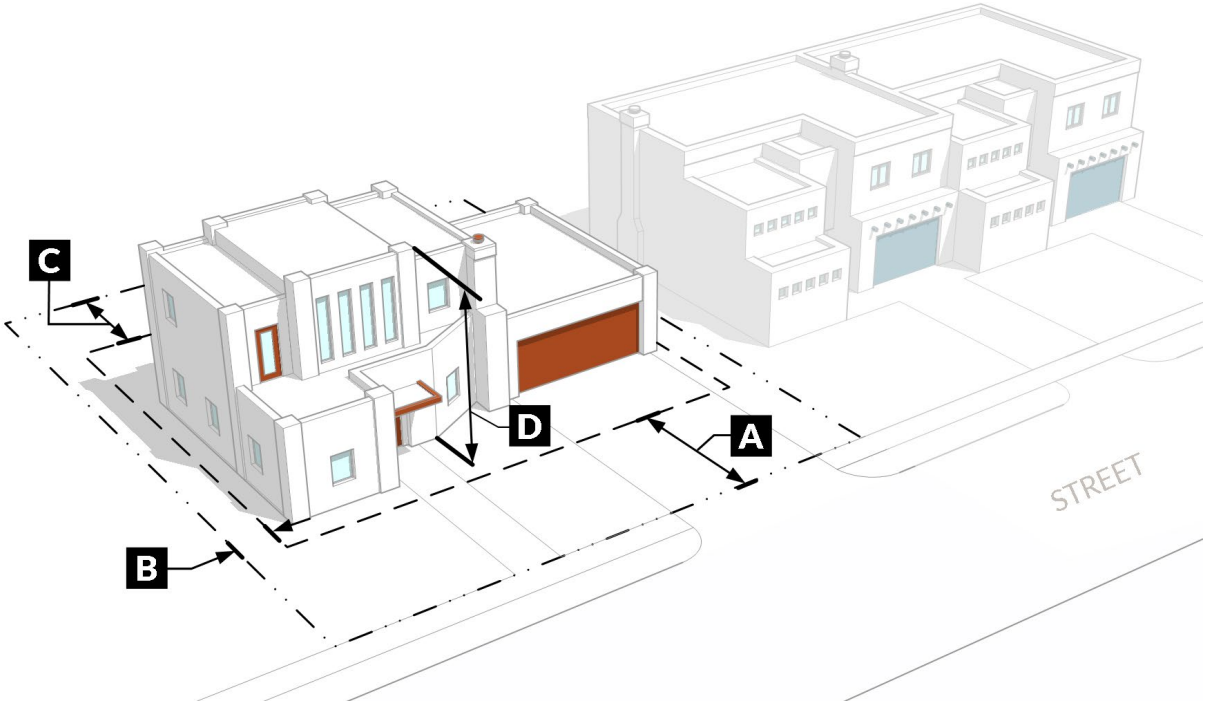
The RS3.3 district is established to accommodate moderate-density, single-family residential developments.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	3,300 sf	Overlay Districts	§30.02.26
SETBACK (MIN. FT.)		PRIMARY / ACCESSORY	Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
B	Side interior	5	Development Standards	Chapter 30.04
	Side street	10		
C	Rear	15 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		PRIMARY / ACCESSORY		
D	Structure height	35 / 14		

Figure 30.02-7: RS3.3 District Standards Illustration

z



30.02.08 RS2: Residential Single-Family 2

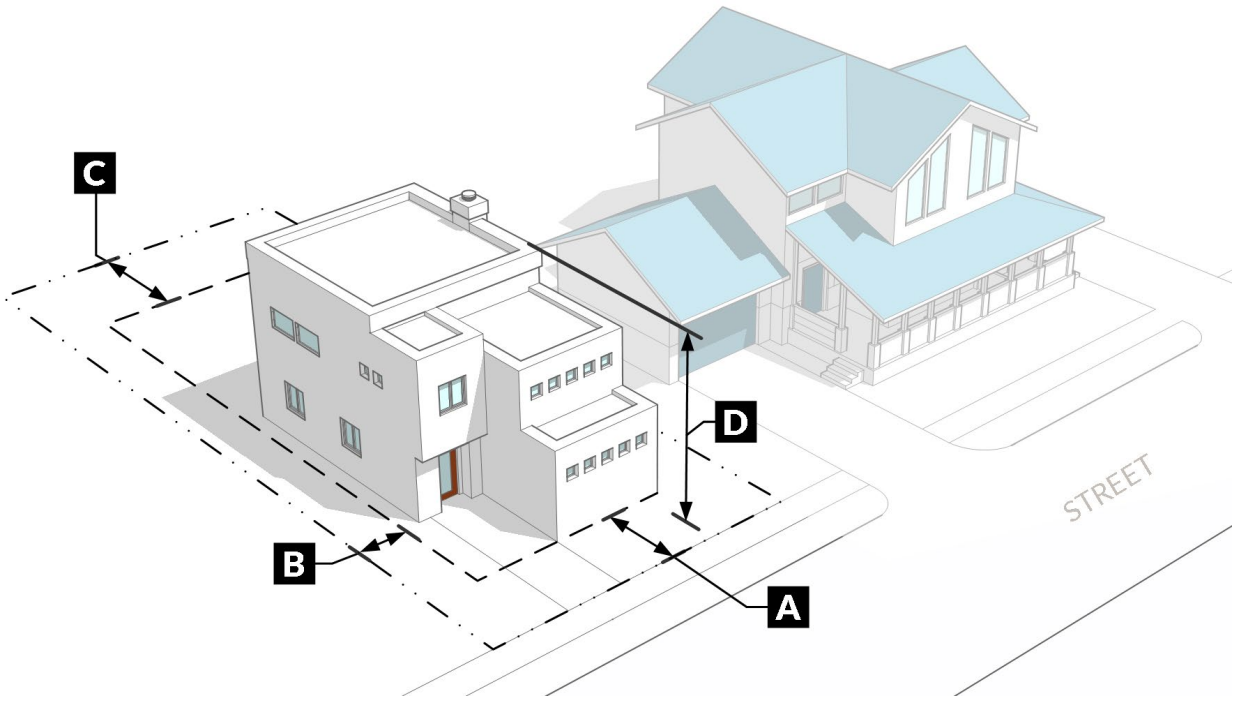
A. Purpose

The RS2 district is established to accommodate moderate-density, single-family residential developments and is intended to transition between other moderate-density neighborhoods and multi-family residential developments.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	2,000 sf	Overlay Districts	§30.02.26
SETBACK (MIN. FT.)		PRIMARY / ACCESSORY	Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
B	Side interior	5	Development Standards	Chapter 30.04
	Side street	10		
C	Rear	15 / 5		
	Building separation	6		
HEIGHT (MAX. FT.)		PRIMARY / ACCESSORY		
D	Structure height	35 / 14		
OPEN SPACE (MIN. SQ.FT.)				
	200 sf/unit			

Figure 30.02-8: RS2 District Standards Illustration



30.02.09 RM18: Residential Multi-Family 18

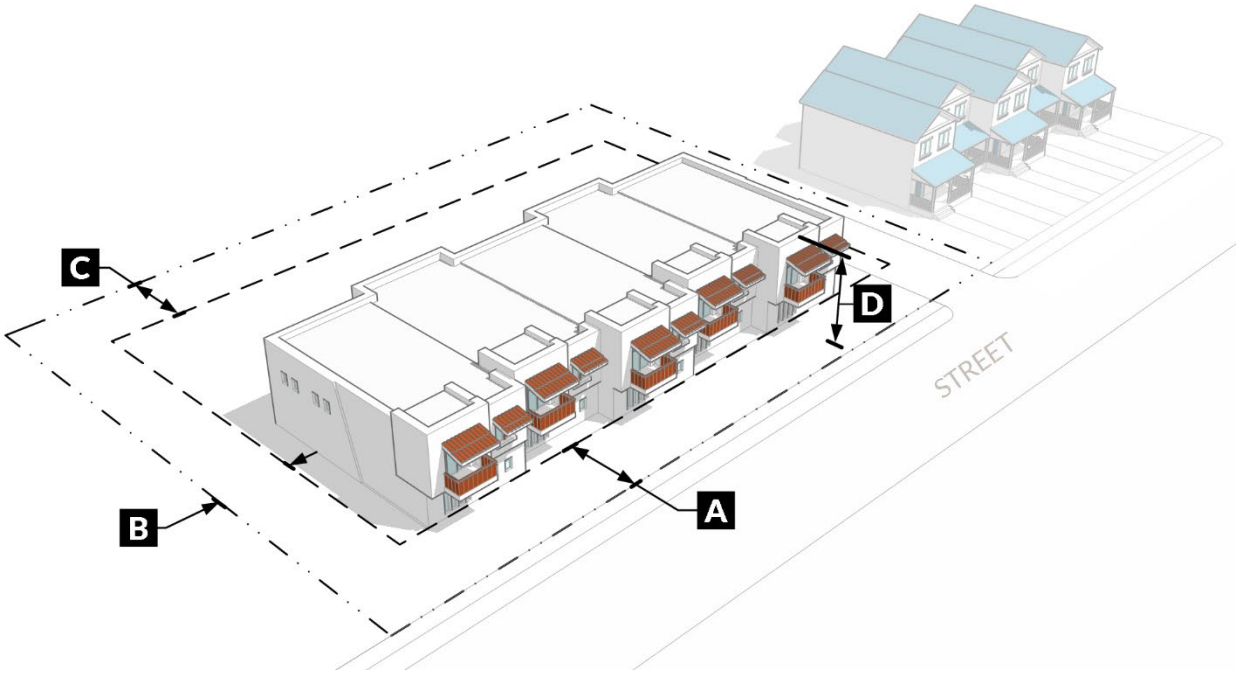
A. Purpose

The RM18 district is established to accommodate a wide range of high-density, single- and multi-family residential development and is intended to serve as a transition between moderate-density residential neighborhoods and high-density residential, commercial, and mixed-use areas.

B. Standards

LOT [1]			OTHER STANDARDS	
	Lot area, min.	7,000 sf	Overlay Districts	§30.02.26
	Density, max.	18 units/acre	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.) [1]		PRIMARY / ACCESSORY	Use Regulations	Chapter 30.03
A	Front	20	Development Standards	Chapter 30.04
B	Side interior	20/ 5	Residential Adjacency	§30.04.06
	Side street	20	NOTES	
C	Rear	20 / 5	[1] Single-family attached development shall meet RS2 district standards, with the following special standards: [A] Lot area, min.: 1,800 sf; [B] Max. density: 18 units/acre; and [C] Open space: 120 sf/unit.	
	Building separation	10 / 6	[2] Single-family detached residences may be constructed on lots within subdivisions recorded prior to January 1, 2024, subject to the RS2 district standards.	
HEIGHT (MAX. FT.) [1]				
D	Structure height	35		
OPEN SPACE [1]				
200 sf/unit				

Figure 30.02-9: RM18 District Standards Illustration



30.02.10 RM32: Residential Multi-Family 32

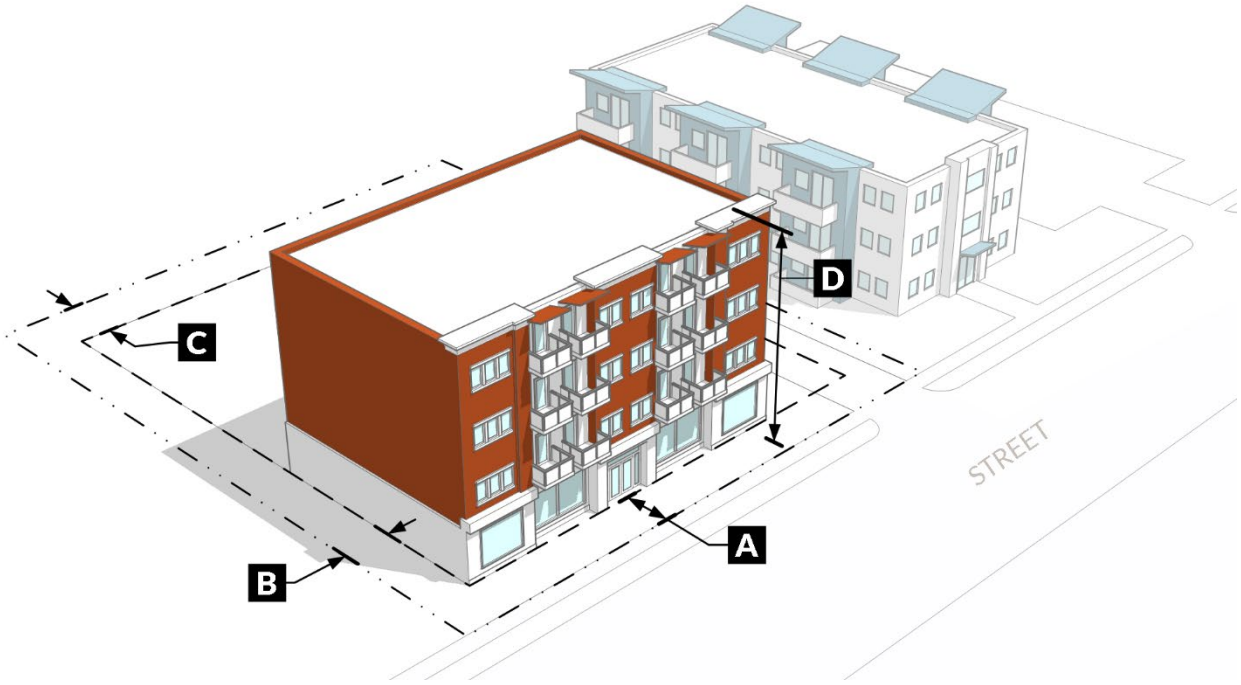
A. Purpose

The RM32 district is established to accommodate a diverse array of high-density, residential development in multi-family structures. This district is intended to support walkability, transit-use, and serve as a transition between high-density residential areas and commercial, mixed-use, and nonresidential areas.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	7,000 sf	Overlay Districts	§30.02.26
	Density, max.	32 units/acre	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.)		PRIMARY / ACCESSORY	Use Regulations	Chapter 30.03
A	Front	20	Development Standards	Chapter 30.04
B	Side interior	20/ 5	Residential Adjacency	§30.04.06
	Side street	20		
C	Rear	20 / 5		
	Building separation	10 / 6		
HEIGHT (MAX. FT.)				
D	Structure height	50		
OPEN SPACE				
	100 sf/unit			

Figure 30.02-10: RM32 District Standards Illustration



30.02.11 RM50: Residential Multi-Family 50

A. Purpose

The RM50 district is established to accommodate high-density, residential development in multi-family structures that are designed to be pedestrian- and transit-friendly. This district is intended to serve as a transition between high-density, multi-family residential areas and commercial, mixed-use, and nonresidential areas.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	7,000 sf	Overlay Districts	§30.02.26
	Density, max.	50 units/acre	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.)		PRIMARY / ACCESSORY	Use Regulations	Chapter 30.03
A	Front	20	Development Standards	Chapter 30.04
B	Side interior	20/5	Residential Adjacency	§30.04.06
	Side street	20		
C	Rear	20 / 5		
	Building separation	10 / 6		
HEIGHT (MAX. FT.)				
D	Structure height	75		
OPEN SPACE				
	100 sf/unit			

Figure 30.02-11: RM50 District Standards Illustration



30.02.12 CN: Commercial Neighborhood

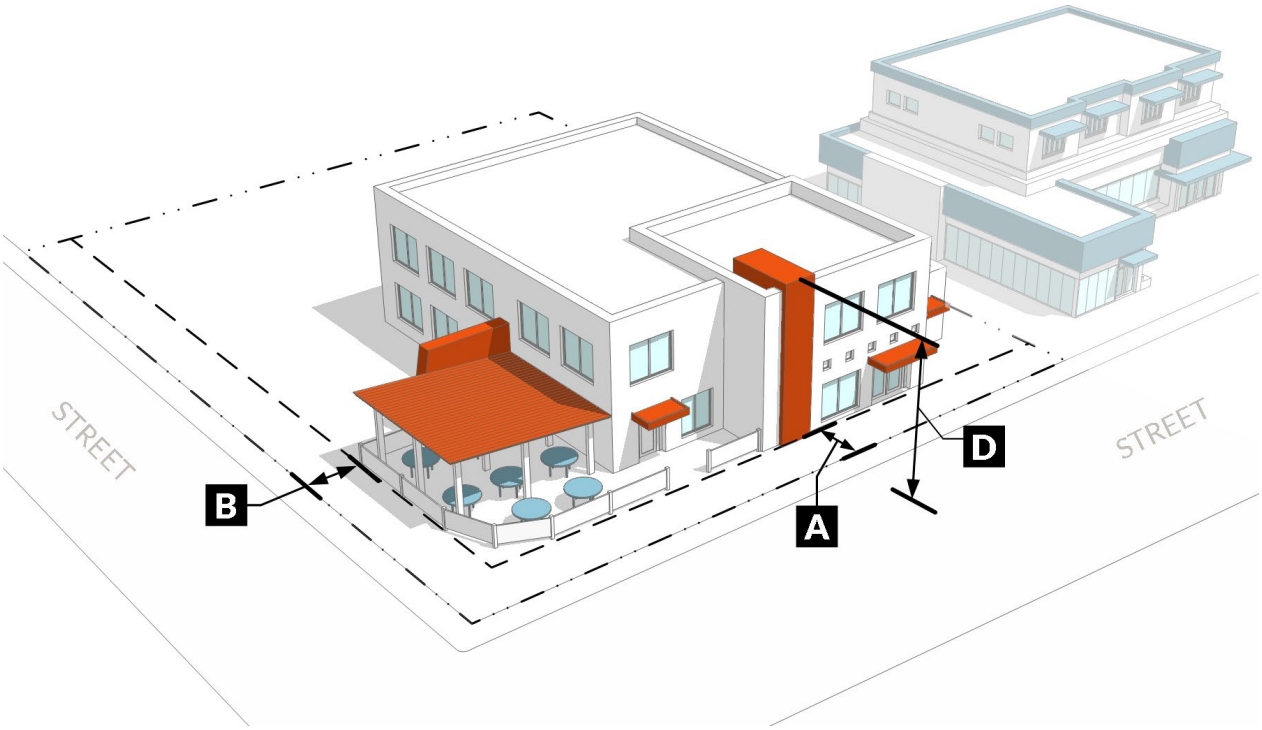
A. Purpose

The CN district is established to accommodate walkable neighborhoods and improve access to small-scale pedestrian-oriented services and amenities within walking distance of residential single-family districts. This district is designed to accommodate a mix of uses that primarily serve local residents.

B. Standards

	LOT		OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Lot coverage, max.	60%	Measurement/Exceptions	§30.02.25
	SETBACK (MIN. FT.)		Use Regulations	Chapter 30.03
A	Front	10	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10		
	Rear	--		
	HEIGHT (MAX. FT.)			
D	Structure height	35		

Figure 30.02-12: CN District Standards Illustration



30.02.13 CP: Commercial Professional

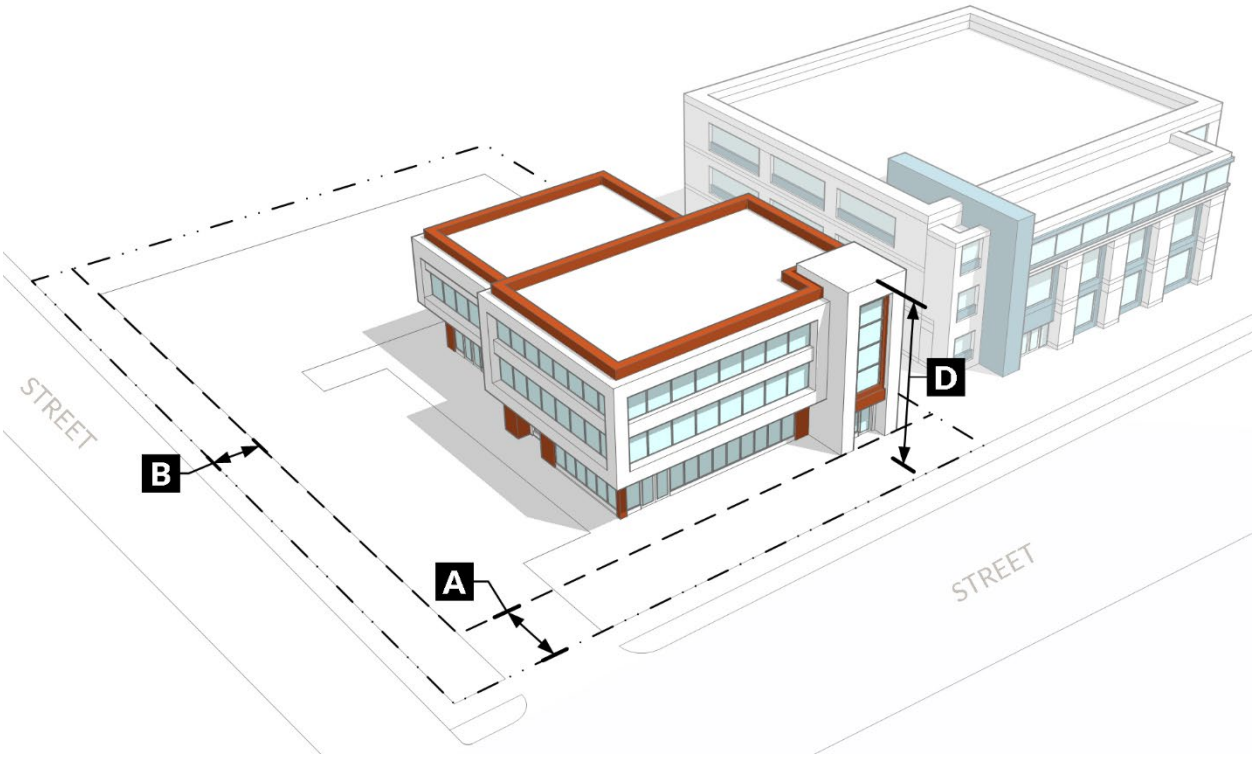
A. Purpose

The CP district is established to accommodate office and professional uses and provide a buffer between residential neighborhoods and nonresidential areas. Along arterial or collector streets, this district may feature the adaptive reuse of residential buildings for office and professional uses that preserve the scale and character of adjacent residential neighborhoods. Along major transit corridors, this district is intended to achieve walkable and transit-oriented office and professional uses.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Lot coverage, max.	60%	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.)			Use Regulations	Chapter 30.03
A	Front	15	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10		
	Rear	--		
HEIGHT (MAX. FT.)				
D	Structure height	35		

Figure 30.02-13: CP District Standards Illustration



30.02.14 CG: Commercial General

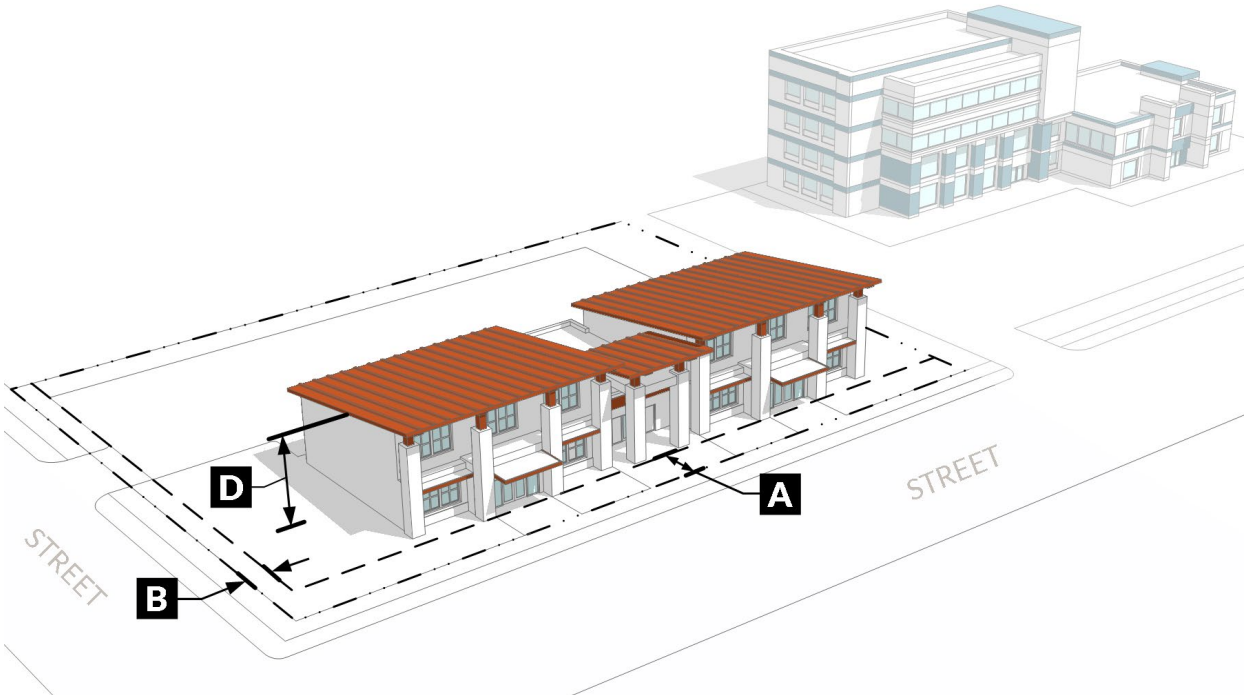
A. Purpose

The CG district is established to accommodate traditional, auto-oriented commercial uses while allowing for the transition over time to a mix of retail, commercial, and mixed-use development.

B. Standards

	LOT		OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Lot coverage, max.	60%	Measurement/Exceptions	§30.02.25
	SETBACK (MIN. FT.)		Use Regulations	Chapter 30.03
A	Front	10	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10		
	Rear	--		
	HEIGHT (MAX. FT.)			
D	Structure height	50		

Figure 30.02-14: CG District Standards Illustration



30.02.15 CC: Commercial Core

A. Purpose

The CC district is established to accommodate walkable and transit-supportive mixed-use development along arterial and collector streets. This district allows for a greater mix of retail, office, and commercial uses and a wide variety of housing options with integrated public gathering spaces.

B. Standards

	LOT		OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Lot coverage, max.	75%	Measurement/Exceptions	§30.02.25
	SETBACK (MIN. FT.)		Use Regulations	Chapter 30.03
A	Front	10	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10		
	Rear	--		
	HEIGHT (MAX. FT.)			
D	Structure height	55		

Figure 30.02-15: CC District Standards Illustration



30.02.16 CU: Commercial Urban

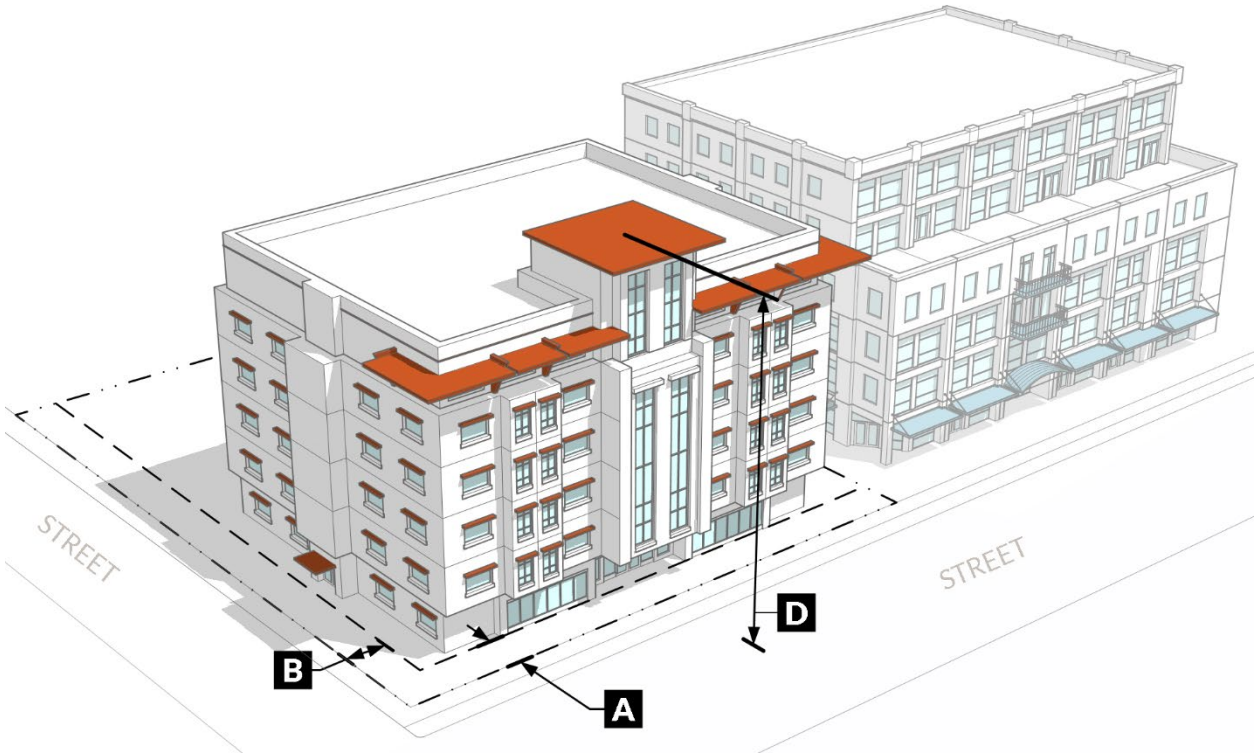
A. Purpose

The CU district is established to accommodate a dense mix of retail, office, commercial, and mixed-use development with pedestrian-oriented infrastructure and access to high-frequency transit service. This district also allows major employment centers similarly designed to support walkability and transit use.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Lot coverage, max.	--	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.)			Use Regulations	Chapter 30.03
A	Front	10	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10		
	Rear	--		
HEIGHT (MAX. FT.)				
D	Structure height	200		

Figure 30.02-16: CU District Standards Illustration



30.02.17 CR: Commercial Resort

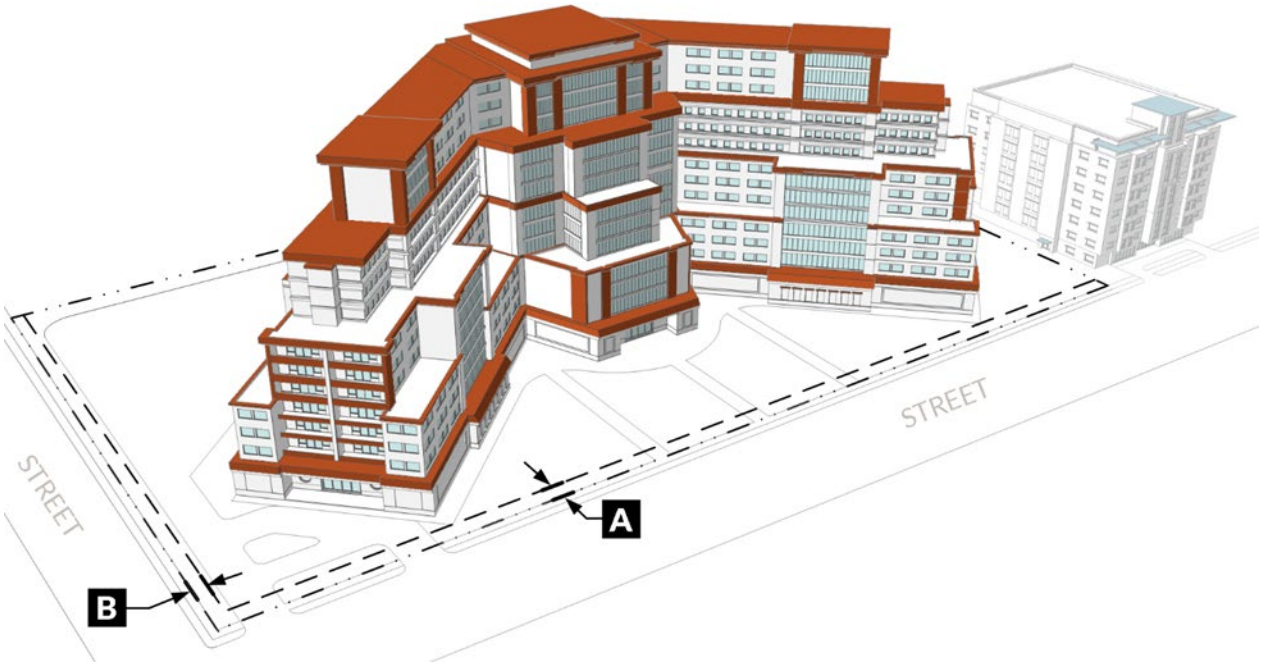
A. Purpose

The CR district is established to accommodate the development of gaming enterprises, tourist and commercial activity, and mixed-use development, and to prevent uses incompatible with gaming enterprises and resort development.

B. Standards

LOT [1]			OTHER STANDARDS	
	Lot area, min.	--	Overlay Districts	§30.02.26
	Density, max. [2]	--	Measurement/Exceptions	§30.02.25
SETBACK (MIN. FT.) [1]			Use Regulations	Chapter 30.03
A	Front	10	Development Standards	Chapter 30.04
	Side interior	--	Residential Adjacency	§30.04.06
B	Side street	10	NOTES	
	Rear	--	[1] Resort hotels and multi-family dwellings in conjunction with or adjacent to a resort hotel, see layout and design standards in §30.03.06E.4, *Resort Hotel or Rural Resort Hotel*.	
	Building separation	--	[2] Multi-family dwellings not in conjunction with or adjacent to a resort hotel shall meet the RM50 district standards, with the following special standard: [A] Density, max.: 100 units/acre.	
HEIGHT (MAX. FT.) [1]				
	Structure height	--		

Figure 30.02-17: CR District Standards Illustration



30.02.18 IP: Industrial Park

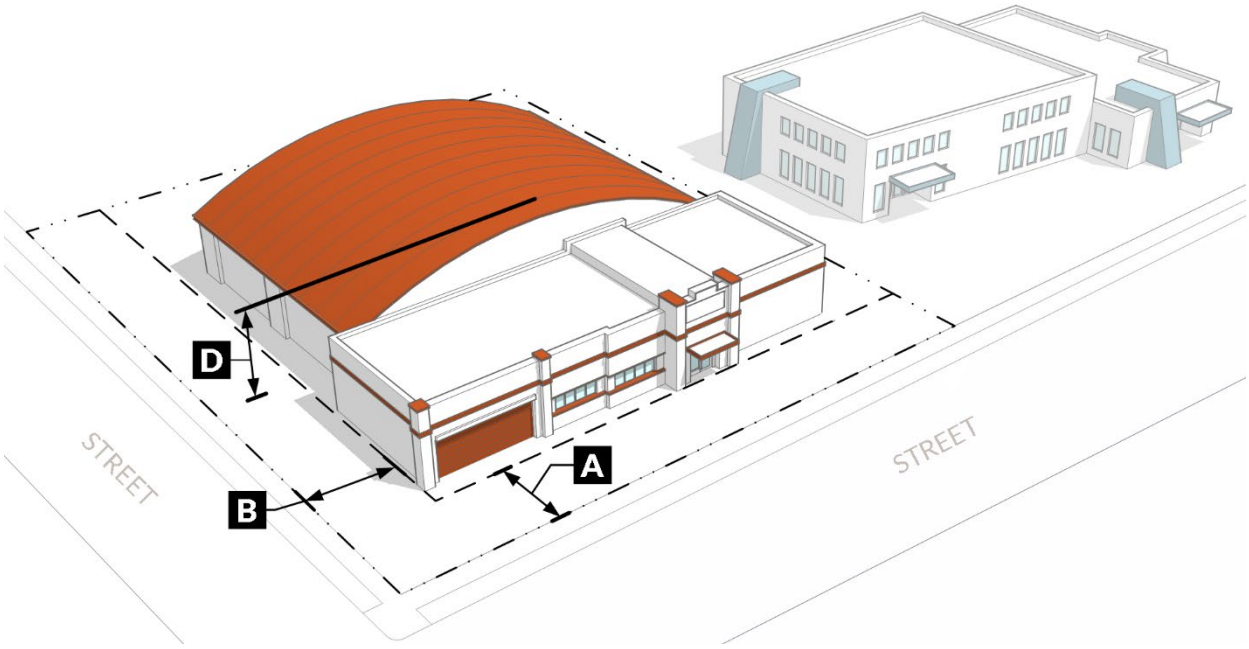
A. Purpose

The IP district is established to accommodate low-intensity industry, processing, wholesaling, research and development, and supporting office.

B. Standards

LOT			OTHER STANDARDS	
	Lot coverage, max.	80%	Overlay Districts	§30.02.26
SETBACK (MIN. FT.)			Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
	Side interior	--	Development Standards	Chapter 30.04
B	Side street	20	Residential Adjacency	§30.04.06
	Rear	--		
HEIGHT (MAX. FT.)				
D	Structure height	50		

Figure 30.02-18: IP District Standards Illustration



30.02.19 IL: Industrial Light

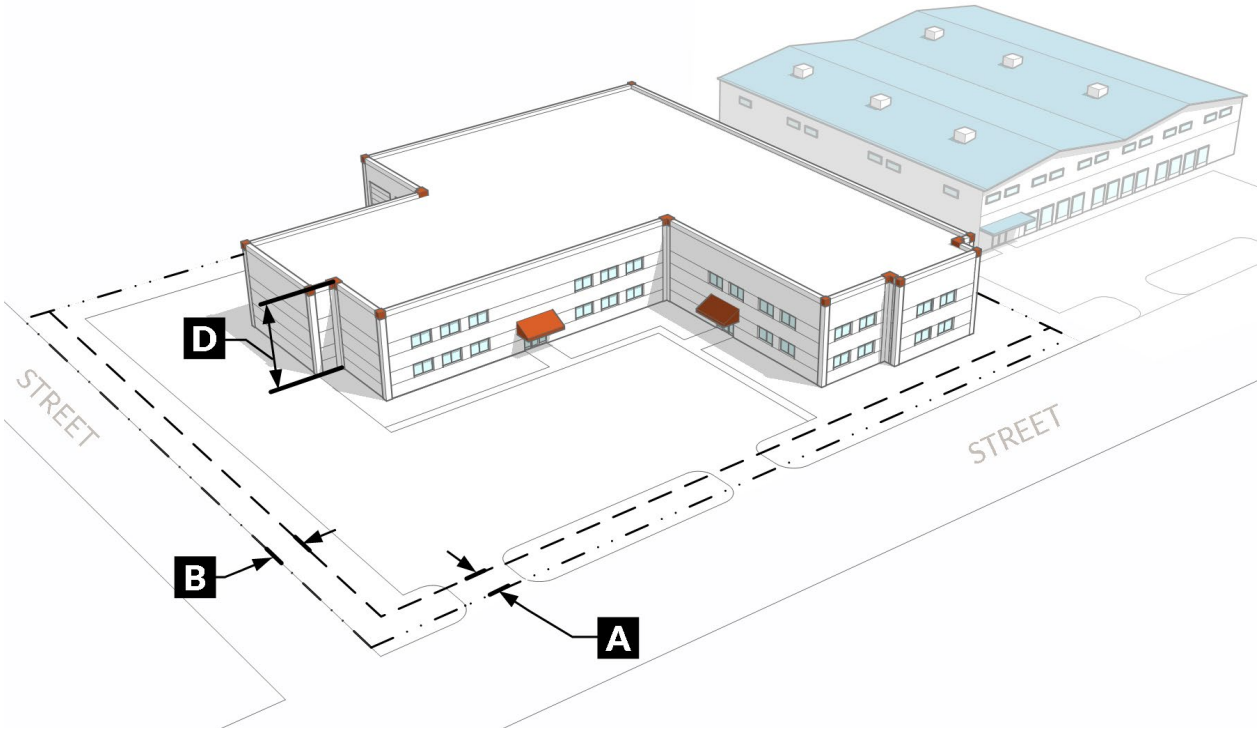
A. Purpose

The IL district is established to accommodate low- and moderate-intensity industrial and manufacturing activities, and indoor/outdoor storage uses with supporting office spaces.

B. Standards

	LOT		OTHER STANDARDS	
	Lot coverage, max.	80%	Overlay Districts	§30.02.26
	SETBACK (MIN. FT.)		Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
	Side interior	--	Development Standards	Chapter 30.04
B	Side street	20	Residential Adjacency	§30.04.06
	Rear	--		
	HEIGHT (MAX. FT.)			
D	Structure height	50		

Figure 30.02-19: IL District Standards Illustration



30.02.20 IH: Industrial Heavy

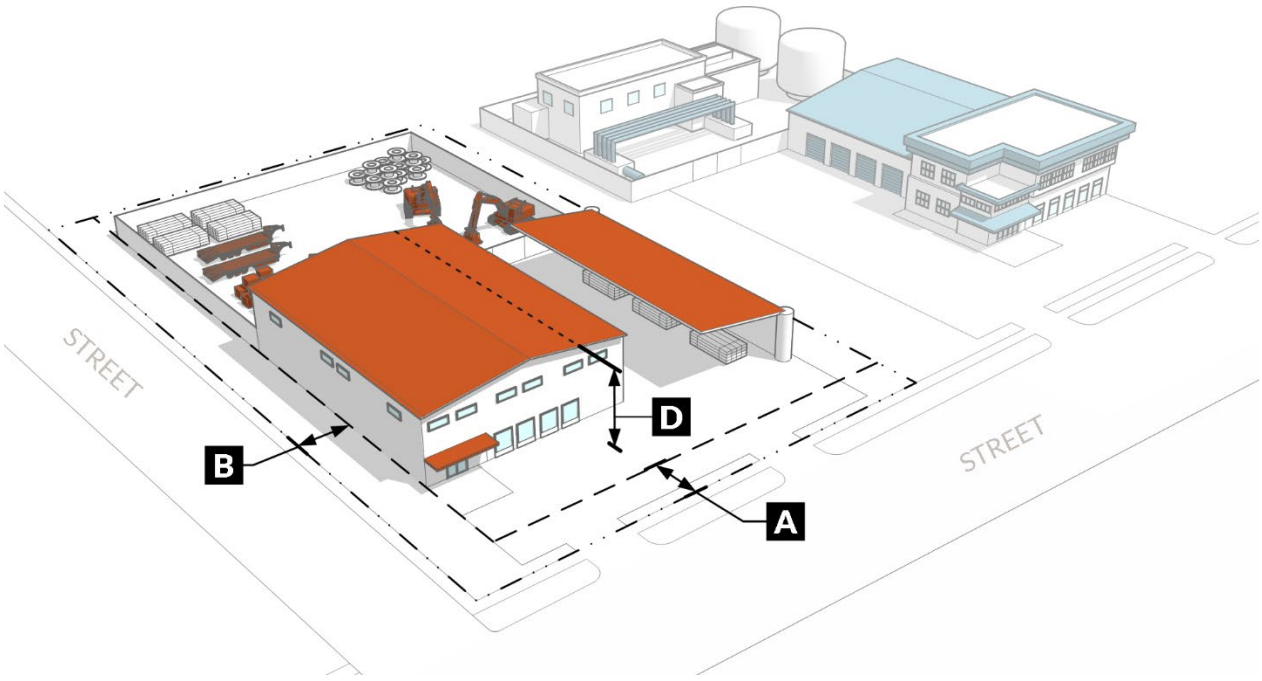
A. Purpose

The IH district is established to accommodate the most intense industrial and manufacturing activities at a distance from other uses. This district should be served by access to roadway and/or railway transportation systems and may consist of large-format buildings designed for high-intensity manufacturing, processing, warehousing, and indoor/outdoor storage uses with supporting office spaces.

B. Standards

	LOT		OTHER STANDARDS	
	Lot coverage, max.	80%	Overlay Districts	§30.02.26
	SETBACK (MIN. FT.)		Measurement/Exceptions	§30.02.25
A	Front	20	Use Regulations	Chapter 30.03
	Side interior	--	Development Standards	Chapter 30.04
B	Side street	20	Residential Adjacency	§30.04.06
	Rear	--		
	HEIGHT (MAX. FT.)			
D	Structure height	75		

Figure 30.02-20: IH District Standards Illustration



30.02.21 AG: Agriculture

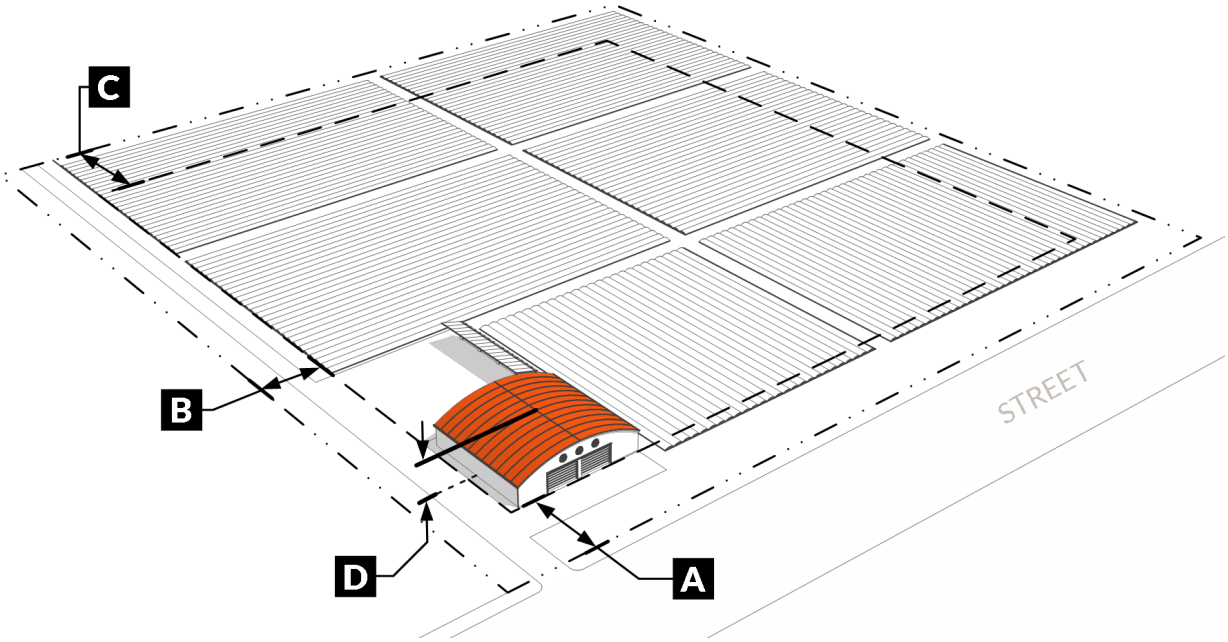
A. Purpose

The AG district is established to accommodate commercial-scale agriculture and secondary uses associated with working farms, ranches, and other agriculture.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	10 acres	Overlay Districts	§30.02.26
	Density, max.	1 unit/10 acres	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	10%	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.)			Development Standards	Chapter 30.04
A	Front	50		
B	Side interior	25		
	Side street	50		
C	Rear	75		
HEIGHT (MAX. FT.)				
D	Structure height	35		

Figure 30.02-21: AG District Standards Illustration



30.02.22 OS: Open Space

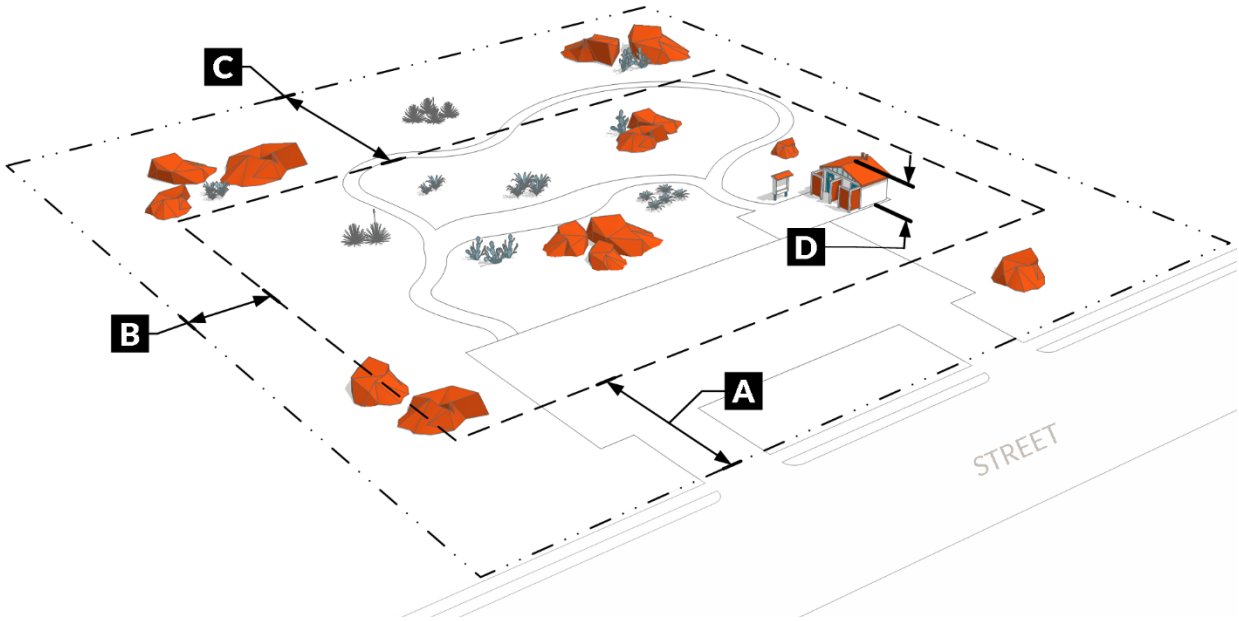
A. Purpose

The OS district is established to accommodate natural areas and public open lands in Clark County.

B. Standards

LOT			OTHER STANDARDS	
	Lot area, min.	10 acres	Overlay Districts	§30.02.26
	Density, max.	1 unit/10 acres	Measurement/Exceptions	§30.02.25
	Lot coverage, max.	5%	Use Regulations	Chapter 30.03
SETBACK (MIN. FT.)			Development Standards	Chapter 30.04
A	Front	50		
B	Side interior	25		
	Side street	50		
C	Rear	75		
HEIGHT (MAX. FT.)				
D	Structure height	35		

Figure 30.02-22: OS District Standards Illustration



30.02.23 PF: Public Facility

A. Purpose

The PF district is established to accommodate government facilities, structures, and uses, and related buildings, structures, and accessory uses. The district is intended to be developed with parks, libraries, schools, recreation areas, utility corridors, stormwater management, public safety facilities, and other government facilities and amenities.

B. Standards

Development in the PF district is expected to conform to the development and design standards of this Title. Except for regulations within §30.02.26B, *Airport Airspace Overlay (AAO)*, §30.02.26C, *Airport Environs Overlay (AEO)*, §30.06.11, *Permits and Licenses*, and §30.04.08, *Public Works Development Standards*, alternatives may be established per the approved plans on file.

Figure 30.02-23: PF District Standards Illustration



30.02.24 Summary Tables of District Standards

Table 30.02-2: Summary of Residential District Standards

Residential Districts										
District	**RS 80**	**RS 40**	**RS 20**	**RS 10**	**RS 5.2**	**RS 3.3**	**RS 2**	**RM 18**	**RM 32**	**RM 50**
LOT										
Lot area, min.	80,000 sf	40,000 sf	20,000 sf	10,000 sf	5,200 sf	3,300 sf	2,000 sf	7,000 sf	7,000 sf	7,000 sf
Net lot area, min.	72,000 sf	36,000 sf	18,000 sf	9,000 sf	--	--	--	--	--	--
Lot coverage, max.	15%	25%	50%	50%	--	--	--	--	--	--
Density, max.	--	--	--	--	--	--	--	18 units/ acre	32 units/ acre	50 units/ acre
SETBACK, PRIMARY / ACCESSORY (MIN. FT.)										
Front	40	40	40 Public Street 20 Private Street	30	20	20	20	20	20	20
Side interior	15 / 5	15 / 5	10 / 5	10 / 5	5	5	5	20/5	20/5	20/5
Side street	25 / 10	25 / 10	15 / 10	15 / 10	10	10	10	20	20	20
Rear	50 / 5	50 / 5	30 / 5	25 / 5	20 / 5	15 / 5	15 / 5	20 / 5	20 / 5	20 / 5
Building separation	6	6	6	6	6	6	6	10 / 6	10 / 6	10 / 6
HEIGHT, PRIMARY / ACCESSORY (MAX. FT.)										
Structure height	35 / 25	35 / 25	35 / 25	35 / 14	35 / 14	35 / 14	35 / 14	35	50	75
OPEN SPACE (MIN. SQ. FT.)										
Per unit	--	--	--	--	--	--	200	200	100	100

Table 30.02-3: Summary of Nonresidential District Standards

Nonresidential Districts												
Proposed District	**CN**	**CP**	**CG**	**CC**	**CU**	**CR**	**IP**	**IL**	**IH**	**AG**	**OS**	**PF**
LOT												
Lot area, min.	--	--	--	--	--	--	--	--	--	10 acres	10 acres	--
Density, max.	--	--	--	--	--	--	--	--	--	1 unit/ 10 acres	1 unit/ 10 acres	--
Lot coverage, max.	60%	60%	60%	75%	--	--	80%	80%	80%	10%	5%	--
SETBACK (MIN. FT.)												
Front	10	15	10	10	10	10	20	20	20	50	50	--
Side interior	--	--	--	--	--	--	--	--	--	25	25	--
Side street	10	10	10	10	10	10	20	20	20	50	50	--
Rear	--	--	--	--	--	--	--	--	--	75	75	--
HEIGHT (MAX. FT.)												
Structure height	35	35	50	55	200	--	50	50	75	35	35	--

30.02.25 Measurement and Exceptions

A. Purpose

This Section provides the uniform methods of measurement to be used for interpretation and enforcement of the district standards in this Title.

B. Density

1. Measurement

Density shall be calculated by the number of dwelling units occupying a given area of land expressed in terms of dwelling units per gross acre.

2. Standard

The density shall not exceed the limits of each district or Master Plan land use category, or for any lot or parcel within the district or category, unless otherwise stated.

3. Exceptions

Variances or waivers of standards to allow additional density shall not be accepted, unless otherwise stated. In the RS20 zoning district, subdivisions proposing up to 10 lots will be considered conforming to the corresponding Master Plan land use category density limitation if the net lot area requirements of the district, including any allowable exceptions, are met.

C. Lot Area and Coverage

1. Measurement

i. Lot Area

The area within the boundary of all perimeter lot lines, including private streets and public or private easements, but not including any area dedicated, reserved, or proposed to be dedicated or reserved for a public use; except that the minimum lot area in RS5.2, RS3.3 and RS2, shall not include private streets.

ii. Net Lot Area

The lot area less any area dedicated, reserved, proposed to be granted for private streets or for any private or public use.

iii. Lot Coverage

The percentage of lot area covered by the roof of any enclosed or unenclosed building, including eaves and overhangs.

2. Standards

i. Any lot created, developed, used, or occupied shall meet minimum lot area requirements for the applicable district unless otherwise established in this Title. Landscape and common element lots need not meet minimum lot area requirements.

ii. Lot area may not be reduced such that requirements for standard lot area, density, setback, open space, lot coverage, parking, or other requirements of this Title are no longer met.

3. Exceptions

i. Private Water and/or Wastewater System

Where a lot does not have access to public water and/or wastewater service, the minimum lot area shall not be less than Southern Nevada Health District (SNHD) and/or the State Engineer requirements.

ii. Arterial or Collector Adjacent

In the RS20 and RS10 districts, a lot adjacent to an arterial or collector street may reduce the net lot area by no more than 10%.

D. Setbacks

1. Measurement

i. Setbacks are measured from the front, rear, or side property line, extending inward onto the lot for the minimum depth in feet as specified in the applicable zoning district, unless otherwise specified in this section, and allowing for intrusions as described in Table 30.02-4: *Authorized Intrusions into Required Setbacks*.

ii. Setbacks shall be measured as follows:

(a) From the future right-of-way, the edge of any right-of-way or the lot line, whichever is closest to the interior of the lot.

(b) When adjacent to detached sidewalks, from a line 5 feet behind the curb.

iii. For corner/irregular shaped lots, the front lot line shall be along the street frontage used for addressing. If an address has not been assigned, the front lot line shall be the same street frontage as the identifiable entrance to the building.

2. Standards

i. Residential Buildings Along Railroad Lines, Freeways or Drainage Channels

A residential building shall not be erected within 50 feet of the right-of-way of any railroad line, nondepressed freeway, or drainage channel. The setback may be reduced to the zoning district standard only when:

(a) Adjacent to railroads and freeways, a landscape buffer with a noise attenuated wall is constructed per §30.04.02, *Buffering and Screening,* or a 25-decibel noise level reduction is incorporated in the construction of the dwelling.

(b) Adjacent to a drainage channel, the channel is improved and/or a protective wall is constructed per the requirements of Public Works.

3. Exceptions

Every part of a required setback shall be unobstructed from ground level to the sky, except as follows:

i. Parking in Setbacks

Parking is allowed in required setbacks.

ii. RS20 and RS10 Districts

(a) Arterial/Collector Access

Primary structures with sole arterial or collector access may reduce the minimum rear setback by 10 feet.

(b) Front Setback

The front setback for 50% of the primary structure width may be reduced by 12 feet if enhanced decorative features are provided, such as bay windows or stucco pop-outs.

iii. Single-Family Attached Dwelling

The side or rear setbacks may be eliminated to accommodate attached single-family dwelling development.

iv. Front Setback Alternatives

Alternative front setbacks are allowed if enhanced decorative features are provided along the affected street such as bay windows, window overhangs, stone or brick façades, and other unique architectural features as follows:

(a) In the RS5.2 and RS3.3 districts, the front setback for 50% of the primary structure width may be reduced by 10 feet.

(b) In the RS3.3 district, a second-story architectural enclosure may extend into the front setback up to 4 feet for the full building width.

(c) In the RS2 district, a 10-foot reduction for the full primary structure width.

(d) Architectural enclosures, except where specifically allowed in (b), may not intrude into the above-referenced reduced setback.

v. Authorized Intrusions into Required Setbacks

The following features and improvements generally are allowed to intrude into the setbacks, or be placed within reduced setbacks, subject to the limitations in Table 30.02-4. The reductions below may be in addition to any previously approved reductions to required setbacks.

Table 30.02-4: Authorized Intrusions into Required Setbacks

Exception	Extent of Setback Intrusion
Architectural Enclosure(s) and Intrusion(s)	**All districts:** May extend up to 3 ft. into a required setback but no closer than 5 ft. from the lot line or 3 ft. if Building Code allows • Enclosures limited to 12 ft. maximum width, measured horizontally across building face • A foundation or support column is allowed for overhangs
Measure from Leading Edge	
Balcony or Stairs 3 ft. to 6 ft. above grade	**All RS districts:** • Side interior and rear: no closer than 3 ft. from lot line • Side street: per Architectural Enclosure(s) and Intrusion(s)
Balcony or Stairs more than 6 ft. above grade	**All RS districts:** side interior, side street, and rear: per Architectural Enclosure(s) and Intrusion(s)
Attached Patio Covers or Carports, or those not meeting minimum required building separation	**RS80, RS40, and RS20 districts:** • Side interior and side street: see Architectural Enclosure(s) and Intrusion(s) • Rear: no closer than 17 ft. from lot line
	RS10 district: • Side interior and side street: see Architectural Enclosure(s) and Intrusion(s) • Rear: no closer than 12 ft. from lot line
	RS5.2, RS3.3, and RS2 districts: • Side interior and side street: see Architectural Enclosure(s) and Intrusion(s) • Rear: no closer than 3 ft. from lot line

vi. Accessory Structures, Roadway Improvements, and Utility Equipment

Fences, walls, mailboxes, light poles, required roadway improvements and utility equipment, power poles, and related structures may be permissible in any required setback provided that:

(a) Utility equipment is for those regulated by the Public Utilities Commission.

(b) Roadway improvements are required by, and in compliance with, Nevada Department of Transportation or Clark County standards.

vii. Shed Within Side and Rear Setbacks

A shed that is not visible from the street may be located within side or rear setbacks. A Minor Deviation (AV) per §30.06.06C is required for sheds within the side or rear setbacks when:

(a) The shed is visible from the street; or

(b) The shed is not complementary in color to the primary building and extends 2 feet or more above an opaque building, fence, or wall.

E. Height

1. Structure Height Measurement

Structure height shall be measured by averaging the height of all faces, taking the measurement from ground level at the center of each face to the highest point of the structure.

2. Standards

No building or structure shall be allowed if the Federal Aviation Administration (FAA) determines that the building or structure constitutes a hazard or obstruction to the operation of aircraft, unless the FAA determines that the hazard can be mitigated. See §30.02.26B, *Airport Airspace Overlay (AAO),* and §30.02.26C, *Airport Environs Overlay (AEO)*.

3. Exceptions

i. Community Building

A community building may exceed the maximum building height for accessory structures in residential districts to a maximum height of 35 feet.

ii. Communication Antenna

A communication antenna may exceed the maximum height per §30.03.08B.1, *Communication Antenna*.

iii. Chimney

A chimney may exceed the maximum structure height limit up to 3 feet.

30.02.26 Overlay Districts

A. Adult Business Overlay (ABO)

1. Purpose

The Adult Business Overlay (ABO) is established, in addition to the requirements for an "Adult Business" in §30.03.06A in the use-specific standards, by establishing appropriate locations, minimizing possible adverse effects on nearby public and private property, and protecting communities from incompatible uses.

2. Applicability

i. General

(a) The ABO may be expanded or amended by ordinance in accordance with §30.06.04B, *Rezone (Zone Change) (ZC).*

(b) The ABO is defined as the area referred to as the "Adult Business Overlay" as shown on the map on file with the Department of Comprehensive Planning.

(c) Adult businesses shall be considered a primary use rather than an accessory use, shall be limited to the ABO, and shall demonstrate minimal adverse impact on nearby private and public property.

(d) The standards and requirements specified in this subsection shall not be waived or varied.

ii. Permissible Locations

Adult businesses shall be in the Industrial Light (IL) district within the ABO boundary.

3. Standards

i. Permitted Uses

(a) The ABO allows the establishment of uses listed under "Adult Business" that meet the use-specific standards of §30.03.06A.

(b) No adult business shall be conducted in any manner that permits the observation of any material depicting, describing, or relating to specified sexual activities or specified anatomical areas from any public way or from any property not licensed as an adult business. This provision shall apply to any display, decoration, sign, show window, or other opening.

(c) Each business shall be considered a separate use, and approval of 1 use shall not establish or set a precedent for approval of any other adult business.

ii. Separations

Except as otherwise provided, separations shall be measured radially in all directions from the adult business lot line to the nearest lot line of the uses described below. The applicant shall provide evidence, certified by a professional land surveyor licensed in the State of Nevada, that demonstrates conformity with the separation requirements listed below. Separation requirements shall be satisfied as of the date the application is filed.

(a) A 1,500-foot minimum separation from any residential use, public library, public park, daycare facility for children, school for pre-school through grade 12, or place of worship.

(1) An exception is allowed only for daycare facilities established after an adult business was established and that serve the employees of that adult business.

(b) A 1,000-foot minimum separation from another existing adult business shall be measured from the building or suite of each adult business when located on the same parcel.

iii. Site and Design Standards

Development or redevelopment of lots and/or structures should promote site conditions that are compatible with adjacent uses and structures. In addition to standards required of the underlying

zoning district per this Chapter and Chapter 30.04, *Development Standards*, the following site and design standards shall also be required for any adult business:

(a) Adult businesses shall only be approved within an existing or approved building upon which construction has commenced.

(b) Industrial buildings proposed for an adult business shall be constructed or reconstructed in conformance with the standards required for commercial buildings per §30.04.05G, *Design Standards for Nonresidential Development*.

(c) All required parking shall be located on the parcel approved for the adult business.

(d) If an adult business is approved in combination with any other adult business, interior access is required throughout the entire establishment. Interior access need not be accessible to the public.

iv. Signs

(a) Signs within the ABO shall comply with Chapter 30.05, *Signs*.

(b) Signs shall not contain any emphasis, either by wording, picture, or otherwise, on matter related to sexual activities and/or anatomical areas as defined in Titles 6, 7, and 8 (Business License & Liquor and Gaming).

B. Airport Airspace Overlay (AAO)

1. Purpose

The Airport Airspace Overlay (AAO) is established to restrict intrusion into the airspace utilized by, and thereby jeopardizing the safety of, aircraft operating from the various airports within the County.

2. Applicability

i. Airport Zones

(a) The AAO includes all land lying beneath the airspace that is:

(1) Defined by Federal Aviation Regulation (FAR) Part 77 as the primary, approach, transition, horizontal, and conical surfaces, and the Aircraft Departure Critical Area surfaces identified by the maps listed in §30.02.26B.2.ii, *Official Airport Airspace Zoning Maps*;

(2) In proximity to military and public-use airports in the county; and

(3) Regulated by Chapter 20.13, Airport Hazard Regulations, of the Clark County Code.

(b) An area, lot, development, or site located in more than 1 airport district is considered to be only in the district with the more restrictive height design standards.

(c) All development shall comply with the standards herein and shall not be waived or varied.

ii. Official Airport Airspace Zoning Maps

The Official Airport Airspace Zoning Maps for specific airports within the jurisdiction of the County are on file with the Department of Comprehensive Planning.

(a) Harry Reid International Airport

The Harry Reid International Airport Official Airspace Zoning Map, consisting of 5 sheets, prepared by the Clark County Airport Engineering Department, dated July 18, 1990, and adopted by Ordinance 1221.

(b) Harry Reid International Airport Departure Critical Area

Harry Reid International Airport Aircraft Departure Critical Area Map consisting of 1 sheet, prepared by the Clark County Airport Engineering Department dated February 2, 1993, and adopted by Ordinance 1599.

(c) Jean Airport

The Jean Airport Official Airspace Zoning Map, consisting of 1 sheet, prepared by the Clark County Airport Engineering Department, dated July 18, 1990, and adopted by Ordinance 1221.

(d) Nellis Air Force Base

The Nellis Air Force Base Official Airspace Zoning Map, consisting of 10 sheets, dated March 4, 1998, and adopted by Ordinance 2119.

(e) North Las Vegas Airport

The North Las Vegas Air Terminal Official Airspace Zoning Map, consisting of 1 sheet, prepared by the Clark County Airport Engineering Department, dated July 18, 1990, and adopted by Ordinance 1221.

(f) Overton Airport

The Overton Airport Official Airspace Zoning Map, consisting of 1 sheet, prepared by the Clark County Airport Engineering Department, dated July 18, 1990, and adopted by Ordinance 1221.

3. Standards

i. Height Limitations

(a) Nothing in this subsection shall be construed to prohibit the construction, alteration, or maintenance of any structure that has received all necessary airspace approvals as required in Chapter 20.13 of the Clark County Code or is 35 feet or less above the surface of the land.

(b) Except as otherwise provided, no structure shall be permitted to be erected, altered, or maintained within the AAO that would:

(1) Constitute a hazard to air navigation;

(2) Result in an increase to minimum flight altitudes during any phase of flight; or

(3) Otherwise be determined to pose a significant adverse impact on airport or aircraft operations.

ii. Notices of Construction or Alteration

(a) Construction or Alteration Requiring Notice

Any person proposing construction or alteration in the environs of any public use or military airport shall notify the Manager, Air Traffic Division, FAA Regional Office, on FAA form 7460-1, not less than 30 days before commencement of construction if such construction or alteration exceeds any of the following height standards:

(1) 200 feet above ground level.

(2) The plane of an imaginary surface extending outward and upward at a slope of 100 to 1 for a horizontal distance of 20,000 feet from the nearest point of the nearest runway of any airport, subject to the provisions of this subsection.

(3) If construction or alteration is of greater height than the standards set forth in (1) or (2) above, after their height has been adjusted upward for the appropriate route as follows in Table 30.02-5.

Table 30.02-5: Transportation Route Height

Route	Height Above Route
Interstate Highway	17 ft.
Public Road	15 ft.
Private Road	10 ft., or the height of the highest mobile object that would normally use the route, whichever is greater
Railroad	23 ft.
Waterway or another unspecified route	The height of the highest mobile object that would normally use the route

(4) When requested by the FAA, any construction or alteration that would be in an instrument approach area, and available information indicates the height might exceed any FAA obstruction standard.

(5) Any construction or alteration for which notice is required by any other FAA regulation.

(b) Director of Aviation Permit or Airport Hazard Areas Board of Adjustment (AHABA) Variance

In accordance with Chapter 20.13.060 of the Clark County Code, a permit from the Director of Aviation or AHABA variance shall be required prior to any of the following:

(1) The construction or establishment of any new structure or use subject to notice requirements under FAR Part 77 or §30.02.26B.3.ii(a), *Construction or Alteration Requiring Notice*; or

(2) A substantial change or alteration of any existing structure or use subject to notice requirements under FAR Part 77§30.02.26B.3.ii(a), *Construction or Alteration Requiring Notice*; or

(3) When any nonconforming structure or tree is replaced, substantially altered, rebuilt, allowed to grow higher, or replanted.

(4) To erect or increase the height of any structure, or allow the growth of any tree, or otherwise use property in a manner that would constitute a violation of the AAO; or

(5) Any construction permits for any proposed airstrips, heliports, vertiports or similar aviation-flight use.

(i) No Director of Aviation Permit may be issued if the proposed construction or alteration does not include all appropriate mitigation measures identified in the FAA review process.

(ii) An AHABA variance may be allowed where a literal application of enforcement of these regulations would result in practical difficulty or unnecessary hardship, and the relief granted would not be contrary to the public interest but would do substantial justice and be in accordance with Title 20 of the Clark County Code.

(c) Construction or Alteration Not Requiring Notice

Notice to the FAA is not required for construction or alteration of any of the following:

(1) Objects that are shielded by existing structures of a permanent and substantial character or by natural terrain or topographical features of equal or greater height and would be located in the congested area of a city, town, or settlement where it is evident, beyond all reasonable doubt, that the structure so shielded will not adversely affect safety in air navigation.

(2) Any antenna structure of 20 feet or less in height, except one that would increase the height of another antenna structure.

(3) Any air navigation facility, airport visual approach, or landing aid, aircraft arresting device, or meteorological device of a type approved by the Director of Aviation, or an appropriate military service on military airports, the location and height of which is fixed by its functional purpose.

(4) Any construction or alteration for which notice is required by any other FAA regulation.

iii. Use Standards

Notwithstanding any other provisions of this subsection, no use may be made of land or water within any zone established under this part in such a manner as to:

(a) Create a "Hazard to Air Navigation" as determined by the FAA.

(b) Cause an increase in minimum flight altitude, or approach procedure altitudes, or departure procedure altitudes as determined by the FAA.

(c) Create electrical interference with navigation signals or radio communication between the airport and aircraft.

(d) Make it difficult for pilots to distinguish between airport lights and others.

(e) Result in glare in the eyes of pilots using the airport.

(f) Impair visibility in the vicinity of the airport.

(g) Create bird strike hazards.

(h) Otherwise in any way endanger or interfere with the landing, takeoff, or maneuvering of aircraft intending to use the airport.

iv. Marking and Lighting

The owner of any structure may be required to install, operate, and maintain thereon such markers and lights as may be deemed necessary by the Director of Aviation, or required by the Federal Aviation Administration (FAA) and/or the Board of Adjustment, to indicate to the operators of aircraft in the vicinity of the airport the presence of such airport obstruction.

C. Airport Environs Overlay (AEO)

1. Purpose

The Airport Environs Overlay (AEO) is established to:

i. Identify a range of uses compatible with airport accident hazard and noise exposure areas.

ii. Prohibit the development of incompatible uses detrimental to the general health, safety, and welfare.

iii. Require noise attenuated construction in accordance with the standards in Chapter 22.22 of the Clark County Code.

iv. Comply with Federal Aviation Administration (FAA) regulations.

2. Applicability

i. General

(a) Where standards conflict in this Title, the AEO standards shall supersede.

(b) Nothing within this Section shall be waived or varied.

ii. Airport Environs Overlay Maps

(a) The AEO, including 13 subdistricts (as shown on the AEO Map), is established around Nellis Air Force Base (AFB), Creech AFB, Harry Reid International Airport, Henderson Executive Airport, and North Las Vegas Airport.

(b) The AEO Maps are maintained in an electronic database including all subsequent amendments.

(c) Copies of the maps below are on file with the Department of Comprehensive Planning.

(1) Harry Reid International Airport

The overlay, together with the adoption of the Harry Reid International AEO Map (latest amendment effective June 30, 2008), is hereby incorporated into the Official Zoning Map, hereinafter referred to as "the Harry Reid International Airport Maps."

(2) Nellis Air Force Base

The overlay, together with the adoption of the Nellis AFB AEO Map (latest amendment effective June 3, 1998), is hereby incorporated into the Official Zoning Map, hereinafter referred to as "the Nellis Maps."

(3) Creech Air Force Base

The overlay, together with the adoption of the Creech AFB AEO Map (latest amendment effective March 31, 2004), is hereby incorporated into the Official Zoning Map, hereinafter referred to as "the Creech Map."

(4) Henderson Executive Airport

The overlay, together with the adoption of the Henderson Executive AEO Map (latest amendment effective June 30, 2008), is hereby incorporated into the Official Zoning Map, hereinafter referred to as "the Henderson Airport Map."

(5) North Las Vegas Airport

The overlay, together with the adoption of the North Las Vegas AEO Map (latest amendment effective June 30, 2008), is hereby incorporated into the Official Zoning Map, hereinafter referred to as "the North Las Vegas Airport Map."

(d) Updating Airport Environs Maps

(1) Every 5 years from July 1, 1998, the Clark County Department of Aviation (DOA) shall review the Harry Reid International Airport Maps and shall report to the Board on whether any update of the Harry Reid International Airport Maps is required to reflect the noise contours or runway protection zones in the environs of Harry Reid

International Airport, based on the DOA reasonable estimate of anticipated aircraft noise exposure. If updates to the Harry Reid International Airport Maps are required, the DOA shall prepare and present such updated maps to the Board for consideration.

(2) Plans for the Southern Nevada Supplemental Airport (SNSA), a new commercial airport in the Ivanpah Valley to serve as a reliever airport to Harry Reid International Airport, are currently undergoing environmental review. The Airport Environs Overlay Maps will be updated to include SNSA once the environmental review is completed.

iii. Airport Environs Subdistricts

The 13 AEO subdistricts are shown in Table 30.02-6, below.

Table 30.02-6: Airport Environs Subdistricts

Abbreviation	Subdistrict
RPZ	Runway Protection Zone
APZ-1	Accident Potential Zone I
APZ-2	Accident Potential Zone II
APZ-3	Accident Potential Zone III
APZ-4	Accident Potential Zone IV
AE-60	60 - 65 Ldn (Day-Night Sound Level)
AE-65	65 - 70 Ldn (Day-Night Sound Level)
AE-70	70 - 75 Ldn (Day-Night Sound Level)
AE-75	75 - 80 Ldn (Day-Night Sound Level)
AE-80	80 + Ldn (Day-Night Sound Level)
LOZ-1	Live Ordnance Zone 1
LOZ-2	Live Ordnance Zone 2
LOZ-3	Live Ordnance Zone 3

iv. Exceptions

(a) Required use restrictions and noise attenuation requirements do not apply to property owned by the respective operators of the airports if utilized for airport functions.

(b) Uses and structures established prior to the establishment of the AEO shall be allowed without regard to the additional standards of this overlay, except that noise attenuated construction, as required by Table 30.02-7, shall be required for the construction of any new habitable building per §30.01.09, *Nonconformities*, but shall not apply to any addition, remodel, or improvement to an existing building. The overlay was established as follows:

(1) Harry Reid International Airport and Nellis Air Force Base, Ordinance 975, effective May 23, 1986;

(2) Runway Protection Zones associated with Harry Reid International Airport, Ordinance 2458, effective April 19, 2000;

(3) AE 60 Subdistrict associated with Harry Reid International Airport, Ordinance 3658, effective June 30, 2008;

(4) Creech Air Force Base, Ordinance 3051, effective March 31, 2004;

(5) Henderson Executive Airport, Ordinance 3658, effective June 30, 2008; and

(6) North Las Vegas Airport, Ordinance 3658, effective June 30, 2008.

(c) Except for the use restrictions within the RPZ, APZ-3, APZ-4, LOZ-1, LOZ-2, or LOZ-3 subdistricts, uses and structures approved by any land use application prior to the establishment of the AEO shall be allowed without regard to the additional standards of this subsection, provided that all conditions imposed on such approval are met.

(1) This exception does not preclude the imposition of additional conditions, including conformance to the requirements of this subsection, if any Extension of Time to commence or complete construction or a modification of plans is approved.

(2) The recording of a final map for a subdivision, the approval of a tentative map, or the issuance of a building permit for any building or structure in an RPZ, APZ-3, APZ-4, LOZ-1, LOZ-2, or LOZ-3 subdistrict shall conclusively establish that such use, building, or structure is permitted upon the subject property.

3. Standards

i. General

(a) The list of permissible uses and mitigation measures required for each use vary for each subdistrict of the AEO, as shown in Table 30.02-7.

(b) Where a proposed use, building, structure, or land is impacted by two or more subdistricts of the AEO, the use, building, structure, and/or land shall conform to the requirements of all applicable subdistricts, and where subdistricts impose conflicting requirements, the most restrictive of the requirements shall apply. Where a use, building, structure, or land is partially located in a subdistrict, applicable subdistrict standards apply to the whole use, building, structure, or land.

(c) The AEO noise attenuation construction requirements and land use restrictions, delineated in Table 30.02-7, shall be imposed in addition to and shall overlay all other districts that are encompassed or circumscribed by the AEO.

ii. Explanation of Table Abbreviations

(a) Uses Permitted

(1) A "Y" in a cell indicates the use is permissible. Permissible uses are subject to all other applicable regulations of this Title.

(2) A "()" in a cell indicates the use is not associated with structures or people-intensive uses, including but not limited to, lakes, hunting, and similar uses. Therefore, no restrictions are applied.

(3) A "{Y}" in a cell indicates the use is permissible. However, habitable buildings, structures, or occupancy are prohibited.

(4) A "[Y]" in a cell indicates the use is permissible. However, buildings, structures, or above ground transmission lines are prohibited.

(b) Uses Requiring a Special Use Permit

(1) A "(Y)" in a cell indicates the use shall obtain approval of a Special Use Permit (UC), per §30.06.05D.

(2) A "{(Y)}" in a cell indicates the use shall obtain approval of a Special Use Permit (UC), per §30.06.05D. However, habitable buildings, structures, or occupancy are prohibited.

(3) A "[(Y)]" in a cell indicates the use shall obtain approval of a Special Use Permit (UC), per §30.06.05D. However, buildings, structures, or above ground transmission lines are prohibited.

(4) Additional factors to be considered include: labor intensity, height of structures, structural coverage, explosive characteristics, air pollution, size of establishment, people density, peak period concentrations (including shopper/visitors), and low intensity office uses only (limited scale of concentration of such uses).

(5) Meeting places, auditoriums, and other areas of public assembly are prohibited in runway protection zones or live ordnance zones.

(c) Uses Permissible Subject to Noise Attenuated Construction

(1) A "25," "30," or "35" in a cell indicates a use shall meet a noise level reduction of 25, 30, or 35 decibels, respectively.

(2) A "(25)," "(30)," or "(35)" in a cell indicates a use shall meet a noise level reduction of 25, 30, or 35 decibels, respectively, in areas where the public is received, office areas, noise sensitive areas, or where ambient noise level is low.

(d) Prohibited or Excepted Uses

(1) An "N" in a cell indicates a use is prohibited unless otherwise allowed by §30.02.26C.2.iv with required noise reduction. An "(N)" in a cell indicates a use is prohibited unless otherwise allowed by §30.02.26C.2.iv with a required noise reduction of 30 decibels. An "[N]" in a cell indicates a use is prohibited unless otherwise allowed by §30.02.26C.2.iv with a required noise reduction of 35 decibels.

(2) All uses not listed in Table 30.02-7 below, are expressly prohibited unless otherwise allowed by this subsection, or approved by the Director of Aviation.

(e) Additional Required Conditions

An "*" (asterisk) in a cell indicates a use that is required to meet additional conditions per the Key in Table 30.02-7, below.

iii. AEO Table of Allowed Uses

To further determine the applicable compatibility use regulations, refer to the Standard Land Use Classification Manual (SLUCM) codes.

Table 30.02-7: Land Use Compatibility in the Airport Environs Overlay

SLUCM Code		Subdistricts										
Number	Minor Group	Risk Zones and Noise Zones										
		RPZ	APZ-1	APZ-2	AE-60	AE-65	AE-70	AE-75	AE-80	LOZ-1	LOZ-2 APZ-3	LOZ-3 APZ-4
Undetermined												
0	An undetermined use	( )	( )	( )	( )	( )	( )	( )	( )	N	N	N
Nonresidential												
0	General accessory use	( )	( )	( )	( )	( )	( )	( )	( )	( )	( )	( )
Residential												
0	General accessory use	( )	( )	( )	( )	( )	( )	( )	( )	N	N	N
1110*	Accessory use to residential (up to 2 units/acre)	N	N	Y	25	25	30	[N]	[N]	N	N	N
1110*	Single-family up to 2 units/acre	N	N	Y	25	25	30	[N]	[N]	N	N	N
1115*	Accessory use to residential over 2 units/acre	N	N	Y	25	25	(N)	[N]	[N]	N	N	N
1115*	Single-family over 2 units/acre	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1120*	Two-family	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1130*	Multi-family Structure	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1200*	Group Quarters	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1300	Residential Hotels	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1410*	Permanent Mobile Home Parks/Courts	N	N	N	25	25	(N)	[N]	[N]	N	N	N
1420	Recreational Vehicle Park, aka transient mobile home park, court	N	N	N	Y	Y	(N)	[N]	[N]	N	N	N
1510	Hotel, Motel, Tourist Court	N	N	N	Y	25	30	35	[N]	N	N	N

Table 30.02-7: Land Use Compatibility in the Airport Environs Overlay

SLUCM Code		Subdistricts										
Number	Minor Group	Risk Zones and Noise Zones										
		RPZ	APZ-1	APZ-2	AE-60	AE-65	AE-70	AE-75	AE-80	LOZ-1	LOZ-2 APZ-3	LOZ-3 APZ-4
1900*	Other Residential	N	N	N	25	25	(N)	[N]	[N]	N	N	N
Manufacturing												
2100	Food & Kindred Products	N	N	Y	Y	Y	Y	(30)	(35)	N	N	(Y)
2200	Textile Mill Products	N	N	N	Y	Y	Y	(30)	(35)	N	N	N
2300	Apparel & Finished Products	N	N	N	Y	Y	Y	(30)	(35)	N	N	N
2400	Lumber & Wood Products (except furniture)	N	(Y)	Y	Y	Y	Y	(30)	(35)	N	N	(Y)
2500	Furniture & Fixtures	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	N	(Y)
2600	Paper & Allied Products	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	N	(Y)
2700	Printing, Publishing	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	N	(Y)
2800	Chemical & Allied Products	N	N	N	Y	Y	Y	(30)	(35)	N	N	N
2900	Petroleum Refining & Related Industries	N	N	N*	Y	Y	Y	(30)	(35)	N	N	N
3100	Rubber & Misc. Plastics	N	N	N	Y	Y	Y	(30)	(35)	N	N	N
3200	Stone, clay & glass products	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	{(Y)}	(Y)
3300	Primary Metal Industries	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	N	(Y)
3400	Fabricated Metal Products	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	{(Y)}	(Y)
3500	Instruments & Optical Goods	N	N	N	Y	25	30	N	N	N	N	N
3900	Misc. Manufacturing	N	(Y)	(Y)	Y	Y	Y	(30)	(35)	N	{(Y)}	(Y)*
Transportation and Utilities												
4100	Railroad, Rapid Rail, Street Railway	N	[Y]	Y	Y	Y	Y	Y	Y	N	N	(Y)
4200	Motor Vehicle Transportation	N	[Y]	Y	Y	Y	Y	(30)	(35)	N	N	(Y)
4300	Aircraft Transportation	N	[Y]	Y	Y	Y	Y	(30)	(35)	N	N	N
4500	Highway & Street ROW	[Y]	[Y]	Y	Y	Y	Y	Y	Y	{Y}	{Y}	Y
4600	Auto Parking	[Y]	[Y]	Y	Y	Y	Y	Y	Y	N	{Y}	Y
4700	Communications	[Y]	(Y)	Y	Y	Y	(25)	(30)	(35)	{Y}	{Y}	Y
4800*	Utilities	[Y]	[Y]	Y	Y	Y	Y	Y	Y	{Y}	{Y}	Y
4900	Other Trans, Communications & Utilities	[Y]	[Y]	Y	Y	Y	Y	Y	Y	N	N	N
Wholesale Trade												
5100	Wholesale Trade	N	Y	Y	Y	Y	Y	(30)	(35)	N	N	(Y)
5200	Building Materials & Hardware	N	N	N	Y	Y	(25)	(30)	(35)	N	N	N
5300	General Merchandise/ Retail	N	N	Y	Y	Y	25	30	35	N	N	N
5399	Miscellaneous General Merchandise	N	N	N	Y	Y	25*	30	35	N	N	N
5400	Food, Retail	N	N	Y	Y	Y	25	30	35	N	N	N
5500	Auto, Marine & Aircraft Accessories	N	Y	Y	Y	Y	25	30	35	N	N	N
5600	Apparel & Accessories Retail	N	N	Y	Y	Y	25	30	35	N	N	N
5700	Furniture & Home Furnishings Retail	N	N	Y	Y	Y	25	30	35	N	N	N
5800	Eating & Drinking Place	N	N	N	Y	Y	25*	30	35	N	N	N
5900	Other Retail Trade	N	N	Y	Y	Y	25*	30	35	N	N	N
5999*	Resort Condominium	N	N	N	25	25	N	N	N	N	N	N
Services												
6100	Finance, Insurance & Real Estate	N	N	(Y)	Y	Y	25	30	35	N	N	N
6200	Personal Services	N	N	(Y)	Y	Y	25	30	35	N	N	N
6240	Cemeteries	[Y]	[Y]*	[Y]*	Y	Y	(25)	(30)	(35)	[(Y)]	[Y]	[Y]
6300	Business Services	N	N*	(Y)	Y	Y	25	30	35	N	N	N
6370	Warehousing and Storage Services	N	Y*	Y	Y	Y	Y	(30)	(35)	N	{Y}	(Y)
6380	Explosives Storage	N	N	N	Y	Y	(25)	(30)	(35)	N	N	N
6400	Repair Services	N	(Y)	(Y)	Y	Y	(25)	(30)	(35)	N	N	(Y)*

Table 30.02-7: Land Use Compatibility in the Airport Environs Overlay

SLUCM Code		Subdistricts										
Number	Minor Group	Risk Zones and Noise Zones										
		RPZ	APZ-1	APZ-2	AE-60	AE-65	AE-70	AE-75	AE-80	LOZ-1	LOZ-2 APZ-3	LOZ-3 APZ-4
6510	Medical & Other Health Services	N	N	N	Y	25	30	N	N	N	N	N
6520	Legal services	N	N	(Y)	Y	Y	25	30	35	N	N	N
6590	Other Professional Svcs.	N	N	(Y)	Y	Y	25	30	35	N	N	N
6600	Contract Construction Svcs	N	(Y)	(Y)	Y	Y	(25)	(30)	(35)	N	N	N
6700	Government Services	N	N	(Y)	Y	Y	25	30	35	N	N	N
6800	Educational Services	N	N	N	Y	25	30	N	N	N	N	N
6910	Religious Activities	N	N	N	Y	25	30	N	N	N	N	N
6990	Other Misc. Services	N	N	(Y)	Y	Y	25	30	35	N	N	N
Recreation												
7110	Cultural Activities	N	N	N	Y	25	30	N	N	N	N	N
7120	Nature Exhibitions	N	(Y)	(Y)	Y	Y	N	N	N	N	{(Y)}	(Y)
7211	Outdoor Entertainment Assembly	N	N	N	Y	Y	N	N	N	N	N	N
7212	Indoor Entertainment Assembly	N	N	N	Y	25	30	N	N	N	N	N
7221	Outdoor Sports Assembly	N	N	N	Y	Y	Y	N	N	N	N	N
72211	Outdoor Motor Vehicle Race Tracks & Related Uses	N	(Y)	(Y)	Y	Y	(25)*	(30)*	(35)*	N	N	(Y)
72212	Recreational vehicle accommodations & Campgrounds in conjunction with & on same property as an outdoor motor vehicle racetrack with 50,000 or more seats & used in connection with events thereon	N	N	N	Y	Y	Y	Y	N	N	N	(Y)
7222	Indoor Sports Assembly	N	N	N	Y	Y	25	30	35	N	N	N
7230	Misc. Public Assembly	N	N	N	Y	(25)	(30)	N	N	N	N	N
7310	Fairground & Amusement Park	N	N	N	Y	Y	Y	N	N	N	N	N
7395	Outdoor Amusement	N	N	(Y)	Y	Y	Y	N	N	N	N	N
7396	Indoor Amusement	N	N	(Y)	Y	Y	25	30	35	N	N	N
7411	Outdoor Sports Activity	N	(Y)	(Y)	Y	Y	Y	N	N	N	N	N
7413	Indoor Sports Activity	N	N	(Y)	Y	Y	25	30	35	N	N	N
7420	Outdoor Playground, Athletic Area	N	N	(Y)	Y	Y	Y	N	N	N	N	N
7425	Indoor Playground, Athletic Area	N	N	(Y)	Y	Y	25	30	35	N	N	N
7430	Golf Course, Driving Range, Riding Stables & Water Recreation	[Y]	(Y)	(Y)	Y	Y	(25)	(30)	(35)	[(Y)]*	{(Y)}*	(Y)*
7490	Other Recreation	N	(Y)	(Y)	Y	Y	Y	N	N	N	N	(Y)
7500	Resort, Group Camp	N	N	N	Y	Y	Y	N	N	N	N	N
7600	Park	N	N	(Y)	Y	Y	Y	N	N	N	N	(Y)
Resources												
8150	Dairy Farming	N	Y	Y	Y	(25)	(30)	(35)	N	N	{(Y)}	(Y)
8160	Livestock Farm & Ranch [2]	N	Y	Y	Y	(25)	(30)	(35)	N	N	N	N
8190	Other Agriculture [1]	Y	Y	Y	Y	(25)	(30)	(35)	(35)	N	N	Y
8200	Agricultural Related Activities [2]	N	Y	Y	Y	(25)	(30)	(35)	N	N	N	N
8300	Forestry Activity & Related Services	N	Y	Y	Y	(25)	(30)	(35)	(35)	N	{Y}	(Y)
8400	Fishing Activity & Related Services [3]	N	Y	Y	Y	Y	Y	Y	Y	N	{Y}	(Y)
8500	Mining Activity & Related Services	N	Y	Y	Y	Y	Y	Y	Y	N	{(Y)}	(Y)
Undeveloped												
9100	Undeveloped & Unused Land	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y
9300	Water Areas [3]	N	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y
9910	Open Space	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y	Y

KEY	
Code Number	**Conditions**
1110*, 1115*, 1120*, 1130*, 1200*, 1410*, 1900*	• AE-60: 30 dB reductions (exterior to interior) required where habitable space exceeds a height of 35 ft. • AE-65: 35 dB reductions (exterior to interior) required where habitable space exceeds a height of 35 ft. • ALL NEW development (even when allowed by §30.02.26C.2.iv) located within the Harry Reid International, Henderson Executive or North Las Vegas AEOD - A noise disclosure form shall be recorded against the land by the developer and copy provided to the Clark County Department of Aviation (DOA); a copy of the recorded noise disclosure form shall be presented to the initial occupant separate from other escrow documents; the developer shall obtain a map from the DOA which highlights the project location and associated flight tracks, which is included as part of the noise disclosure notice. • 1900 - includes caretaker unit for commercial, industrial, and other uses that may not otherwise be classified or zoned for residential uses.
2900*	Indoor bulk storage of motor oil may be allowed for wholesale distribution only, subject to Special Use Permit approval, use of double-wall (minimum U.L. 142) storage tanks for all motor oil products, limited number of employees on site, and no processing of any motor oil products.
3900*	No motion picture production.
4800*	Renewable energy facilities (ex. Solar and geothermal facilities as well as wind turbines) shall delineate methods of mitigating possible plumes.
5200*	Wholesale sales only with no retail sale of products.
5800*	Outdoor dining is allowed subject to recording a Commercial Noise Disclosure Statement.
5900*	Outdoor markets and seasonal sales are allowed without sound attenuation.
5999*	AE-60: 30 dB reductions (exterior to interior) required where habitable space exceeds a height of 35 ft. AE-65: 35 dB reductions (exterior to interior) required where habitable space exceeds a height of 35 ft. All new development located within the Harry Reid International, Henderson Executive or North Las Vegas Airport Environs Overlay - A noise disclosure form shall be recorded against the land by the developer and copy provided to the Clark County Department of Aviation (DOA); a copy of the recorded noise disclosure form shall be presented to the initial occupant separate from other escrow documents; the developer shall obtain a map from the DOA which highlights the project location and associated flight tracks, which is included as part of the noise disclosure notice.
6240*	Crematory is allowed subject to no memorial services or areas which may allow for memorial services to be performed at the site.
6300* & 6370*	Automobile rental and related sales may be allowed as an accessory use if established in conjunction with automobile storage as the primary use, subject to approval of a Special Use Permit and restricting the number of employees and customers, if necessary, to minimize public safety concerns.
6400*	Aircraft, automobile, boat, truck, and heavy machinery repair only.
72211*	Sound attenuation not required for facilities designed to accept or direct patrons or participants of outdoor races and events nor for temporary or permanent facilities designed to allow patrons to view such events.
7430*	Golf courses and riding stables are prohibited.

NOTES

[1] Includes livestock grazing but excludes livestock feed/sales yards and commercial livestock uses.
[2] Includes livestock feed/sales yards and commercial livestock uses.
[3] Includes hunting and fishing.

D. Historic Designation Overlay (HDO)

1. Purpose

The Historic Designation Overlay (HDO) is established to preserve and protect properties and sites that represent distinctive historical, architectural, cultural, paleontological, or archeological character and value.

2. Applicability

None of the standards in this Section may be waived or varied.

3. Establishment of HDO

i. Criteria for Establishment

(a) A neighborhood, structure, or site may be eligible for an HDO designation upon a finding that such resource(s) have exceptional historical significance by meeting the following criteria:

(1) Conformance to the requirements for listing on the State or National Register of Historic Places; or

(2) A significant portion of the neighborhood, structure, or site is at least 40 years old; and reflective of the cultural, social, political, or economic past of Clark County such as association with a person or event significant in local, state, or national history; or it represents an established and familiar visual feature of an area of the County because of its location or physical appearance.

(b) A proposed neighborhood shall contain a minimum of 10 residential dwelling units with at least 2/3 of the units being a minimum of 40 years of age. The neighborhood should be bounded by historic boundaries such as roadways or channels, by recorded subdivision boundaries, or by boundaries which coincide with logical physical or man-made features. Noncontributing properties or vacant parcels shall only be included to the extent necessary to establish appropriate, logical boundaries to form a cohesive neighborhood.

ii. Initiation, Establishment, or Amendment

(a) The Board may initiate, establish, or amend the HDO for a neighborhood, structure, or site in an area that meets the designation criteria per §30.02.26D.3.i, *Criteria for Establishment*.

(b) A request to establish or amend the HDO may be submitted by the property owners of the neighborhood, structure, or site or an Executive Board member of a neighborhood association for the area where the neighborhood, structure, or site is located.

(1) When initiated by property owners of a neighborhood, a minimum of 51% of the lots within the proposed neighborhood HDO shall be represented by the signature of the property owner on a petition agreeing to the application. For lots with more than 1 owner, only 1 owner is required to sign the petition.

(2) When initiated by an Executive Board member of a neighborhood association, evidence of a vote affirming the request to initiate the establishment or amendment of the HDO shall be submitted with the application.

(c) Any establishment or modification of the HDO shall require an amendment to the zoning map per §30.06.04B, *Rezone (Zone Change) (ZC).*

iii. Document Submittal Requirements

In addition to the standard submittal requirements, the following documentation shall be included:

(a) Verification that the neighborhood, structure, and/or site meets the designation criteria per §30.02.26D.3.i;

(b) Vicinity map identifying the boundary of the proposed HDO;

(c) Elevations, in color, identifying the design character of the proposed HDO;

(d) Photographs of the neighborhood, structure, and/or site;

(e) List of assessor's parcel numbers for all parcels included in the proposed HDO; and

(f) Where applicable, information about the architect, designer, planner, or developer of the site; date and method of construction; plans for potential primary and accessory uses on the site; and ownership and address history.

4. Procedure for Review of New Construction, Alteration, and Demolition

An application per §30.06.05B, *Design Review,* is required prior to the construction of new buildings, additions of more than 10% of the area of an existing building, submittal of subdivision maps, demolition, or any significant alteration to any exterior structure visible from a street. All property owners within the overlay shall receive notification of the Design Review application.

E. Maryland Parkway Overlay (MPO)

1. Purpose

The Maryland Parkway Overlay (MPO) is established to implement design standards for transit-oriented, walkable, and sustainable development and revitalization of properties within the MPO generally located along Maryland Parkway between Sahara Avenue and Russell Road.

2. Applicability

i. The MPO is defined as the area shown on the "Maryland Parkway Overlay Map" on file with the Department of Comprehensive Planning.

ii. Conformance with the standards of the MPO is required for all new development.

iii. Modification to an approved or existing development shall conform to MPO standards if:

(a) Building area increases by more than 100 square feet or 10%, whichever is greater;

(b) The height of the building increases by more than 4 feet or 10%, whichever is greater; or

(c) The location of previously approved structures or uses is changed significantly.

3. Standards

i. Application Review

In addition to standard submittal requirements, the following documentation is required:

(a) Pedestrian circulation plan; and

(b) Art plan, including a recommendation letter from the Clark County Parks and Recreation, Cultural Division, or a statement requesting to defer the art plan. If deferred, the general location of art shall be shown on the site plan, and a future land use application will be required to review the art plan in conformance with this Section. Art shall be constructed/installed prior to certificate of occupancy.

ii. Site Design Standards

All development, except for single-family residential development, shall comply with the design and development standards that supplement the zoning district standards.

(a) Enhanced Sidewalks

All development shall comply with the enhanced sidewalk requirements in §30.04.05H.3, *Enhanced Sidewalks*.

(b) Open Space

All nonresidential development shall provide open space as follows:

(1) No less than 500 square feet with a minimum linear dimension of 20 feet.

(2) Developments 1 gross acre or larger shall develop at least 5% of the parcel as open space.

(3) No less than 50% of the area shall be shaded or covered.

(4) No less than 1 side shall front a street or pedestrian way.

(c) Public Art

(1) At least 1 public art installation is required.

(2) An art plan that includes an image of the proposed art, dimensions, location on the site, construction materials, and artist name shall be submitted to the Clark County Parks and Recreation, Cultural Division, for review for consistency with the Maryland Parkway Public Art Strategic Design Plan. The Clark County Parks and Recreation, Cultural Division will provide written recommendation.

(d) Parking

(1) Parking areas and drive aisles are not permissible between streets and front building façades.

(2) On-site surface parking, parking structures, and service areas shall be at least 20 feet from the back of the sidewalk and at least 5 feet from the side and rear lot line lines.

(3) Vehicular access to parking shall be provided from rear alleys or side roadways, if available.

(4) Drive-thru facilities, including stacking lanes, shall not be constructed between arterial or collector rights-of-way and the building façade.

(5) Any increase in the number of access points is not permissible on an arterial or collector street. Where feasible, access points shall be reduced.

(e) Pedestrian Access

(1) Improved pedestrian access or pathways, which may include stairs, shall be provided between sidewalks and building entrances.

(2) The sidewalk shall be connected to other pedestrian access/pathways with a pathway at least 10 feet in width. The pedestrian access or pathway shall not be gated and shall remain open to public access.

iii. Signage

One wayfinding sign shall be installed on the approach side of each street intersecting Maryland Parkway per Figure 30.02-24, below. The sign shall be in the amenity zone of the enhanced sidewalk and set back at least 5 feet from back of curb, and in compliance with §30.04.08G, *Sight Zones*. The sign content is as follows:

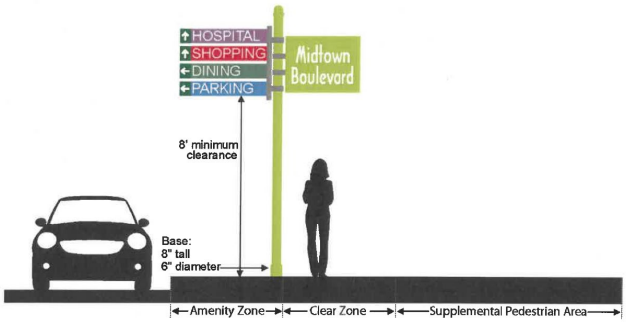
(a) Between Russell Road and Tropicana Avenue: "Midtown Gateway"

(b) Between Tropicana Avenue and Flamingo Road: "Midtown UNLV"

(c) Between Flamingo Road and Desert Inn Road: "Midtown Boulevard"

(d) Between Desert Inn Road and Sahara Avenue: "Midtown Medical"

Figure 30.02-24: Wayfinding Sign on Maryland Parkway



iv. Building Design Standards

(a) Building Façade

(1) Building entrances shall face adjacent rights-of-way. Those buildings not adjacent to a right-of-way shall face a public space. The entry may be recessed from the front façade.

(2) Stairs, patios, balconies, and awnings/shade structures may project beyond the building façade; however, they shall not encroach into the sidewalk/clear zone.

(3) Ground-level residential units adjacent to the sidewalk shall be a minimum of 3 feet above the finished grade of the enhanced sidewalk.

(4) Street- or public space-facing building façades shall provide features such as bay windows, recessed entryways, and other architectural features every 20 linear feet.

(5) Façades shall be articulated and exhibit design continuity with a decorative finish similar to the front façade.

(6) Façades adjacent to shared driveways shall include windows or secondary entrances.

(b) Building Transparency

(1) Façade windows fronting a right-of-way or public space shall occupy at least 20% of the total area of the façade. All floors of the building shall have windows.

(2) Transparent glass shall be on at least 70% of the ground floor of commercial building street-facing façades, as measured by multiplying the ground floor's ceiling height by the width of the ground floor façade.

(3) Transparent glass shall be on at least 35% of the ground floor of commercial building facades not facing a street, as measured by multiplying the ground floor's ceiling height by the ground floor façade width.

(c) Parking Structure Façade

(1) Commercial space shall be provided on the ground floor of any parking structure when adjacent to a street.

(2) The ground floor of all parking structures shall have a floor to ceiling height sufficient to allow for the conversion to commercial uses.

(3) Parking structure façades shall be compatible with other building façades on the site, and contain similar patterns, materials, details, and colors. Ramps shall be enclosed or screened from the right-of-way.

(d) Roofs

Architectural variations shall be provided every 100 feet of horizontal roof line.

v. Design Alternatives

(a) Density

Multi-family developments, including mixed-use developments with multi-family units, meeting the following criteria may increase the overall density of the development in 10% increments, which may be combined:

(1) Developments located within ¼ mile, measured along the nearest pedestrian access, to a developed or planned RTC transit stop.

(2) Developments providing an additional 10 feet or more to the required enhanced sidewalk width in §30.04.05H.3, *Enhanced Sidewalks.*

(3) Developments located within ¼ mile, measured along the nearest pedestrian access, to a pedestrian connection on the University of Nevada, Las Vegas.

F. Neighborhood Protection Overlay (NPO)

1. Purpose

The Neighborhood Protection Overlay (NPO) is established to identify, preserve, conserve, and protect the distinctive architectural, cultural, historical, or environmental character of existing neighborhoods, areas, sites, and structures by:

i. Protecting the physical attributes of a neighborhood, area, site, or structure;

ii. Promoting development or redevelopment compatible with that neighborhood, area, site, or structure; and

iii. Encouraging harmonious, orderly, and efficient growth.

2. Applicability

i. An approved NPO does not replace the underlying zoning of the area. Any approved NPO may further limit, but not augment, the uses and development allowed.

ii. All new development, additions, changes, and expansions to existing structures and uses shall comply with the regulations associated with the NPO. These standards will be reviewed for conformance during the review of an applicable land use application.

iii. Uses and structures legally existing at the time of adoption of an NPO shall not become nonconforming with the adoption of the overlay. Any proposed changes or additions to uses or structures in the overlay after the adoption date shall comply with the provisions of the adopted overlay.

iv. The NPO is distinguished from the Historic Designation Overlay (HDO), which requires a finding of exceptional historical significance. A property may be categorized under both the NPO and HDO.

3. Establishment of Neighborhood Protection Overlays

i. Designation Criteria

To be considered for designation as an NPO, an area shall meet the following criteria:

(a) The boundaries of the NPO are within a Planning Area adopted by the Board with the Master Plan recommendation of an NPO, or the Board has instructed the Director to study the area for a potential NPO.

(b) The area contains a minimum of 10 lots of similar character that are bound by logical physical or man-made features that clearly define a neighborhood.

(c) The area possesses 1 or more of the following distinctive features that create a cohesive, identifiable setting, character, or association:

(1) Scale, size, type of construction, or distinctive building materials;

(2) Spatial relationships between buildings;

(3) Lot layouts, setbacks, street layouts, alleys, or sidewalks;

(4) Unique natural or streetscape characteristics such as washes, parks, greenbelts, gardens, or street landscaping; and/or

(5) Land use patterns, including mixed or unique uses or activities.

ii. Procedure

A NPO shall be established by an amendment to the zoning map pursuant to §30.06.04B, *Rezone (Zone Change) (ZC).*

iii. NPO Ordinance

(a) Contents

Each NPO shall be established by a separate ordinance that includes a map showing the boundaries of the proposed NPO; graphic and written materials describing the physical attributes of the proposed NPO; and regulations for development and architectural standards.

(b) Development Standards

Development standards for each NPO are intended to be unique for each subdistrict and may include the following:

(1) Site and Structure Standards

- **(i)** Density;
- **(ii)** Lot size;
- **(iii)** Lot coverage;
- **(iv)** Setbacks;
- **(v)** Building and structure height;
- **(vi)** Accessory structures;
- **(vii)** Permissible uses;
- **(viii)** Fences and walls; and/or
- **(ix)** Parking and loading.

(2) Architectural Standards

- **(i)** Architectural styles;
- **(ii)** Building elevations;
- **(iii)** Building materials;
- **(iv)** Architectural features (like chimneys, porches, and windows); and/or
- **(v)** Roof form, pitch, and/or materials.

(3) Other Elements

NPO regulations may also address, but are not limited to: building relocation; building width; demolition; driveways, curbs, and sidewalks; foundations; garage location and entrance; impervious surfaces; landscaping or other natural features; building massing; exterior paint colors; and renewable energy systems and components.

iv. Amendment of NPO

The Board may amend the standards or boundaries of an established NPO per §30.06.04B, *Rezone (Zone Change) (ZC)*. The Board shall not grant a request to amend the standards or to add or remove property from an established NPO without finding that the amendment will not:

- **(a)** Alter the character of the established NPO as described in the NPO ordinance; or
- **(b)** Be detrimental to the overall purpose of the established NPO as described in the NPO ordinance.

4. Adopted Neighborhood Protection Overlay

i. Rural Neighborhood Preservation NPO

(a) Purpose

The Rural Neighborhood Preservation NPO is established to protect the rural character of lands within the Urban Area shown as Ranch Estate Neighborhood (RN) in the Master Plan that meet

the definition of Rural Preservation Neighborhood per NRS 278.0177. These areas are defined by long-established development patterns centered around low-density, large lot, ranch-style living where a variety of agricultural and equestrian animals are kept.

(b) Boundaries

The Rural Neighborhood Preservation NPO applies to all areas shown as Ranch Estate Neighborhood (RN) in the Master Plan, that meet the definition of "Rural Preservation Neighborhood," per NRS 278.0177.

(c) Allowed Land Uses

Primary land uses are single-family homes on lots of sufficient size to raise or keep animals non-commercially. Supporting land uses may include uses related to gardening and growing crops; accessory living quarters; and neighborhood-serving public facilities such as schools, parks, trails, open space, and other complementary uses.

(d) Standards

(1) Density

The maximum density shall be 2 dwelling units per acre, except that subdivisions proposing 10 or fewer lots may exceed the density if the net lot area requirements of the underlying district, and any allowable exceptions, are met.

(2) Lot Layout

(i) Gated communities are not permissible.

(ii) Subdivisions proposing 5 or more lots shall be designed with lots fronting residential local streets.

(3) Neighborhood Character

To preserve an open, rural character:

(i) Setbacks for primary structures shall be maintained in accordance with the applicable district standards, and any allowable exceptions.

(ii) Walls and non-decorative fences over 3 feet in height in the front setback shall be prohibited except agricultural fencing in conjunction with a permissible agricultural and livestock use is allowed unless otherwise stated by this Title. Walls and non-decorative fences along a side lot line within the front setback may be increased as follows:

a) When along a separate lot's shared side or rear lot line, the height may be increased consistent with the zoning requirements for fences and walls of that separate lot; or

b) A Waiver of Development Standards (WS), as described in §30.06.06F, may be requested.

(iii) Waivers for increased fence and wall height, including retaining walls, are strongly discouraged.

(iv) Use of walls along the perimeter of a subdivision shall be minimal.

(v) Developments and uses shall be compatible with a rural lifestyle, including the raising and keeping of animals.

(vi) Pathways for use by equestrians and pedestrians should be incorporated along perimeter streets.

(vii) Development and/or uses within a Rural Neighborhood Preservation NPO shall be subject to §30.04.06, *Residential Adjacency.*

G. Planned Community Overlay (PCO)

1. Purpose

The Planned Community Overlay (PCO) is established to identify areas approved as a master planned community.

2. Standards

The standards applicable in a PCO shall be detailed in an approved Specific Plan, area-specific design standards, and/or the Development Code locked-in pursuant to a valid development agreement.

3. Initiation, Establishment, or Amendment

The Board may establish or amend a PCO through a rezoning per §30.06.04B, *Rezone (Zone Change) (ZC).*

H. Red Rock Overlay (RRO)

1. Purpose

The Red Rock Overlay (RRO) is established to maintain the rural character of the area, preserve wildlife habitat, and minimize the visual impact of development on the adjacent Red Rock Canyon National Conservation Area (RRCNCA).

2. Applicability

i. General

The RRO is defined as the area referred to as the "Red Rock Design Overlay Map," on file with the Department of Comprehensive Planning. No waivers or variances of standards within this §30.02.26H shall be approved.

ii. Exceptions

The RRO shall not apply to Concept/Specific Plans of 700 acres or more on properties outside of the boundaries of the Red Rock Canyon National Conservation Area within the following sections:

(a) Township 21 South, Range 58 East, MDM; the East half of Section 25 and 36;

(b) Township 21 South, Range 59 East; MDMs Sections 29, 30, 31, and 32, the South half of Section 20 and West half of Sections 28 and 33; and

(c) Township 22 South, Range 59 East, MDM Section 5 and the West half of Section 4.

3. Density and Intensity Restrictions

i. General

In the RRO:

(a) No request shall be accepted to increase the number of residential dwelling units allowed by the zoning regulations in existence on June 18, 2003, unless the increase can be accomplished by the trading of development credits (or similar mechanism) that would allow a greater number of residential dwelling units to be constructed in an area without increasing the overall density of residential dwelling units in that area;

(b) No new nonresidential zoning district shall be established; and

(c) No nonresidential zoning district in existence on June 18, 2003, shall be expanded.

ii. Exceptions

Density and intensity restrictions shall not apply to the following:

(a) Public facilities; and

(b) Properties privately owned as of March 21, 2016, in the following sections within Township 22 South, Range 59 East: Sections 13, 14, 15, 16, 21, 22, 23, and 24 as shown on the Red Rock Overlay Map on file with the Department of Comprehensive Planning.

4. Site Development Standards

i. Natural Areas

The following standards are intended to minimize development impacts on adjacent existing communities and environmentally sensitive areas, including the town of Blue Diamond, Calico Basin, and the RRCNCA, and shall apply to any lot created after June 18, 2003, and any vacant lot of 2 or more acres in existence on June 18, 2003.

(a) Applicability

Any residential development shall be required to meet the standards of this subsection.

(b) General

Each lot in the RRO shall contain a building envelope surrounded by a natural area, as described below:

(1) The building envelope is the specified area for any proposed building or structure, including retaining walls, except as permissible in subsection (c), below.

(2) The building envelope shall be depicted on an approved site plan, generally in the center of the lot, 25 feet from the lot line or right-of-way, whichever is greater.

(3) The natural area is the land extending from the boundary of the building envelope to the lot line and shall remain in, or be restored to, a condition characteristic of the surrounding native geographical features.

(c) Natural Area Design Requirements

(1) Retaining walls constructed of man-made materials such as concrete, and solid perimeter walls, fences, and patios are prohibited. A waiver may be accepted if the use of public property is creating a nuisance on adjacent private property.

(2) Driveway width should be limited to the minimum required width.

(3) No entrance feature shall exceed 48 inches in height. Entry arches and portals are prohibited.

(d) Natural Area Landscaping

The natural area shall only include endemic low-water species based on the elevation of the parcel or lot, as follows:

(1) Below 3,500 Feet: Creosote Bush, Desert Globemallow, Gooding Willow, Hopsage, Mormon Tea, Range Ratany, White Bursage, Big Galleta, Bush Muhly, Desert Marigold, Sand Dropseed.

(2) 3,501 to 6,000 Feet: Banana Yucca, Blackbrush, Buckwheat, Horsebrush, Joshua Tree, Desert Needle Grass, Indian Ricegrass, Purple Three-Awn.

(3) Both Elevation Ranges: Mojave Yucca, Barrel Cactus, Cottontop, Blue Diamond Cholla, Old Man Cactus, Silver Cactus, Staghorn Cholla, Strawberry Hedgehog, Nevada Agave (see Southern Nevada Regional Planning Coalition's Regional Plant List for specific plant information) shall be planted in the natural area, and a list of endemic species shall be filed as part of the mapping process. Turf is not an endemic species within the RRO.

ii. Hillside Development

Blue Diamond Hill forms 2 distinct ridgelines as shown on the Red Rock Overlay Map. One faces the Las Vegas Valley, and the other faces Cottonwood Canyon and the Red Rock Scenic Loop. To preserve the viewsheds from both sides of the hilltop, the following standards shall apply:

(a) The standards in §30.04.05K, *Hillside Development*, shall apply to all development. Due to the significant amount of hillside topography, development may be clustered at a specific location on the site to preserve open space and minimize impacts to hillsides.

(b) Development is prohibited on the eastern side of the east ridge or the western side of the west ridge, nor the topmost 600 feet of the opposite side of each ridgeline.

(c) Any structure should be lower than the elevation of the ridgelines, and structures along either ridgeline visible from the Las Vegas Valley or from Highway 159 are expressly

prohibited. Unobtrusive, unlit overlook facilities such as parking lots, picnic areas, and restrooms may be permissible if approved through a public hearing application process.

(d) In areas where the land has not been significantly altered through mining and/or where the natural landforms have been preserved, grading shall be limited to flood control protections and may include channels and/or berms necessary to conform with Public Works standards. Where the land has been altered through mining or other uses, a plan to re-grade the land to create a natural appearance without significant importation of fill materials shall be submitted.

(e) To minimize visual impacts, a building site may be cut below or filled above the natural grade to conceal the development from a critical viewpoint.

(f) Drainage shall utilize natural channels unless flood control standards preclude it.

(g) Subdivision mapping shall follow the natural contours of the land. In previously disturbed areas, through grading and/or mining activities, subdivisions shall avoid rectilinear designs.

iii. Landscaping, Buffering, and Screening

Landscape improvements should be integrated with the overall project site requirements with sensitivity to the natural topography and existing or indigenous vegetation. Plant materials shall enhance the existing area, especially when visible from an adjacent right-of-way, and mitigate impact to washes, slopes, and sensitive environmental features. The following standards shall be used:

(a) Plant materials shall use compatible form, texture, and scale.

(b) Plant materials shall be used as accent elements at entry ways.

(c) All nonresidential parking areas shall be screened from all rights-of-way by low walls and/or fences 3 feet in height or less, or by continuous dense vegetation or a combination of these.

(d) All development shall provide plants similar in form and scale to existing area vegetation. Nonresidential development shall provide accent plants at entryways, changes in direction, and intersections of roads; trees clustered at plaza areas or other public gathering places; and clear identification of public, semi-public, and private areas by using varying elevations, low walls, fences, landscaping, lighting, color, and changes in paving texture to create distinctions between different land use areas.

(e) The building envelope area may use native and naturalized species not exceeding 25 feet in height at maturity.

iv. Fences and Walls

(a) Fences and walls, including retaining walls, shall be designed to complement the architecture and exterior materials of the primary structure.

(b) No fence or wall shall be more than 6 feet in height, except walls in conjunction with commercial development with frontage on a State Highway as designated in the Transportation Maps of the Master Plan may be up to 8 feet in height. Any fence or wall over 6 feet shall include decorative elements such as columns, pilasters, and varied designs or textures. No retaining wall shall be more than 4 feet in height.

(c) Wildlife-friendly fencing, as identified by existing BLM standards, is required along all conservation area boundaries.

(d) Chain link or coated chain link fence are prohibited; however, tubular metal fencing may be acceptable if augmented at 50-foot intervals by decorative pilasters that complement the architecture of the primary structure.

(e) Fencing materials may include traditional farm fencing (smooth twisted wire mounted on posts) or alternative fencing like that used for confining domestic animals, if all fencing is compatible with the character of the immediate area.

v. Connectivity

(a) Within the boundaries of the RRCNCA, including the area between the James Hardie plant and the detention basin on Charleston Boulevard and Highway 159, additional ingress or egress from Highway 159 is prohibited unless required by the County for emergency access, and the property is adjacent to Highway 159 which provides the only means of legal access.

(b) New vehicular access shall be limited to public areas such as trails and recreational facilities.

(c) Access from residential development should be controlled, and pedestrian, bicycle, and equestrian access to public lands shall be limited to developed trailheads and parking areas.

(d) Dead-end streets or drives are prohibited.

vi. Building Design

(a) Purpose

This subsection establishes minimum design standards for buildings within the RRO to minimize the development impacts on adjacent communities and environmentally sensitive areas and promote building design compatible with the character of the immediate area.

(b) Applicability

This subsection shall apply to all new primary structures in the RRO.

(c) Architecture

(1) Building Materials

(i) Architectural components, including roofing materials, shall complement the texture and color palette found in the existing natural rock mosaic and consist of subtle, low reflectance, neutral hues, and earth tones.

(ii) The following accent colors, usually lighter in color and hue than the building's exterior walls, are acceptable: blues, greens, reds, and yellows.

(iii) Fluorescent or neon colors are prohibited.

(2) Building Form

(i) The side and rear elevations of buildings shall be consistent with the architecture and materials used on front elevations.

(ii) Buildings shall harmonize with existing buildings by incorporating design elements of the adjacent architecture, including the scale and massing of structure; roof and parapet forms; window fenestration patterns; finishes, materials, and colors; site amenities such as walls and landscaping; and traditional or prevailing setbacks and building orientation.

(iii) Franchise architecture is prohibited unless the color palette and texture are consistent with the architectural styles in the immediate area.

(iv) Any structure shall be limited to 35 feet in height, unless otherwise required by §30.04.05, *Site and Building Design*. This provision shall not be interpreted to prohibit communication towers at greater heights as needed for reception or service in compliance with the Federal Telecommunications Act of 1996.

(3) Roofs

(i) The use of roof lines that reflect the geometries of the nearby hillsides is encouraged.

(ii) Flat or hipped roofs are preferred. Mansard, steeply pitched, or Dutch hipped roofs are not appropriate.

(iii) Roofs made of wood are prohibited.

vii. Lighting

(a) Purpose

These guidelines are intended to establish clear, objective, and quantifiable standards for functional and safe lighting while minimizing negative impacts on surrounding properties.

(b) Applicability

(1) Any proposed development requiring a site plan or subdivision map shall demonstrate conformance with landscape, lighting, and signage requirements. These plans shall address and conform to all provisions set forth under this subsection.

(2) Seasonal lighting that is part of customary holiday decorations or annual civic events, or municipal lighting installed for the benefit of public health, safety, and welfare are excluded.

(c) Standards

(1) Accent illumination of plant materials, buildings, and signage, and lighting for walkways, driveways, and other security and safety related lighting shall be achieved with hidden lighting including: surface mounted lighting; lamps recessed in building soffits, overhangs, and walls; lamps recessed in the ground; and lamps hidden by plant materials.

(2) Floodlights, spotlights, or similar lighting shall not be used unless approved as an integral architectural element.

(3) Exterior lighting should be architecturally integrated with the building style, material, and colors. Exterior lighting shall be mounted no higher than the first story eave, or 14 feet above finished grade, whichever is lower.

(4) Illuminated roof canopies are prohibited.

(5) Exterior lighting shall be completely shielded and oriented to focus light downward and inward from the edge of the property.

(6) Parking lots shall have cut-off lighting fixtures (no cobra head fixtures), designed and positioned to cast adequate light for safety and security but adjusted to eliminate light trespass on neighboring properties, and shall not exceed 35 feet in height.

(7) Average light levels for the site shall be limited to 2 foot-candles with maximum levels limited to 16 foot-candles, measured from 4 feet above the surface of any point on the site.

(8) Lighting shall be limited to emit a maximum off-site light level not to exceed ½ foot-candle beyond the property containing the lamp.

(9) All outdoor lighting fixtures installed and maintained on nonresidential developments shall remain off during nonbusiness hours except for accent illumination, as stated above.

viii. Nonresidential Signs and Community Features

(a) Purpose

This subsection is intended to provide for a cohesive and unified sign program for the RRO.

(b) Applicability

This subsection applies to nonresidential development.

(c) Sign Standards

(1) Signs shall conform to the color guidelines of this subsection and complement the architecture of the site.

(2) Specialty, freestanding, revolving, blinking, and parapet signs shall be prohibited.

(3) Exposed neon is prohibited.

(4) All signs shall be integrated with and complement the site plan and architecture.

(5) One wall sign, no greater than 10% of the building elevation, is permissible per building.

(d) Community Feature Standards

(1) Landscaping, street furniture, public information signs, utilities, and street lighting shall be grouped together in clusters to eliminate visual clutter and to free sidewalk areas of impediments.

(2) Public art may be incorporated in the overall design of the site plan.

(3) Artwork shall be constructed of durable, permanent materials.

(4) Artwork scale, material, form, and content shall be similar to adjacent buildings and landscape to complement the site and surrounding environment.

(5) Artwork shall adhere to the architectural and color guidelines set forth in this subsection.

I. Spring Mountain Overlay (SMO)

1. Purpose

The Spring Mountain Overlay (SMO) is established to maintain the rural character and cultural heritage of the community, preserve wildlife habitat, and minimize the impacts of development.

2. Applicability

The SMO is defined as the area referred to as the "Spring Mountain Overlay Map," on file with the Department of Comprehensive Planning. The SMO includes 2 parts as described below:

i. Part I encompasses the area within the Spring Mountain National Recreation Area, as described in subsection (1) of Section 7 of Chapter 198, Statutes of Nevada 2009, as amended by Chapter 104, Statutes of Nevada 2011.

ii. Part II encompasses the area excluded from the Spring Mountain National Recreation Area as described in subsection (2) of Section 1 of Chapter 104, Statutes of Nevada 2011.

iii. No part of this overlay may be waived or varied.

3. Density and Intensity Restrictions

i. Part I

Except for public facilities, applications pertaining to land within Part I shall not be accepted to:

(a) Increase the number of residential dwelling units allowed by the zoning regulations in existence on July 1, 2009.

(b) Establish a new nonresidential zoning district.

(c) Expand the size of any nonresidential zoning district.

ii. Part II

The land within Part II shall only be used for facilities and operations related to outdoor recreational activities. The following uses are prohibited:

(a) Bed and breakfast, resort hotel or rural resort hotel, hotel or motel, or rooming house.

(b) Gas station.

(c) Retail use primarily devoted to selling consumable products or food for human consumption off premises. This provision does not prohibit the operation of a snack bar for the dispensing of food and beverages.

(d) Restaurant franchise or chain.

(e) Any residential development of more than 1 dwelling per 2 acres.

Chapter 30.03 Use Regulations

30.03.01 Purpose and Organization

A. Purpose

This Chapter identifies the land uses allowed in Clark County's zoning districts and establishes standards that apply to certain uses with unique characteristics or impacts.

B. Explanation of Use Tables

The following designations apply to all use tables in this Chapter:

1. Uses Permitted

A "P" in a cell indicates the use is permissible in the respective zoning district.

2. Uses Permitted with Conditions

A "C" in a cell indicates the use is permissible, with standards and conditions, in the respective zoning district. If a condition cannot be met and may be waived, then a *Special Use Permit (UC)*, per §30.06.05D, for the use shall be required.

3. Uses Requiring a Special Use Permit

An "S" in a cell indicates the use is permissible in the respective zoning district with approval per §30.06.05D, *Special Use Permit (UC)*. Any condition not met shall be reviewed in the analysis of the Special Use Permit.

4. Prohibited Uses

A blank cell indicates the use is prohibited in the respective zoning district.

5. Accessory Uses

An "A" in a cell indicates the use is only permissible in the respective zoning district as an accessory use. See §30.03.01D, *Accessory Uses and Structures.* If a condition cannot be met and may be waived, then a *Special Use Permit (UC)*, per §30.06.05D, for the use shall be required.

6. Temporary Uses

A "T" in a cell indicates the use is permissible in the respective zoning district as a temporary use. See §30.03.01E, *Temporary Uses and Structures*.

7. Use-Specific Standards and Conditions

Additional standards and conditions may be applicable to any use; see the use-specific standards and conditions identified below each use table. Any condition not met shall be reviewed in the analysis of the *Special Use Permit (UC)*, per §30.06.05D.

C. General Standards Applicable to All Uses

1. Use for Other Purposes Prohibited

Approval of a use listed in this Chapter, and compliance with the applicable use-specific standards for that use, authorizes that use only. Uses shall not be established or enlarged and buildings and structures shall not be erected, altered, or enlarged except for the uses permissible by this Chapter. All other uses not specifically listed are prohibited unless the Director has determined an appropriate use type for the unlisted use pursuant to the procedure in §30.03.01F, below.

2. Constitutionally Protected Activities

Nothing in this Title shall be construed to prohibit constitutionally protected activities including the use of a home for noncommercial gatherings of family and friends, discussion groups, religious or political gatherings, or neighborhood meetings.

3. Transient Commercial Use of Residential Development

Transient commercial use of residential development for remuneration is prohibited in all residential districts, or in any special district of this Title, except as otherwise expressly permissible in this Title, or as licensed pursuant to Chapter 7.100 of the Clark County Code.

4. Maintenance

All structures shall be maintained structurally sound, free of deterioration, and shall be protected from the elements by periodic painting, staining, or other weatherproofing or surface protection.

D. Accessory Uses and Structures

1. Purpose

This Chapter establishes minimum standards for accessory uses and structures that are incidental and subordinate to primary uses. These standards are intended to minimize adverse impacts on surrounding properties and the community.

2. Accessory Uses and Structures Allowed

i. Accessory uses and structures in this Chapter shall be allowed pursuant to the general standards in this §30.03.01D and any applicable use-specific standards.

ii. Any primary use or structure allowed in a district per this Chapter is permissible as an accessory use unless otherwise prohibited.

iii. Any primary use or structure allowed in a district per this Chapter shall be deemed to include those accessory uses, structures, and activities typically associated with that use, along with any standards, unless otherwise prohibited.

3. General Standards for All Accessory Uses and Structures

i. Establishment

Unless otherwise stated by this Title, accessory uses and structures must be in conjunction with a primary use or structure and shall not be established prior to the primary use or structure.

ii. Ownership

Accessory uses and structures shall be under the same ownership or owner/operator as the primary use or structure.

iii. Operation

(a) Accessory uses and structures shall be conducted and located on the same lot as the primary use or structure, except as follows:

(1) Within the Cooperative Management Agreement Area, accessory uses and structures are allowed on lots with a deed-restriction recorded by Clark County for nonresidential uses, where a primary use is established on the adjacent lot and both properties are under the same ownership. Uses and structures shall be in conformance with the deed restriction and this Title.

(2) Accessory agricultural uses and structures may be located on undeveloped lots under common ownership with an adjacent developed single-family residential lot. Any other

undeveloped lot(s) shall be adjacent to and consecutive with each other. No lot under a different ownership shall be located between any of the commonly owned lots.

(b) Storage of commercial vehicles constitutes a commercial use of land and is prohibited in residential districts except as otherwise expressly stated. However, parking a single automobile used for commercial purposes is allowed.

E. Temporary Uses and Structures

1. Purpose

This Chapter allows certain uses and structures for a limited duration subject to specified standards and conditions. This Section is intended to ensure that such uses or structures do not negatively impact surrounding properties and are discontinued upon the expiration of a set time period.

2. Temporary Uses and Structures Allowed

i. Temporary uses and structures in this Chapter are allowed pursuant to the standards in this Section.

ii. On-site temporary construction activities are allowed in conjunction with a construction project with a valid building permit. Construction activities include, but are not limited to, temporary power poles, parking of vehicles, and storage of materials and equipment.

3. Approval Process for Temporary Uses and Structures

The following temporary uses require review and approval of Temporary Use application in accordance with §30.06.05G, *Temporary Use*:

i. Seasonal Sales; and

ii. Special Event.

F. Classification of New and Unlisted Uses

If a use is not specifically listed in this Chapter, a request for interpretation may be made to the Director. Such interpretation shall be made by the Director prior to the review of any application associated with the use.

1. Director Determination of Appropriate Use Type

The Director shall determine the appropriate use type for the proposed use. In making such determination, the Director shall consider the typical operations and activities, employment characteristics, nuisances, requirements for public utilities, transportation impacts or needs, and the potential impacts of the proposed use including the nature of the use and whether it includes dwellings, sales, processing, or storage.

2. Uses and Use-Specific Standards Requiring a Text Amendment

In deciding on a new or unlisted use, the Director may determine that such new or unlisted use is intentionally omitted from this Chapter because the use is prohibited, or if the use requires an amendment of this Title, including for additional use-specific standards to reduce potential impacts to surrounding properties or the community. Amendments shall follow the procedures in §30.06.04C, *Title 30 Text Amendment (TA).*

3. Appeal of Director's Determination

An appeal of the Director's determination shall be made pursuant to the procedures in §30.06.03F.4, *Appeals.*

30.03.02 Summary Table of Allowed Uses

Table 30.03-1: Summary Table of Allowed Uses

P = PERMITTED **C** = PERMITTED WITH CONDITIONS **S** = SPECIAL USE **A** = ACCESSORY USE **T** = TEMPORARY USE **BLANK** = PROHIBITED

Districts	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
RESIDENTIAL USES																						
Accessory Commercial	S	S	S	S	S	S	S	S	S	S						S						
Accessory Living Quarters	A	A	A	A	A	A	A	A								A				A	A	
Accessory Vehicle and Watercraft Storage	A	A	A	A	A	A	A	A	A	A												
Affordable Housing	C	C	C	C	C	C	C	C	C	C			C	C	C	C						C
Assisted Living	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S					S
Caretaker Unit	A	A	A	A	A	A	A	A	A	A	S	S	S	S	S	S	S	S	S	S	S	S
Childcare Home	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	S						S
Community Residence	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C				C		
Congregate Care/Hospice	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S							
Dormitory	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S					S
Family Daycare	A	A	A	A	A	A	A	A	A	A						A						
Garage Sale	A	A	A	A	A	A	A	A	A	A												
Home Occupation	A	A	A	A	A	A	A	A	A	A			A	A	A	A				A		
Housing for Agricultural Employees	S	S	S																	A		
Live-Work Dwelling											C	C	C	C	C		S	S				
Manufactured or Tiny Home Park					S			S	S	S												
Model Residence	C	C	C	C	C	C	C	C	C	C			C	C	C	C						
Multi-Family Dwelling							S	P	P	P			C	C	C	C						
Rooming House										S				S	S							S
Senior Housing	C	C	C	C	C	C	C	C	C	C			C	C	C	C						C
Single-Family Attached Dwelling					P	P	P	P	S	S												
Single-Family Detached Dwelling	P	P	P	P	P	P	P													P	P	
Temporary Dwelling	C	C	C	C	C	C	C	C														
Transitional Living for Released Offenders	S	S	S	S	S	S	S	S	S	S		S	S	S	S		S	S		S		S
AGRICULTURE AND ANIMAL-RELATED USES																						
Animal Care Project	C	C	C	C	C															C		
Animal Hospital	S	S									S	S	P	P	P		P	P				
Apiary	C	C	C																	C	C	C
Aquaculture	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Aviary	C	C	C	C	C	C														C	C	
Community Garden	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C		C	C	C
Exotic/Wild Animals	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C	S	S	S	S	S	S
Farm or Garden	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Guest Ranch	S	S																		S		
Hogs and Pigs	C	C																	C	C		
Household Pet	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Kennel											C	C	C	C	C		C	C		C		
Livestock, Large	C	C	C	C	C															C		
Livestock, Medium	C	C	C	C	C															C		
Livestock, Small	C	C	C	C	C												C	C	S	C		

Table 30.03-1: Summary Table of Allowed Uses

P = PERMITTED **C** = PERMITTED WITH CONDITIONS **S** = SPECIAL USE **A** = ACCESSORY USE **T** = TEMPORARY USE **BLANK** = PROHIBITED

Districts	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Plant Nursery												S	P	S	S	S	P	P		P		
Stable	S	S	S																	C	S	S
Stable, Residential	C	C	C																	C	C	
CIVIC AND INSTITUTIONAL USES																						
Group Assembly																						
Banquet Facility													S	C	C	C	S	S				
Cemetery	S	S	S	S	S	S	S	S	S	S		C	C			S	C	C				S
Convention Facility													S	S	S	C	S	S				S
Crematory	S	S	S	S	S	S	S	S	S	S			C	C	C		C	C	C			P
Daycare	S	S	S	S	S	S	S	S	S	S	C	C	C	C	C	C	S	S		S		S
Food Pantry	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S		S	S				S
Funeral Home	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	P				S
Museum	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	S	S		S	S	P
Place of Worship	S	S	S	S	S	S	S	S	S	S	S	S	C	C	C	C	S	S		S		
Union Hall													S	P	P		P	P	S			
Educational Facilities																						
Avocational or Vocational Training Facility	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	S		S		P
Instruction or Tutoring Facility											S	S	P	P	P	S	S	S				S
School	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S		S		P
Healthcare Facilities																						
Emergency or Urgent Care	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S				S
Hospital	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S				S
COMMERCIAL USES																						
Adult																						
Adult Business																		C				
Automotive, Transportation, and Airspace																						
Aircraft Hangar	C	C	C	C	C	C	C	C	C	C			C			C	C	C	C	C	C	C
Airport or Airstrip	S	S	S	S	S	S	S	S	S	S			S			S	S	S	S	S	S	C
Aviation - Flight	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C
Equipment Rental or Sales and Service													C			S	P	P	S			
Gas Station													C	S		S	C	C				
Heliport or Vertiport	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C
Monorail	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S
Parking Lot												S	P	S	S	S	P	P				P
Passenger Terminal	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P
Tour Guide or Transportation Service													C	C	C	C	P	P				S
Truck Stop													S				C	C	S			
Vehicle Hobby Repair and Restoration	A	A	A	A	A																	
Vehicle Maintenance and Repair	S	S	S										C			C	C	C	S			
Vehicle Paint/Body Shop													S			C	C	C	S			

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Vehicle Rental or Sales													C	S	S	C	C	C				S
Vehicle Wash													C	C		C	C	C				
Cannabis																						
Consumption Lounge												S	S	S	S		S	S				
Cultivation Facility																	S	S				
Dispensary												S	S	S	S		S	S				
Distribution												S	S	S	S		S	S				
Independent Testing Laboratory												S	S	S	S		S	S				
Retail Store												S	S	S	S		S	S				
Production Facility																	S	S				
Food and Beverage																						
Catering													P	P	P	C	P	P		S		
Craft Brewery, Distillery, or Winery													P	P	P	P	P	P		S		
Mobile Food Vendor											C	C	C	C	C	C	C	C	C	C	C	C
Outdoor Dining, Drinking, and Cooking											A	C	C	C	C	C	S	S		S		C
Restaurant and Related Facilities											P	C	P	P	P	P	S	S		S		C
Lodging																						
Bed and Breakfast	S	S									S									S		
Hotel or Motel											S		P	P	P	P	S					
Recreational Vehicle Park	S	S									S		C	C	C	S	S				S	
Resort Hotel and Rural Resort Hotel																S						
Retreat	S	S														C						
Recreation and Entertainment																						
Campground	S	S																			S	S
Dayclub/Nightclub													S	S	S	C	S	S				
Instructional Wine-Making Facility													S	S	S		S	S		S		
Live Entertainment	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C	S	S	S	S	S	S
Recreational or Entertainment Facility	S	S	S	S	S	S	S	S	S	S	C	C	C	C	C	C	S	S	S	S	S	S
Special Event	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T		T	T	T
Retail and Services																						
Bathhouse																		S				
Escort Bureau													S	S	S	S	C	C				
Financial Services											S	P	P	P	P	C	S	S				
Gunsmith													P				P	P				
Massage	A	A									A	A	S A	A	A	S A	A	A				
Office											C	C	C	C	C	S	S	S				C
Office, Sales/Leasing	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C				

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Districts	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Office, Temporary	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Outdoor Market	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S		S	S	S
Personal Services	S	S	S	S	S	S	S	S	S	S	P	C	P	P	P	C	C	C				
Retail											C	C	C	C	C	C	C	C		C		C
Retail, Last Mile													C									
Seasonal Sales											T	T	T	T	T	T	T	T		T		
Wedding Chapel	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A
INDUSTRIAL USES																						
Industrial Services																						
Auction													S			C	S	P	P			
Dry Cleaning Plant																	P	P	S			
Laboratory												C	C				P	P	S			
Manufacturing and Production																						
Alternative Fuels Processing																	P	P	P			
Animal Byproducts																			S			
Batch Plant	S																	S	S			
Batch Plant, Temporary	S	S	S	S	S	S	S	S	S	S	S		S	S	S	S	S	S	S	S	S	S
Brewery, Distillery, or Bottling Plant																	P	P	S	S		
Food Processing		C											C			C	P	P		C		
Manufacturing, Artisan	S	S											C			C	P	P		P		
Manufacturing, Heavy																			S			
Manufacturing, Light																	C	C	C			
Manufacturing, Medium																		C	S			
Taxidermy																	P	P		P		
Resource Extraction																						
Gravel Pit	S																		S			
Gravel Pit, Temporary	S	S	S	S	S	S	S	S	S	S	S		S	S	S	S	S	S	S	S	S	S
Mining and Extraction	S																	S	S			
Rock Crushing	S																	S	S			
Warehousing and Storage																						
Fuel Storage																	S	S	S			
Hazardous Materials or Waste Storage																			S			
Mini-Warehouse													S				P	P				
Outdoor Storage and Display	A/S	A/S	A/S		A/S								C			C	C	C	C	A/S		C
Truck Parking or Staging																	S	S	S			S
Warehouse and Distribution																	P	P	S			S
Wholesale													C			C	P	P				
Waste and Salvage																						
Composting Facility	S																	C	S	C		
Public Waste Storage Bin Facility	S	S	S								S	S	S	S	S	S	S	S	S			S
Reclamation Facility	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S
Recyclable Collection											A	A	A	A	A	A	A	A	A			A
Recycling Center																		S	S			

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Districts	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Refuse Transfer Station																		S	S			
Salvage Yard																			S			
Sanitary Landfill																			S			
Wastewater Package Treatment Plant	S	S	S	S													S	S	S			S
Wastewater Treatment Plant	S																S	S	S			S
PUBLIC AND QUASI-PUBLIC USES																						
Government																						
Detention Facility																						S
Government Facility	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	S	S	S	S	S	S	P
Government Facility, Temporary	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Library	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	S		S	S	P
Park	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Utilities																						
Communication Antenna	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Communication Tower	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C
Communication Utility Building	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	P	S	S	S	P
Electric Generation, Large-Scale	S															C	S	S	S	S	S	S
Electric Generation, Small-Scale	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A
Public Utility Structure	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

30.03.03 Residential Uses

A. Household and Group Living

1. Accessory Commercial

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S						S						

The following standards shall not be waived or varied:

i. Location and Access

Accessory commercial activity shall be subordinate to the primary residential use of the development or recreational vehicle park and shall not be designed or operated to have an independent commercial appearance or operation.

ii. Operation

Accessory commercial activities shall be designed to minimize any impact on surrounding areas.

2. Accessory Living Quarters

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A								A				A	A	

i. Location and Access

(a) Accessory living quarters must be in conjunction with a single-family residence.

(b) No more than 1 accessory living quarters is allowed on any lot or parcel.

ii. Layout and Design

(a) Accessory living quarters shall not be located within a manufactured or tiny home park or on a lot that is less than 4,000 square feet.

(b) On a parcel or lot less than 10,000 square feet, accessory living quarters shall not exceed 75% of the gross floor area of the habitable area of the primary dwelling. This standard shall not be waived or varied.

(c) On a parcel or lot that is 10,000 square feet or greater, or if within the Nonurban Area, accessory living quarters shall not exceed the gross floor area of the primary dwelling.

(d) Accessory living quarters shall include a similar roof line, complementary colors, and building materials as the primary dwelling.

(e) A recreational vehicle is prohibited as accessory living quarters.

3. Accessory Vehicle and Watercraft Storage

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A												

i. Location

Must be in conjunction with a residence or residential development. This standard shall not be waived or varied.

ii. Layout and Design

Limited to a maximum of 3 recreational vehicles.

4. Affordable Housing

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C			C	C	C	C						C

i. Layout and Design

Affordable housing is permissible with any single-family, multi-family, or mixed-use development. The maximum density may be increased with approval per §30.06.05D, *Special Use Permit (UC),* as follows:

(a) RS80, 0.63 units/acre
(b) RS40, 1.25 units/acre
(c) RS20, 2.5 units/acre
(d) RS10, 3.5 units/acre
(e) RS5.2, 6 units/acre
(f) RS3.3, 10 units/acre
(g) RS2, 16 units/acre
(h) In all other districts, density shall be established per approved plans.

ii. Operation

The Clark County Community Housing Office shall authorize any proposal prior to submittal.

5. Assisted Living

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S					S

i. Location and Access

Shall be accessed from an arterial or collector street or a commercial complex.

ii. Layout and Design

(a) A facility within a residential district shall be designed with a residential appearance consistent with the neighborhood.

(b) District standards for density shall be met. Facilities are limited to the following maximum densities which cannot be waived or varied:

(1) RS Zoning Districts
(i) RS80, 0.50 units/acre
(ii) RS40, 1. units/acre
(iii) RS20, 2 units/acre
(iv) RS10 3 units/acre
(v) RS5.2, 5 units/acre
(vi) RS3.3, 8 units/acre
(vii) RS2, 14 units/acre

(2) RM zoning districts shall not exceed 25 units/acre.
(3) For all other zoning districts without a density standards 25 units/acre.

(c) The following shall be used for purposed of calculating the density:

(1) Each bedroom/unit less than 120 square feet shall be counted as ¼ of a dwelling unit except as specified in subsection (3), below.
(2) Each bedroom/unit 120 square feet or more shall be counted as ½ of a dwelling unit except as specified in subsection (3), below.
(3) Where a portion of a bedroom/unit will not be used for additional beds, but will be used as a seating area or similar purpose, density shall be calculated as follows:
(i) Each bedroom/unit 120 to 180 square feet shall be counted as ¼ of a dwelling unit; and
(ii) Each bedroom/unit more than 180 square feet shall be counted as ½ of a dwelling unit.

6. Caretaker Unit

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A	S	S	S	S	S	S	S	S	S	S	S	S

i. Layout and Design

(a) A caretaker unit shall be clearly accessory and subordinate to a primary commercial or industrial use, or manufactured or tiny home park or recreational vehicle park.

(b) In the IL and IH districts, the unit shall be screened and not visible from any right-of-way.

(c) Compliance with the standards in §30.04.06, *Residential Adjacency,* is not required.

(d) A caretaker unit is permissible in a residential district subject to the following standards:

(1) The unit shall be located within an approved recreational vehicle and/or boat storage area within the residential subdivision or within a common area controlled by a homeowner's association.

(2) The unit shall be located on a parcel of 40,000 square feet or more.

ii. Operation

The unit shall only be occupied by the owner, lessee, or employee of the owner or lessee, and shall not be subdivided, rented, or leased separately from the primary use. This standard shall not be waived or varied.

7. Childcare Home

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	S						S

8. Community Residence

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C				C		

i. General

The decision-making body shall not deny an application or require any additional standards or conditions for approval of a community residence on any basis that discriminates against people with disabilities by treating a community residence differently than other forms of housing.

ii. Location and Access

(a) A minimum separation of 660 feet shall be maintained, measured door-to-door along the nearest pedestrian or vehicular route, whichever is shorter, from any other existing community residence. When there is a street, freeway, or drainage channel at least 100 feet wide between the proposed community residence and an existing community residence, no further separation is required. When the population of a proposed community residence is of such a nature that its location must be kept confidential for it to function successfully, such as for victims of domestic abuse, no separation shall be required.

(b) A Special Use Permit per §30.06.05D is required to locate within 660 feet of an existing community residence except when the proposed community residence qualifies for an exception specified in (a), above.

(1) For any application submitted to locate a community residence within 660 feet of an existing community residence, the decision-making body shall approve the application unless it determines that 1 or more of the following conditions would occur:

(i) The building to be occupied would be established or modified in a manner that would make it inconsistent with the scale and architectural character of the neighborhood;

(ii) The proposed community residence, together with existing community residences, would alter the residential character of the neighborhood by creating an institutional atmosphere due to the concentration of community residences on a block or adjoining blocks; or

(iii) The location is unsuitable as a result of non-compliance with §30.03.03A.8.iii, *Operation*, below.

(2) When located in a nonresidential district, except the AG district, a community residence may be established only as part of a mixed-use development.

iii. Operation

The community residence shall not be made available to 1 or more individuals whose tenancy would constitute a direct threat to the health and safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

9. Congregate Care/Hospice

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S							

i. Location and Access

Facility shall be adjacent to and accessed from an arterial or collector street or a commercial complex.

ii. Layout and Design

A facility within a residential district shall be designed with a residential appearance consistent with the neighborhood.

10. Dormitory

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S					S

11. Family Daycare

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A						A						

i. Operation

Must be accessory to a residential dwelling, and the residential appearance of the dwelling shall not reflect or indicate that a business is operated therein. This standard shall not be waived or varied.

12. Garage Sale

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A												

i. Operation

Shall be in conjunction with a residential use and limited to no more than 4 days per half calendar year.

13. Home Occupation

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A			A	A	A	A				A		

A home occupation shall be clearly accessory and subordinate to the primary residential use and may be permissible subject to the following standards:

i. Operation

(a) There shall be no receipt of products or materials, except normal delivery for the primary residential use. This standard shall not be waived or varied.

(b) No home occupation shall be conducted outside, nor shall any storage associated with a home occupation be located outside.

(c) On-site clients, customers, or nonresident employees are not permissible, except as follows.

(1) One client or customer of a single-station salon/barbershop.

(2) No more than 1 student.

(3) In the Nonurban Area, employees, customers, or clients shall only be allowed with approval of a Zoning Compliance application, as described in §30.06.08G, which shall include letters of consent from all property owners within a 300-foot radius of the property hosting the home occupation.

(d) The following commercial activities are prohibited:

(1) Adult business;

(2) Escort bureau;

(3) Vehicle maintenance and repair;

(4) Businesses involving firearms, explosives, ammunition, gunpowder, or any other weapon as regulated by NRS 202.350, except for the training in the use of weapons at an approved off-site facility;

(5) Healthcare facilities;

(6) Parking of a mobile food vendor vehicle, towed trailer, or mobile or movable stand; and

(7) Businesses involving smelting of metal.

14. Housing for Agricultural Employees

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S																	A		

i. Operation

In the RS80, RS40, and RS20 districts, housing for agricultural employees shall be in conjunction with a commercial agricultural use that is at least 40 acres or in conjunction with a stable.

15. Live-Work Dwelling

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											C	C	C	C	C		S	S				

i. Layout and Design

The nonresidential portion of the live-work dwelling shall face the street. Residential areas shall be located on upper floors above nonresidential areas, or in the rear of the building behind nonresidential areas.

ii. Operation

Any nonresidential use shall be operated by a resident of the live-work dwelling.

16. Manufactured or Tiny Home Park

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
					S			S	S	S												

i. Layout and Design

Manufactured or tiny home parks shall comply with the following development standards:

(a) Minimum Lot Area

(1) 2,880 sf for a single-wide manufactured home and 4,000 sf for a double-wide manufactured home.

(2) 2,000 sf if unit is 400 sf or less.

(b) All Setbacks

Minimum 10-foot building setback from the project perimeter, 5 feet from any drive aisle, and 5 feet along the side and rear of any manufactured or tiny home lot.

(c) Height

Primary structure: 35 feet; accessory structure: 14 feet.

(d) Open Space

350 sf per unit.

ii. Operation

(a) Permanently marked lot lines at each corner, which may be relocated subject to the total number of lots remaining the same.

(b) Lot numbers shall be shown on each home.

(c) Park operator(s) shall provide a list of tenant addresses on January 15 and July 15 each year to the Director.

(d) All common areas shall be professionally maintained by a property management company or homeowners' association.

(e) Recreational vehicles and transient housing are prohibited.

iii. Procedures

Modification to the layout and design standards can only be done through a Planned Unit Development per §30.06.05C, *Planned Unit Development (PUD)*.

17. Model Residence

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C			C	C	C	C						

The following standards shall not be waived or varied:

i. Layout and Design

Prior to the recording of a subdivision map, the maximum permissible number of model residences shall be:

(a) No more than 6 single-family model residences, except that developments 300 acres or greater shall permit no more than 20 model residences.

(b) No more than 8 multi-family or manufactured or tiny home model residences.

ii. Procedures

(a) Model residences shall be converted to a permanent residential dwelling within 30 days after the sale of the last unit within the development. This time limit does not apply to models for multi-family apartment complexes or manufactured or tiny home parks, if the residential character of the model is maintained, and all manufactured or tiny homes are properly installed.

(b) Model residences constructed prior to the recording of a subdivision map shall meet the following standards:

(1) The final map may not be revised after the permits for the models or units have been issued, except with approval of the Director.

(2) The models or lots within the proposed subdivision may not be sold separately until the final subdivision map has been recorded.

(3) The model residence shall meet the setbacks required by the district from the future lot lines to be established by the subdivision as required by this Title.

(c) Fencing may be installed, and off-site improvements may be temporarily deferred for a public street, subject to the following standards:

(1) Road closure shall be approved by the Director of Public Works;
(2) Bonding for full off-site improvements shall be posted;
(3) Street area shall be covered with landscaping; and
(4) Upon sale of model residence(s), the street shall be improved to Clark County standards.

18. Multi-Family Dwelling

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
							S	P	P	P			C	C	C	C						

i. Location

(a) In the CG, CC, and CU districts, multi-family dwellings must be in conjunction with a mixed-use development.
(b) In the CR district, multi-family dwellings must be in conjunction with a mixed-use development or in conjunction with or adjacent to a resort hotel.

ii. Layout and Design

In the CR district, a multi-family development in conjunction with or adjacent to a resort hotel may follow the Layout and Design standards for Resort Hotels, described in §30.03.06E.4.ii.

19. Rooming House

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
										S				S	S							S

i. Layout and Design

Shall include no more than 50 guest rooms per acre.

20. Senior Housing

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C			C	C	C	C						C

i. Layout and Design

Senior housing is permissible with any single-family, multi-family, or mixed-use development. The maximum density of the development may be increased per §30.06.05D, *Special Use Permit (UC)*, as follows:

(a) In the RM18 district, the maximum may be increased to 22 units/acre.
(b) In the RM32 district, the maximum may be increased to 39 units/acre.
(c) In all other nonresidential districts, density shall be established per approved plans.

21. Single-Family Attached Dwelling

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
					P	P	P	P	S	S												

22. Single-Family Detached Dwelling

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	P	P	P	P	P	P	P													P	P	

i. Location and Access

Tiny homes are permissible in RS2 and require a *Special Use Permit (UC)*, per §30.06.05D, in the AG, OS, and the remaining RS districts.

23. Temporary Dwelling

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C														

The following standards shall not be waived or varied:

i. Layout and Design

A temporary dwelling shall be a minimum of 5 feet from any lot line.

ii. Operation

(a) The dwelling is only allowed during the construction of a dwelling or the reconstruction of a damaged or destroyed dwelling on the same property.

(b) A building permit for the new dwelling, or a permit to remodel or demolish the damaged or destroyed dwelling, has been issued and remains active.

(c) Recreational vehicles, or manufactured or tiny homes not meeting applicable site and building design, occupancy, and use standards, shall be limited to 24 months from building permit issuance or 30 days after final inspection approval, whichever comes first.

24. Transitional Living for Released Offenders

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S		S	S	S	S		S	S		S		S

30.03.04 Agriculture and Animal-Related Uses

A. Agriculture and Animal-Related

This category includes agricultural and animal-related uses involving the care and boarding of animals, farming, dairying, pasturage, apiculture, horticulture, floriculture, viticulture, animal husbandry, and the processing and selling of agricultural products. Regulations in Title 10 regarding care, treatment, protection, and shelter for animals shall apply. Specific use types, which may be outside, include:

1. Animal Care Project

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C															C		

i. Operation

(a) Lots less than 10,000 square feet permit 2 domesticated animals, with their offspring under 1 year of age.

(b) Lots 10,000 square feet or larger permit 2 domesticated animals or 1 domesticated animal per participant, whichever is greater, with their offspring under 1 year of age.

(c) Hogs and pigs are only allowed in the Nonurban Area.

2. Animal Hospital

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S									S	S	P	P	P		P	P				

i. Operation

In the RS80 and RS40 districts, shall only be within the Nonurban Area. This standard shall not be waived or varied.

3. Apiary

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C																	C	C	C

i. Layout and Design

(a) Shall be 400 feet from any existing dwelling on another property unless written consent from the owner is obtained and evidenced in accordance with the approval of a Zoning Compliance (AC) application per §30.06.08G.

(b) Shall be 50 feet from any lot line.

4. Aquaculture

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Location

(a) In all residential districts in the Nonurban Area, and in the RS80 and RS40 districts in the Urban Area, aquaculture is permissible as a primary or accessory use.

(b) In all other Urban Area residential districts, aquaculture must be an accessory use only.

ii. Operation

(a) Facilities may include sales of aquaculture.

(b) Customers are allowed on site.

(c) In Urban Area residential districts, customers shall only be allowed to the property with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from property owners within a 300-foot radius of the property.

(d) Facilities shall not include processing of aquaculture, except flash freezing or similar preparation is allowed.

5. Aviary

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C														C	C	

i. Operation

(a) In all residential districts, an aviary shall be accessory to a residential primary use.

(b) An aviary shall not include chickens, turkeys, peacocks, ostriches, emus, rheas, or similar domesticated birds normally raised for consumption. See Livestock, Small.

(c) An aviary shall have no more than 20 birds over 6 months in age.

(d) Birds shall not be released when located within the Bird Airstrike Hazard Area, as shown on the map on file with the Department of Comprehensive Planning, or within 5,000 feet of any other airport. This standard shall not be waived or varied.

(e) An aviary may be outside, except that in the RS10, RS5.2, and RS3.3 districts a Special Use Permit is required for an aviary to be located outside. See §30.06.05D, *Special Use Permit (UC)*.

6. Community Garden

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C		C	C	C

i. Operation

(a) Customers are allowed on site in the Nonurban Area.

(b) Within the Urban Area, customers are only allowed with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from property owners within a 300-foot radius of the property.

(c) The sale of produce or plants shall only be incidental and shall only include those grown on-site.

7. Exotic/Wild Animals

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C	S	S	S	S	S	S

i. Operation

In the CR district, exotic/wild animals shall only be in conjunction with a resort hotel.

8. Farm or Garden

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Operation

(a) In all residential districts in the Nonurban Area, and in the RS80 and RS40 districts in the Urban Area, a farm or garden is allowed as a primary use.

(b) Customers are allowed on site in the Nonurban Area. In the residential districts in the Urban Area, customers are allowed on site with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from property owners within a 300-foot radius of the property.

(c) In all residential districts, the sale of farmed goods shall only include those goods farmed on-site.

(d) In IP and IL districts, sale of farmed goods is limited to wholesale only.

9. Guest Ranch

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S																		S		

i. Layout and Design

Shall be at least 40 contiguous acres.

ii. Location and Access

Must be within the Nonurban Area.

iii. Operation

Accessory uses, including retail and dining for guests only, are permissible.

10. Hogs and Pigs

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C																	C	C		

i. RS80 and RS40 Districts

(a) Must be in the Nonurban Area. This standard shall not be waived or varied.

(b) One hog or pig allowed per 20,000 square feet of lot area, not to exceed 2 animals.

ii. IH District

Hogs and pigs must be in conjunction with a food scrap management program incidental to a sanitary landfill. This standard shall not be waived or varied.

11. Household Pet

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Dogs and Cats

(a) No person shall keep more than 3 dogs over 4 months of age, nor more than 3 cats over 4 months of age, per Section 10.08.130 of the Clark County Code. Additional household pets are permissible through the issuance of a license in compliance with Chapter 10.08 of the Clark County Code.

(b) Any dog(s) or cat(s) shall be in conjunction with residential development.

(c) Maximum number of dogs does not apply to dogs used for security and law enforcement in conjunction with a resort hotel.

(d) A request to increase the number of household pets above that permissible by Chapter 10.08 requires approval of a Special Use Permit, as described in §30.06.05D, *Special Use Permit (UC)*.

(e) Customers are allowed on site when in conjunction with a permit issued under Chapter 10.08.

ii. Potbellied Pigs

Potbellied pigs are permissible subject to the following standards:

(a) Any potbellied pig shall be in conjunction with residential development.

(b) Potbellied pigs must be for the owner or resident of the property.

(c) The maximum number of potbellied pigs shall be:

(1) One for lots less than 13,200 square feet;

(2) Two for lots between 13,200 and 20,000 square feet;

(3) Three for lots between 20,001 and 40,000 square feet; and

(4) Six for lots greater than 40,000 square feet.

12. Kennel

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											C	C	C	C	C		C	C		C		

i. Operation

(a) Commercial Districts

(1) Shall be accessory to an animal hospital.

(2) Limited to indoor kennels only.

(b) IP, IL, and AG Districts

Outdoor kennels and runs shall not be located within 500 feet of areas subject to §30.04.06, *Residential Adjacency* unless separated by an arterial or collector street.

13. Livestock, Large

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C															C		

i. General

(a) At least 120 square feet of stall or pen area shall be provided for each large livestock with 90 square feet protected from the elements.

(b) At least 1,200 square feet of pasture, turnout, or training or exercising area is required for each large livestock kept on premises. These areas may be in the front yard with no additional setback if accessory structure and fencing requirements are met.

(c) A fence or wall enclosing all stables, paddocks, arenas, pastures, etc., shall be provided. Maximum height shall be determined by the zoning district standards.
(d) Raising and selling livestock is allowed.

ii. Urban Area

(a) Large livestock shall only be allowed in the RS80, RS40, RS20, and AG districts.
(b) In the RS20 district, large livestock must be in conjunction with a residential primary use.
(c) One large livestock is allowed per every 7,500 square feet of lot area, not to exceed 25.
(d) Customers are allowed on site in the RS80, RS40, RS20, and AG districts. Customers may be allowed in other districts, with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from all property owners within a 300-foot radius of the property.

iii. Nonurban Area

The maximum number of large livestock shall be as follows:
(a) One per 4,000 square feet on lots 80,000 square feet and less.
(b) 200 on lots greater than 80,000 square feet but less than 160,000 square feet.
(c) 400 on lots between 160,000 but less than 200,000 square feet.
(d) Any number on lots 200,000 square feet and greater.
(e) Customers are allowed on site.

14. Livestock, Medium

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C															C		

i. General

(a) At least 120 square feet of stall or pen area shall be provided for every 2 medium livestock with 90 square feet protected from the elements.
(b) At least 1,200 square feet of pasture, turnout, or training or exercising area is required for every 2 medium livestock kept on premises. These areas may be in the front yard with no additional setback if accessory structure and fencing requirements are met.
(c) A fence or wall enclosing all stables, paddocks, arenas, pastures, etc., shall be provided. Maximum fence and wall height shall be determined by the zoning district standards.
(d) Raising and selling livestock is allowed.

ii. Urban Area

(a) Medium livestock shall only be allowed in the RS80, RS40, RS20, and AG districts.
(b) In the RS20 district, must be in conjunction with a residential primary use.
(c) Two medium livestock are allowed per every 10,000 square feet of lot area, not to exceed 25.
(d) Customers are allowed on site.

iii. Nonurban Area

(a) RS80, RS40, RS20, and AG Districts

The maximum number of medium livestock shall be as follows:
(1) 200 on lots 80,000 square feet or less.
(2) 400 on lots greater than 80,000 square feet but less than 200,000 square feet.
(3) Any number on lots 200,000 square feet and greater.
(4) Customers are allowed on site.

(b) RS10 and RS5.2 Districts

(1) Must be in conjunction with a residential primary use.
(2) Shall have a lot size of at least 10,000 square feet.
(3) Two medium livestock are allowed per every 10,000 square feet of lot area, not to exceed 25.

(4) Customers are allowed on site.

15. Livestock, Small

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C												C	C	S	C		

i. General

(a) Raising and selling livestock is allowed.
(b) On-premises pelting is prohibited in the residential districts.
(c) Small livestock may be allowed outside, unless otherwise stated by this Title.

ii. RS80 and RS40 Districts

(a) The maximum number of small livestock shall be as follows:
(1) In the Urban Area, 100.
(2) In the Nonurban Area, 200 on lots up to 80,000 square feet.
(3) In the Nonurban Area, any number on lots 80,000 square feet and greater.
(b) The maximum number of roosters shall be as follows:
(1) In the Nonurban Area, 5 roosters per breed over 3 months old, not to exceed 20 roosters.
(2) In the Urban Area, 3 roosters over 3 months old.
(c) Customers are allowed on site in the Nonurban Area.
(d) In the Urban Area, customers may be allowed with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from all property owners within a 300-foot radius of the property.

iii. AG District

(a) The maximum number of small livestock shall be as follows:
(1) 200 on lots up to 80,000 square feet.
(2) Any number on lots 80,000 square feet and greater.
(b) Customers are allowed on site.

iv. RS20 District

Small livestock shall be permissible subject to the following standards:
(a) In the Urban Area, small livestock must be in conjunction with a residential primary use.
(b) The maximum number of small livestock shall be as follows:
(1) 20 on lots up to 80,000 square feet.
(2) In the Nonurban Area, any number on lots 80,000 square feet and greater.
(c) The maximum number of roosters shall be as follows:
(1) In the Nonurban Area, 5 roosters over 3 months old per breed, not to exceed 20.
(2) In the Urban Area, 3 roosters over 3 months old.
(d) Customers are allowed on site in the Nonurban Area.
(e) In the Urban Area, customers may be allowed with the approval of a Zoning Compliance (AC) application per §30.06.08G, including letters of consent from all property owners within a 300-foot radius of the property.

v. RS10 and RS5.2 Districts

Small livestock shall be permissible within the Nonurban Area subject to the following standards:
(a) Small livestock must be in conjunction with a residential primary use.
(b) Shall be on a lot of at least 10,000 square feet.
(c) Ten small livestock are permissible per property, not to exceed 5 roosters per breed.
(d) Customers are allowed on site.

vi. IP, IL, and IH Districts

Small livestock shall only be permissible if raised and kept indoors.

16. Plant Nursery

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
												S	P	S	S	S	P	P		P		

17. Stable

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S																	C	S	S

i. Layout and Design

(a) One animal may be kept per 4,000 square feet of lot area.

(b) At least 120 square feet of stall or pen area shall be provided for each animal kept on premises with 90 square feet protected from the elements.

(c) At least 1,200 square feet of pasture, turnout, or area for the purpose of training or exercising animals shall be provided for each animal kept on premises. These areas may be in the front yard with no additional setback, provided the requirements for accessory structures and fencing are satisfied.

(d) Boarding stalls, corrals, pens, and paddocks for animals shall be considered structures, and shall:

(1) Be located in the side or rear yard;

(2) Maintain 5-foot side and rear setbacks; and

(3) At least 30 feet of separation is required from any existing dwelling on an adjacent lot.

(e) A fence or wall at least 5 feet in height enclosing all stables, paddocks, arenas, pastures, etc. shall be provided. Maximum fence and wall height shall be determined by the zoning district standards.

18. Stable, Residential

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C																	C	C	

In addition to meeting the standards for a Stable, the following standards shall apply:

i. Operation

(a) No more than 25 animals shall be kept on-site.

(b) Must be in conjunction with a residential primary use.

30.03.05 Civic and Institutional Uses

A. Group Assembly

Uses in this category include buildings, structures, or facilities that provide a service to the public. Specific use types include:

1. Banquet Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	C	C	C	S	S				

i. Location and Access

(a) Shall be accessed from an arterial or collector street.

(b) A facility shall not be located within 200 feet of areas subject to §30.04.06, *Residential Adjacency* unless separated by an arterial or collector street.

2. Cemetery

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S		C	C			S	C	C				S

i. Location and Access

Shall be accessed from an arterial or collector street.

ii. Layout and Design

A cemetery for the interment of pets shall at least 2.5 acres per NRS 452.670. This standard shall not be waived or varied.

3. Convention Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	S	S	C	S	S				S

i. Operation

In the CR district, an establishment must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

4. Crematory

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S			C	C	C		C	C	C			P

The following standards shall not be waived or varied:

i. Location

(a) In residential districts, the use must be in the Nonurban Area per NRS 451.635.

(b) Per NRS 451.635 in commercial and industrial districts in the Urban Area, the use shall be set back at least 1,500 feet from any lot line shared with a lot subject to §30.04.06, *Residential Adjacency*. This separation is not required for crematories using alkaline hydrolysis only.

5. Daycare

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	C	C	C	C	C	C	S	S		S		S

i. Location and Access

Shall be accessed from an arterial or collector street.

6. Food Pantry

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S		S	S				S

7. Funeral Home

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	P				S

8. Museum

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	S	S		S	S	P

9. Place of Worship

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	C	C	C	C	S	S		S		

i. Operation

Where conditionally allowed, approval of a Zoning Compliance (AC) application per §30.06.08G, shall be required.

10. Union Hall

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	P	P		P	P	S			

B. Educational Facilities

Uses in this category include public and private institutions at the primary, secondary, or post-secondary level, or vocational or trade schools. Specific use types include:

1. Avocational or Vocational Training Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	S		S		P

2. Instruction or Tutoring Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											S	S	P	P	P	S	S	S				S

3. School

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S		S		P

C. Healthcare Facilities

Uses in this category include activities focusing on medical services, particularly licensed public or private institutions that provide preventative health care, primary health services, and medical or surgical care to persons suffering from illness, disease, injury, or other physical or mental conditions. Specific use types include:

1. Emergency or Urgent Care

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S				S

i. Location and Access

Shall be accessed from an arterial or collector street or a commercial complex.

2. Hospital

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S				S

i. Location and Access

Shall be accessed from an arterial or collector street or a commercial complex.

ii. Operation

The primary use of the hospital shall be specified per §30.06.05D, *Special Use Permit (UC)*.

30.03.06 Commercial Uses

A. Adult

Uses in this category include entertainment that is distinguished or characterized by an emphasis on material depicting, describing, or relating to specified sexual activities or specified anatomical areas. Specific use types include:

1. Adult Business

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																		C				

i. Location and Access

Must be in compliance with §30.02.26A, *Adult Business Overlay (ABO).*

ii. Operation

The establishment or operation of a sex club is prohibited. This standard shall not be waived or varied.

B. Automotive, Transportation, and Airspace

This category includes a broad range of uses for the operation, maintenance, storage, sale, or rental of vehicles, large equipment, aircraft, watercraft and related equipment, and aviation-flight uses. Specific use types include:

1. Aircraft Hangar

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C			C			C	C	C	C	C	C	C

i. Layout and Design

An aircraft hangar must be in conjunction with an airport or airstrip or residential dwelling. An aircraft hangar within a residential subdivision, which is oriented to, and takes service from an airstrip only, shall be subject to the same district standards as the primary building on the lot.

2. Airport or Airstrip

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S			S			S	S	S	S	S	S	C

i. Operation

(a) Accessory commercial and industrial uses may be permissible in conjunction with the primary airport and airstrip aviation uses including, but not limited to shops, snack bars,

lounges, restaurants, aircraft fueling, aircraft repair, aircraft rental, office, light manufacturing, warehousing, and fuel storage.

(b) Aircraft sale, maintenance, repair, and assembly are permissible as accessory uses at an airport or airstrip.

(c) The airspace and air traffic of the proposed operation shall be approved by the FAA. This standard shall not be waived or varied.

3. Aviation-Flight

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C

i. Operation

The airspace and air traffic of the proposed operation shall be approved by the FAA. This standard shall not be waived or varied.

4. Equipment Rental or Sales and Service

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C			S	P	P	S			

i. Operation

In the CG and CR districts, the rental, sales, and service of heavy equipment is prohibited.

5. Gas Station

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C	S		S	C	C				

i. Layout and Design

(a) Canopies and fuel pumps shall be 30 feet from the right-of-way line of any section line street and 20 feet from the right-of-way line of any non-section line street.

(b) In the Urban Area, canopies and fuel pumps shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

6. Heliport or Vertiport

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C

i. Operation

The air space and air traffic of the proposed operation shall be approved by the FAA. This standard shall not be waived or varied.

7. Monorail

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S

i. Layout and Design

Site development standards, including but not limited to yard setbacks, building separation, and wall and structure height, may be approved per plans on file.

ii. Processing

Any Special Use Permit (UC) for a private monorail shall only be approved by the Board after receipt of the recommendation of the Commission and concurrent with the approval of a franchise agreement as provided under Chapter 5.04, Franchised Monorail Transportation Systems, of the Clark County Code.

8. Parking Lot

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
												S	P	S	S	S	P	P				P

9. Passenger Terminal

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P

10. Tour Guide or Transportation Service

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C	C	C	C	P	P				S

i. Operation

(a) In the CG, CC, and CU districts, no more than 5 automobiles shall be inspected, staged, or parked onsite.

(b) In the IP and IL districts, no more than 5 automobiles shall be inspected, staged, or parked onsite if parking is shared with another use.

(c) In the CR district, the use must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

11. Truck Stop

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S				C	C	S			

i. Layout and Design

In the Urban Area, a facility shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*. This standard shall not be waived or varied.

12. Vehicle Hobby Repair and Restoration

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A																	

i. Location, Layout, and Design

(a) Use shall be conducted on lots measuring 20,000 square feet or greater and accessory to a residence.

(b) In the RS10 and RS5.2 districts, the use must be in the Nonurban Area and outside the Red Rock Overlay (RRO). This standard shall not be waived or varied.

ii. Operation

(a) Use may be permissible outside, unless otherwise stated by this Title.

(b) The number of unlicensed or inoperable automobiles, as defined by NRS 487.290, stored outside of an enclosed building shall not exceed 2 for the first 20,000 square feet of lot area, plus 1 additional automobile for every 10,000 square feet of lot area thereafter.

(c) The following standards apply to all districts and may only be waived when within the Nonurban Area and outside the Red Rock Overlay (RRO):

(1) When conducted outside, the use shall be:

(i) Restricted to side and rear yards only.

(ii) Enclosed with a 6-foot block wall. When located outside the Red Rock Overlay (RRO) in the Nonurban Area, screening may be provided in lieu of block wall.

(iii) Set back 100 feet from the front lot line. When located outside the Red Rock Overlay (RRO) in the Nonurban Area, the setback may be reduced to 50 feet or 40% of lot depth, whichever is greater.

(2) Nothing shall be stacked or piled above the height of the block wall or screening or otherwise constitute a dangerous structure or condition per Title 11 of the Clark County Code.

(3) The repair, restoration, or storage of commercial vehicles, or automobiles not owned by a resident or closely held corporation of the resident of the subject property, is prohibited. Proof of ownership of automobiles shall be available upon inspection.

13. Vehicle Maintenance or Repair

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S										C			C	C	C	S			

i. Layout and Design

(a) In the nonresidential zoning districts, a facility and all activities, including the parking of vehicles and equipment to be serviced, shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*, unless separated by an arterial or collector street or buffered by a building.

(b) All vehicle maintenance and repair activities must occur within an enclosed building except that outdoor smog check activities may occur outside if related equipment is stored within an enclosed building.

ii. Operation

(a) In addition to required parking, facilities that store vehicles overnight awaiting repair shall have a designated on-site parking area for those vehicles with at least 1 overnight storage parking space per service bay.

(b) In the CR district, vehicle maintenance and repair shall only be in conjunction with vehicle sales. This standard shall not be waived or varied.

(c) In the RS80, RS40 and RS20 districts, vehicle maintenance and repair shall only be permissible in the Nonurban Area outside of the Red Rock Overlay (RRO) subject to approval of a *Special Use Permit (UC) per* §30.06.05D. This standard shall not be waived or varied. Approval of a *Special Use Permit (UC) per* §30.06.05D shall not be required if letters of consent from property owners within a 300-foot radius of the property are included with a Zoning Compliance (AC) application per §30.06.08G.

14. Vehicle Paint/Body Shop

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S			C	C	C	S			

i. Layout and Design

All vehicle paint/body repair work must occur within an enclosed building.

ii. Operation

(a) Paint/body major repair work shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*, unless separated by an arterial or collector street.

(b) In the CR district:
- **(1)** Limited to paint/body minor repair work.
- **(2)** Must be in conjunction with vehicle sales.
- **(3)** These conditions shall not be waived or varied.

15. Vehicle Rental or Sales

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C	S	S	C	C	C				S

i. Operation

(a) Establishments may display up to 5 vehicles or pieces of equipment for rental or sale when parking is shared with another use. Additional vehicles may be requested per §30.06.08G *Zoning Compliance (AC),* following review of an applicant-provided parking analysis and site plan.
- **(1)** In the CR district, must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel, and the number of vehicles is not limited.

(b) In the PF district, only vehicle rental is permissible. Vehicle sales must be in conjunction with an airport conducted through a vehicle rental business. This standard shall not be waived or varied.

16. Vehicle Wash

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C	C		C	C	C				

i. Layout and Design

(a) A facility servicing automobiles and off-highway vehicles shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

(b) A facility servicing commercial vehicles, trailers, recreational vehicles, and watercraft shall not be within 750 feet of any area subject to §30.04.06, *Residential Adjacency,* and shall require approval of a Special Use Permit, as described in §30.06.05D, *Special Use Permit (UC)*.

(c) Vehicle wash is permissible as an accessory use when in conjunction with a primary use and not open to the public. Vehicle wash by mechanical means shall not be located within 200 feet of any area subject to §30.04.06, Residential Adjacency.

(d) In the CR district, use is only permissible when in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

C. Cannabis

This category includes uses that are engaged in the consumption, cultivation, processing, manufacturing, testing, and sale of adult-use cannabis per NRS 678A through 678D. Specific use types include:

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Consumption Lounge												S	S	S	S		S	S				
Cultivation Facility																	S	S				
Distributor												S	S	S	S		S	S				
Independent Testing Laboratory												S	S	S	S		S	S				
Retail Store												S	S	S	S		S	S				

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Production Facility																	S	S				

i. Location and Access

The following standards apply to all cannabis-related uses and shall not be waived or varied, unless otherwise stated:

(a) The facility shall maintain the following minimum separations, as measured from the front door of the proposed establishment to the nearest lot line of the respective use, as certified by a professional land surveyor licensed in the State of Nevada:

(1) 1,000 feet from a school for pre-school through grade 12 except that cannabis consumption lounges shall maintain a minimum separation of 1,500 feet. A Waiver of Development Standards (WS) per §30.06.06F to reduce the cannabis consumption lounge separation may be requested to the minimum distance established pursuant to NRS 678B.

(2) 300 feet from a community facility except that cannabis consumption lounges shall maintain a minimum separation of 1,500 feet. A Waiver of Development Standards (WS) per §30.06.06F to reduce the cannabis consumption lounge separation may be requested to the minimum distance established pursuant to NRS 678B.

(3) 1,500 feet from a nonrestricted gaming property. A Waiver of Development Standards (WS) per §30.06.06F to reduce the cannabis consumption lounge separation may be requested for retail cannabis consumption lounges as defined by NRS 678A to the minimum distance established pursuant to NRS 678B.

(4) In addition to the above requirements:

(i) Cannabis cultivation and production facilities shall not be within 660 feet of any area subject to §30.04.06, *Residential Adjacency,* unless waived by a Waiver of Development Standards (WS) per §30.06.06F.

(ii) Cannabis consumption lounges with outdoor consumption shall not be within 1,500 feet of any area subject to §30.04.06, *Residential Adjacency,* unless separated by an arterial or collector street or buffered by a building, unless waived by a Waiver of Development Standards (WS) per §30.06.06F.

(b) The facility shall not be located within the Las Vegas Boulevard Gaming Corridor.

D. Food and Beverage

This category includes establishments involved in serving prepared food or beverages for consumption on or off the premises. Accessory uses may include food preparation areas, offices, and parking. Specific use types include:

1. Catering

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C	C	C	C	C	C		S		

i. Location and Access

(a) In the commercial and industrial districts, catering must be in conjunction with a hotel, motel, resort hotel, rural resort hotel, shopping center, or restaurant.

2. Craft Brewery, Distillery, or Winery

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													P	P	P	P	P	P		S		

3. Mobile Food Vendor

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											C	C	C	C	C	C	C	C	C	C	C	C

i. Location and Access

(a) One establishment per lot.

(b) Shall not be within 100 feet of any area subject to §30.04.06, *Residential Adjacency*.

(c) Shall be on a developed lot with an established primary use.

ii. Operation

The location of the use, and all patron queuing and seating, shall be located to avoid obstructions to pedestrian, bicycle, and vehicle access or passage.

4. Outdoor Dining, Drinking, and Cooking

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											A	C	C	C	C	C	S	S		S		C

i. Layout and Design

An establishment shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency,* unless separated by an arterial or collector street, or buffered by a building.

ii. Operation

In all districts, the use shall be in conjunction with a primary eating and drinking establishment.

5. Restaurant and Related Facilities

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											P	C	P	P	P	P	S	S		S		C

i. Operation

In the CP, IP, IL, AG, and PF districts, an establishment must be accessory and subordinate to the primary use, designed for the exclusive use of the employees of an office complex or business park, and shall not have an independent commercial appearance or operation.

E. Lodging

This category includes establishments that provide lodging services for a defined period of time with incidental food, drink, and other sales and services for the convenience of guests. Specific use types include:

1. Bed and Breakfast

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S									S									S		

i. Layout and Design

An establishment shall not feature on-site facilities for parking, waiting, or queuing for buses, limousines, taxis, or rideshare programs.

ii. Location and Access

An establishment must be in the Nonurban Area.

iii. Operation

(a) An establishment shall have no more than 4 guest rooms.

(b) Any property on which the establishment is located shall be occupied by the property owner or a resident manager.

2. Hotel or Motel

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											S		P	P	P	P	S					

i. Operation

A mixture of transient and non-transient uses may be requested in accordance with §30.06.05D, *Special Use Permit (UC)*.

3. Recreational Vehicle Park

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S									S		C	C	C	C	S				S	

i. Location, Layout, and Design

(a) Density – 20 units per acre.
(b) Space size shall be 800 sf minimum.
(c) 60 sf Common Open Space per recreational vehicle space.

ii. Operation

(a) Subject to Residential Adjacency per §30.04.06, *Residential Adjacency.*
(b) Recreational vehicle parks are transient accommodations, where the recreational vehicle is only permitted to stay a maximum of 9 months or is limited to a maximum of 180 days if located within a flood zone per Federal Emergency Management Agency (FEMA) regulations.
(c) A permanent register of all persons staying in the park is required including the following:
(1) Name and home address of all persons staying in the recreational vehicle park;
(2) Arrival and departure dates;
(3) Driver's license number and state of issuance; and
(4) Make, model, and license number of all recreational vehicles and assigned space number.
(d) A service building is required containing the following:
(1) Management offices;
(2) Laundry facilities; and
(3) Sanitary facilities. Sanitary facilities shall be located no more than 400 feet from each recreational vehicle site.
(e) Accessory structures on a subdivided recreational vehicle lot within a recreational vehicle park shall be considered to be residential in terms of issuing building permits.

4. Resort Hotel or Rural Resort Hotel

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																S						

i. Operation

(a) An establishment must be within the Gaming Enterprise District (GED). This standard shall not be waived or varied.
(b) Off-premises signage is allowed in conjunction with a Resort Hotel when holding a nonrestricted gaming license in accordance with NRS 463, and any use holding a business license issued in conjunction with said Resort Hotel.

ii. Layout and Design

Resort hotels and rural resort hotels are expected to conform to the development and design standards of this Title. Except for the regulations below, alternatives may be established per the approved plans on file.

(a) §30.02.26B, *Airport Airspace Overlay (AAO)*;

(b) §30.02.26C, *Airport Environs Overlay (AEO);*
(c) §30.06.11, *Permits and Licenses;*
(d) §30.04.08, *Public Works Development Standards;* and
(e) The establishment shall not be located within 10 feet of any street, except:
(1) Pedestrian walkway covers or structures within the setback (not including pedestrian overpass bridges); and
(2) Structures that connect to a County-required pedestrian overpass bridge adjacent to the property.

iii. Neighborhood Casinos

In addition to the standards for resort hotels and rural resort hotels, neighborhood casinos shall conform to the following standards:

(a) The establishment shall be no greater than 100 feet in height.
(b) The establishment shall protect adjacent properties from glare and light trespass by using backlighting and uplighting, limiting the use of reflective building materials, and ensuring light does not trespass onto adjacent properties.
(c) All existing safe routes to school and future school sites for pre-school through grade 12 shall be identified on the plan, and related safety concerns shall be addressed at time of Design Review.
(d) The establishment shall consider the following:
(1) Traffic impact mitigation;
(2) Separation distance from existing and future school sites located within 2,500 linear feet of the proposed project;
(3) Height, size, brilliance, and animation of signs; and
(4) Access through non-gaming areas for community recreational uses that invite or welcome minors.

5. Retreat

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S														C						

i. Location and Access

Must be in the Nonurban Area.

ii. Operation

Sleeping accommodations shall be incidental to retreat-related services only and shall not be rented independently of other services provided.

F. Recreation and Entertainment

This category includes indoor and outdoor recreation and entertainment activities. Specific use types include:

1. Campground

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S																			S	S

i. Operation

Accessory commercial uses may be permissible in conjunction with the establishment, including but not limited to shops, snack bars, lounges, and restaurants.

2. Dayclub/Nightclub

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	S	S	C	S	S				

i. Location and Access

The establishment shall not be within 500 feet of any area subject to §30.04.06, *Residential Adjacency*. This standard shall not be waived or varied.

ii. Operation

In the CR district, an establishment must be in conjunction with a resort hotel.

3. Instructional Wine-Making Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	S	S		S	S		S		

Per NRS 597.245, the following standards shall not be waived or varied:

i. Operation

(a) The establishment shall not package or sell wine wholesale or retail.

(b) The establishment shall only distribute wine to an individual who participated directly in the process of wine-making on the premises of the facility for the person's own household or personal use.

4. Live Entertainment

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	C	S	S	S	S	S	S

i. Location and Access

When conducted outdoors, the use shall not be within 500 feet of any area subject to §30.04.06, *Residential Adjacency*.

ii. Operation

In the CR district, live entertainment must be in conjunction with a hotel or motel, resort hotel or rural resort hotel.

5. Recreational or Entertainment Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	C	C	C	C	C	C	S	S	S	S	S	S

i. Operation

(a) In commercial districts, this use shall be limited to indoor-only recreation.

(b) In the CR district, an establishment must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

(c) Off-premises signage is allowed for facilities governed by a public body created by NRS.

6. Special Event

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T		T	T	T

i. Layout and Design

(a) When located within a parking area, 30% of the required parking may be reduced.

(b) All activities, structures, signs, and fencing shall be 10 feet from any lot line, unless a greater separation is required by the Fire Code.

(c) All activities, structures, signs, and fencing shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency* unless separated by an arterial or collector.

(d) Live entertainment or any other activity with amplified sound shall not be within 500 feet of any area subject to §30.04.06, *Residential Adjacency*. Live entertainment is not allowed in the CP district.

ii. Location and Access

Pedestrian and vehicular access controls shall be provided to ensure rights-of-way, including detached sidewalks, are not obstructed.

The following standards shall not be waived or varied:

iii. Operation

(a) The applicant proposing the special event shall 1) hold a business license for an operating establishment on the property, 2) be in conjunction with a model residence, or 3) be in conjunction with special development. A special event is prohibited for an accessory commercial use or home occupation.

(b) The application shall indicate maximum occupancy of the event and include a parking plan. A transportation plan shall be provided, if the event will be providing transportation to and from the event and if there is insufficient on-site parking to accommodate the maximum occupancy of the event.

(c) A special event is allowed for a maximum 10 consecutive days each month, with 7 days allowed for operation set-up and 7 additional days for operation removal. Six special events per calendar year are allowed on the same property or in association with the licensed business, with the following exceptions:

(1) A resort hotel is not limited to the number of special events that can be held each calendar year, but shall not exceed 10 days per event; or

(2) A special event associated with model residences in a residential development are limited to no more than 1 event per calendar month.

(d) Adult businesses are prohibited as a special event.

(e) Live entertainment or any other activity with amplified sound shall be limited to daytime hours, unless associated with a resort hotel.

(f) Temporary amusement rides may exceed the maximum height limit of the zoning district.

(g) A special event is allowed within the AE-65 and AE-70 subdistricts of the Airport Environs Overlay (AEO) and need not comply with Table 30.02-7: *Land Use Compatibility in the Airport Environs Overlay.*

iv. Exemptions

A special event is exempt from these regulations when in conjunction with the following:

(1) Existing parks and schools in the Public Facilities (PF) district;

(2) One-day private parties in residential neighborhoods;

(3) Motion picture and television production;

(4) Groundbreaking and grand opening ceremonies for approved uses; or

(5) Property owned, operated, or controlled by Clark County.

G. Retail and Services

This category includes establishments involving the sale, lease, or rent of new or used products directly to the final consumer, but not specifically or exclusively for the purpose of resale; establishments that provide executive, management, administrative, governmental, or professional services; and services related to personal needs directly to customers at the site of the business, or that receive goods from or return goods to the customer, which have been treated or processed at that location or another location. Specific use types include:

1. Bathhouse

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																		S				

i. Operation

Massage use is prohibited.

2. Escort Bureau

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S	S	S	S	C	C				

The following standards shall not be waived or varied:

i. Location and Access

(a) An establishment shall not be within 1,500 feet of any area subject to §30.04.06, *Residential Adjacency*, public library, public park or playground, daycare facility for children, school for pre-school through grade 12, or place of worship, as measured radially in all directions from the lot line of the establishment to the nearest lot line of listed uses.

(b) The applicant shall provide evidence certified by a professional land surveyor licensed in the State of Nevada that demonstrates conformity with the separation requirements.

3. Financial Services

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											S	P	P	P	P	C	S	S				

i. Operation

In the CR district, an establishment must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

4. Gunsmith

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													P				P	P				

5. Massage

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A									A	A	S,A	A	A	S,A	A	A				

i. Primary Use

In the CG and CR districts, massage as a primary use shall require a *Special Use Permit (UC)* as described in §30.06.05D, and compliance with the following standards:

(a) The use shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

(b) The use shall be at least 1,000 feet from another massage establishment.

ii. Accessory Use

In the RS80, RS40, CN, CP, CG, CC, CU, CR, IP, and IL districts, massage must be an accessory use only with the following standards that shall not be waived or varied:

(a) In the CR district, the establishment must be accessory to a resort hotel or rural resort hotel or meet condition (c) below.

(b) The establishment is prohibited in conjunction with an adult business.

(c) The establishment may be operated in conjunction with:

(1) A state-licensed healthcare provider per NRS 629.031 or a massage school per NAC §394.

(2) A health club, country club, golf course and accompanying club house, or retreat, no more than 25% of public floor area used for massage.

(3) A beauty salon or day spa providing a minimum of 3 beauty salon/day spa services, no more than 25% of public floor area used for massage.

6. Office

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Office											C	C	C	C	C	S	S	S				C
Office, Sales/ Leasing	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C				
Office, Temporary	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Office

In the CP and Industrial districts, a medical or dental office may include a pharmacy.

ii. Sales/Leasing Office

(a) Layout and Design

The office shall be 10 feet from any front, side, or rear lot line.

(b) Location and Access

If applicable, the office shall be on the property included on the approved tentative map or approved land use application, or within 330 feet of such property.

(c) Operation

(1) Within 30 days after the sale of the last unit or issuance of Certificate of Occupancy or Completion for the final building, the temporary sales office shall be removed.

(2) Sales offices shall not be established prior to the recording of a subdivision map and posting of off-site improvement bonds for the first phase of the subdivision.

iii. Temporary Office

These standards shall not be waived or varied.

(a) Limited to the projected duration of the project or until a damaged or destroyed office is reconstructed per building permit issuance for construction or reconstruction.

(b) Need not be on the same lot as the construction project, but shall be located within ¼ of a mile of the site for which it is operating.

7. Outdoor Market

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S		S	S	S

8. Personal Services

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	P	C	P	P	P	C	C	C				

i. Operation

(a) In the CR district, shall be in conjunction with a shopping center, hotel or motel, resort hotel, or rural resort hotel.

(b) In the CP, IP, and IL districts, fitness gyms, health clubs, and similar uses must be accessory to an office complex or business park for the exclusive use of employees.

9. Retail

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											C	C	C	C	C	C	C	C		C		C

i. Operation

(a) In the CP, IP, IL, AG, and PF districts, retail must be an accessory use to the primary business.

(b) Retail sales of firearms and ammunition is only permissible in the CG, IP, and IL districts.

10. Retail, Last Mile

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C									

i. Location and Access

Shall be accessed from an arterial or collector street, or a commercial complex.

ii. Layout and Design

Shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

11. Seasonal Sales

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T		T		

The following standards shall not be waived or varied.

i. Layout and Design

(a) When operating in a parking area, 30% of the required parking may be reduced.

(b) All activities, structures, signs, and fencing shall be 10 feet from any lot line, unless a greater separation is required by the Fire Code.

(c) All activities, structures, signs, and fencing shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency* unless separated by an arterial or collector street.

ii. Location and Access

Pedestrian and vehicular access controls shall be provided to ensure rights-of-way, including detached sidewalks, are not obstructed.

iii. Operation

A seasonal sale shall be allowed 14 days prior to the associated holiday, including set-up, and 1 additional day following the holiday for removal, except:

(a) Halloween and Christmas sales shall be allowed 30 days prior to the holiday, plus 7 days for set-up and 7 days after the holiday for removal.

(b) Adult businesses are prohibited from seasonal sale use.

(c) Live entertainment is prohibited, except for haunted houses during the Halloween season.

(d) Temporary amusement rides may exceed the maximum height limit of the zoning district.

(e) A seasonal sale is permissible within the AE-65 and AE-70 subdistricts of the Airport Environs Overlay (AEO) and need not comply with Table 30.02-7: *Land Use Compatibility in the Airport Environs Overlay*.

12. Wedding Chapel

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A

i. Operation

A wedding chapel must be in conjunction with a resort hotel or rural resort hotel, banquet facility, or recreational or entertainment facility. This standard shall not be waived or varied.

30.03.07 Industrial Uses

A. Industrial Services

This category includes facilities for the repair or servicing of agricultural, industrial, business, or consumer machinery, equipment, products, or by-products. Contractors and similar uses perform services off-site. Few customers come to the site. Specific use types include:

1. Auction

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S			C	S	P	P			

i. Operation

In the CR district, auctions must be in conjunction with a resort hotel or a rural resort hotel.

2. Dry Cleaning Plant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	P	P	S			

3. Laboratory

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
												C	C				P	P	S			

i. Operation

In the CP and CG districts, medical and dental laboratories only shall be permissible.

B. Manufacturing and Production

This category includes the excavation, transporting, manufacturing, fabrication, processing, reduction, destruction, or any other treatment of any article, substance, or commodity, in order to change its form, character, or appearance. Accessory uses may include retail sales, offices, storage, cafeterias, employee amenities, parking, warehousing, and repair facilities. Specific use types include:

1. Alternative Fuels Processing

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	P	P	P			

2. Animal Byproducts

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																			S			

The following standards shall not be waived or varied:

i. Location and Access

(a) Facilities shall be 4,000 feet from any nonindustrial use.

(b) Facilities shall be 200 feet from any other industrial use except accessory industrial uses.

3. Batch Plant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Batch Plant	S																	S	S			
Batch Plant, Temporary	S	S	S	S	S	S	S	S	S	S	S		S	S	S	S	S	S	S	S	S	S

i. Batch Plant

Facilities and activities shall not be within 1,000 feet of any area subject to §30.04.06, *Residential Adjacency*.

ii. Temporary Batch Plant

Temporary batch plants must be in conjunction with a temporary construction project or public project and are subject to the following standards:

(a) Batch plants in conjunction with specified temporary construction projects on a site other than the construction site may be approved for no more than 2 years, or the time required to complete the construction project, whichever is less.

(b) Batch plants in conjunction with a public project initiated and funded by any governmental entity may be approved for no more than 5 years, or the time required to complete the construction project, whichever is less.

(c) An *Extension of Time*, as described in §30.06.06B, may be granted to allow additional time.

iii. Exception

Batch plants and related construction equipment in conjunction with an on-site temporary construction project shall be allowed without a *Special Use Permit (UC)*, as described in §30.06.05D, if there is an active building permit for the property.

4. Brewery, Distillery, or Bottling Plant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	P	P	S	S		

5. Food Processing

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
		C											C			C	P	P		C		

i. RS40 and AG Districts

Food processing shall be limited to food grown on premises only. This standard shall not be waived or varied.

ii. CG and CR Districts

(a) Food processing must be in conjunction with a restaurant or retail sales.

(b) In the CR district, food processing is permissible in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

6. Manufacturing, Artisan

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S											C			C	P	P		P		

i. Operation

In the CG and CR districts, must be in conjunction with a retail establishment.

7. Manufacturing, Heavy

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																			S			

i. Location and Access

(a) Manufacturing activities shall be 1,000 feet from any nonindustrial use.

(b) Manufacturing activities shall be 200 feet from any other industrial use except accessory industrial uses.

8. Manufacturing, Light

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	C	C	C			

i. Location and Operation

(a) In the IP district, manufacturing shall occur within an enclosed building, which shall not be waived or varied.

(b) In the IL and IH districts, manufacturing may be conducted outside when:

(1) 200 feet from any nonindustrial use; and

(2) Not within 600 feet of any area subject to §30.04.06, *Residential Adjacency.* This distance may be reduced to 200 feet if buffered by an existing building.

9. Manufacturing, Medium

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																		C	S			

i. Location and Access

Manufacturing activities shall be 600 feet from any nonindustrial use.

10. Taxidermy

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	P	P		P		

C. Resource Extraction

This category includes activities relating to the mining or removal of materials from the natural environment including mining rocks, soils, minerals, and other similar materials. Specific use types may be outside and include:

1. Gravel Pit

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Gravel Pit	S																		S			
Gravel Pit, Temporary	S	S	S	S	S	S	S	S	S	S	S		S	S	S	S	S	S	S	S	S	S

i. Gravel Pit

(a) All equipment shall be 1,000 feet from an existing occupied residential dwelling on any other property.

(b) A time limit for the use to be discontinued shall be determined by the Commission or Board. An *Extension of Time*, as described in §30.06.06B, may be granted to allow additional time.

(c) Temporary construction storage and/or concrete/asphaltic batch plants in conjunction with the gravel pit shall be included in the *Special Use Permit (UC)*, as described in §30.06.05D, and are subject to the same standards.

(d) In the IH district, a gravel pit shall be located outside of the Las Vegas Valley BLM Land Disposal Boundary and designated Industrial Employment within an adopted Planning Area. This standard shall not be waived or varied.

ii. Temporary Gravel Pit

(a) Temporary construction storage and/or concrete/asphaltic batch plants in conjunction with the gravel pit/batch plant shall be included in the *Special Use Permit (UC)*, as described in §30.06.05D, and are subject to the same standards.

(b) Gravel pits in conjunction with a specified temporary construction project on a site other than the construction site shall be approved for no more than 2 years, or the time required to complete the construction project, whichever is less. An *Extension of Time*, as described in §30.06.06B, may be granted to allow additional time.

(c) Gravel pits in conjunction with a specified temporary construction project may sell excess gravel if the applicant demonstrates such sale would decrease the overall impact of traffic on developed areas of the community.

(d) Gravel pits in conjunction with a public project initiated and funded by any governmental entity shall only use excess gravel generated in the course of grading for the public project.

2. Mining and Extraction

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S																	S	S			

i. Layout and Design

Any equipment or activities shall be 1,000 feet from an existing occupied residential dwelling on any other property.

ii. Operation

(a) A time limit for the use to be discontinued shall be determined by the Commission or Board. An *Extension of Time*, as described in §30.06.06B, may be granted to allow additional time.

(b) In the IL and IH districts, mining and extraction shall be located outside of the Las Vegas Valley BLM Land Disposal Boundary and designated Industrial Employment within an adopted Planning Area. This standard shall not be waived or varied.

3. Rock Crushing

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S																	S	S			

i. Layout and Design

Any equipment shall be 1,000 feet from an existing occupied residential dwelling on any other property.

ii. Operation

A time limit for the use to be discontinued shall be determined by the Commission or Board. An *Extension of Time*, as described in §30.06.06B, may be granted to allow additional time.

D. Warehousing and Storage

This category includes facilities for the storage or movement of goods for themselves or other businesses. Goods are generally delivered to other businesses or the final consumer, except for some will-call pickups. There are typically few customers present. Specific use types include:

1. Fuel Storage

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	S	S	S			

i. Layout and Design

(a) Shall be 1,000 feet from any nonindustrial use.

(b) Shall be 200 feet from any other industrial use except accessory industrial uses.

ii. Operation

In the IP and IL districts, storage shall be limited to the indoor storage of bulk motor oil. This standard shall not be waived or varied.

2. Hazardous Materials or Waste Storage

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																			S			

3. Mini-Warehouse

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													S				P	P				

4. Outdoor Storage and Display

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A/S	A/S	A/S		A/S								C			C	C	C	C	A/S		C

i. Nonresidential Districts Excluding the AG District

(a) Outdoor storage and display shall meet the zoning district setback requirements of Chapter 30.02, *Zoning Districts.* Outdoor storage and display not meeting the zoning district setbacks shall be screened from view by an 8'-high screened fence or wall.

(b) Outdoor storage and display shall be screened from any arterial or collector street, or right-of-way and from any adjacent nonindustrial use with an 8'-high screened fence or wall.

(c) Outdoor storage and display shall not be stacked or piled above the height of any screen fence or wall. This standard shall not be waived or varied in the CG, CR, or IP districts.

(d) In the IP district, shall be accessory to an indoor primary use, located behind the front face of the primary building, and shall not obstruct any pedestrian walkways.

(e) In the CG district, limited to outdoor display only, accessory to an indoor primary use and shall not obstruct any pedestrian walkways. Outdoor storage is only allowed when storage is in conjunction with an outdoor motor vehicle racetrack having 50,000 or more seats, for those items used in connection with the activation of events held thereon.

(f) In the CR district, shall be accessory to a resort hotel, rural resort hotel, or neighborhood casino.

ii. Accessory Use only in RS80, RS40, RS20, RS5.2, and AG Districts

In the Nonurban Area, and outside the Red Rock Overlay (RRO), the following standards shall apply:

(a) Outdoor storage and display must be accessory to a single-family residential primary use or special development. This standard shall not be waived or varied.

(b) Commercial vehicle may be kept on site when accessory to a residence if:

(1) The vehicle is related to a voluntary public service including but not limited to fire, ambulance, road maintenance/repair; and

(2) The vehicle is parked for no more than 72 hours without being moved.

(c) Scrap and salvage from metal, wood, or other materials suitable for reuse may be stored subject to approval of a *Special Use Permit (UC)*, as described in §30.06.05D, and the following standards:

(1) The lot is at least 40,000 square feet.

(2) Up to 20% of the lot area may be used for outdoor storage.

(3) All outdoor storage shall be screened.

(4) Explosives, bottles, cans, paper, rags, plastic, and refuse shall not be stored outside. This standard shall not be waived or varied.

5. Truck Parking or Staging

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	S	S	S			S

i. Layout and Design

A minimum of one building shall be constructed or erected for the purpose of monitoring onsite activities and controlling access.

6. Warehouse and Distribution

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																	P	P	S			S

7. Wholesale

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
													C			C	P	P				

i. Operation

In the CG and CR districts, wholesale establishments must be accessory to a primary retail business. This standard shall not be waived or varied.

E. Waste and Salvage

This category includes facilities that receive solid or liquid waste from others for on-site disposal or for transfer to another location, including but not limited to, the collection of sanitary waste, organic material, scrap, recyclables, or other waste. Uses that manufacture or produce goods or energy from the decomposition, incineration, or processing of waste material, and facilities that receive hazardous wastes from others are included. Specific use types include:

1. Composting Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S																	C	S	C		

i. Layout and Design

The facility shall not be within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

ii. Operation

In the RS80 district, a composting facility must be in conjunction with a batch plant. This standard shall not be waived or varied.

2. Public Waste Storage Bin Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S								S	S	S	S	S	S	S	S	S			S

i. Location and Access

Must be in the Nonurban Area.

3. Reclamation Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S

4. Recyclable Collection

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											A	A	A	A	A	A	A	A	A			A

i. Operation

Shall be accessory to a commercial or industrial use.

5. Recycling Center

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																		S	S			

The following standards shall not be waived or varied:

i. Layout and Design

Any facility or activity shall be 600 feet from any nonindustrial use.

ii. Operation and Ownership

(a) Materials received shall be outside for no more than 24 hours.

(b) Processed recyclable material shall not be stored outside more than 3 months and shall not exceed 3,000 cubic yards at any time.

(c) Recyclable material shall be baled sufficiently secure to ensure no material is separated from the bale by adverse weather conditions.

6. Refuse Transfer Station

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																		S	S			

i. Location and Access

Shall only be accessed from an arterial or collector street.

ii. Layout and Design

(a) A lot shall be at least 10 gross acres.

(b) Any building utilized for refuse transfer shall be 400 feet from an existing occupied residential dwelling on any other property.

(c) A 20-foot wide, dense landscape buffer is required along any right-of-way or nonindustrial use.

(d) A decorative wall is required around the entire parcel and shall allow a sufficient setback area for landscaping along a street.

iii. Operation and Ownership

All activities, except for parking, refueling facilities, and traffic control stations, shall be conducted within an enclosed structure.

7. Salvage Yard

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																			S			

i. Layout and Design

Activities shall be 600 feet from any nonindustrial use.

8. Sanitary Landfill

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																			S			

i. Layout and Design

(a) Facilities shall be 1,000 feet from any nonindustrial use.

(b) Facilities shall be 200 feet from any other industrial use except accessory uses.

9. Wastewater Package Treatment Plant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S													S	S	S			S

The following standards shall not be waived or varied:

i. All Districts

(a) The plant shall demonstrate compliance with Chapter 24.28 prior to submittal of a *Special Use Permit (UC)*, per §30.06.05D.

(b) The plant shall be located outside the local water reclamation district service area.

ii. Residential Districts

(a) The plant shall be covered and off air treated for odor control prior to release into the atmosphere, and the applicant shall demonstrate that odor from the plant will not adversely impact adjacent properties.

(b) Covenants, conditions, and restrictions for the maintenance of the plant shall be submitted prior to issuance of permits.

(c) Reclaimed water from the plant shall not be used on any food crops.

(d) Use of reclaimed water is allowed for landscaping.

iii. Industrial Districts

(a) The plant shall be 1,000 feet from any nonindustrial use.

(b) The plant shall be 200 feet from any industrial use, except an accessory industrial use on the same lot or parcel as the primary industrial use.

10. Wastewater Treatment Plant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S																S	S	S			S

i. Layout and Design

(a) In the RS80 district, a facility to serve a development outside the service area of the local sanitation district is subject to the approval of the Water Reclamation District. This standard shall not be waived or varied.

(b) The facility shall be 1,000 feet from any nonindustrial use.

(c) The facility shall be 200 feet from any industrial use, unless accessory to an industrial use on the same lot or parcel as the primary industrial use.

30.03.08 Public and Quasi-Public Uses

A. Government

Uses in this category include publicly owned buildings, structures, or facilities that provide a service. Specific use types include:

1. Detention Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																						S

i. Operation

The type of facility (e.g., forensic facility, jail, maximum security prison, prison) shall be specified in the *Special Use Permit (UC)*, as described in §30.06.05D.

2. Government Facility

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Government Facility	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	S	S	S	S	S	S	P
Government Facility, Temporary	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Temporary Government Facility

The facility shall be limited to a period of time commensurate with the projected duration of the project.

3. Library

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	S		S	S	P

4. Park

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

B. Utilities

This category includes antennas, towers, transmission devices, lines, buildings, easements, passageways, or structures used or intended to be used by any public or private communications and broadcasting operation or utility related to the provision, distribution, collection, transmission, or disposal of power, oil, gas, water, sanitary sewage, communication signals, or other similar public services at a local level. Specific use types include:

1. Communication Antenna

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Stealth Antenna

A stealth antenna located on an existing building or structure that is either not visible or designed to match the architecture of the existing building shall not be required to meet any other development standards, including but not limited to separation, collocation, and setbacks.

ii. Antenna on an Existing Structure

An antenna located on an existing structure shall meet the following:

(a) The antenna shall be designed to have exterior colors and building materials similar to and compatible with the structure.

(b) The antenna height shall not exceed 8 feet above the structure if the structure is 35 feet or less, or 12 feet above the structure if the structure is greater than 35 feet.

iii. Collocated Antenna

An antenna collocated on an existing or reconstructed tower shall meet the following:

(a) The existing vertical height of the tower structure shall not be increased by the greater of: more than 10% of the initial approved height or the height of one additional antenna array with separation from the nearest existing antenna not to exceed 20 feet.

(b) The original tower shall be removed within 60 days of the new tower being operational if the tower is reconstructed.

iv. Accessory Antenna with Mast Tower

One radio transmission and receiving mast tower is allowed as an accessory use to a single-family dwelling that is occupied by a Federal Communication Commission (FCC) licensed amateur radio operator, under the following standards:

(a) The overall structure height shall not exceed 60 feet unless otherwise restricted by the *Airport Airspace Overlay (AAO)* described in §30.02.26B.

(b) The structure shall be at least 15 feet from any side or rear lot line.

(c) The structure shall be designed and operated to comply with all FCC regulations.

(d) The structure shall be removed when no longer in use.

2. Communication Tower

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Applicable Land Use Approval

(a) Towers are permitted without a Special Use Permit or Administrative Design Review subject to compliance with the Layout and Design Standards below when the tower is located outside of the Bureau of Land Management Disposal Boundary.

(b) Towers are permitted with an Administrative Design Review subject to compliance with the Layout and Design Standards below when:

(1) Located on any public property; or

(2) Located within a commercial or industrial district or development, or when the Master Plan Planned Land Use Map indicates a commercial, industrial or open lands designation.

ii. Layout and Design

(a) Any tower shall be designed to accommodate more than 1 antenna array, and any tower taller than 80 feet shall be designed to accommodate at least 3 antenna arrays.

(b) Any facility that does not have permanent staff assigned to it shall meet the following standards:

(1) Landscaping and screening shall be required for any facility that exceeds 40,000 square feet.

(2) Ground-level equipment, buildings, and the tower or antenna base shall be screened to prevent visibility from any area subject to §30.04.06, *Residential Adjacency*.

(c) Any tower shall be painted with a color generally matching the surroundings or background to minimize its visibility; however, a different color may be used if required by the FCC or FAA.

(d) No tower shall be more than 80 feet in height unless located within a public utility substation, in which case the maximum height shall be 20 feet above the highest structure within the substation.

(e) Any tower shall meet the following setbacks:

(1) When located within a public utility substation, towers shall be 10 feet from any right-of-way and 20 feet from any area subject to §30.04.06, *Residential Adjacency*.

(2) Any tower not located within a public utility substation shall be 40 feet from any street.

(3) Any tower not located within a public utility substation shall be set back from any residential development on a separate property as follows:

(i) If the subject lot or parcel is less than 2.5 acres, the tower shall be set back 200% of the height of the tower.

(ii) If the subject lot or parcel is 2.5 acres or greater, the tower shall be set back 300% of the height of the tower.

(iii) However, the setback distance shall never be equal to or more than 75% of the width of the lot, measured from the lot line that abuts or is closest to the residential development to the lot line on the opposite side of the lot.

(4) Any tower shall maintain a minimum separation of 600 feet from another communications tower. Separations shall not apply to towers if designed to be stealth or located within a cluster of other towers.

iii. Performance Bond

(a) A performance bond shall be required for all new towers, including relocated towers where a previous bond has not been accepted, in a form acceptable to the Director, or a cash deposit in lieu of the bond, in an amount sufficient to provide for removal, storage or disposal of the tower, plus an additional 15% contingency and to restore the site including stabilization and re-vegetation as necessary.

(1) An estimate of the removal cost from a Clark County-licensed company experienced in contracting for removal of standard components shall accompany the bond.

(b) Unless the tower is located on property owned by a governmental entity where a guarantee is in place for removal of the tower when no longer in use, a separate bond will be required for each tower regardless of owner(s) or location.

(c) All bonds shall provide for the County to collect the full amount of the guarantee if the applicant fails to maintain the guarantee. Any government entity or public utility company shall be exempt from this requirement.

(d) If no bond is in place, or if the County cannot collect on a bond issued pursuant to this Section, the following procedure shall apply:

(1) Any abandoned or unused tower, and the associated components of the facility shall be removed within 12 months of the cessation of operations of the tower.

(2) If removal is not timely, the County may remove or cause the removal of the tower and associated components, and assess the costs of removal against the property, after notice and opportunity to be heard is provided as follows:

(i) Before taking such action, the County shall mail to the property owner a notice of the County's intent to do so.

(ii) The property owner served with such notice shall have 30 days from the date the notice is mailed to respond in writing to request a hearing before the Board to show cause why the abandoned tower and associated components should not be removed from the property at the property owner's expense.

(iii) The failure to request a hearing within 30 days shall be deemed a waiver of the right to be heard and the County may immediately cause the removal of the tower and any associated components, and may assess the costs of removal, storage, and disposal against the property.

3. Communication Utility Building

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S	S	S	S	S	S	S	S	S	S	S	S	P	S	S	S	P	P	S	S	S	P

4. Electric Generation, Large-Scale

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	S															C	S	S	S	S	S	S

i. Layout and Design

(a) In the RS80 district, activities shall be set back 2,000 feet from any nonindustrial use.

(b) In the CR district, large-scale energy generation must be in conjunction with a hotel or motel, resort hotel, or rural resort hotel.

(c) In the IH district, the following standards shall not be waived or varied:

(1) The use shall be 1,000 feet from any nonindustrial use.

(2) The use shall be 200 feet from any industrial use, except an accessory industrial use on the same lot or parcel as the primary industrial use.

ii. Operation

(a) Except in the RS80 and IH districts, energy shall only be generated from renewable resources, including but not limited to wind or solar.

(b) Any project generating 50 megawatts or more of electricity and impacts more than 1 jurisdiction may be required to follow the Southern Nevada Regional Planning Coalition's (SNRPC) procedures for Regional Infrastructure Projects. This standard shall not be waived or varied.

5. Electric Generation, Small-Scale

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A

i. Operation

Small-scale electric generation may be permitted as an accessory use, subject to the following standards:

(a) Equipment and facilities exceeding the size of mechanical equipment typically found with the primary use shall be screened from any street or adjacent property.

(b) Small-scale electric generation units established in conjunction with a single-family dwelling(s) shall not exceed 500 kilowatts in capacity.

6. Public Utility Structure

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C	C

i. Aboveground Utility Lines 200 kv or Greater

Aboveground lines carrying 200 kilovolts or greater voltage shall be located within an aboveground utility corridor as designated in the Master Plan, subject to §30.06.05A, *Administrative Design Review (ADR).* A *Special Use Permit (UC)*, as described in §30.06.05D, is required for any aboveground lines carrying 200 kilovolts or greater voltage when located outside the aboveground utility corridor designated in the Master Plan.

ii. Utility Poles

Utility poles are conditionally permissible in all districts subject to conformance with the following:

(a) The height of a utility pole may be increased, or poles may be replaced on a 1 for 1 basis, if the height does not exceed the height of the original pole by more than 20 feet.

(b) If more than 20 feet in height is added, a utility pole shall be set back 300% of the height of the pole in any area subject to §30.04.06, *Residential Adjacency*.

(c) Additional poles may be added to existing utility corridors with approval of a *Minor Deviation (AV)*, as described in §30.06.06C. Letters of consent are not required from publicly owned property.

iii. Public Utility Buildings and Structures

(a) In all districts, a *Special Use Permit (UC)*, as described in §30.06.05D, is required. In the CG and industrial districts, a Special Use Permit is not required if the public utility buildings and structures are:

(1) Not visible from streets or residential development;

(2) Screened with enhanced walls and landscaping; and

(3) Not within 200 feet of any area subject to §30.04.06, *Residential Adjacency*.

(b) The following projects which impact more than 1 jurisdiction may be required to follow the Southern Nevada Regional Planning Coalition's (SNRPC) procedures for Projects of Regional Significance:

(1) A transmission line that carries 60 kilovolts or more;

(2) A facility that generates 50 megawatts or more of electricity;

(3) Natural gas storage and peak shaving facilities; and

(4) Gas regulator stations and mains that operate over 200 pounds per square inch.

Chapter 30.04 Development Standards

30.04.01 LANDSCAPING

A. Purpose

The purpose of this Section is to:

1. Enhance community character and the appearance of development and streetscapes using low-water, climate-appropriate plant materials;
2. Reduce the impacts of wind, dust, pollution, glare, and heat island effect on human health and comfort;
3. Create streets that are safe and enjoyable for people walking, biking, taking transit, or driving;
4. Protect the environment by providing for permanent stormwater controls per Section 1500 of the Regional Flood Control District's, Hydrologic Criteria and Drainage Design Manual, and mitigating air quality;
5. Conserve natural resources, including water, in coordination with the Southern Nevada Water Authority's Water Conservation Plan; and
6. Limit negative impacts of differing adjacent uses and zoning districts by providing for screening and buffering between those uses and zoning districts.

B. Applicability

1. Except as otherwise provided, the standards in this Section shall apply to all new development.
2. Any development located outside of the service area of the nearest water provider may replace any required live landscaping with permanent xeriscape landscaping that supports the purpose and intent of this Chapter.
3. If a requirement in this §30.04.01 cannot be met, a Waiver of Development Standards, as described in §30.06.06F, may be requested.

C. Administration

1. **Landscape Plan**
    - i. A landscape plan shall be submitted as required by the submittal requirements established for each application type.
    - ii. A landscape plan may be combined with other required application materials if compliance with this Section can be demonstrated in the combined materials.
    - iii. The landscape plan shall show, at minimum:
        - **(a)** Existing trees drawn to scale;
        - **(b)** Significant trees to be preserved on-site;
        - **(c)** Any trees to be removed;
        - **(d)** All trees and vegetation required and proposed to be installed in accordance with this Title;
        - **(e)** Adequate spatial considerations for the anticipated size and spread of plant materials at maturity in conformance with §30.04.01D.2, *Plant Materials*; and
        - **(f)** Sight zones, as described in §30.04.08G, *Sight Zones.*
    - iv. A landscape plan is not required for attached sidewalks along private streets or internal streets within a subdivision.

v. Variations from the standards of this §30.04.01 may be requested with an Alternative Landscape Plan, as described in §30.04.01E.1. Where an Alternative Landscape Plan does not apply, requests to vary from these standards may be considered as described in §30.06.06F, *Waiver of Development Standards.*

D. Landscaping Standards

1. On-Site Landscaping Required

i. All disturbed areas of a developed property not occupied by permissible outside activity areas, storage areas, structures, parking, driveways, drive aisles, bus turnouts, and sidewalks shall be landscaped. Exceptions to this standard are as follows:

(a) Any yard area behind established walls or fencing located in side or rear yards of a single-family dwelling;

(b) Agriculture and animal-related uses identified in Table 30.03-1: *Summary Table of Allowed Uses* when accessory to a primary use;

(c) A batch plant or Resource Extraction use identified in Table 30.03-1: *Summary Table of Allowed Uses;*

(d) Temporary uses identified with a "T" in Table 30.03-1: *Summary Table of Allowed Uses;* and

(e) Areas designated for future development in a phased project.

ii. Areas required to be landscaped shall not be used for parking of vehicles, display of merchandise, or other uses detrimental to the landscaping.

2. Plant Materials

i. Required Landscaping

Required landscaping shall consist of:

(a) Recommended plants selected from the Southern Nevada Water Authority and Southern Nevada Regional Planning Coalition's Regional Plant List (Regional Plant List); or

(b) Alternative plant types may be proposed if evidence is provided from a qualified professional stating such plants meet, at a minimum, the climate resiliency and selected plant rating and methodology provided in the Regional Plant List; and

(c) Any cactus or annual or perennial flowers.

(d) Palm trees are prohibited.

ii. Prohibited

(a) Any plant listed on the Nevada State Department of Agriculture's noxious weed list per NAC §555.010; and

(b) Trees with invasive root systems.

iii. Higher-Elevation Requirements

For property at elevations of 4,000 feet or more above sea level, natural and endemic plants should be preserved and incorporated into any required landscaping area.

iv. Artificial Plants

Durable, permanently installed, high-quality artificial plants or features designed to look like plants that support the purpose and intent of this Chapter may be used to meet the requirements of this §30.04.01**.**

v. Ground Covering

Any portion of the landscaped area that is not planted shall be covered by a 2-inch-minimum layer of air- and water-permeable decorative rock, bark, or mulch to reduce dust and evaporation. Living groundcovers qualify as mulch provided the individual plants are installed at sufficient density to assure 100% ground coverage at maturity.

3. Limitations

Front and side yards of detached single-family dwellings shall have no more than 60% hardscape.

4. Turf

These restrictions cannot be waived or varied.

i. Permitted Uses

Turf shall only be allowed in conjunction with cemeteries, parks, and schools.

ii. Slope

The maximum slope of a turf area shall not exceed 25%.

iii. Location

Turf areas shall not be located within 10 feet of a street, curb, paved surface, or sidewalk if adjacent to a paved surface.

iv. Minimum Dimensions

(a) No area of turf shall have a width or depth less than 30 feet in any dimension.

(b) Turf area must be no less than 1,500 contiguous square feet.

v. Species

Turf species may include varieties as recommended by the Southern Nevada Water Authority (SNWA).

5. Required Minimum Plant Specifications

All required plants and vegetation shall meet the following minimum specifications:

Table 30.04-1: Minimum Plant Specifications

Plant Type	Size at Planting, Min. [1]	Tree Canopy at Maturity, Min. [2]
Trees (small)	1.5-inch caliper	Less than 134 sf
Trees (medium)	2.5-inch caliper	134 sf or greater
Trees (large)	3-inch caliper	More than 235 sf and 40 ft tall min.
Evergreen trees	7 feet tall	--
Shrubs	5 gallons	--
Groundcover, ornamental grasses, annuals, and perennials	1 gallon	--

NOTES

[1] Caliper shall be measured 6 inches above ground level at time of planting.
[2] Tree canopy coverage at maturity is established per the SNWA/SNRPC Regional Plant List.

6. Tree Preservation

i. Significant and Drought-Tolerant Trees

(a) Any significant tree defined as drought-tolerant by the Southern Nevada Water Authority shall be preserved during construction and maintained on the property.

(b) Any existing drought-tolerant tree should be preserved and maintained where possible.

ii. Protection

Any tree being preserved during the construction or site development process shall have a root protection zone of 1 foot radius for every 1 inch in tree diameter, measured 4.5 feet above the ground. No construction activity or storage of materials, debris, equipment, or site amenities shall occur within the root protection zone.

iii. Mitigation

(a) Where the loss of a significant tree(s) cannot be avoided, the impact shall be mitigated through whichever approach below yields the greatest combined caliper of replacement trees:

(1) Three large drought-tolerant trees per each significant tree lost; or

(2) Drought-tolerant trees of an equal or greater combined caliper to the lost significant tree(s) shall be provided. For example, the loss of one 12-inch caliper tree may be replaced by three, 4-inch caliper trees.

(b) Where the loss of a significant tree cannot be avoided and mitigation cannot be provided, the Board may approve a fee-in-lieu per §30.04.01E.2, *Fee-In-Lieu*.

7. Street Landscaping

Landscaping shall be provided along a public street where sidewalks are required per §30.04.08C.5, *Sidewalks*, as follows:

i. Detached Sidewalk Landscaping

A minimum 15-foot-wide area, measured from the back of curb, consisting of 2 landscape strips, 5 feet wide on each side of 5-foot-wide sidewalk shall be provided. Meandering sidewalks shall comply with applicable Public Works design standards per §30.04.08C.6.ii*, Meandering Sidewalks.*

ii. Attached Sidewalk Landscaping

(a) A 6-foot-wide minimum landscaping strip shall be provided.

(b) Where a detached sidewalk is required and when an attached sidewalk is proposed or is allowed to remain, a 10-foot-wide minimum landscape strip shall be provided.

(c) A 10-foot-wide minimum landscape strip is required along an Interstate/State Highway (Per NDOT), not otherwise defined as a freeway, as designated in the Transportation Maps of the Master Plan.

(d) Landscape width shall be measured from the back of sidewalk.

iii. Landscape Design

One large tree and 3 shrubs, meeting the specifications of §30.04.01D.5, *Required Minimum Plant Specifications*, shall be provided every 30 linear feet of street frontage Alternatively, medium and small trees may be provided for every 20 and 10 linear feet of street frontage, respectively.

(a) Tree Location

Trees planted on opposite sides of the detached sidewalk, as described in provision i above, shall be offset from one another at equal intervals.

(b) Shrub Location

Where possible, required shrubs shall be planted outside of the tree canopy area at maturity.

iv. Prohibited Location

(a) No tree shall be planted within 10 feet of any streetlight, as measured from the outer edge of the tree trunk at time of planting.

(b) No tree shall be planted within any required sight zone per §30.04.08G, *Sight Zones.*

v. Exemptions

(a) When detached sidewalks are adjacent to a dedicated bus turnout or a right-turn deceleration lane, the required street landscaping between the back of curb and the sidewalk is not required.

(b) When curb, gutter, and sidewalk are not installed, a 6-foot-wide landscaped area shall be provided on-site. The landscape area width shall be measured from the property line.

(c) Street landscaping shall not apply to the front yards adjacent to a residential local street of single-family residential development.

(d) Street landscaping is not required in the AG and OS zoning districts. In addition, street landscaping is not required for development within the Nonurban Area in the RS80, RS40 and RS20 zoning districts, unless the development is a major subdivision.

(e) Trees prohibited pursuant to iv. above are not required to be installed elsewhere.

8. Parking Area Landscaping

i. Layout and Design

Landscape islands, planting strips, or walkways shall be provided per one of the following two options:

(a) Option 1: Parking Landscape Island

A landscape island shall be provided every 6 parking spaces and at the end of each row of parking. A landscape island shall be no less than 6 feet wide measured from the inside curb, and the length of the adjacent parking space(s). See

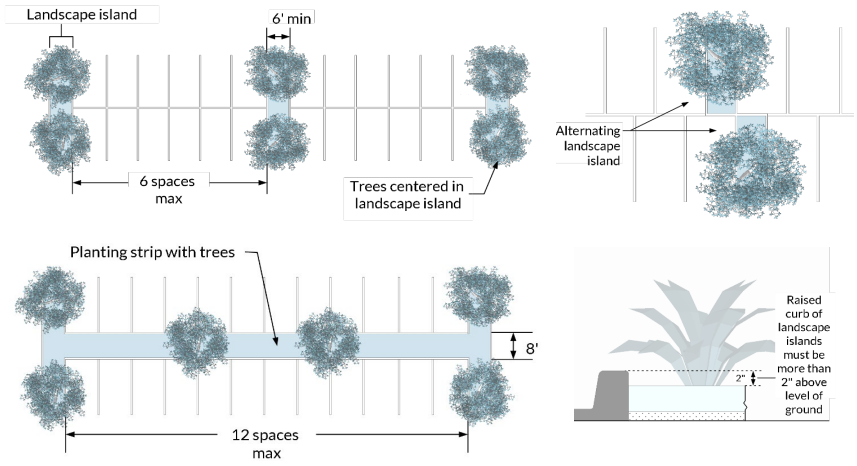


Figure 30.04-1.

(b) Option 2: Parking Planting Strip or Walkway

As an alternative to Option 1 above, a planting strip may be proposed between facing parking rows, with landscape islands provided every 12 parking spaces and at the end of each row of parking. A planting strip installed to meet this requirement shall be no less than 8 feet wide, measured from the inside curb, with a raised curb along both outer edges. Vehicles are allowed a maximum 2-foot overhang into the planting strip.

(c) Exceptions

Modifications may be requested through approval of an *Administrative Design Review (ADR)* per §30.06.05A, provided the required number of trees are installed adjacent to or within the parking lot to provide shade.

ii. Any landscape island or planting strip with a raised curb shall be no less than 2 inches above the level of ground cover in the landscape area to prevent water runoff.

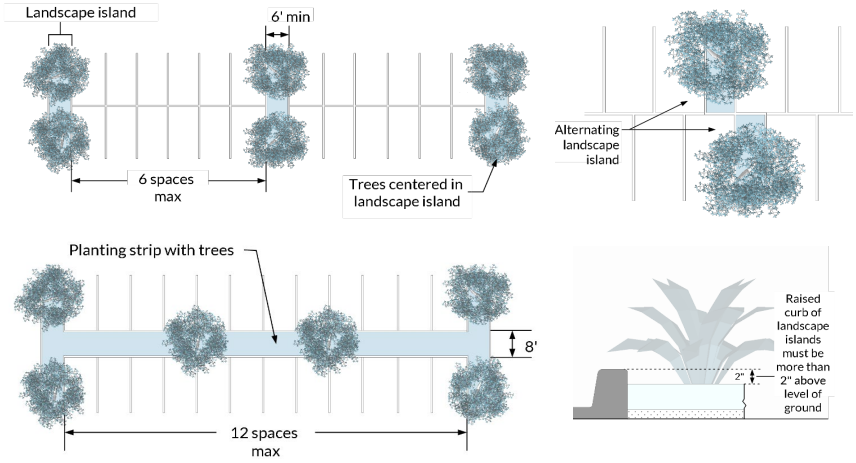


Figure 30.04-1: Parking Lot Landscaping

iii. Trees and Landscaping

(a) Number Required

One large or medium tree is required every 6 parking spaces.

(b) Placement

Trees in planting strips shall be planted in alignment with parking lane stripes to prevent damage from overhanging vehicles.

(c) Adjacent to Required Street or Buffer Landscaping

When parking is adjacent to any required on-site street or buffer landscaping, trees within 20 feet of the outer edge of the nearest parking space, as measured from the middle of the tree trunk at time of planting, may be counted toward the minimum tree requirements for parking area landscaping.

(d) Preservation Credit

Each existing significant tree that is preserved may be credited as 2 required large trees or 4 medium trees.

(e) Damage Control

Trees and landscaping, and any walls or fences used to screen parking areas, shall be adequately protected from damage by vehicles with curb stops, bollards, and other protective barriers.

iv. Exceptions

Interior parking area trees, landscape islands, or planting strips, are not required for covered parking spaces or for the parking of commercial vehicles.

E. Alternative Landscaping Standards

1. Alternative Landscape Plan

i. Purpose

The purpose of this Section is to provide an opportunity for the proposal of innovative alternatives that meet or exceed the quality and/or quantity of the required landscaping without requiring approval of a Waiver of Development Standards.

ii. Applicability

(a) An alternative landscape plan may be approved when the proposed landscape design does not meet the requirements of this Title, but proposes innovative, high-quality alternatives that enhance the physical environment of the site and the surrounding area to a greater extent than could otherwise be achieved by these standards.

(b) The alternative landscape plan shall not be used to alleviate inconveniences, financial burdens, or self-imposed hardships.

iii. Allowable Alternatives

Alternatives from the landscaping standards that may be considered for approval in an alternative landscape plan include, but are not limited to, the following:

(a) Variation from Standards to Enhance Water Conservation

A variation from the landscaping standards of this Title may be considered if the alternative enables enhanced water conservation or shading.

(b) Modified Planting Rates due to Existing Public Utilities and Infrastructure

A modification in the number, configuration, or location of required trees or shrubs may be considered when the public utility or governing agency provides written notice that the required landscaping would negatively impact the operation of overhead and underground public utilities or create a public safety hazard.

(c) Reduction in Standards for Significant Tree Protection

A reduction in the number or spacing of required trees may be considered in exchange for protection of existing significant trees that provide canopy coverage comparable to what would otherwise be achieved through required landscaping.

(d) Modified Tree Placement

A variation from the street or parking lot landscaping tree placement may be considered if the required number of trees are provided and shading and coverage requirements are met.

iv. Submittal and Review

Alternative landscape proposals shall be prepared and submitted with the applicable land use application. Documentation necessary to support the alternative shall be included with the alternative landscape plan.

2. Fee-In-Lieu

i. Where a development is unable to satisfy all or part of the required landscaping plan and standards of this Title, including where the required number of trees are reduced by an alternative landscape plan per §30.04.01E.1, or when required landscaping is waived per §30.06.06F, *Waiver of Development Standards*, a fee-in-lieu shall be provided.

ii. The fee-in-lieu shall be an amount set by the Board and calculated based on the square footage of shortfall of the total required trees, to offset the impacts of not installing the required amount of trees. Shortfall of required trees shall be based on the minimum coverage at maturity for 1 large tree, 2 large trees for a significant tree, or some other reasonably related metric as deemed appropriate by the Board.

iii. The fee-in-lieu shall be paid to the County Tree Fund to finance the planting of trees.

F. Phasing, Maintenance, and Replacement

1. Landscaping Phasing

If full off-site improvements (curb, gutter, sidewalk, streetlights, street paving) are deferred, any required landscaping need not be provided until the off-site improvements are installed.

2. Landscaping Maintenance and Replacement

i. Maintenance Generally

(a) Landscaped areas (including plant materials, irrigation system, and hardscape features) shall be maintained in a clean and orderly condition.

(b) Trees may overhang a sidewalk and street, provided the overhang is a minimum height of 10 feet above any sidewalk or 16 feet and 4 inches above any street, and the overhanging foliage does not impose a danger to the public.

(c) It is an unlawful prohibited use for any person owning or occupying a developed or otherwise improved parcel of land within unincorporated Clark County to fail to clear such land, within 10 days after notice is given to such person by the County, of weeds, grass over 4 inches in height, or any vegetation that is overgrown, dead, dry, diseased, or noxious.

ii. Damaged/Dead Landscaping

Any required plant material that dies or sustains severe damage shall be replaced within 30 days.

iii. Detached Sidewalk Maintenance

When detached sidewalks are installed, the property owner(s), homeowners' association, or landscape maintenance association shall maintain the landscaping between the sidewalk and street in conformance with the requirements of this Title. Such maintenance shall include trimming, modifying, or removing any plant materials within required landscape areas that cause or constitute an imminent safety hazard to the traveling public, including but not limited to obstructing the visibility of traffic control signs and devices, obstructing sight zones, or not providing adequate clearance for pedestrians and vehicles. Noncompliance with such maintenance requirements shall cause the County to provide notice to the property owner(s), homeowners' association, or landscape maintenance association of the County's intent to perform the required maintenance and collect payment accordingly for the work performed.

iv. Street Landscaping Maintenance

Landscaping required with decorative fences and walls shall be maintained by the property owner(s), homeowners' association, or landscape maintenance association, whichever is applicable. Whenever a landscaping area is located within an easement or is located within a common lot, the easement or common lot shall be shown on any major or minor subdivision map. All areas specifically intended for landscaping purposes shall be shown on required improvement plans.

v. Public Improvement Removal or Relocation

(a) Removal or relocation of any private property owner's landscaping in County rights-of-way or easements to accommodate a public improvement, including roadways and pavements, sidewalks, curbs and gutters, landscaping, street lights, foundations, poles and traffic signal conduits, water mains, sanitary and storm sewers, tunnels, subways, people movers, viaducts, bridges, underpasses, overpasses, or other public facilities across, along, over or under any street or streets, or other such improvements that are to be used by the general public, shall be the responsibility and at the expense of the property owner.

(b) The County (or other entity governed ex officio by the Board (i.e., Las Vegas Valley Water District, Kyle Canyon Water District, Big Bend Water District or Clark County Water Reclamation District, singly the "County Entity"), shall issue to a property owner 30 days

written notice of a need to remove or relocate any of the property owner's landscaping that may conflict with installation, maintenance, or use of the public improvement.

(c) The property owner shall, within 30 days after receiving such written notice from the County Entity, remove or relocate its said landscaping. If the property owner fails to remove or relocate its landscaping as required by this Section within the required time period, the County Entity may remove or relocate said landscaping and charge the cost of removal or relocation to the property owner. The County will not be held liable for any losses or damages due to removal or relocation of such landscaping.

30.04.02 Buffering and Screening

A. Purpose

Buffering and screening shall be provided as required by this Section to enhance the visual appearance of the community, reduce impacts of uses and activities on neighboring properties, reduce heat island effect, and mitigate stormwater runoff.

B. Applicability

Buffering and screening shall be provided in the following situations:

1. When adjacent to property in a less intense zoning district as follows:

- **i.** Nonresidential development in a residential district.
- **ii.** An RM district adjacent to an RS or PF district;
- **iii.** A commercial district adjacent to a residential or PF district; or
- **iv.** An industrial district adjacent to a commercial, residential, or PF district.

2. When adjacent to a freeway in the Urban Area.

3. When adjacent property is vacant, the buffering and screening requirements shall be based on the Master Plan planned land use category of the vacant property.

4. If a requirement in this §30.04.02 cannot be met, a Waiver of Development Standards, as described in §30.06.06F, may be requested.

C. Buffering and Screening Standards

1. Buffering and Screening Standards

i. Required

Buffering and screening shall consist of a 15-foot landscape buffer with an 8-foot decorative screen wall. Industrial zoning districts may increase wall height to 10 feet maximum.

ii. Modifications In any district, any adjacency buffer and screening requirement may be modified with approval per §30.06.06C, *Minor Deviation,* exceptions or variations from adjacency buffer and screening requirements may be approved with written consent of the adjoining residential property owner(s) through the Zoning Compliance process, as described in §30.06.08G*Zoning Compliance (AC).*

iii. Nonurban Area

Screen walls do not need to be decorative and a fence may be installed in place of a required wall.

iv. Freeway Walls

In residential zoning districts, noise attenuation shall be per NDOT standards.

2. Buffer Landscaping Standards

Landscaping within the landscape buffer shall be provided as follows:

i. Trees shall be evergreen.

ii. Buffers require a double row of evergreen trees each row planted offset from one another. In each row, trees shall be planted 20 feet apart on center.

iii. If the finished grade of the project site is higher than the adjacent property, the screen wall and landscape buffer shall be installed at a point on the edge of the higher elevation.

30.04.03 Fences and Walls

A. Applicability

The standards of this Section shall apply to any fence or wall, including retaining walls, that are not required but proposed. If a requirement in this §30.04.03 cannot be met, a Waiver of Development Standards, as described in §30.06.06F, may be requested.

B. General Standards

1. Fences and Walls

The maximum height of a fence or wall shall be limited as follows, unless otherwise stated by this Title. In the Urban Area, fences and walls along a street shall be decorative. Fences and walls within the Nonurban Area need not be decorative.

i. Residential Districts

(a) 3-foot maximum within the first 15 feet of the front setback. A fence may be increased to up to 6 feet if decorative. In the RS80, RS40, RS20 and RS10 districts, a 6-foot high wall is permissible along collector and arterial streets.

(b) 6-foot maximum in all setbacks or on the property line, except when located in i(a) above.

(c) When adjacent to a more intense zoning district, fence and wall height along a common lot line may be permitted to the maximum height of the more intense zoning district.

ii. Commercial and Special Districts

(a) 3-foot maximum when located within a setback and where along a street.

(b) 8-foot maximum in all setbacks or on the property line, except when located in ii(a) above.

(c) When adjacent to a more intense zoning district, fence and wall height along a common lot line may be permitted to the maximum height of the more intense zoning district.

iii. Industrial Districts

(a) 3-foot maximum when located in the front setback.

(b) 10-foot maximum when located in all other setbacks or on the property line.

iv. Fence and Wall Height Measurement

Fence and wall height shall be measured from the high side of the finished grade to the highest point of the fence, wall, or hedge. Where the finished grade of a lot is above or below the finished grade of an abutting lot or street, the finished grade shall be the point on the high side, except within the front yard of single-family residences, which shall be measured from the top of the curb.

v. Outside Setback Area

Fences or walls proposed outside of a setback area shall be limited to primary structure or accessory structure height, whichever is less.

vi. Lighting and/or Decorative Features

The height of a fence or wall may exceed the maximum allowable height by no more than 1 foot to accommodate lamps, lighting and/or decorative features on top of columns or fence posts.

2. Materials

i. Allowed Materials

Fences and walls shall be made of high-quality, low-maintenance, durable materials, including but not limited to the following:

(a) Brick, stone, stucco, and decorative concrete masonry unit (CMU);

(b) Wrought iron and metal picket;

(c) Pre-cast, naturally colored concrete that convincingly replicates the appearance of brick, stone, stucco, and CMU fence;

(d) Closed style wood or stockade fencing;

(e) Omega (welded wire);

(f) Wood or concrete 3-rail or split rail;

(g) Chain link with or without weather-resistant color;

(h) Composite wood;

(i) Durable vinyl; and

(j) Durable aluminum.

(k) In the Nonurban Area, traditional farm fencing (i.e., smooth wire mounted on posts) or alternative fencing used to confine domestic animals is also allowed, provided all fencing is compatible with the rural character of the immediate area.

ii. Prohibited Materials

The following fence materials are prohibited:

(a) Electrically charged fences in the Urban Area;

(b) Barbed wire fences, except for security fencing per §30.04.03D, *Security Fencing*;

(c) Concertina wire fences or similar, except for security fencing per §30.04.03D, *Security Fencing*; and

(d) Fences constructed of chicken wire, corrugated metal, fabric, rope, fiberboard, or plywood, or other non-traditional fencing materials.

3. Vacant or Developing Lots

i. Walls within a major residential subdivision may be constructed per the requirements for walls within the district if shown on an approved grading permit.

ii. Temporary fences may be constructed in order to provide security, control access and dust, and to prevent the dumping of refuse. Temporary fence heights are subject to the height restrictions above unless the Building Official requires a greater height.

C. Retaining Walls

1. Design and Materials

Retaining walls shall be designed to reduce visual impact and conform to the topography of the site using native materials, decorative walls, and wall colors that match the soils and rocks on the site.

2. Maximum Wall Height

i. Retaining walls shall be no more than 3 feet in height, as measured above finished grade of the street or sidewalk or adjacent property, except when in conformance with the below.

ii. Tiered retaining walls may be used to an unlimited height when a landscaped 3-foot horizontal offset is provided between each 3 feet of vertical height.

iii. Retaining walls may be increased to 6 feet as follows:

(a) The fence located on top of the retaining wall is 85% open.

(b) Subdivision retaining walls along a residential local or private street shall provide a minimum 6-foot landscape strip between the wall and any sidewalk or street.

(c) Interior subdivision retaining walls between residential lots with initial development may be increased without additional landscaping requirements.

(d) Proposed retaining walls adjacent to existing developed properties where the finished grade of the developing property is lower or higher than the finished grade of the developed property may be permissible subject to approval of a §30.06.06C, *Minor Deviation*. Additional landscaping shall not be required.

iv. A fence or wall up to the maximum heights listed within this Section may be allowed on top of any retaining wall.

D. Security Fencing

1. Security fencing shall be no greater than 10 feet in height.

2. Security wire shall be no less than 8 feet above ground and shall not extend beyond the lot line at any point.

3. Security fencing is permissible in conjunction with any use in an Industrial district.

4. Security fencing is permissible in conjunction with the following uses in any zoning district:

i. Airport or airstrip;
ii. Batch plant, permanent or temporary;
iii. Communication tower;
iv. Electric generation, large-scale;
v. Electric generation, small-scale;
vi. Government facility, permanent or temporary;
vii. Gravel pit, permanent or temporary;
viii. Heliport;
ix. Passenger terminal;
x. Public utility structures; and
xi. Rock crushing.

5. Battery-charged fencing as defined by NRS 244 is permissible in nonresidential zoning districts, in the Urban Area in the RS80 and RS40 districts, or in a residential zoning district in the Nonurban Area. Standards, which shall not be waived or varied for battery-charged fencing, are as follows:

i. Battery shall be no more than 12 volts;
ii. Plans must include a certificate that the standards as set forth by the International Electrotechnical Commission will be met;
iii. Battery-charged fence must be surrounded by a nonelectric perimeter fence or wall a minimum of 5 feet in height;
iv. Maximum height limited to 10 feet or 2 feet higher than the height of the perimeter fence or wall, whichever is greater; and
v. Fencing shall be marked with signs “WARNING: ELECTRIC FENCE” at intervals of no more than 40 feet.

E. Access Gates

Access gates may be permissible as established by this §30.04.03E and §30.04.08, *Public Works Development Standards*. Where standards conflict, the more restrictive standards shall apply.

1. Single-Family Residence

A single-family dwelling may restrict access with an access gate. If access to the dwelling is from an arterial or collector street, the access gate shall be set back at least 20 feet from the property line.

2. Gated Development

Developments with interior private streets or drives may restrict access to the development with an access gate as follows:

- **i.** Access gates shall be set back no less than 50 feet from the lip of the gutter of the intersecting street.
- **ii.** Egress gates shall be set back no less than 20 feet from the lip of the gutter of the intersecting street.
- **iii.** Guard enclosures and/or related equipment shall be set back no less than 50 feet from the right-of-way line of the intersecting street, but need not conform to any other setback, and may be located within the private street.
- **iv.** An access gate and portions of the perimeter fence or wall immediately connecting to the access gate shall not exceed 8 feet in height and shall include decorative features. All other portions of perimeter fencing and walls shall meet the standards of §30.04.03, *Fences and Walls.*
- **v.** Gate access codes shall be provided to the Metropolitan Police Department and the Clark County Fire Department.

3. Individual Properties

Individual properties with uses other than single-family residences may restrict access with an access gate provided that, if access gates are open during business hours, the gates shall be set back no less than 18 feet from the property line. Otherwise, the access gates shall be set back no less than 50 feet from the property line.

F. Exception

The Director of Public Works and/or the Director of Building may determine that a fence, wall, or retaining wall is required to protect property or improve public safety and may require an alternative height and design of such a wall, including those within flood control facilities, without necessitating a land use application to waive or vary any height standard.

G. Maintenance and Replacement

Fences, walls, and retaining walls shall be maintained in a functional and safe condition and shall not be allowed to obstruct, block, pose a direct threat, or in any way impede vehicular or pedestrian travel along the sidewalk or street or the view of any traffic signal, sign, directional device, or sight zone.

30.04.04 Parking

A. Purpose

This Section establishes regulations for the provision of safe and efficient parking and loading facilities in amounts sufficient to meet the needs of existing and/or proposed land uses, while also protecting the public health, safety, and general welfare. These regulations are intended to:

1. Avoid and mitigate traffic congestion;
2. Diminish the adverse visual impact of large expanses of exposed parking;
3. Provide necessary access for service and emergency vehicles;
4. Provide for safe and convenient interaction between vehicles and pedestrians;

5. Provide for safe interaction between vehicles within a parking lot; and
6. Respond to transportation and access demands of various land uses in different areas of the County.

B. Applicability

Except as otherwise provided in this Section, these standards shall apply to all development. Modifications to existing development legally established do not need to comply with the standards in this Chapter when there is no increase in the required parking minimums or modifications to parking areas. If a requirement in this §30.04.04 cannot be met, a *Waiver of Development Standards (WS),* as described in §30.06.06F, may be requested.

C. Calculation of Parking and Loading Requirements

1. Area Measurement

All square footage-based parking and loading requirements shall be computed on the basis of gross floor area of the subject use, unless otherwise stated. Structured parking within a building shall not be counted in such computation.

2. Fractions

i. If the number of required parking spaces results in a fractional number, any fraction of 0.5 or larger shall be rounded up to the next higher whole number.

ii. Individual fractional numbers are not subject to rounding for projects with multiple uses. Only the cumulative total of combined uses is subject to rounding.

3. Parking for Multiple Uses

i. Calculation

The total required parking shall be the sum of the required parking for each of the uses on the site.

ii. Exclusion

Provision i above does not apply to Shopping Centers, where parking is calculated using a standard ratio in Table 30.04-2: *Minimum Required Parking,* regardless of the various individual uses that comprise the complex.

4. Outdoor Uses

Unless otherwise specified in Table 30.04-2: *Minimum Required Parking*, outdoor uses without a primary building shall provide 1 parking space per 7,000 square feet of lot area in use for the first acre then 1 space per acre thereafter, but no less than 3 spaces shall be provided.

5. Authority to Ensure Adequate Parking

i. Evaluation of Parking

All uses will be reviewed to ensure that adequate parking and stacking spaces are provided for all users accessing the site, including customers, employees, delivery vehicles, and/or fleet vehicles.

ii. Property Owner Responsibility

The property owner shall be responsible for the provision of adequate parking if additional spaces are needed in excess of the minimum requirements.

iii. Unlisted Uses

The Director is authorized to make the following determinations for any uses not expressly listed in Table 30.04-2: *Minimum Required Parking,* in conjunction with §30.06.05B, *Design Review (DR)*:

(a) Apply the minimum requirement specified in Table 30.04-2: *Minimum Required Parking*, for the listed use deemed most similar to the proposed use, based on operating

characteristics, similar related occupancy classifications, or other factors determined by the Director; or

(b) Establish minimum parking space requirements using standards published by the National Parking Association, American Planning Association, Institute of Transportation Engineers (ITE) Parking Generation Manual, or other acceptable sources of parking data.

D. Vehicle Parking

1. Minimum Parking Requirements

Unless otherwise specified by this Section, all development shall provide on-site parking in compliance with Table 30.04-2: *Minimum Required Parking*.

Table 30.04-2: Minimum Required Parking

SF = GROSS FLOOR AREA MEASURED IN SF, UNLESS OTHERWISE INDICATED DESIGN CAPACITY = MAXIMUM OCCUPANCY PER BUILDING OR FIRE CODES, WHICHEVER IS GREATER EMPLOYEE = LARGEST NUMBER OF PERSONS WORKING ON ANY SINGLE SHIFT	
RESIDENTIAL USES	
Accessory Commercial	None required
Accessory Living Quarters	1 per unit
Accessory Vehicle and Watercraft Storage	None required
Affordable Housing	Per single- or multi-family dwelling
Assisted Living	1 per 2 persons of design capacity
Caretaker Unit	1 per unit
Childcare Home	1 per 3 persons of design capacity
Community Residence	None beyond requirement for dwelling
Congregate Care/Hospice	1 per 6 beds plus 1 per employee
Dormitory	1 per 3 persons of design capacity
Family Daycare	None beyond requirement for dwelling
Garage Sale	None required
Home Occupation	As required for dwelling, plus additional as determined per Special Use request
Housing for Agricultural Employees	1 per unit
Live-Work Dwelling	2 per unit
Manufactured or Tiny Home Park	2 per unit **Age-Restricted Parking** 1 per unit **Visitor Parking** 1 per 15 unit
Model Residence	None required
Multi-Family Dwelling	Studio and 1 BR = 1 per unit 2 BR & up = 1.75 per unit **Visitor Parking** 1 per 5 unit
Rooming House	1 per guest room
Senior Housing	1 per unit
Single-Family Attached/Detached Dwelling	2 per unit **Visitor Parking** 1 per 5 unit
Temporary Dwelling	None beyond requirement for dwelling
Transitional Living for Released Offenders	1 per 4 persons of design capacity
AGRICULTURAL AND ANIMAL-RELATED USES	
All uses in category, unless listed separately below	None required
Animal Hospital	1 per 400 sf
Aquaculture	1 per 400 sf
Community Garden	1 per every 2 garden plots

Table 30.04-2: Minimum Required Parking

SF = GROSS FLOOR AREA MEASURED IN SF, UNLESS OTHERWISE INDICATED DESIGN CAPACITY = MAXIMUM OCCUPANCY PER BUILDING OR FIRE CODES, WHICHEVER IS GREATER EMPLOYEE = LARGEST NUMBER OF PERSONS WORKING ON ANY SINGLE SHIFT	
Guest Ranch	1 per guest room
Kennel	1 per 400 sf
Plant Nursery	1 per 550 sf of indoor area, plus 1 per 2,500 sf of outdoor area
Stables	1 per 3 boarding stalls or corrals
CIVIC AND INSTITUTIONAL USES	
Group Assembly	
Banquet Facility	1 per 250 sf
Cemetery	As shown on site plan
Convention Facility	1 per 500 sf
Crematory	1 per 500 sf
Daycare	1 per 400 sf
Food Pantry	1 per 250 sf of indoor area, plus 1 per 500 sf of lot area in use
Funeral Home	1 per 250 sf
Museum	1 per 400 sf
Place of Worship	1 per 250 sf plus 1 per 2 bedrooms if on-site living quarters are present
Union Hall	1 per 400 sf
Educational Facilities	
Avocational or Vocational Training	1 per 400 sf
Instruction or Tutoring	1 per 400 sf
School	**Elementary & Middle Schools:** 1 per classroom plus 1 per 400 sf of office area **High Schools:** 7 per classroom plus 1 per 400 sf of office area
Healthcare Facilities	
Emergency or Urgent Care	1 per 300 sf
Hospital	1 per 400 sf
COMMERCIAL USES	
Adult	
Adult Business	**Bookstores & Sex Novelty Shops** 3 per 1,000 sf **Adult Cabarets & Theaters** 10 per 1,000 sf but not less than 15
Automotive, Transportation, and Airspace	
Aircraft Hangar	1 per 1,000 sf of indoor area up to 20,000 sf, plus 1 per 2,000 sf of indoor area over 20,000 sf
Airport or Airstrip	1 per 1,000 sf up to 10,000 sf, plus 1 per 2,500 sf over 10,000 sf
Equipment Rental or Sales and Service	1 per 500 sf of indoor area
Gas Station	1 per 250 sf of indoor area
Heliport or Vertiport	None required
Monorail	None required
Parking Lot	N/A
Passenger Terminal	1 per 1,000 sf up to 10,000 sf, plus 1 per 2,500 sf over 10,000 sf
Tour Guide or Transportation Service	1 per 400 sf of office space
Truck Stop	1 per 250 sf of indoor area
Vehicle Hobby Repair and Restoration	None required
Vehicle Maintenance and Repair	1 per 500 sf of indoor area
Vehicle Paint/Body Shop	1 per 500 sf of indoor area

Table 30.04-2: Minimum Required Parking

SF = GROSS FLOOR AREA MEASURED IN SF, UNLESS OTHERWISE INDICATED DESIGN CAPACITY = MAXIMUM OCCUPANCY PER BUILDING OR FIRE CODES, WHICHEVER IS GREATER EMPLOYEE = LARGEST NUMBER OF PERSONS WORKING ON ANY SINGLE SHIFT	
Vehicle Rental or Sales	1 per 500 sf of sales floor area. Vehicles on display for sale or rental may not be parked in the required spaces.
Vehicle Wash	**Primary use:** 2 spaces, plus 1 space per employee **Self-service:** 2 stacking spaces per automated wash bay
Cannabis	
Consumption Lounge	1 per 150 sf
Cultivation Facility	1 per employee on largest shift
Dispensary	1 per 350 sf
Distribution	None required
Independent Testing Laboratory	1 per employee on largest shift
Retail Store	1 per 350 sf
Production Facility	1 per employee on largest shift
Food and Beverage	
Catering	1 per 500 sf
Craft Brewery, Distillery, or Winery	1 per 150 sf
Mobile Food Vendor	None required
Outdoor Dining, Drinking, and Cooking	1 per 250 sf
Restaurant and Related Facilities	1 per 150 sf
Lodging	
Bed and Breakfast	1 per guest room
Hotel or Motel	0.7 per guest room, up to 500 rooms; 0.7 per 2 guest rooms, between 501 and 1,000 guest rooms; and 0.7 per 5 guest rooms, over 1,000 guest rooms. Plus 1 per 200 sf for restaurants on the same premises
Recreational Vehicle Park	1 per 5 spaces
Resort Hotel and Rural Resort Hotel	0.7 per guest room, up to 500 rooms; 0.7 per 2 guest rooms, between 501 and 1,000 guest rooms; and 0.7 per 4 guest rooms, over 1,000 guest rooms. Plus 1 per 250 sf all areas accessible to the public except convention facilities 0.7 per 1,000 sf for convention facilities and areas not accessible to the public
Retreat	1 per guest room
Recreation and Entertainment	
Campground	2 spaces in addition to those provided for users of the facility
Dayclub/Nightclub	1 per 250 sf
Instructional Wine-Making Facility	1 per 400 sf
Live Entertainment	None required
Recreation or Entertainment Facility	**Bowling alley:** 2 per lane **Shooting Range:** 1 per firing lane, plus 1 per 300 sf of accessory classroom or retail sales area **Stadium, Theatre, Arena, Athletic Fields (indoor or outdoor):** 1 per 4 seats **Tennis Court:** 2 per court **All other indoor:** 1 per 300 sf of publicly accessible indoor area **All other outdoor:** If seating is not provided, 1 per 1,000 sf of site area
Special Event	Per parking study submitted with Temporary Use application
Retail and Services	
Bathhouse	1 per 300 sf

Table 30.04-2: Minimum Required Parking

SF = GROSS FLOOR AREA MEASURED IN SF, UNLESS OTHERWISE INDICATED DESIGN CAPACITY = MAXIMUM OCCUPANCY PER BUILDING OR FIRE CODES, WHICHEVER IS GREATER EMPLOYEE = LARGEST NUMBER OF PERSONS WORKING ON ANY SINGLE SHIFT	
Escort Bureau	1 per 500 sf
Financial Services	1 per 400 sf
Gunsmith	1 per 400 sf
Office Office, Sales/Leasing Office, Temporary	1 per 400 sf
Outdoor Market	1 per 500 sf of market area
Personal Services	1 per 300 sf
Retail	Up to 25,000 sf: 1 per 350 sf 25,000 sf and greater: See Shopping Center
Seasonal Sales	Per parking study submitted with Temporary Use application
Shopping Center	1 per 350 sf for 25,000 to 50,000 sf, plus 1 per 500 sf over 50,000 sf
Wedding Chapel	None beyond that required for the primary use
INDUSTRIAL USES	
Industrial Services	
Auction	1 per 350 sf of indoor area, plus 1 per 1000 sf outdoor area
Dry Cleaning Plant	1 per 1,000 sf up to 10,000 sf, plus 1 per 2,500 sf over 10,000 sf
Laboratory	1 per 400 sf
Manufacturing and Production	
All uses in category, unless listed separately below	1 per 1,000 sf up to 10,000 sf, plus 1 per 2,500 sf over 10,000 sf
Alternative Fuels Processing	1 per 1,000 sf of indoor area up to 20,000 sf plus 1 per 2,000 sf of indoor area over 20,000 sf
Animal Byproducts	1 per 1,000 sf up to 10,000 sf, plus 1 per 2,500 sf over 10,000 sf
Batch Plant, Permanent or Temporary	1 per 500 sf of office, trailer, or other indoor area
Resource Extraction	
All uses in category	1 per 500 sf of office, trailer, or other indoor area
Warehousing and Storage	
Fuel Storage	None required
Hazardous Materials or Waste Storage	None required
Mini-Warehouse	5 spaces in the vicinity of the office plus 2 per Caretaker Unit
Outdoor Storage and Display	1 per 500 sf of office, trailer, or other indoor area
Truck Parking or Staging	None required
Warehouse and Distribution	1 per 1,000 sf up to 100,000 sf, plus 1 per 5,000 sf over 100,000 sf
Wholesale	1 per 1,000 sf up to 100,000 sf, plus 1 per 5,000 sf over 100,000 sf
Waste and Salvage	
All uses in category, unless listed separately below	1 per 500 sf of office, trailer, or other indoor area
Public Waste Storage Bin Facility	None required
PUBLIC AND QUASI-PUBLIC USES	
Government	
All uses in category	As shown on site plan
Utilities	
All uses in category	None required

2. Maximum Parking

i. Nonresidential development shall not exceed minimum parking requirements of Table 30.04-2: *Minimum Required Parking*, by more than 15% unless:

(a) The Director approves a parking demand study submitted per §30.04.04 F8, *Parking Demand Study*; and

(b) Parking lot landscaping is provided for the additional parking area.

ii. The following types of parking spaces shall not count against the maximum parking requirement:

(a) On-street parking adjacent to the lot or lots on which the parking is located;

(b) Accessible parking;

(c) Vanpool and carpool parking;

(d) Electric vehicle (EV) charging station;

(e) Fleet vehicle parking;

(f) Merchandise delivery and loading spaces not available to the general public for parking; and

(g) Structured parking, underground parking, and parking within, above, or beneath the building(s) it serves.

E. Use-Related Parking Regulations

1. Visitor Parking

Visitor parking shall be readily available and dispersed throughout the site.

2. Cart Collection Areas

Cart collection areas shall be separate from and not occupy any required parking spaces.

3. Uses with Drive-Thru

Any use with a drive-thru shall comply with the standards described in §30.04.05G.5, *Drive-Thru Service,* in addition to all applicable regulations in §30.04.06, *Residential Adjacency*.

F. Parking Alternatives

1. Generally

i. Maximum Cumulative Reduction

The maximum reduction of required parking spaces by any single parking alternative or combination of parking alternatives in 2 through 7 of this Section shall be 20%, except where greater allowances noted in 2 through 7.

ii. Sustainability Incentives Parking Reduction

Apart from this Section, additional parking reductions may be achieved by providing sustainability measures beyond the minimum required per §30.04.05J.2.i, *Minimum Requirements Per Development Type*. Both reductions may be combined for a possible 30% total reduction. Any maximum parking requirement shall be based on this cumulative reduction.

2. Motorcycle Spaces

Up to 1% of the required parking spaces may be motorcycle spaces.

3. On-Street Parking

On-street parking may be counted toward the minimum required number of parking spaces on a 1-to-1 basis, subject to the following:

i. Generally

(a) Each on-street parking space may only be counted once, even if there are multiple buildings or tenants on the lot.

(b) If on-street parking is later removed and the remaining parking does not meet the minimum required number of spaces, the site shall be considered legally nonconforming.

ii. Private Streets or Gated Developments

Except for single- and two-family dwellings, legal on-street parking spaces adjacent to the lot line of a development may be used to satisfy required parking.

iii. Local Public Streets

One legal on-street space may be substituted for an on-site space for every 20 linear feet of street frontage, for up to 50% of the required parking. This reduction may not be used for attached or detached single-family dwellings.

iv. Availability of Spaces

On-street parking spaces used to meet required parking minimums shall be available for general public use at all times. On-street parking subject to parking permit or time restrictions (for example, metered parking, sign-posted hour limitations, or no overnight parking), except occasional street-cleaning, shall not be used to meet any minimum parking requirements.

4. Shared and/or Off-Site Parking Spaces

Shared parking lots, and/or off-site parking spaces, may be used to meet the requirements in Table 30.04-2: *Minimum Required Parking*, through Director approval of an Alternative Parking Plan, subject to the following.

i. No shared lot or off-site space shall be more than 150 feet from the subject property, measured along a legal pedestrian route.

ii. No arterial street separates the parking from the use, unless a pedestrian bridge exists.

iii. Formal documentation of a shared parking agreement between property owners for the lot to be shared shall be provided.

iv. Off-site parking proposals must submit documentation that verifies permission for the off-site spaces to be used.

5. Proximity to a Transit Stop

i. Generally

Except for single-family dwellings, the minimum parking spaces required may be reduced by 10% from the requirements in Table 30.04-2: *Minimum Required Parking* for development within 1,000 feet, measured along a legal pedestrian route, of a fixed transit stop. For reductions in the Maryland Parkway Overlay, see provision ii. Below.

ii. Maryland Parkway

Any use on Maryland Parkway within 1,000 feet of a fixed transit stop, measured along a legal pedestrian route, between Sahara Avenue and Russell Road may reduce the parking required by Table 30.04-2: *Minimum Required Parking*, as follows:

(a) Single-family residential uses may provide 1 parking space per dwelling unit.

(b) Multi-family residential uses may reduce the number of spaces required by 50%.

(c) Nonresidential uses may reduce required parking by up to 25%.

6. Affordable Housing

Minimum parking requirements may be reduced by 25% if at least 25% of the dwelling units are income-restricted for a period of at least 30 years to households earning 80% or less of the Department of Housing and Urban Development Area Median Income for Clark County, Nevada.

7. Existing Parking Area Retrofit

A previously approved parking area that is retrofitted to meet the standards of §30.04.01, *Landscaping*, shall qualify for a 10% reduction in the minimum parking requirement.

8. Parking Demand Study

A parking demand study may be submitted to demonstrate the need for a higher or lower quantity of parking than required by Table 30.04-2: *Minimum Required Parking*, or as otherwise stated in this Section.

i. The parking demand study shall be prepared by a traffic engineer and shall estimate parking demand for the proposed use based on the recommendations of the Institute of Traffic Engineers (ITE), Urban Land Institute, the American Planning Association, or other acceptable source of parking demand data for uses and/or combinations of uses of comparable activities, scale, bulk, area, and location.

G. Limitations on Required Parking Areas

1. Exclusive Use

No required parking or loading space shall be used for any purpose other than the parking of vehicles, unless otherwise allowed by this Title. Excess parking spaces provided above the number required may be used for any other purpose allowed within the respective zoning district. If a required parking space is converted to another use or can no longer be used for parking, it shall be deemed a violation of this Title.

2. Fleet Vehicles

Parking for fleet vehicles shall be provided on-site; however, required parking spaces shall not be used for the parking of fleet vehicles at any time.

3. Location

Required on-site parking shall be located outside of any future right-of-way. Required parking shall not be located within a dedicated state right-of-way unless approved by the Nevada Department of Transportation.

4. Outdoor Display

Required parking spaces and areas shall not be used for the sale or display of goods and services unless otherwise authorized in this Title.

5. Repair

Motor vehicle repair work is prohibited in required parking areas, except for emergency repairs only.

6. Stacking Prohibited

Parking and stacking prohibited in drive aisles, fire lanes, or similar areas not officially designated for parking or stacking purposes.

7. Storage

The storage of unlicensed, unregistered, or inoperable vehicles is prohibited within required parking spaces. In residential districts, the storage of 2 unlicensed but operable automobiles is allowed accessory to the primary use.

8. Total

The total number of required spaces must be met at all times.

H. Design and Maintenance of Parking Areas

1. General Parking Area Design

i. Access

(a) Exiting vehicles shall not back out across a sidewalk onto a street. This does not apply to single-family dwelling driveways exiting onto local or private streets.

(b) All parking areas shall have access to a street through a system of drive aisles and/or easements.

ii. Driveways

Driveways must be distinct from landscaping and yard.

iii. Interior Configuration

(a) Parking lot circulation shall avoid vehicular conflicts at points of ingress/egress; drive-thru entries, stacking lanes, and exits; and crossing drive aisles. Clear visibility for all interior drive aisles shall be maintained.

(b) Parking lots with 500 or more spaces shall be divided into smaller subareas that each contain 250 or fewer spaces. Buildings, pedestrian walkways, private drives, or landscape areas with a minimum width of 15 feet shall be used to delineate the subareas.

(c) Parking aisle length shall not exceed 400 feet without a break for circulation.

(d) To separate buildings from pavement for parking aisles or spaces, a minimum 5-foot-wide sidewalk, or a minimum 7-foot-wide buffer consisting of a minimum 5-foot wide sidewalk with a 2-foot wide landscape strip, shall be used, except for the side and rear of nonresidential development when not visible from the right-of-way.

(e) Dead-end parking areas exceeding 20 spaces (10 per side of a drive aisle) shall provide a standard size parking space (or equivalent area), striped and assigned “No Parking,” for a turnaround.

(f) Lighting

Parking lot lighting shall meet all applicable requirements as described in §30.04.07B, *Exterior Lighting.*

iv. Pavement

(a) Exempt Uses

Seasonal sales, special events, and stables do not require paving of outdoor areas used for parking, maneuvering, or storing motor vehicles, equipment, or materials; however, all applicable Clark County Air Quality Regulations, including dust mitigation, must be met and cannot be waived.

(b) In Hydrographic Basin 212

Within the State of Nevada Hydrographic Basin 212, driveway and parking areas for a 1-lot or single-family development shall be paved with concrete, asphalt, rubberized asphalt, or asphaltic concrete, except where Minimum Design Standards for Nonurban Roadways apply, or for agricultural uses.

(c) Out of Hydrographic Basin 212

In areas outside the State of Nevada Hydrographic Basin 212, driveway and parking areas need not be paved, but are subject to dust control requirements in compliance with Clark County Air Quality Regulations.

(d) Paving and Striping

Unless otherwise specified, all parking, drive aisles, and other areas subject to vehicular access or used for parking and maneuvering shall be paved and striped. Areas used for storing motor vehicles, equipment, or materials, shall be paved but do not need to be striped.

(e) Prohibited Areas

Parking within unimproved or landscaped areas is prohibited.

(f) Waivers Prohibited

Paving, alternative paving, and dust control measures are required in accordance with the Clark County Air Quality Regulations and cannot be waived.

2. Pedestrian Walkways

Pedestrian walkways within parking lots are required as described in §30.04.05D.2.ii, *On-Site Pedestrian Connections.*

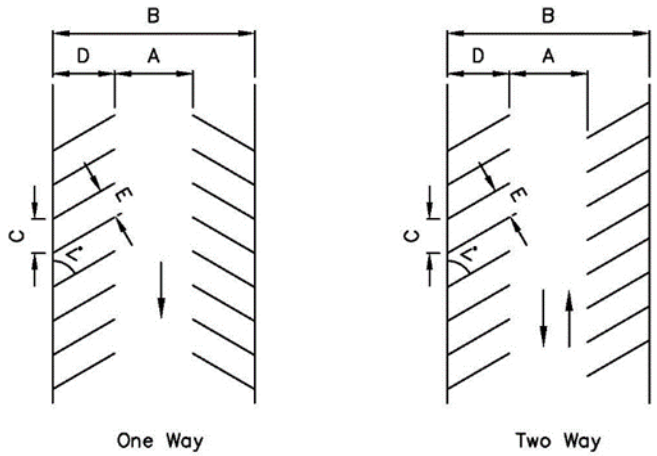
3. Parking Lot Layout Dimensions

Parking lots shall be designed to meet the minimum dimensions in Table 30.04-3 and Figure 30.04-2.

Table 30.04-3: Automobile Parking Layout

Parking Angle (<°)	(A) Aisle Width One way/Two way	(B) Bay Width One way/Two way	(C) Curb Length	(D) Depth Minimum Stall	(E) Stall Width
0° (parallel)	12 ft / 20 ft	N/A	21 ft	9 ft	9 ft
30°	11 ft / 20 ft	46 ft / 55 ft	18 ft	17.5 ft	9 ft
45°	13 ft / 20 ft	51 ft / 58 ft	13 ft	19 ft	9 ft
60°	16 ft / 20 ft	56 ft / 60 ft	10.5 ft	20 ft	9 ft
75°	20 ft / 20 ft	60 ft / 60 ft	9.5 ft	20 ft	9 ft
90°	24 ft / 24 ft	60 ft / 60 ft	9 ft	18 ft	9 ft

Figure 30.04-2: Automobile Parking Layout



4. Parking Space Dimensions and Design

i. Minimum Dimensions

Parking spaces shall meet the minimum dimensions in the following table, exclusive of driveways, streets, alleys, or aisles, giving ingress and egress.

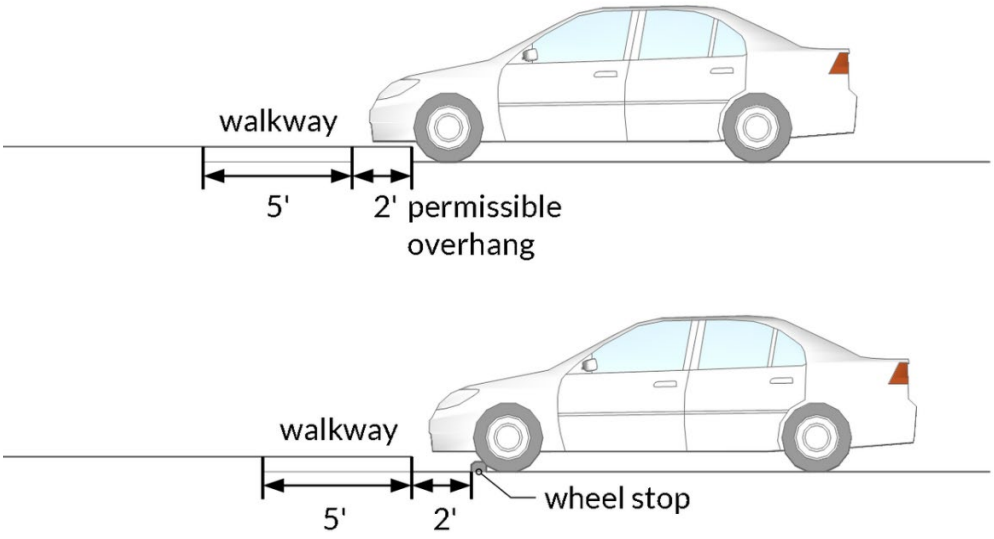
Table 30.04-4: Minimum Parking Space Dimensions

Space Type	Width	Length	Vertical Clearance
Automobile	9’	18’	
Motorcycle	4’	8’	
Recreational Vehicle	10’	22’	
Commercial Vehicle	10	25	14

ii. Overhangs

Overhangs of up to 2 feet may be counted as part of the required stall length. Overhangs over private walkways/sidewalks are allowed if the width of the walking area is a minimum of 5 feet. A wheel stop at least 4 inches high and 6 inches wide shall be installed at least 2 feet from the walkway/sidewalk where overhangs cannot be accommodated. See Figure 30.04-3:

Figure 30.04-3: Parking Space Overhang



iii. Columns Adjacent to Parking Space

A 1-foot-by-1-foot side intrusion for columns or similar structures is permissible within the front or rear 1/3 of a space. Only one intrusion is allowed.

iv. Tandem Parking

(a) Where Allowed

Tandem parking is permissible in association with:

(1) Single-family dwellings; or

(2) Multi-family uses when 1 space is in a garage or carport and 1 space is in the driveway in front of the garage or carport, with both spaces assigned to the same unit; or

(3) Valet parking with a full-time attendant.

(b) Design

(1) Each tandem space shall consist of 2 horizontally connected spaces.

(2) Tandem spaces shall have a combined minimum dimension of 8.5 feet in width and 35 feet in length.

(3) It must be possible to get any vehicle in or out of a tandem space by moving only 1 vehicle.

v. Electric Vehicle (EV) Charging

(a) Purpose

Provide electric vehicle (EV) charging infrastructure to accommodate a changing vehicle market and emerging vehicle technologies, improve air quality, and reduce greenhouse gas emissions.

(b) Applicability

The requirements of this subsection apply to new development.

(c) General Requirements

EV infrastructure requirements are categorized as follows:

(1) EV-Capable

Parking spaces equipped for future EV charging by providing dedicated electrical capacity in the service panel and conduit to the EV-capable charging station.

(2) EV-Installed

Parking spaces reserved for EVs to provide drivers the ability to charge their EV using installed charging stations.

(d) Number of Spaces Required by Use

The parking requirements of this subsection are intended as minimum requirements. EV-Capable and EV-Installed charging spaces count towards minimum parking space requirements and shall be provided in accordance with Table 30.04-5.

Table 30.04-5: EV Charging Requirements by Land Use

Use	Number [1]	Applicability
Single-Family Dwelling	1 Level 2 outlet (240 volt)	N/A
Multi-Family Dwelling	25% EV-Capable, 3% EV-Installed	25 parking spaces or more
Nonresidential		
Retail and Services	10% EV-Capable, 3% EV-Installed	100 parking spaces or more
Resort Hotel, Hotel or Motel, School, Convention Facility, Group Assembly[2], and Recreational or Entertainment Facilities	25% EV-Capable, 3% EV-Installed	50 parking spaces or more
Warehouse and Distribution, and Manufacturing	5% EV-Capable, 3% EV-Installed	100 parking spaces or more

[1] Based on the required parking spaces for the use, as specified in Table 30.04-2.
[2] Does not include Cemetery, Crematory, or Funeral Home.

(e) Location

Placement of the required EV-Capable and EV-Installed charging spaces shall be determined and identified on plans submitted with the development application.

(f) Accessibility

Multi-family and nonresidential developments shall provide at least 1 EV-Installed ADA compliant charging station adjacent to an ADA-designated space. ADA compliant EV-Installed charging stations are required at the rate of one space for every 50 required EV-installed parking spaces.

(g) Signage

Each EV-Installed charging station shall be reserved and designated as EV parking.

vi. Mobility-Impaired Accessible Spaces

(a) Waivers

The requirements related to Mobility-Impaired Accessible Spaces shall not be waived or varied.

(b) Required Spaces

Accessible parking shall be provided as shown in Table 30.04-6: *Schedule of Required Accessible* Spaces, except for residential buildings with fewer than 3 dwelling units and for the following uses which shall provide a percentage of total spaces as accessible spaces, as follows:

(1) Medical care occupancies specializing in the treatment of persons with mobility impairments: 20%.

(2) Occupancies providing outpatient medical care facilities: 10%.

(3) Multi-family buildings containing accessible or adaptable dwelling units: 2%. Where parking is provided within or beneath a building, accessible spaces shall also be provided within or beneath the building.

Table 30.04-6: Schedule of Required Accessible Spaces

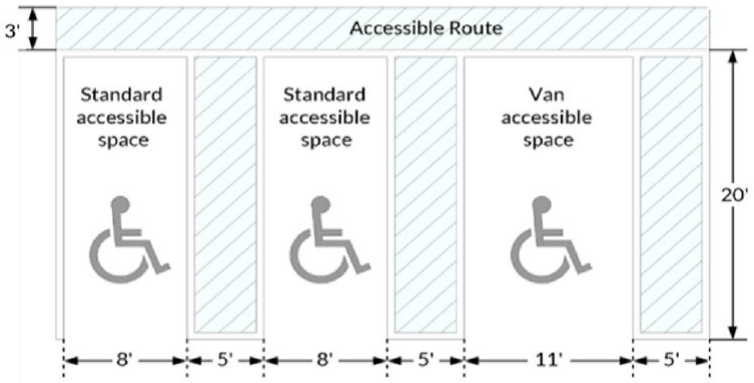
Total Parking Spaces Provided	Minimum Number of Accessible Spaces
1 to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
101 to 150	5
151 to 200	6
201 to 300	7
301 to 400	8
401 to 500	9
501 to 1,000	2% of total
More than 1,000	20 plus 1 for each 100 over 1,000
Van-Accessible Spaces Required	1 van space for every 6 accessible spaces, or fraction thereof

(c) Accessible Space and Access Design

(1) Any accessible space, access routes, and passenger loading zones shall be designed in accordance with the most current adopted American National Standard published by the Council of American Building Officials.

(2) Figure 30.04-4 below illustrates the applicable requirements. However, van accessible spaces may be 8 feet wide with an 8 foot wide passenger loading zone. The space requires a minimum of 98 inches of vertical clearance.

Figure 30.04-4: Accessible Space and Access Design



(d) Interpretation

The Building Official shall interpret and enforce this §30.04.04H.4.vi. In the event of a conflict with Title 22 of the Clark County Code, Title 22 shall govern.

5. Maintenance

i. All required parking areas shall be maintained in a clean and orderly condition, free of litter and debris.

ii. Striping that delineates parking stalls, drive and fire aisles, and pedestrian pathways through parking lots shall be maintained to be clear and visible.

I. Loading Spaces

1. Number of Spaces Required

i. Nonresidential uses receiving deliveries shall provide loading space as shown in Table 30.04-7.

ii. Uses requiring loading spaces may provide more loading spaces than required by Table 30.04-7 but all spaces shall meet dimensional and location requirements described in this Section.

Table 30.04-7: Required Off-Street Loading Spaces

Gross Floor Area	Number	Dimension (feet)
Up to 15,000 sf	None	N/A
15,001 sf up to 25,000 sf	1 space	10 W x 25 L x 14 H
More than 25,000 sf	1 space + 1 for every additional fraction of 25,000 sf beyond the first 25,000 sf	10 W x 25 L x 14 H

2. Location and Design Standards

i. Location

(a) Required loading spaces shall not be located in any front setback area or in any required side street setback area.

(b) Loading spaces may occupy all or any part of a required rear setback area where visibility will be minimized.

(c) Loading spaces shall be separate from customer parking, and pedestrian walkways shall not cross these areas.

(d) Loading spaces and access to loading spaces shall not block or restrict the access of surrounding uses.

(e) Public rights-of-way shall not be used for loading and unloading purposes.

ii. Residential Adjacency

Loading spaces are subject to §30.04.06, *Residential Adjacency.*

iii. Design

(a) Loading spaces must provide direct access onto a street, without requiring loading vehicles to reverse into or out of a public right-of-way.

(b) At a minimum, the following areas for access and maneuvering shall be provided:

(1) One-way access aisles shall be 18 feet minimum width, and 2-way access shall be 24 feet minimum width.

(2) The minimum turning radius shall be sufficient for movement of truck traffic.

(3) The loading berth shall be located adjacent, or as close as possible, to the main structure.

3. Alternative Loading Standards

An alternative layout of loading area or number of required loading spaces may be considered with submission of a site traffic operations study with an application, documenting the basis of any alternative layout or proposed reduction in the number of loading facilities, and demonstrating how the alternative will meet the intent of this Chapter. Factors that may justify the approval of an alternative layout are:

i. The ability of the proposed design to adequately screen street views of the loading area.

ii. The ability of the proposed design to accommodate anticipated loading requirements of the use.

iii. Evidence of the unique characteristics of an individual site, including those created by the shape and location of property, design of existing or proposed structures, the operation of existing and proposed uses or its ownership which require the application of alternative standards.

J. Bicycle Parking

1. Minimum Required Bicycle Parking

In the Urban Area, short-term bicycle parking spaces are required as indicated in Table 30.04-8 below for all development. Long-term spaces are not required; however, if provided, 1 long-term space shall count as 2 short-term spaces.

2. Exemptions from Bicycle Parking

The following are not required to provide bicycle parking:

i. Single-family residential;
ii. Development in Nonurban Areas;
iii. Sites with property lines within a half-mile on each side of the right-of-way of Las Vegas Boulevard South between Sahara Avenue and Russell Road; and
iv. Resort Hotels.

Table 30.04-8: Required Short-Term Bicycle Parking

Use	Requirement
All uses listed in this Table require 4 bicycle spaces minimum (i.e., 2 racks). Long-term bicycle spaces may be substituted as described in §30.04.04J.1 above.	
RESIDENTIAL	
Dormitory or Rooming House	5-10 residents: 4 spaces minimum Over 10 residents: 1 space per 10 residents
Multi-Family Dwelling	5-10 units: 4 spaces minimum Over 10 units: 1 space per 10 units
COMMERCIAL	

Table 30.04-8: Required Short-Term Bicycle Parking

Use	Requirement
Office, Retail, Restaurant and Related Facilities, Personal Service, and Shopping Center	10,000 sf and under: 4 spaces minimum Over 10,000 sf: 1 space per 10,000 sf
Recreational or Entertainment Facility	10,000 sf and under: 4 spaces minimum Over 10,000 sf: 1 space per 10,000 sf
EDUCATIONAL FACILITIES	
School	1 space for every 20 students, based on maximum enrollment
CIVIC AND INSTITUTIONAL USES	
Group Assembly[1]	10,000 sf and under: 4 spaces minimum Over 10,000 sf: 1 space per 10,000 sf

[1] None required for Cemetery, Crematory, and Funeral Home

3. Location and Design Standards

i. Location

(a) Short-term bicycle parking spaces shall be on-site and may be indoors or outdoors.

(b) Outdoor racks shall be placed within 100 feet of the primary entrance(s) of the buildings they are intended to serve. They shall be distributed throughout the site if there are multiple entrances.

(c) Bicycle parking areas shall be separated from vehicular parking areas. The separation may be accomplished through grade separation, or physical barriers, such as curbs, wheel stops, poles, or other similar features.

(d) Long-term bicycle spaces shall have a limited-access enclosure, such as enclosed indoor rooms, sheds, lockers, and weather-protected parking spaces monitored electronically or by an attendant.

(e) Signage shall be provided for long-term bicycle spaces. A “Bicycle Parking” sign shall also be displayed on or adjacent to any indoor room or area designated for bicycle parking.

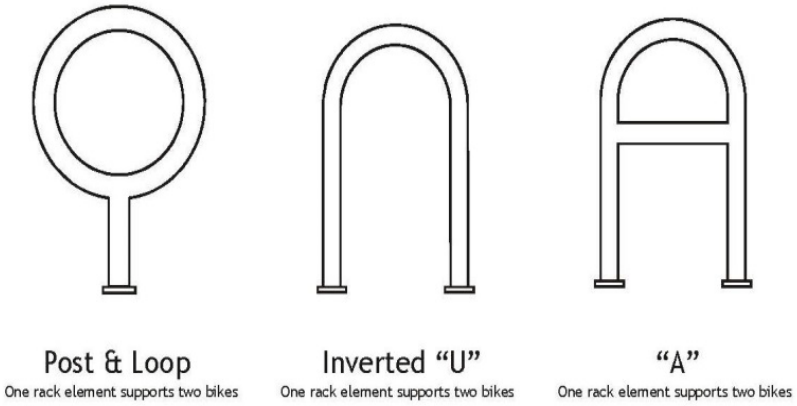
ii. Design

(a) Short-term bicycle racks shall accommodate both chain and U-shaped locking devices supporting the bicycle frame at 2 points.

(b) Racks may be ground- or wall-mounted and securely affixed or bolted to the ground or wall. Racks shall enable the frame and 1 or both wheels to be secured. Figure 30.04-4 shows examples of short-term rack design.

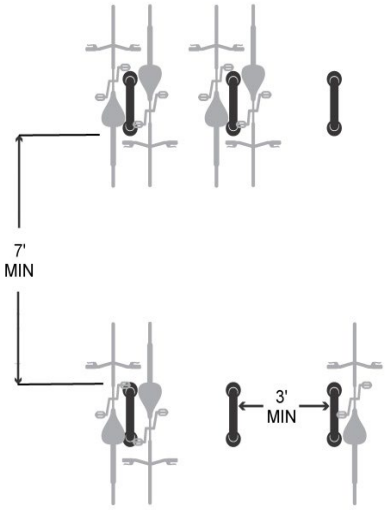
(c) Three feet minimum is required between racks. A 7-foot minimum aisle width, measured tip to tip of racks across multiple rows, is required. See Figure 30.04-5 below.

Figure 30.04-4: Short-Term Bicycle Rack Design



(d) Other designs are acceptable if they meet the standards of this Section.

Figure 30.04-5: Bicycle Rack Spacing Requirements



(e) Freestanding racks shall maintain a 2-foot separation from any obstruction. Rack placement and use shall not obstruct or intrude into any pedestrian walkways, building entries/exits, drive aisles, or parking spaces.

30.04.05 Site and Building Design

A. Purpose

The intent of this Section is to establish site and building design standards that foster high-quality, attractive, and sustainable development compatible with the Clark County Master Plan Core Values, goals, and policies. The standards are further intended to:

1. Protect and enhance the character and quality of neighborhoods;
2. Enhance the pedestrian scale and ensure compatibility between residential neighborhoods and adjacent nonresidential uses;
3. Promote sustainable building designs and construction practices, provide for solar and other alternative energy systems and are adaptable to multiple uses for extended building lifecycles; and
4. Minimize negative on-site impacts to adjacent uses.

B. Applicability

1. Except as otherwise provided in this Section, these standards shall apply to all development. Modifications to existing development legally established with no changes to project design or site features shall not require compliance with the current standards. Any requirements of §30.04.05 not met shall be analyzed as part of the Design Review (DR) process described in §30.06.05B.
2. Development in the Nonurban area shall comply with §30.04.05K, *Hillside Development,* but is exempt from all other parts of this §30.04.05, *Site and Building Design*.

C. Administration

Review for compliance with these standards shall occur during land use application processing or concurrent with review for issuance of a building permit.

D. General Site and Building Design Requirements

1. Development Responsive to Site Conditions

Development shall accommodate and design for specific site conditions such as odd-shaped lots, location on prominent intersections, topography, and preserving natural features to the maximum extent feasible.

2. Pedestrian Connectivity

i. Sidewalks

Minimum 5-foot-wide sidewalks shall be provided on both sides of all public streets in accordance with §30.04.08C.5, *Sidewalks*.

ii. On-Site Pedestrian Connections

(a) All nonresidential and multi-family development shall provide on-site pedestrian walkways 5 feet wide, connecting the following areas:

(1) The parking lot to each on-site building entrance and between all buildings for parking lot connection requirements;

(2) Public building entrances, public sidewalks or walkways on or adjacent to the site, and adjacent properties;

(3) Adjacent public transit stop areas and primary building entrances;

(4) Internal walkways to adjacent public sidewalks;

(5) Any adjacent or abutting public park, greenway, open space, trail, or other civic use such as schools, places of worship, public recreational facilities, or government offices; and

(6) All adjacent land uses and developments.

(b) On-site pedestrian walkways and crosswalks shall use 1 or more of the following methods:

(1) Changing of paving material, pattern, or color, but not painting the material;

(2) Decorative bollards;

(3) Raised median walkways with landscaping; or

(4) Stamped or stained concrete.

iii. Trail Requirements

Trail dedication per adopted Las Vegas Valley Trails Map is required. Trails shall comply with and be maintained pursuant to Clark County's "Development Standards for Off-Street Trails" and shall not be waived or varied.

3. Foundation Masking

Foundation or anchoring system shall be architecturally masked with the same exterior siding as on the building, or with masonry building material with a decorative finish. Masking shall be extended to within 6 inches of grade.

4. Screening of Mechanical Equipment

i. Ground-Mounted Equipment

(a) Mechanical equipment visible from any public street shall be screened 1 foot past the height of the equipment.

(b) Fences, walls, or landscaping may be used for screening. When landscaping is used, it must provide an opaque screen for the mechanical equipment, of sufficient height as described in (a) above.

(c) Screening may consist of architectural features integrated into the design of the building and constructed of materials similar to or compatible with the building.

ii. Roof-Mounted Equipment

(a) Roof-mounted equipment visible from any public street within 100 feet of the building shall be screened to at least the height of the equipment.

(b) Screening shall be integrated into the design of the building, and constructed of materials similar to or compatible with the building.

iii. Exemption

These screening requirements shall not apply to utility-related uses when that use is the primary use.

5. Trash Areas and Enclosures

All development shall provide interior or exterior areas for all refuse containers, recycling containers, compactors, and refuse collection areas per the standard of the local trash service provider, unless the provider certifies that refuse is not generated at the site. Except for single-family dwellings, when an exterior area is provided, exterior trash enclosures shall be provided and:

i. Have walls at least 1 foot higher than the height of the trash receptacle (See Figure 30.04-6);

ii. Be constructed of masonry, concrete block, or other durable opaque material;

iii. Provide screened gates;

iv. Have a concrete floor extending 5 feet beyond the gates;

v. Not be located between the building and the primary street frontage, unless there is no other option, in which case the enclosure shall incorporate building materials and colors consistent with the primary building;

vi. Not be located in any building setbacks;

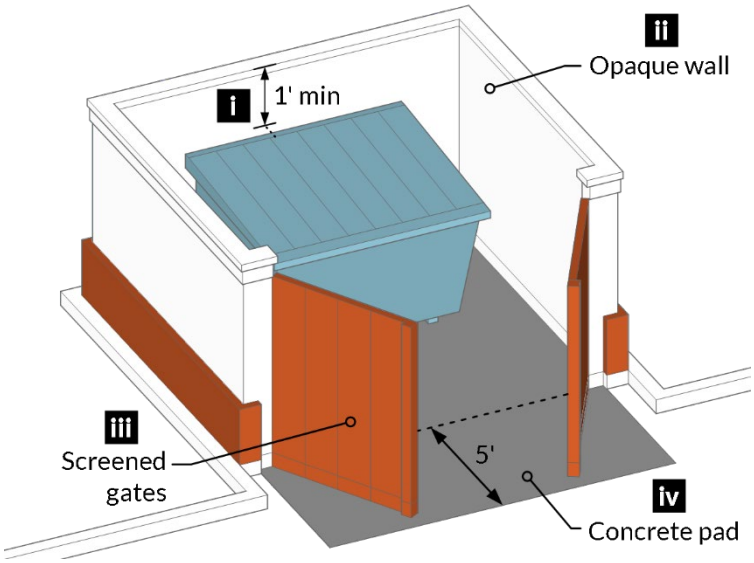
vii. Not have gates that open into any drive aisle or street so as to obstruct the movement of vehicles;

viii. Be located within 200 feet of each multi-family residential building in a development;

ix. Provide ventilation, if covered; and

x. Provide recycling containers in at least 1 enclosure on a property. This provision shall not be waived or varied.

Figure 30.04-6: Trash enclosures



6. Building Materials

i. All buildings shall be permanent structures and shall not be constructed of a temporary membrane or other tent-like material.

ii. Exterior siding shall consist, or give the appearance, of the following building materials and decorative styles:

(a) Glass, masonry, metal, stucco, and wood. When metal elements are incorporated in primary structures, those elements must be decorative.

(b) Highly reflective materials shall not be used.

7. Accessory Uses and Structures

i. Setbacks

Accessory uses and structures shall meet the applicable zoning district setbacks of this Title, where provided.

ii. Location

(a) Front Yard

Any accessory structure in the front yard—except for those used for agriculture, renewable energy, or electric charging—shall provide a building design with complementary exterior colors and building materials compatible with the primary building.

(b) Side or Rear Yard

(1) Any accessory structure, except those listed below, within a side or rear yard visible from any street or residential development shall use complementary exterior colors and building materials compatible with the primary building. This standard may be waived with approval of a Minor Deviation per §30.06.06C, *Minor Deviation.*

- **(i)** Structures that do not extend more than 2 feet above an opaque building fence or wall;
- **(ii)** Aircraft hangars;
- **(iii)** Agricultural structures;
- **(iv)** Ornamental buildings such as gazebos or shade structures; and
- **(v)** Structures used for renewable energy or electric charging.

(2) On lots smaller than 80,000 square feet, accessory agricultural buildings and structures shall be located in the side or rear yard.

E. Standards for Single-Family Attached and Detached Residential Development

1. Applicability

These design standards apply to all single-family residential dwellings. Unless otherwise indicated, manufactured or tiny homes on individual lots are subject to these regulations.

2. Building Design

At least 2 of the following architectural features shall be provided on each façade of the structure (See Figure 30.04-7):

- **i.** Covered entry;
- **ii.** Recessed windows with overhangs or shutters to shade glass;
- **iii.** Porch or balcony;
- **iv.** Patio or deck;
- **v.** Walls off-set a minimum 3 feet;
- **vi.** Variable roof line;
- **vii.** Varied building materials;
- **viii.** Parapets; or
- **ix.** Other unique or varied architectural features that meet the intent of this Section, as approved by Director.



Figure 30.04-7: Examples of Design Features for Attached and Detached Single-Family

3. Additions

Additions shall be architecturally compatible with or complementary to the existing residence, including exterior materials, colors, and architectural features.

4. Driveways

One minimum 20-foot length driveway is required for all single-family development; however, cul-de-sac or knuckle lots may be 18 feet and single-family attached residential development may be 10 feet. Length of driveways for single-family attached and detached developments shall not be waived or varied, except where modifications from the zoning regulations are proposed through a *Planned Unit Development (PUD)* per §30.06.05C.

5. Garages

i. Variation of Garage Location

Single-family detached housing projects greater than 5 acres shall provide a variety of garage styles, including but not limited to the following configurations:

(a) Side-loaded garage;

(b) Garage recessed behind the front façade, or recessed behind the front façade of a porch or courtyard wall;

(c) Garage recessed beneath a second-floor bay with a living unit cantilevered over the garage;

(d) Garage flush with the dwelling portion of the building; and

(e) Detached garages offset, not flush, with the primary structure.

ii. Side-Loading Garages

Side-loaded garages shall provide windows or other architectural details that mimic the features of the living portion of the dwelling on the side of the garage facing the front street.

6. Additional Manufactured Home Regulations

These standards apply to any manufactured home placed on a residential lot and used as a single-family dwelling and, unless otherwise stated in NRS 278.02095, these standards cannot be waived or varied.

i. Age of Dwelling

The dwelling shall be manufactured within 6 years of the year on which it is affixed to the residential lot.

ii. Multiple Sections

Manufactured homes shall consist of 1 or more sections.

iii. Permanent Foundation

Manufactured homes shall be permanently affixed to the residential lot.

iv. Living Area

(a) Manufactured homes shall contain a minimum of 400 square feet of habitable area, not including garages, courtyards, patios, etc.

(b) In accordance with NRS 278.02095, manufactured homes containing less than 400 square feet of habitable area may be approved through an *Administrative Design Review (ADR)* per §30.06.05A based on the size or configuration of the lot or if the square footage of single-family residential dwellings in the vicinity of the manufactured home is generally less than 400 square feet.

v. Exceptions

The above provisions do not apply to manufactured homes within a manufactured home park.

F. Design Standards for Multi-Family Residential Development

1. Four-Sided Architecture

Multi-family structures shall incorporate architectural features on all sides of a building.

2. Building Design Standards

i. Mass and Articulation

(a) Façades greater than 50 feet in length shall incorporate wall plane projections or recesses extending at least 20% of the length of the façade.

(b) Each facade of a multi-family building shall be articulated through the incorporation of at least 3 or more of the following (See Figure 30.04-8):

(1) Balconies;

(2) Shade elements such as awnings, overhangs, or outdoor shutters;

(3) Porches or covered entrances;

(4) Dormer elements;

(5) Varied building materials;

(6) Variable roof line;

(7) Window size and shape variation;

(8) Vertical elements that demarcate building modules;

(9) Walls off-set a minimum of 3 feet; or

(10) Other architectural features that meet the intent of this Section.





Figure 30.04-8: Examples of Design Features for Attached Multi-Family

ii. Roof Lines

Multi-family buildings with roof lines longer than 50 feet shall include at least 1 vertical elevation change of at least 2 feet.

iii. Pedestrian Entrances and Porches

Entrances shall comply with the following requirements:

(a) At least 1 main building entrance shall face the adjacent public street.

(b) Buildings with multiple street frontages shall provide at least 1 building entrance along each street frontage.

(c) Entrances shall be connected to a public sidewalk by a walkway not routed through a parking lot. See §30.04.05D.2.ii, *On-Site Pedestrian Connections*.

(d) Entrances shall be emphasized by the use of at least 2 of the following features (See Figure 30.04-9):

(1) A porch or landing;

(2) Double doors;

(3) A roofed structure such as a portico, awning, or marquee;

(4) Side-lights (glazed openings to the side of the door), and transom-lights (glazed opening above the door) at the entryways;

(5) Decorative lighting; or

(6) Enhanced landscaping.



Figure 30.04-9: Example of Pedestrian Entrance for Attached Multi-Family

3. Common Open Space Not Specified Within District Standards

Where district standards do not include an open space requirement, multi-family development shall provide a minimum 20% of the total site area as Common Open Space that meets the standards of §30.04.05I, *Common Open Space*.

4. Access

Multi-family development sites greater than 5 acres shall include a minimum of 2 through-access drives.

5. Street Separation

All on-site multi-family buildings and parking areas shall be physically separated from streets by vertical curbs or other suitable barriers and landscaping, as described in §30.04.01, *Landscaping,* to prevent unchanneled motor vehicle access.

6. Parking and Garages

i. Parking Location

Surface parking lots shall not be located between a multi-family building and a street frontage. If the development contains more than 1 building, the parking lots shall be internalized in building groups so that they are not visible from adjacent streets or located to the side of or behind the primary building.

ii. Design

Detached garages and carports shall use compatible architectural styles or complementary colors to the primary building, incorporating similar forms, scale, materials, and details.

iii. Structured Parking

Underground parking, structured parking, and parking within, above, or beneath the building it serves is strongly encouraged for multi-family developments.

G. Design Standards for Nonresidential Development

1. Four-Sided Architecture

Architectural features shall be provided on all facades of a structure that are visible from a public right-of-way or are subject to §30.04.06, *Residential Adjacency*. Blank walls are prohibited.

2. Building Massing and Articulation

i. Horizontal Articulation

For each 50 linear feet of building elevation or portion thereof, each elevation of the building shall incorporate at least 2 of the following components (See Figure 30.04-10):

- **(a)** Variations in roof line or variations in roof height of 2 feet or more;
- **(b)** Changes in wall plane of 12 inches or more;
- **(c)** Variations in the arrangement and recessing of windows;
- **(d)** Recognizable changes in texture, material, or surface colors;
- **(e)** Engaged columns; or
- **(f)** Minimum 2-foot parapet return.



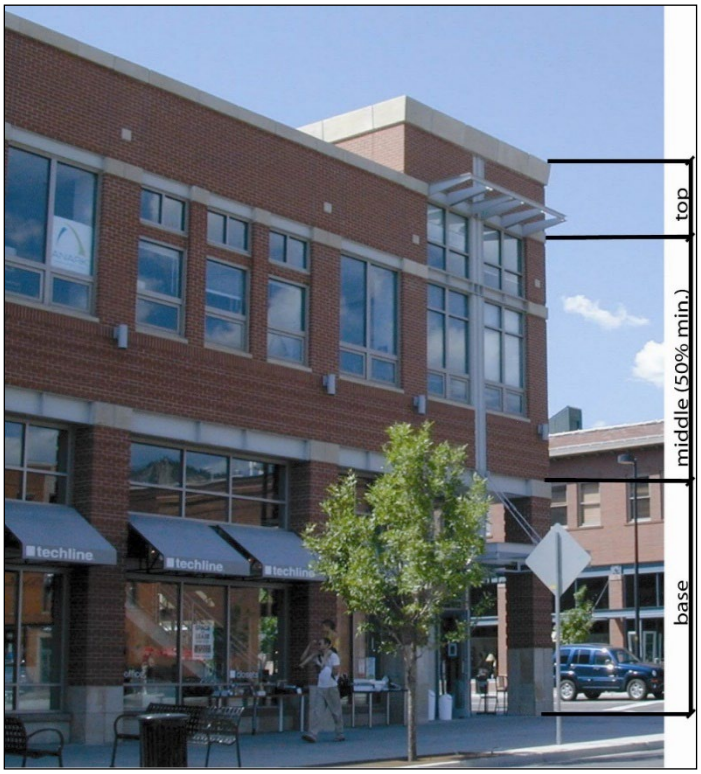


Figure 30.04-10: Examples of Design Features for Nonresidential Development

ii. Vertical Articulation

Buildings 2 stories and greater shall reduce mass with a clearly identifiable base, middle, and top, with horizontal elements separating these components. The body or middle must constitute a minimum of 50% of the total building height. See Figure 30.04-11.

Figure 30.04-11: Vertical Articulation of Structure



3. Building Entrances

i. Buildings with street frontage shall have a customer entrance facing the street. Multi-tenant buildings do not require separate entrances per each tenant space.

ii. The primary entrance to a building shall be articulated with architectural elements to define the entrance. For buildings with multiple tenant entries, each entrance shall be defined and articulated with architectural elements. These elements may include pediments, columns, porticos, porches, awnings, and overhangs. See Figure 30.04-12.

iii. All ground-floor customer entrances shall be covered or inset.

iv. Public entrances accessed from a parking lot shall provide the same architectural elements as a street-facing frontage, unless access is taken from an enclosed parking structure or if access is restricted to use by staff or employees.

Figure 30.04-12: Examples of Appropriate Entry Treatments



4. Access, Ingress/Egress, and Parking

i. Cross Access

For nonresidential land uses that are similar or complementary, with consistent levels of intensity and similar parking standards, curb cuts shall be minimized, and cross access shall be provided through the recording of perpetual cross access, ingress/egress, and parking easements or agreements with adjacent lots.

ii. Across Common Property Lines

Nonresidential driveways and drive aisles constructed across common property lines shall require the creation of easements or agreements for common ingress/egress and shared parking with the adjacent property.

iii. On-Site Access Control

Landscaping or a physical barrier is required along the entire frontage of the property, except where legally approved driveways exist.

iv. Separation

All nonresidential buildings, structures, and parking and loading areas shall be physically separated from all streets by vertical curbs, other suitable barriers and landscaping to prevent unchanneled motor vehicle access.



Figure 30.04-13: Example of Pedestrian Orientation for Mixed-use Developments

5. Drive-Thru Service

Any use with a drive-thru shall comply with the following standards:

i. The drive-thru lane shall be separated from the adjacent drive aisles and pedestrian connections in the parking lot and designed and located to avoid obstruction of parking spaces in the lot.

ii. Stacking spaces shall accommodate the stacking of vehicles as determined by a queueing analysis.

iii. Free-standing drive-thru structures are not required to comply with the architectural design requirements of this subsection G, but shall be subject to compliance with any conditions imposed, as described in §30.06.05A, *Administrative Design Review (ADR).*

6. Roll-Up Overhead Doors and Service/Loading Areas

Service/loading areas, and/or buildings with roll-up overhead doors, shall be in the rear of the property, internal to the development, in a service yard directed away from public rights-of-way, screened to block their view from public rights-of-way or along a side property line farthest from any residential use or zone.

H. Design Standards for Mixed-Use Development

1. Applicability

These standards apply to mixed-use developments.

2. Pedestrian Orientation

i. Emphasize and incorporate pedestrian orientation including site design and building scale features with streetscape activation and pedestrian access to and through a site. Vehicular access and parking should be limited.

ii. Pedestrian-oriented buildings shall be constructed close to the street with windows and display features facing the street, main entrances designed to accommodate access from the sidewalk,

and an enhanced pedestrian frontage, including sidewalk and amenity zone adjacent to the street. See Figure 30.04-13.

3. Enhanced Sidewalks

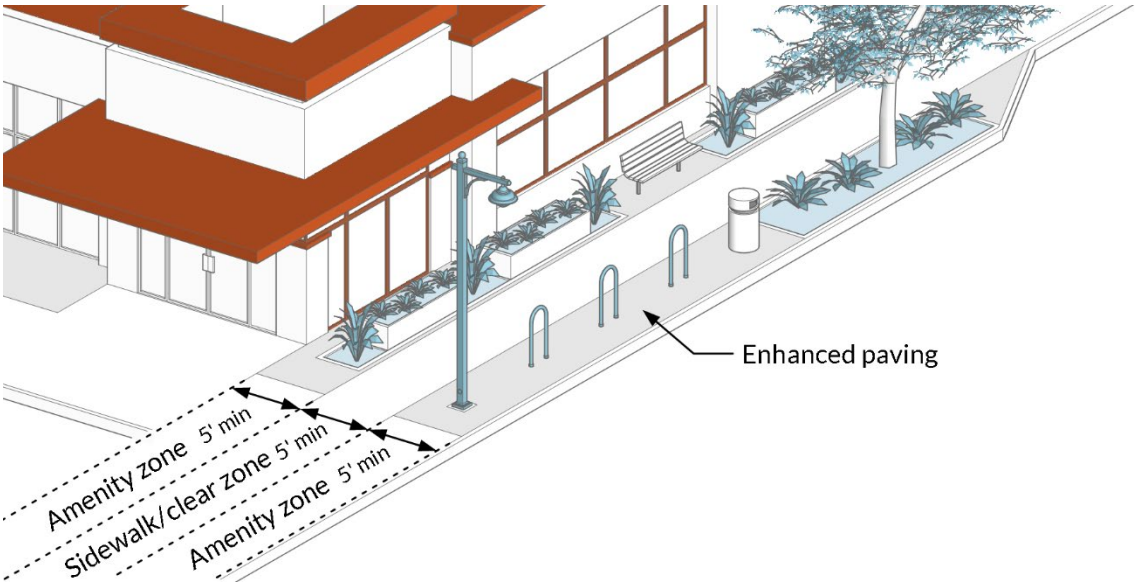
Provide additional pedestrian enhancements between the building façade and the back of the curb.

i. Enhancements shall include an amenity zone. The minimum required dimensions for these areas are shown in Table 30.04-9. See also Figure 30.04-14.

Table 30.04-9: Minimum Pedestrian Enhancements Width

Development Location	Enhancement Width
Residential Local or Private Streets	15 feet
Detached sidewalk shall have a 5-foot amenity zone between curb and front of sidewalk, 5-foot sidewalk, then 5-foot amenity zone between back of sidewalk and building.	
Arterial, Collector, And Nonresidential Local Streets	20 feet
Detached sidewalk shall have a 5-foot amenity zone between curb and front of sidewalk, 5-foot sidewalk, then 10-foot amenity zone between back of sidewalk and building.	
Freeways	N/A

Figure 30.04-14: Sidewalk and Amenity Zone



ii. The amenity zone shall include car door clearance for parallel parking, curb side bus stops, streetlights, street furniture, bicycle racks, trash receptacles, traffic signal poles, street trees, planter boxes, bus benches, and/or shelters.

iii. Where not occupied by street furniture, utility or traffic fixtures, or structures, the amenity zone shall be landscaped or paved as a privately maintained sidewalk. Pavement color or design of amenity zones shall be different from that of the public sidewalk/clear zone.

iv. Enhancements provided by the property owner shall be maintained by the property owner.

4. Common Open Space

Mixed-use development shall provide a minimum 20% of the total site area as Common Open Space that meets the standards of §30.04.05I, *Common Open Space*.

5. Surface Parking

Surface parking shall be to the side or the rear of the primary buildings, screened from the right-of-way and areas subject to §30.04.06, *Residential Adjacency*.

6. Building Design

Mixed-use developments shall comply with the applicable building design standards for both residential and nonresidential structures in this §30.04.05, *Site and Building Design.* In conflicts between the applicable standards for a single structure containing residential and nonresidential development, the more restrictive standard shall apply. In addition, the following standards apply:

i. Developments with a primary architectural theme shall use that theme on the entire building. This can include, but is not limited to, the use of tile accents, stucco designs, awnings, cornice treatments, stepped parapets, trellises or arbors with live plant material, and textured materials such as stone or brick, planters, or colored panels.

ii. All building facades facing public streets shall contain a similar level of design detail, patterning, and finish. Blank walls void of architectural detailing are not permissible. Exceptions may be granted for those areas that the applicant can demonstrate are not visible from adjacent development or public rights-of-way.

iii. Accessory structures shall be similar to or complementary in colors, materials, textures, shape, and architectural style to the primary building.

iv. In a multi-building development:

(a) The architectural design of all buildings (including freestanding outparcel structures) shall be organized around a consistent architectural theme in terms of the character, materials, texture, color, and scale of buildings.

(b) All buildings in a single development, whether developed at a single time or in phases, shall share at least 4 architectural features. These features include, but are not limited to, the following:

(1) Overhangs;

(2) Canopies or porticos;

(3) Recesses or projections;

(4) Arcades;

(5) Raised corniced parapets over the entrance;

(6) Roof style and materials;

(7) Arches;

(8) Outdoor patios;

(9) Tower elements (at strategic locations);

(10) Display windows; and

(11) Integral planters that incorporate landscaped areas or seating areas.

7. Transparency

Ground-level, nonresidential components shall have transparent doors or windows no less than 4 feet in height along at least 40% of the façade's horizontal length facing the primary street frontage, and at least 25% along all other street frontages.

I. Common Open Space

1. Purpose

Common Open Spaces are set aside for the use and enjoyment of a development's residents or users. Common Open Space serves numerous purposes, including preservation of natural areas and resources, ensuring greater access to open areas and recreation, reducing the heat island effect, and providing public health benefits.

2. Applicability

i. When Required

Common Open Space is required for all development in:

(a) RS2, RM18, RM32, and RM50 zoning districts;

(b) Maryland Parkway Overlay;

(c) Manufactured or tiny home park;

(d) Recreational vehicle park;

(e) Planned Unit Development; and

(f) Mixed-use development.

ii. Exemptions

Common Open Space is not required for:

(a) Nonresidential development; and

(b) Residential development in the AG, OS, and PF zoning districts.

3. Allowable Common Open Space Areas

The features and areas identified in Table 30.04-10 count towards compliance with the Common Open Space requirements of this Section.

Table 30.04-10: Allowable Common Open Space Areas

ACTIVE RECREATIONAL AREAS	
	**DESCRIPTION:** Areas occupied by facilities used for active recreational purposes, such as pools, playgrounds, tennis courts, jogging paths, ball fields, and clubhouses. **DESIGN AND MAINTENANCE** • Features such as pools and tennis courts may be provided within an enclosed structure. • Outdoor areas shall be compact and contiguous unless used to link or continue an existing or planned park, trail, or open space resource.

Table 30.04-10: Allowable Common Open Space Areas

FORMAL PLANTINGS AND GARDENS	
	**DESCRIPTION:** Formally planned and regularly maintained open areas that provide passive recreation opportunities, including arranged plantings, gardens, gazebos, and similar structures, as well as roof gardens. **DESIGN AND MAINTENANCE** • Formal plantings and gardens shall have at least 1 direct access to a building, or to street or sidewalk accessible to the public or the development's occupants and users. • Unless a garden is completely enclosed, plants shall come from the Southern Nevada Regional Planning Coalition Plant List, and be rated as having Low or Very Low water needs. • All plants shall be maintained in a living condition, subject to seasonal variation, plants that do not survive shall be replaced.
SQUARES, COURTYARDS, PLAZAS, DECKS, AND OUTDOOR DINING AREAS	
	**DESCRIPTION:** Squares, courtyards, plazas, decks, and outdoor dining areas that provide gathering places or active and passive recreational opportunities. **DESIGN AND MAINTENANCE** • Squares, courtyards, plazas, decks, and outdoor dining areas shall be at least 200 square feet, but no more than 1 acre, in area. • Shade structures are required for decks and outdoor dining areas, and recommended for other features. • Such areas shall have at least 1 direct access to a primary building, or to a street or sidewalk accessible to the development's occupants and users or the public. • Surrounding primary buildings shall be oriented toward the square, courtyard, plaza, or outdoor dining area where possible.
REQUIRED AMENITY ZONES	
	**DESCRIPTION:** Amenity zones in mixed-use development a minimum of 10 feet in width on 1 side of a sidewalk may be counted toward this requirement. **DESIGN AND MAINTENANCE** • Amenity zones in mixed-use development, as described in §30.04.05H.3, may be counted toward this requirement, not including required width of sidewalk.

4. Areas Prohibited as Required Common Open Space

The following areas shall not be counted towards required Common Open Space:

i. Required landscape and buffer areas;

ii. Areas containing drainage and geologic hazard improvements, unless deemed to not pose a public safety hazard by the Director of Public Works or the Building Official, respectively;

iii. Areas with slopes of greater than 12% grade;

iv. Private yards not subject to an open space or conservation easement;

v. Streets, rights-of-way or private access easements, including sidewalks located within those rights-of-way or easements;

vi. Open parking areas and driveways;

vii. Land covered by structures, unless designated for active or passive recreational uses;

viii. Decks, porches, patios, and balconies reserved for individual dwelling units;

ix. Designated outdoor storage areas;

x. Areas less than 200 square feet in area; and

xi. With the exception of amenity zones, spaces with any dimension of less than 15 feet shall not count toward satisfying the Common Open Space requirement.

5. Design Standards for Common Open Space

Areas used as a required Common Open Space shall meet the following design standards:

i. Generally

(a) The design, siting, grading, and solar exposure of the proposed Common Open Space shall be such that the space is amenable to active and passive recreation;

(b) Where possible, Common Open Space orientation should maximize exposure to winter sunlight, while providing landscaping and shade structures to enable summer usage;

(c) Plant selection for landscaping shall be chosen from the Southern Nevada Water Authority/Southern Nevada Regional Planning Coalition Plant List and be rated as having Low or Very Low water needs;

(d) The Common Open Space shall be integrated with the overall design of the site; and

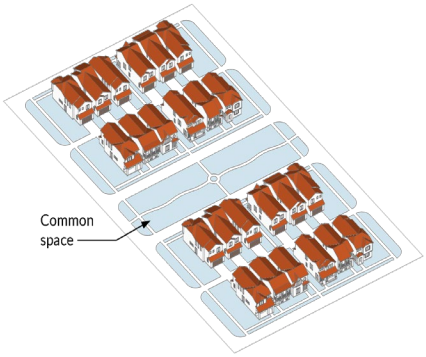
(e) Common Open Space shall not be those areas left over after the locations for the building, parking areas, utilities, and other required site improvements have been selected.

ii. Location

(a) Common Open Space shall be readily accessible and useable. Where possible, a portion of the Common Open Space should provide focal points for the development through prominent placement or visibility from external streets.

(b) The Common Open Space shall be directly accessible to all residential units, to the maximum extent practicable. For example, clustering units around a Common Open Space is encouraged over locating the Common Open Space at the end of a row of units where it is less accessible to many of the units. See Figure 30.04-15.

Figure 30.04-15: Common Open Space



(c) When adjacent to existing or planned parks, trails, multi-use paths, or other public open space, the Common Open Space shall, to the maximum extent practicable, adjoin, extend, and enlarge the park, trail, multi-use path, or other public open space.

(d) Projects that contain or adjoin an existing or planned transit stop shall, to the maximum extent practicable, adjoin or integrate with the transit stop or other open space adjoining the transit stop subject to any County transit stop requirements. At least 3 of the following are required: (See Figure 30.04-16):

(1) Benches or seating areas;

(2) Raised landscape planters;

(3) Shade structures;

(4) Public art (e.g., sculptures, murals, water elements, carvings, frescos, mosaics, mobiles);

(5) A courtyard;

(6) Decorative shelters for transit riders (as approved by RTC if applicable); or

(7) Similar or complementary amenities.

iii. Configuration

(a) Required Common Open Space areas shall be contiguous unless a different configuration is needed due to site constraints such as to continue an existing trail or accommodate preservation of natural features.



Figure 30.04-16: Examples of Common Space Amenities

(b) Common Open Space shall be consolidated where possible and shall not be divided into small sizes and irregular shapes that do not function well for recreation.

iv. Setbacks and Easements

Setbacks and/or easements may count toward satisfying the Common Open Space requirement of this Section upon a finding that the proposed area is consistent with the intent and design requirements of this Section and has sufficient shade and landscaping to be amenable to active or passive recreation.

v. Connections to Public Trails, Parks, and Other Recreation Areas

Common Open Space should connect to public trails, parks, and recreation areas where possible. Connections to trails, nearby parks, publicly owned open spaces, or those that make short cuts from

a cul-de-sac to a neighboring through street with a sidewalk are desirable. If not dedicated to the public, these connections shall qualify as Common Open Space.

vi. Development within Common Open Space

Development within required Common Open Space shall be limited to the type appropriate for the Common Open Space (see Table 30.04-10 for a partial list of examples).

vii. Maintenance of Common Open Space

(a) Common Open Space shall be managed and maintained by the property owner.

(b) Failure to maintain Common Open Space shall be a violation of this Title.

J. Sustainability

1. Purpose

This Section is intended to support implementation of the Clark County Sustainability and Climate Action Plan by ensuring that developments conserve water and energy resources, improve air quality, reduce urban heat island effect, and help Clark County adapt to future climate challenges.

2. Applicability

New development shall comply with the minimum required number of options in this Section.

i. Minimum Requirements Per Development Type

(a) These requirements shall apply based on development type:

(1) Multi-Family Residential

Multi-family residential development must achieve at least 5 points from the sustainability measures.

(2) Nonresidential

Nonresidential development must achieve at least 7 points from the sustainability measures.

(3) No points shall be awarded for compliance with standards that are otherwise required by the Title.

ii. When Required

The entire project area included in the initial development, not individual lots or buildings, along with any additions or modifications to a development, shall comply with this Section.

iii. Incentives

One of the following incentives for sustainability measures provided beyond 1.5 times the minimum requirement may be authorized:

(a) Required parking reduction of up to 10%, which may be combined with the reduction received under §30.04.04F.1.i, for a possible 20% reduction, with the maximum parking limitation based on the cumulative reduction.

(b) Density increases of up to 10%.

(c) Building height increases of up to 10%.

3. Landscaping Options

i. Trees

One point may be awarded for providing at least 10% more trees than required by this Title.

ii. Water-Efficient Landscaping

One point may be awarded for providing 95% or more of all required landscaping with plants that have very low or low water needs.

iii. Landscape Buffer

One-half point may be awarded for providing a landscape buffer, where required, exceeding the base width requirements by 10%. An additional ½ point may be awarded for exceeding the required landscape buffer width by 20% or more.

iv. Parking Areas

(a) One point may be awarded for trees provided in parking areas whose canopies at maturity cover at least 50% of the paved parking area.

(b) Two points may be awarded for covering 50% or more of the paved parking area with solar installations or shade structures with roof elements to provide power for site lighting, and 1 point may be awarded for covering at least 25% but less than 50% of the parking area.

(c) One-half point may be awarded for the provision of Electric Bicycle Charging and one-half point may be awarded for providing shade to an Electric Vehicle Charging Area.

v. Mojave Native Plants

(a) One point may be awarded for the protection of existing natural areas with Mojave native landscaping, as shown on the Regional Plant List, in an area equal to or greater than 5% of the development footprint.

(b) One-half point may be awarded for the restoration of pre-development native habitat on a site with Mojave native plants, as defined by the Regional Plant List, of an area equal to or greater than the area disturbed by construction activities.

vi. Landscaping for Energy Conservation and Solar Gains

One-half point may be awarded for orienting plant material on the south and west sides of buildings.

4. Building and Site Design Sustainability Options

i. Cool Roof

One point may be awarded for providing a cool roof, defined as roofing materials that have a solar reflectance index (SRI) equal to or greater than 78 for low-sloped roofs (<2:12) or 29 for steep-sloped roofs (>2:12).

ii. Siting and Structure Design Efficiency

(a) Building Orientation

One point may be awarded for orienting all roof surfaces within 30 degrees of a true east-west direction and either flat or sloped in a southern direction.

(b) Shade Structures

(1) One point may be awarded for providing shade structures over at least 50% of all south- and west-facing windows and doors. An additional 1 point may be granted for each additional 25% of windows and doors shaded. Structures may include awnings, louvers, architectural features, or similar devices.

(2) One-half point may be awarded for providing shade structures such as awnings or arcades for sidewalks or buildings adjacent amenity zones.

(c) Building Features

(1) One point may be awarded for providing shaded walkways along a minimum of 60% of all building facades adjacent to or facing streets, drive aisles, outdoor gathering spaces, or parking areas. One additional point granted for each additional 10% provided.

(2) One-half point may be awarded for the use of daylighting strategies incorporated into the design of the project to minimize the use of artificial lighting.

(3) One-half point may be awarded for multi-family residential developments with a floor-to-ceiling height of 9 feet on all floors to facilitate natural ventilation.

(4) One-half point may be awarded for nonresidential developments with a floor-to-ceiling height of 11 feet on all floors to facilitate natural ventilation.

(5) One-half point may be awarded for using low-emissivity glass on all south- and west-facing windows.

(6) One-half point may be awarded for providing a shade device such as an awning or portico above all building entrances and ADA ramps.

iii. Alternative Energy

Two points may be awarded for projects that achieve one of the following metrics:

(a) Seventy percent of the total roof area contains solar panels;

(b) On-site solar panels are installed to generate 100% of the project's estimated annual electricity use; or

(c) Battery backup is provided to run critical loads or provide power to offset peak grid demand.

5. Alternative Compliance

Sustainability options that differ from those specified above may be considered. The Board or Commission will determine if the alternative compliance proposal is beneficial to achieving the land development policies of the County. Such requests shall be approved as described in §30.06.05B*, Design Review,* subject to finding that the alternative standards will:

i. Result in development that is as sustainable or as low in impact as development in strict compliance with the requirements of this Section would be.

ii. Recognize and encourage new and innovative sustainability measures with an outcome similar or superior to that anticipated by the requirements of this Chapter.

iii. The alternative standards will result in development meeting or exceeding all other requirements of this Title.

K. Hillside Development

1. Purpose

Clark County is comprised of many mountain ranges. Areas designated national conservation and wilderness areas, properties intended to be held by the Bureau of Land Management long-term, and other ranges within the County which may be affected by development, should be afforded special consideration to protect these natural areas. These restrictions provide for the reasonable, safe, and aesthetic use of the steep and inconsistent topography of natural hillsides. These standards are established to:

i. Ensure stable slopes;

ii. Reduce water runoff and control erosion by maintaining the natural features of the land to reduce erosion and minimize stormwater runoff;

iii. Minimize grading and site disturbance to maximize compatibility with the natural terrain;

iv. Preserve sensitive environments on the hillside;

v. Minimize the need for public services where the ability to provide services is limited by the terrain;

vi. Encourage the conservation of these areas as visual resources, parks, open space, conservation areas, and other related land uses; and

vii. Establish a transition zone between hillside development and more intensive development.

2. Applicability

This Section applies to any area greater than 2.5 acres with a contiguous extent of slope exceeding 12% grade, as depicted on the Slope Map on file with the Department of Comprehensive Planning. If any portion of a project is located within the 2.5-acre extent and will result in development on a hillside, the entire project shall be considered to be hillside development and shall comply with the regulations of this Section.

3. Development Standards

These standards apply to all hillside development, except for single-family dwellings on lots created prior to July 1, 2000. Alternatives to the development standards in Chapter 30.02, *Zoning Districts*, and §30.04.09, *Subdivision Design*, may be established with approval, as described in §30.06.05B, *Design Review* (unless the standard cannot be waived).

i. The maximum recommended density on hillsides is 2 units per acre. The recommended total number of units for the hillside development should be based on the total gross acres of land with slopes 12% or less and greater than 12%, multiplying each gross acre total by the density allowed within the zoning district for slopes 12% or less and by 2 for slopes greater than 12%, and then combining the resulting yields.

ii. Nonresidential development as a primary use on hillsides, other than public facilities, is not permissible.

iii. Large-lot development on hillsides is encouraged.

iv. Double-fronted lots may be appropriate and are encouraged to reduce the amount of site grading.

v. Site disturbance on slopes greater than 12% grade shall be minimized in accordance with Table 30.04-11.

Table 30.04-11: Maximum Site Disturbance, Natural Area

Slope (%)	Maximum Site Disturbance Approximate % net development	Natural Area Approximate % net development undisturbed
12.01≤25	50	50
Greater than 25	35	65

4. Hillside Grading

In addition to all other restrictions related to grading, hillside development shall also meet the following criteria. Compliance with these requirements shall be inspected and certified by a third party.

i. All areas proposed to be left ungraded are to remain undisturbed and cannot be used to stockpile materials or excess fill.

ii. Designated natural areas shall be temporarily fenced or a barrier placed where they abut construction areas in order to prevent encroachment into the natural areas.

iii. The height of cuts into hillsides exceeding 12% grade shall be limited as described in §30.04.03C, *Retaining Walls*. The cut shall be backfilled, compacted, and then re-vegetated (or varnished) prior to final inspection in accordance with the following:

(a) Seeds for trees, desert shrubs, and grasses shall be planted with a density adequate to control erosion.

(b) A temporary watering system shall be used until the re-vegetated materials are established.

(c) The disturbed area shall be restored as close to its natural condition as possible by using chemicals such as eonite or permeon or a similar approved process to restore natural color to the landscape.

iv. Excess soils shall be removed from the site to an appropriate off-site disposal or storage area.

v. All site re-vegetation/varnish shall be completed prior to the issuance of the first certificate of occupancy or completion.

5. Slope Stabilization

With the exception of retaining walls, all slopes greater than 33%, or as required by a geotechnical report, shall be stabilized with stone riprapping or sculptured rock or other similar material as follows:

i. The stabilizing material used shall blend with the natural appearance of the site or lot and its surrounding terrain.

ii. Vegetation retention and re-vegetation shall be used in conjunction with riprapping.

6. Hillside Walls

Walls within hillside developments shall comply with the following:

i. Walls shall conform to the topography of the site.

ii. To the greatest extent practical, walls shall use graduated steps.

iii. Walls shall either incorporate the use of native materials or be earth tone colors to match the native soils and rocks.

iv. The use of decorative fences is encouraged around side and rear yards.

v. Decorative fences only shall be allowed around natural areas.

vi. Hillside retaining walls shall contain a 6-foot horizontal offset landscaped section for each 9 feet of vertical wall height, to a maximum cumulative wall height of 36 feet. Any requested wall height over 9 vertical feet shall be limited to decorative fencing.

7. Natural Areas

i. Site disturbance other than hiking trails is prohibited within a natural area.

ii. Any designated natural area shall be delineated on any subdivision map.

iii. Natural areas should be immediately adjacent, or contiguous, to other land also designated as a natural area.

iv. Natural areas may be designated as a deed-restricted portion of a privately owned lot, or as a separate parcel. If designated as a separate parcel, that parcel may be under the ownership of a property owners' association, or deeded to any organization that accepts responsibility for the perpetual preservation and maintenance of the natural area.

8. Buildings

In addition to the design standards for attached and detached single-family dwellings included in §30.04.05E, *Standards for Single-Family Attached and Detached Residential Development*, dwellings within hillside development shall conform to the following.

i. Colors of exterior walls and roofs of structures, except solar generating equipment, shall blend with the surrounding natural environment.

ii. Limited slab on grade with staggered floor elevations is required on hillsides to avoid massive building forms, excessive cuts and fill, and surfaces which contrast with the surrounding terrain.

iii. Architecture should have predominant horizontal features. Vertical features should be minimized and generally used to accentuate entryways, garages, main doors, or similar features.

iv. Where private property abuts publicly held lands not intended for future development, increased rear yards, open fences, and minimal use of accessory structures is strongly encouraged.

v. Structures shall not have a negative visual impact on ridgeline elevations. A viewshed analysis may be required to be submitted with any required land use application to demonstrate compliance with this Section.

9. Review Process

A Design Review per §30.06.05B*, Design Review,* is required for all hillside development. To address the sensitive nature of hillside development, a grading plan shall be submitted with the Design Review application, prior to or concurrent with any land use approvals (including maps) or permits. A preliminary grading plan may be accepted, clearly identifying the topography of the land and how it relates to the development; however, any changes to the final grading plan will be required to be reviewed as a subsequent Design Review.

30.04.06 Residential Adjacency

A. Purpose

The purpose of this Section is to promote compatible transitions between land use areas of differing intensities and to reduce potential negative impacts that may occur when higher-intensity development is located near residential zoning districts and manufactured or tiny home parks.

B. Applicability

The Residential Adjacency standards of this Section apply to:

1. All development within 200 feet of the Rural Neighborhood Preservation NPO;
2. All nonresidential development within a residential district;
3. All development within an RM district, commercial district, or industrial district adjacent to an RS district;
4. Nonresidential development adjacent to any RM zoning district;
5. Nonresidential development adjacent to a manufactured or tiny home park, regardless of the zoning district where such park is located; and
6. Where otherwise required by this Title.

C. Exception

1. The standards of this Section shall not apply to any undeveloped property in any residential zoning district when the Master Plan Planned Land Use Map indicates a commercial or industrial land use designation for that zone.
2. Exceptions or variations from these residential adjacency standards may be approved with written consent of the adjoining residential property owner through the Zoning Compliance process, as described in (§30.06.08G, *Zoning Compliance (AC)*).
3. If no written consent can be obtained per #2 listed above, exceptions or variations from subsection I Signs Adjacent to Residential standards may be requested through a *Sign Design Review (SDR)* §30.06.07A.

D. Multi-Family or Nonresidential Vehicular Access

Multi-family or nonresidential development access is not permissible from residential local streets, unless the street is the sole means of access.

E. Use Limitations

Certain uses have distance separation requirements from residential development, as described in Chapter 30.03, *Use Regulations*. Those standards apply in addition to this subsection E. If there is a conflict, the more restrictive standard shall apply.

1. Where these Residential Adjacency standards apply, the following are not permissible as primary or accessory uses:
    i. Public address systems; and
    ii. Outdoor storage.
2. Drive-thru lanes are not permissible within 200 feet of areas subject to Residential Adjacency standards unless separated by a primary building.

F. Grading

All grading shall:

1. Not place more than 3 feet of fill a minimum of 5 feet from a shared property line.

2. Not place more than 6 feet of fill for a distance of 20 feet from a shared property line.
3. Not place more than 9 feet of fill for a distance of 50 feet from a shared property line.
4. Where the finished grade along a shared property line is higher, the fill height shall be measured from the corresponding finished grade of the shared property line.

G. Site and Building Orientation

1. Site Orientation

i. Higher-activity areas of development, such as parking, circulation, loading and delivery areas, and clubhouses, shall not be adjacent to areas subject to Residential Adjacency standards.

ii. Where site constraints cannot eliminate higher activity levels adjacent to any area subject to Residential Adjacency, additional landscaping and/or screening may be required. Also see §30.04.02, *Buffering and Screening.*

2. Rural Neighborhood Preservation NPO Transition

i. Residential development within, abutting, or adjacent to a Rural Neighborhood Preservation NPO shall transition along RNP boundaries by providing lot sizes 10,000 square feet or greater.

ii. Structures within or adjacent to an RNP NPO shall not have heights exceeding those of the RNP district standards.

iii. Development shall comply with the side or rear zoning district setbacks of the adjacent RNP NPO lot along any shared lot lines.

3. Building Configuration

i. The tallest and largest structures of multi-building developments must be within the core of the site and provide a gradual decrease in building height and mass adjacent to residential land uses.

ii. Nonresidential uses are prohibited adjacent to a residential district for horizontally integrated mixed-use development.

4. Building Facades

Building facade design, including roof lines and roof treatments, shall be consistent for all sides of a building visible from a public street or residential district.

H. Setbacks

1. Height Step Backs and Limits

i. For any portion of a building above 35 feet in height, a 1-foot horizontal step back is required for each foot of height over 35 feet. The step back shall be measured from the property line.

ii. No portion of a building shall exceed the following height limits:

(a) Sixty feet for buildings within 100 feet of a single-family use or zoning district.

(b) One hundred feet for buildings within 200 feet of a single-family use or zoning district. See Figure 30.04-17.

Figure 30.04-17: Residential Adjacency – Height Step Backs and Limits



iii. Building features allowed as exceptions to maximum height requirements per §30.02.25, *Measurement and Exceptions,* shall minimize visibility from adjacent residential districts and meet the height of the zoning district to the maximum extent practicable.

I. Signs Adjacent to Residential

1. Illuminated signs are not permissible on a rear or side of a building that faces an adjacent property in a residential district.

2. Except for reverse-lit signs, illuminated wall signs on the front of buildings shall not face an area subject to Residential Adjacency standards unless separated by a street.

3. Any signs adjacent to and visible from residential districts shall be designed to minimize visibility from adjacent residential districts. Internally illuminated signs shall not be oriented toward residential districts.

4. Any sign located within 100 feet of an area subject to Residential Adjacency standards that is or will be visible from such property may not be internally or externally illuminated. Metal halide bulbs are prohibited.

5. The luminance of Electronic Message Units visible from an area subject to Residential Adjacency standards shall be reduced by 25%.

6. External lighting for signs shall be shielded and directed away from any area subject to Residential Adjacency standards.

7. With the exception of directional and emergency signs related to hazards, illuminated signs shall be on a timer and illumination shall cease between the hours of 10:00 p.m. and 6:00 a.m.

8. In areas subject to Residential Adjacency standards, freestanding signs:

   i. Shall not exceed a height of 20 feet;

   ii. Shall not be placed within 60 feet of an area subject to Residential Adjacency; and

   iii. Are prohibited on lots measuring less than 1 acre in size within a residential zoning district.

J. Spillover Lighting

In addition to the general standards in §30.04.07B, *Exterior Lighting,* development subject to Residential Adjacency shall:

1. Limit the height of on-site lighting within 100 feet of any single-family residential zoning district to 18 feet in height. Additional height as permissible in §30.04.07B*, Exterior Lighting,* may be allowed subject to approval of a lighting plan through §30.06.05A, *Administrative Design Review (ADR).*

2. Shall lengthen, cutoff, and fully shield all lighting fixtures so the lamp is not visible from existing residential lots.

K. Trash and Recycling Receptacles

Except for single-family residences, areas containing outdoor garbage or recycling containers shall not be within 50 feet of an adjacent residential district unless no other feasible option is available, and impacts to adjacent properties are mitigated.

L. Parking

1. Parking Location

To minimize parking impacts of nonresidential uses on residential areas, parking shall be established in 1 or more of the locations listed below. The locations are listed in priority order from highest to lowest; the applicant shall select the highest feasible location from this list and shall demonstrate why that location was selected over other alternatives.

   i. Along lot lines adjacent to nonresidential development;

   ii. On the side of a corner lot not facing the primary street frontage;

   iii. Behind the building; or

   iv. Along lot lines adjacent to residential uses.

2. Parking Area Screening

Parking areas for nonresidential development within 30 feet of a residential district, and not separated by a primary building, or otherwise buffered shall be subject to §30.04.02, *Buffering and Screening.*

M. Cut-Through Traffic

Development shall avoid design that encourages cut-through traffic on residential local streets.

N. Roll-Up Overhead Doors and Service/Loading Areas

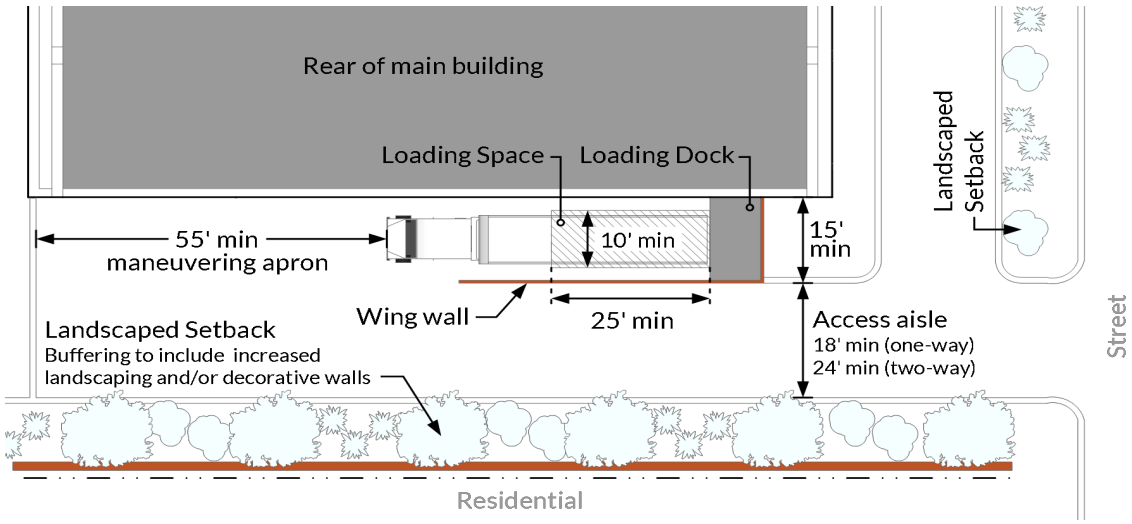
1. Roll-up overhead doors shall not face any residential district unless screened by another building.

2. Service/loading areas shall be set back 50 feet unless no other feasible option is available, and impacts to adjacent properties are mitigated in compliance with the minimum standards illustrated in Figure 30.04-18.

3. Loading docks shall be set back, screened, and buffered to minimize noise and disruption. Vehicles must be completely screened with wing walls, depressed loading docks, increased landscaping, setback, walls, similar structures, or any combination thereof.

4. Loading spaces and docks designed to accommodate more than 1 loading space/dock for a 40-foot container rig shall be set back 150 feet.

Figure 30.04-18: Loading Area Design



5. Service/loading areas shall be screened from adjacent residential properties pursuant to §30.04.02, *Buffering and Screening*.

30.04.07 Operational Standards

A. Purpose

The purpose of this Section is to protect adjacent uses and the community from excessive noise, light, smoke, particulate matter, odors, and hazardous materials generated by uses conducted on a property.

B. Exterior Lighting

1. Purpose

Exterior lighting standards are intended to enhance safety, preserve the County's nighttime character, and improve the ability to view the nighttime sky in outlying areas of the County.

2. Applicability

All exterior lighting shall meet the requirements of this Section, subject to the following exemptions:

i. Emergency Conditions

Lighting used only under emergency conditions.

ii. Required by FAA or FCC

Specific lamps or lighting required by the Federal Aviation Administration or the Federal Communications Commission.

iii. Temporary Uses

Certain temporary uses, including but not limited to special events and seasonal sales with a Temporary Use approval pursuant to §30.06.05G, *Temporary Use (TC),* shall be allowed temporary

lighting for the duration of the event, provided such lighting does not create glare to motorists or result in glare or light trespass onto adjacent properties.

iv. Street Lighting

Street light fixtures along rights-of-way.

v. Security Lighting

Security lighting of any wattage controlled by a motion-sensor that remains on no longer than 12 minutes after activation.

vi. Las Vegas Boulevard Gaming Corridor

Any development within the Las Vegas Boulevard Gaming Corridor, as defined in NRS 463.3076.

vii. Required by Building Code

Any lighting required by the Building Code for life-safety purposes such as lighting for stairways, walkways, and building entrances.

viii. Landscape Lighting

Landscape lighting of 50 volts or less.

ix. Coach Lighting

Coach lighting for single-family residential development.

3. Prohibited Lighting Types

The following types of exterior lighting are prohibited, unless specifically allowed elsewhere in this Title:

i. Unshielded lighting that produces glare or light trespass in excess of that allowed in this Section;

ii. Lighting affixed on top of or above a roof, except where required by Building Code;

iii. Interior or exterior flickering, pulsating, flashing, neon, and any other lighting that could distract or confuse a motorist, pilot, or air traffic controller;

iv. Mercury vapor and low-pressure sodium lamps; and

v. Lighting that allows spillage of light into the sky, visible on a roof or above the roof line.

4. Lighting Standards

i. In all districts:

(a) All on-site lighting shall be shielded or otherwise designed to prevent direct glare and light trespass onto adjacent property.

(b) Brightness is measured at any shared property line and shall be no greater than 0.2 footcandles.

(c) Motion-sensitive lighting is encouraged.

ii. In commercial, industrial, and special districts, all exterior lighting shall comply with the following:

(a) All lighting shall be completely shielded and shall project downward.

(b) Warm light that possesses a color temperature below 3,300 degrees Kelvin is required. White and blue-white are prohibited.

(c) The maximum height of a lamp mounted on freestanding luminaries shall not exceed 25 feet. Recreational field lighting is excluded from height limits.

(d) Recreational field lighting, and outdoor sports or performance facilities (i.e., tennis, racquetball, volleyball, handball, swimming pools, and arenas) shall be installed with self-operating timers.

(e) Large recreation fields or areas (i.e., football, soccer, baseball) need only be partially shielded.

(f) All canopy lighting shall be recessed.

5. Violations and Enforcement

In the event of a complaint or enforcement action, a lighting plan that demonstrates compliance with these standards may be required by Clark County Code Enforcement.

C. Hazardous Materials

Hazardous materials, including chemicals and explosives, shall be regulated by the Clark County Fire Code, adopted Building Codes, the Nevada Revised Statutes, and/or the Nevada Administrative Code. Approval as described in §30.06.05D, *Special Use Permit (UC),* is required for hazardous materials storage above allowed quantities.

D. Noise

1. Standards

i. Excessive noise shall be muffled to mitigate objectionable intermittence, beat frequency, shrillness, or volume.

ii. The maximum permissible sound pressure level of any continuous, regular, or frequency source of sound produced by any activity shall be established by time period and type of zoning district per Table 30.04-12.

Table 30.04-12: Maximum Sounds Levels (Decibels)

Octave Band Center Frequency (Hertz)	Residential Districts		Nonresidential Districts	
	DAYTIME HOURS	NIGHTTIME	DAYTIME HOURS	NIGHTTIME
31.5	72	65	76	65
63	65	58	69	62
125	58	50	62	54
250	53	44	58	49
500	50	40	55	45
1,000	47	37	52	42
2,000	43	33	49	38
4,000	40	30	46	35
8,000	37	27	43	32

(a) Public address systems shall only be permissible subject to approval as described in §30.06.05D, *Special Use Permit (UC),* unless in conjunction with live entertainment or a special event that is otherwise approved.

(b) Impulsive-type noises shall be subject to the standards described in Table 30.04-13.

Table 30.04-13: Maximum Sound Levels for Impulsive Noise (Decibels)

Residential Districts		Nonresidential Districts	
DAYTIME HOURS	NIGHTTIME	DAYTIME HOURS	NIGHTTIME
56	46	65	61

2. Measurements

i. Sound levels shall be measured with a sound level meter and associated octave band filter, manufactured according to the most recent standards prescribed by the American National Standards Institute, as amended from time to time. Measurements shall be made using the flat network of the sound level meter.

ii. For the purpose of this Section, noises capable of being measured shall be those which cause rapid fluctuations of the sound level meter needle with a variation of no more than plus or minus 2 decibels. Noises incapable of being measured, such as irregular and intermittent sound emissions, shall be controlled so as not to become a nuisance to adjacent uses.

iii. Sound pressure levels shall be measured at all property lines at a height of at least 4 feet above the ground surface.

(a) Where the emitting and receiving premises are in different zoning districts, the limits governing the more restrictive district shall apply to any regulated noise entering that district.

(b) The levels specified may be exceeded by 10 decibels for a single period not to exceed 15 minutes in any 1 day.

3. Exceptions

The requirements of this Section do not apply to:

i. Construction and/or demolition activities when conducted during daytime hours, or pursuant to Nevada Revised Statutes, or according to an approved schedule for nighttime work.

ii. Sound-generating equipment or apparatus used for public safety or to warn the public of an emergency.

iii. Noise from use-related loading/unloading operations that affect residential areas when conducted during daytime hours.

iv. Lawn maintenance and home repair if conducted during daytime hours as a normal function of any authorized use.

v. Aircraft noise.

vi. Properties located within the Gaming Enterprise District, as shown on the Gaming Enterprise District Map, between Sahara Avenue and Saint Rose and Koval Lane or its alignment and Cameron Street or its alignment.

E. Odors

Odor is regulated by Clark County Air Quality Regulations, Section 43 in accordance with Title 2, Chapter 2.76.

F. Smoke and Particulate Matter

Smoke and particulate matter are regulated by the Clark County Air Quality Regulations in accordance with Title 2, Chapter 2.76.

G. Vibration

1. Standard

Vibration, which produces rapidly fluctuating motion transmitted through the ground, shall not be discernable to human senses beyond any property line at any time.

2. Exception

Properties located within the Gaming Enterprise District, as shown on the Gaming Enterprise District Map, between Sahara Avenue and Saint Rose and Koval Lane or its alignment and Cameron Street or its alignment.

H. Adjustments to Site Operational Standards

Proposals to utilize standards different from those provided in this Section may be considered per §30.06.06F, *Waiver of Development Standards.*

30.04.08 Public Works Development Standards

A. Purpose

This Section sets forth requirements for the dedication of rights-of-way, provision of utilities, street improvement requirements, and drainage improvements within public rights-of-way or private streets whenever land is subdivided or developed within the various zoning districts. These requirements are intended to ensure that off-site improvements meet proper standards, do not unnecessarily obstruct streets and other rights-of-way, and promote the general prosperity, health, safety, convenience, and welfare of the public.

B. Technical Impact Analysis

A complete and accurate technical impact analysis prepared by a Nevada licensed professional engineer shall be submitted as required by this Title, or as a condition of the approval of any application. The technical impact analysis shall be conditionally accepted or approved prior to the submission of a Final Map Technical Review or Parcel Map Technical Review or prior to the issuance of building permits for the improvement.

1. Drainage Impact Analysis

i. Drainage Regulations, Criteria, and Design Manual

(a) Drainage review, analysis, design, and plan preparation, which will result in construction or site preparation for drainage, flood control, roadways and related public and private drainage improvements associated with developments, shall be in compliance with Uniform Regulations for the Control of Drainage and Hydrologic Criteria and Drainage Design Manual, current edition or as amended from time to time, together with prefaces, tables of content, and appendices, and any standard drawings contained therein. These materials are on file for public review at the County Clerk's Office, and the Clark County Regional Flood Control District.

(b) All drainage review, including channel improvements, shall consider impacts to downstream properties, water velocities and erosion control. In order to provide for a more natural appearance, drainage ways are encouraged to be lined with natural materials, such as grass (other alternatives are included in the Hydrologic Criteria and Drainage Design Manual), when geotechnical conditions are favorable.

(c) Due to varying circumstances, each project shall be reviewed by the Public Works Department on a case-by-case basis to determine an appropriate design for the improvement.

(d) Materials are subject to the modifications as described in subsections (1) and (2) below.

(1) Uniform Regulations for the Control of Drainage Amended, Section 32 Amended

(i) In addition to the definitions given in Section 32 of the Uniform Regulations for the Control of Drainage, the following terms shall have the additional following meanings for this §30.04.08B.1:

a) "Local Administrator" and "Designated Official" mean the Director of Public Works and designee, or an individual appointed by the Board or designated by the County Manager to perform the function defined in the Uniform Regulations for the Control of Drainage.

b) "Grading Permit" means that permit required by Sections 33, 34 and 35 of the Uniform Regulations for the Control of Drainage (URCD), and includes all building or grading permits required for grading by the Building Code and other standards as adopted by Clark County in Titles 22 and 30 of the County Code.

(ii) In the event of a conflict regarding which permit or permit process applies to a specific case, the most stringent procedures shall apply.

(2) Uniform Regulations for the Control of Drainage Amended, Section 35 Amended

(i) Section 35.080 Amended

Section 35.080 of the Uniform Regulations for the Control of Drainage is amended to read:

a) Section 35.080, Warning and Disclaimer of Liability. Neither the issuance of a permit under the provisions of this Chapter, nor compliance with the provisions hereof or with any conditions imposed by the Designated Official, shall relieve any person from any responsibility for damage to persons or property otherwise imposed by law, nor impose any liability upon the District and Entity for damage to persons or property.

b) The Local Administrator, Designated Official, and their designees, charged with the enforcement of this Chapter, acting in good faith and without malice for the Entity or District in the discharge of their duties, shall not thereby render themselves liable personally, and is hereby relieved from all personal liability for any damage that may accrue to persons or property as a result of any act required or by reason of any act or omission in the discharge of their duties.

(ii) Section 35.090 Amended

Section 35.090 of the Uniform Regulations for the Control of Drainage is amended to read: 35.090, Hazardous Conditions. The permittee and project engineer shall report to the Designated Official when any existing or proposed excavation, slope, or fill has become a hazard to life and limb, or endangers property, or adversely affects the safety, use or stability of a public way, or drainage channel. The Designated Official shall then notify the owner of the property upon which the excavation or fill is located or other person or agent in control of said property, in writing to repair or eliminate such hazard within the period of time specified in the notice.

(iii) Section 35.100 Amended

Section 35.100 of the Uniform Regulations for the Control of Drainage is amended to read:

a) Section 35.100, Notice of Noncompliance. Whenever any construction or work is being done contrary to the provisions of this Chapter, or not in accordance with the plans and specifications submitted and approved as the basis for the issuance of the permit, or if a hazard to life and limb exists, or if public or private property is or may be endangered, the Designated Official, or designee, shall upon notice thereof issue a written notice to the permittee or his/her agent or other responsive employee requiring cessation of work upon that portion of the site where noncompliance, hazard, or other violation has occurred or exists.

b) The notice shall state the nature of the condition and shall contain sufficient information to inform the permittee of the nature and extent of the correction required. No work shall be performed on said portion of the site unless or until the noticed condition is rectified and approved upon inspection of the Designated Official or unless, as a condition of continuing the work, special precautions agreeable to the Designated Official are performed by the permittee. Failure of the permittee to take such precautions or rectify such condition, hazard, nonperformance, noncompliance, or violation shall be grounds for revocation of the permit.

(e) If a drainage impact analysis is required by this §30.04.08B.1, or required by the Commission or Board as a condition of any subdivision or land use application, the drainage impact analysis, including all necessary data as required in this Section, shall be submitted to the Director of Public Works accompanied by any required fees.

(f) Urban runoff including runoff generated by stormwater within Urban Areas is governed by the State of Nevada National Pollutant Discharge Elimination Systems Permit Program and Title 24, Chapter 24.40. Among other things, the program and Title 24, Chapter 24.40 require industrial facilities and construction sites to implement stormwater pollution prevention plans and best management practices to reduce or eliminate non-stormwater discharges into the storm sewer system.

(g) No drainage impact analysis shall be approved unless the engineer demonstrates that compliance with the impact analysis will mitigate the impact of the development on adjacent and downstream properties.

(h) No drainage impact analysis shall be approved unless the engineer demonstrates that compliance with the impact analysis will mitigate the impact of the development on adjacent and downstream properties.

(i) Conditional Acceptance

(1) The Director of Public Works shall review any required technical impact analysis to determine that the impact analysis is complete and accurate enough to ensure that the design of the proposed subdivision or development will not conflict with the goals of the technical impact analysis.

(2) If it is determined at any time in the process that the technical impact analysis is incomplete, inaccurate or has not adequately addressed outstanding issues, the impact analysis will be returned to the preparer for re-submission in an acceptable form.

(3) When the preparer resubmits the impact analysis in a form acceptable to the Director of Public Works, the Director of Public Works shall conditionally accept the impact analysis. The Director of Public Works' conditional acceptance affirms the impact analysis is complete and accurate enough to ensure that the design of the proposed subdivision or development will not conflict with the findings of the impact analysis.

(j) Notice of Requirements

Upon conditional acceptance of all required impact analysis, a notice of requirements will be prepared and provided to the preparer and/or developer. If the preparer and/or developer is aggrieved by the conditions imposed by this review, an appeal may be filed per §30.06.03F.4, *Appeals*.

2. Traffic Impact Analysis

i. When Required

A traffic impact analysis shall be required when:

(a) A development is anticipated to generate a minimum of 20 total trips in a peak hour, as defined by the most recent version of the Institute of Transportation Engineers Reference Book, Trip Generation, and its most recent updates, or by a trip generation study acceptable to the County; or

(b) Imposed by the Commission or Board as a condition of approval of any tentative map or land use application approved pursuant to the requirements of this Title.

ii. Exception

If a traffic impact analysis is required, and the development is anticipated to generate between 20 and 300 total trips in a peak hour, the developer shall provide necessary traffic mitigation improvements as determined by the Director of Public Works and pay a traffic mitigation fee, as described in the County's fee schedule, in lieu of submitting a traffic impact analysis, unless the Director of Public Works requires a traffic impact analysis. These funds shall be set aside in a special account for purposes of constructing traffic mitigation related to developments.

iii. Conditional Acceptance

(a) The Director of Public Works shall review any required technical impact analysis to determine that the impact analysis is complete and accurate enough to ensure that the design of the proposed subdivision or development will not conflict with the goals of the technical impact analysis.

(b) If it is determined at any time in the process that the technical impact analysis is incomplete, inaccurate or has not adequately addressed outstanding issues, the impact analysis will be returned to the preparer for re-submission in an acceptable form.

(c) When the preparer resubmits the impact analysis in a form acceptable to the Director of Public Works, the Director of Public Works shall conditionally accept the impact analysis. The Director of Public Works' conditional acceptance affirms the impact analysis is complete and accurate enough to ensure that the design of the proposed subdivision or development will not conflict with the findings of the impact analysis.

iv. Notice of Requirements

Upon conditional acceptance of all required impact analysis, a notice of requirements will be prepared and provided to the preparer and/or developer. If the preparer and/or developer is aggrieved by the conditions imposed as a result of this review, an appeal may be filed per §30.06.03F.4, *Appeals*.

C. Off-Site Improvement Standards

1. Off-Site Improvements

Required improvements shall include, but not be limited to, the following, unless otherwise modified pursuant to §30.04.08I, *Minor Deviation, Public Works:*

i. Right-of-Way Improvements

(a) Grading, curbs, gutters, sidewalks, berms, and paving of streets, highways, and other rights-of-way within, bordering, or necessary to provide access to and serve the development. Within the PM-10 Non-Attainment Areas, the Director shall not accept an application to waive any paving less than a required 32-foot-wide road unless the paving will be replaced by Clark County.

(b) Pedestrian protection shall be provided along Las Vegas Boulevard between the Welcome to Las Vegas Sign and Sahara Avenue.

ii. Grading and Subsurface Drainage Structures

Grading and subsurface drainage structures necessary for the proper use and drainage of the street and lot, such as culverts, bridges, and storm drains, taking into consideration the drainage patterns on adjacent property.

iii. Street Name Signs and Traffic Control Devices

iv. Fire Hydrants

Fire hydrants, in proper locations and in sufficient numbers to provide adequate fire protection, as required by Fire and Building Departments.

v. Public Sanitary Sewer

Sewer service shall be provided in compliance with all applicable requirements of the controlling agency, with documentation of approval provided to the County agency or department that requires this information.

vi. Water Service

Water service shall be provided in compliance with all applicable requirements of the controlling agency, with documentation of approval provided to the County agency or department that requires the information.

vii. Street Lighting and Electric Service

The electrical distribution systems shall meet the requirements of Clark County and shall be sufficient to serve the proposed development with streetlights and power to every lot.

(a) The developer shall provide statements from the electric utility company stating that the company will furnish electric power to any lot within the development, upon the demand of any lot purchaser, at no cost to the purchaser, to bring the service to the lot.

(b) Street lighting materials, candlepower, illumination, and installation shall conform to recommended practice for street and highway lighting, as established by the Illuminating Engineers Society of North America.

(c) All electrical improvements shall be constructed or installed, in accordance with the requirements herein, and meet all applicable requirements of the Clark County Electrical Ordinance.

viii. Service Connections

Provision for service connections from utility lines and sanitary sewers shall be made to eliminate the necessity of disturbing the street pavement, gutters, culverts, curbs, and sidewalks when service connections are made.

ix. Less Than Full Off-Site Improvements

If less than the required off-site improvements are approved, the property owner shall:

(a) Sign a restrictive covenant for the improvements and dedicate to the County fee title to the right-of-way; or

(b) Sign a restrictive covenant for the improvements and grant the County a right-of-way easement for public access, drainage, and utilities. The property owner shall retain the underlying property ownership and shall be responsible for dust control and compliance with Clark County Air Quality Regulations. After the right-of-way is improved in accordance with County standards and the property owner dedicates fee title to the County, the County shall assume maintenance responsibility for the right-of-way; or

(c) If required as a condition of approval on a land use application or subdivision map, pay to the County the cost, as determined by Public Works, of constructing the required off-site

improvements (including drainage improvements) that otherwise would have been required at the time of the development.

x. Legal Access

Streets providing legal access to a development shall include a minimum paving width of 32 feet. Evidence of legal access must be demonstrated by providing documentation of the means through which the access was created, whether by recorded easement or through dedication of right-of-way.

2. References

i. Street improvements shall be constructed in accordance with the following referenced regulations, including appendices, referencing the current editions, or as amended from time to time, or as modified pursuant to §30.04.08I, *Minor Deviation, Public Works:*

(a) Uniform Standard Drawings for Public Works Construction Off-Site Improvements, Clark County Area, Nevada;

(b) Uniform Standard Specifications for Public Works Construction Off-Site Improvements, Clark County Area, Nevada;

(c) Clark County Supplement to Uniform Standard Drawings and Specifications;

(d) Minimum Road Design Standards for Nonurban Roadways; and

(e) Project-specific requirements of the Department of Public Works.

ii. Reference documents (a) through (d) are on file for public review at the County Clerk's Office and at the office of the Department of Public Works, and regulations (a) and (b) are additionally on file at the Regional Transportation Commission of Southern Nevada office.

3. Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements

The developer shall agree, through the posting of surety bonds in accordance with this subsection, to provide all improvements required by this Section prior to recording the subdivision map, or prior to the issuance of a building or grading permit.

i. Posting of Bonds

Bonds posted pursuant to the above shall run to the County and provide that the developer, their heirs, successors and assigns, and their agents and servants, will comply with the applicable terms, conditions, and subsections of these regulations and will faithfully perform the work of constructing and installing such facilities and improvements in accordance with applicable laws and regulations, and that the developer will save and hold the County harmless from any expense incurred, or damages resulting from the failure of the developer, their heirs, successors or assigns, and their agents or servants, to complete the work of installation and construction of the improvements within the time and manner required by this Title.

ii. Acceptance of Bonds

(a) Before acceptance, the Director of Public Works shall approve any required bond or cash deposit.

(b) If a bond is offered, it shall be executed by a surety or guaranty company, licensed in the State of Nevada, on a form approved by the County and the company shall:

(1) Hold a current Certificate of Authority as an acceptable surety on federal bonds per the current United States Department of Treasury listing of approved sureties, Department Circular 570.

(2) Have a current rating of "A" or better by the A.M. Best Company and a Rating Outlook of Stable or Positive.

iii. Cash In Lieu of a Bond

If cash is offered in lieu of a bond it shall:

(a) Be of an amount that does not exceed the amount that is federally insured by the Federal Deposit Insurance Corporation of the National Credit Union Administration. In order to offer a cash in lieu of bond, the total cost of the construction and/or installation of the improvements shall not exceed the amount that is federally insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration.

(b) Be deposited with the Director of Public Works who shall provide a receipt and signify the amount and purpose of said deposit, in compliance with these regulations. No interest shall be paid on funds deposited.

(c) Be deposited in a local bank or credit union, insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration, if a proper agreement is entered into by, and between, the developer, the County and such bank, to pay for the installation of said improvements as they are installed. This agreement shall provide, among other things, that there shall, at all times, be a 10% retention of the funds so deposited until all improvements have been completed and accepted by the Director of Public Works. The named bank shall have an office or offices legally located and actually doing business within the County of Clark, State of Nevada.

iv. Duration and Release

(a) Surety Bond

(1) Improvements Accepted or Approved

Unless the property that is the subject of the development has been reverted to acreage, bonds posted pursuant to these regulations shall not be released or returned until such time as the improvements guaranteed have been accepted and approved by the Director of Public Works. No improvements shall be accepted or approved unless they conform with the approved set of off-site plans on file.

(2) Bond Reduction

(i) There may be a one-time bond reduction of 80% of the surety bond for subdivision projects when only the following improvements are remaining to be built on the streets:

a) Sidewalks;

b) Utility pads and boxes;

c) Slurry seal on the asphalt; and

d) Water and sewer utilities have agreed to this reduction.

(ii) The reduction does not constitute acceptance of any of the projected improvements for maintenance, which will occur upon completion of the required work and release of the remaining 20% of the surety bond.

(b) Cash Deposits/Installment Release

Upon completion and inspection of separate phases of work, the Director of Public Works shall have the authority to release funds from a cash deposit made in accordance with §Chapter 30.02 every 30 days provided, however, that there shall be at all times a 10% retention of all funds so deposited until all of such improvements have been completed and accepted by the Director of Public Works. In the event a cash deposit is made with a local bank or credit union, the release of the funds so deposited shall be governed by the provisions of the deposit agreement.

v. Replacement Bond

Any developer wishing to replace an existing bond with a new bond in an amount equal to the amount previously established in this Section, prior to the completion and acceptance of the improvements required by the County Code, shall be required to pay a bond replacement fee to cover the cost of processing the replacement bond.

vi. Default on Work Required Under Bond

(a) If the construction or installation of any improvements or facilities for which a bond is posted is not completed within two years of the date of issuance of the permit, or the time provided in an approved Extension of Time, Public Works granted per §30.06.09K, whichever is sooner, or if such construction or development is not in accordance or compliance with all applicable standards of §30.04.08, *Public Works Development Standards*, or the Off-Site Improvement Agreement or the off-site permit, the County may seek recovery against the bond and the surety shall be responsible and liable for the completion or procurement of completion of the obligations of its principal, whether or not construction of the development, or the off-site improvements, has commenced, and regardless of whether the principal is the owner of the property that is the subject of the development.

(b) In no way is the bond intended, or to be interpreted, to condition or delay surety's obligations until after completion of principal's obligations to fully construct the improvements. In the event cash is deposited with the Director of Public Works, the County may use as much of such cash as is necessary to construct or install the improvements or facilities. If any portion of a cash deposit is not required or used by the County, such excess cash shall be repaid to the person making the deposit upon acceptance or approval of the improvements or facilities herein required. Should the actual cost of the improvements exceed the bond, the developer is in no way relieved from paying the entire amount of such excess.

vii. Off-Site Improvement Agreement

The construction or installation of improvements shall be assured by entering into an agreement with the County whereby the developer agrees to furnish labor, equipment, and material necessary to complete the work within the time specified. The developer shall deliver to the County either a 100% performance bond or a cash deposit in such an aggregate amount as is estimated by the Director of Public Works to be the total cost of the construction and/or installation of improvements required.

4. Improvement Plan Submittal, Review and Approval

i. The developer shall submit to the Director of Public Works:

(a) Plans, profiles, cross sections and specifications in accordance with this Title and any conditions imposed by the Commission or Board.

(b) An improvement plan review fee.

ii. The plans shall be submitted prior to the submission of a Final Map Technical Review (NFM) or Parcel Map Technical Review (MSM).

iii. The plans shall be reviewed to determine whether they are complete and accurate in accordance with this Title, any conditions imposed by the Commission or Board, and in compliance with any required and approved technical impact analyses.

iv. If the plans are not complete and accurate, the Director of Public Works shall provide information to the applicant's engineer detailing the necessary corrections to be made. Applicant's engineer shall resubmit the following to the Director of Public Works together with the required inspection fees:

(a) Corrected street plans and profiles: original.

(b) Corrected sewer plans and profiles: original.

(c) Corrected street lighting plan: original.

(d) Corrected water plan: original.

(e) Corrected drainage improvements and grading plans: original.

v. The final improvement plans, which shall remain on file with the County, shall be signed as approved by the Director of Public Works when bonds are posted, fees are paid, the plans, profiles, cross sections and specifications for improvements meet the requirements of this Title, all special requirements that have been imposed by the Commission and the Board have been met, and all applicable agency approvals have been obtained. The final plans should contain all original signatures of the approving agencies and design engineer and be legible and clear for reproduction purposes.

vi. Approval by other entities, as required, shall be either indicated by letter or on the plans and profiles retained by the Director of Public Works or the applicable agencies, departments or districts.

vii. Any changes from the approved plans deemed necessary during the construction and installation of improvements shall be approved by the Director of Public Works and, where publicly funded projects are impacted, the applicable agency. If plans are revised, plans and required fees shall be submitted prior to acceptance of the revised development improvements.

viii. Plan approvals, the posting of surety bonds, and the issuance of permits in accordance with §30.06.11, *Permits and Licenses*, shall be completed prior to improvements being made. Inspections must be approved prior to acceptance of the improvements.

ix. Applications for which no permit is issued within one year of last review, or applications in which the applicant has failed to meet the specific requirements of a plan review within one year, shall expire by limitation. In order to renew action on an application after expiration, the applicant shall resubmit constructions documents and pay any applicable review fees.

5. Sidewalks

i. For the purpose of this subsection and pursuant to NRS 278.0175, a public access easement or right-of-way easement shall be considered a public right-of-way.

ii. A minimum 5-foot-wide concrete sidewalk shall be provided on both sides of all public streets.

(a) Detached sidewalks are required along frontage roads and arterial, collector, and local streets and must replace existing attached sidewalks for initial development or complete reconstruction of the site. Sidewalks shall be designed as follows:

(1) The area between the back of curb and the back of sidewalk shall be dedicated as a right-of-way easement; or the sidewalk will be dedicated through easement or fee simple with the area between the curb and sidewalk dedicated as a right-of-way easement.

(2) When a detached sidewalk is connecting to an existing attached sidewalk, the detached sidewalk shall return to the curb at the property lines to align with the attached sidewalk.

iii. Attached sidewalks are permitted interior to a residential subdivision and along private streets.

iv. In no case shall a utility pole or above-ground related equipment be located that results in an existing or proposed sidewalk less than 5 feet wide adjacent to the pole or equipment.

v. In no case shall above-ground utility vaults or other appurtenances that would obstruct the intended public use of a detached sidewalk be allowed within any easement granted for such purpose, or within any common lot designated for such purpose, and no easement rights in conflict with this subsection shall be granted to a utility company or any other party.

6. Detached Sidewalk Dedication

i. Straight Sidewalks

Dedication from back of curb to back of sidewalk as a right-of-way easement for roadway, drainage, and utility purposes, including but not limited to the right to construct, reconstruct, repair, operate, and maintain sidewalks, streetlights, drainage facilities, utilities, traffic control devices, and appurtenances upon, over, under, and through that dedicated property, with reservation of rights to property owners, homeowners' associations, or landscape maintenance associations for all other rights and uses in that dedicated property, provided such rights and uses in no way interfere, impede, invade and/or conflict with the easement granted.

ii. Meandering Sidewalks

(a) Dedication from back of curb to back of sidewalk as a right-of-way easement for roadway, drainage, and utility purposes, including but not limited to the right to construct, reconstruct, repair, operate and maintain sidewalks, streetlights, drainage facilities, utilities, traffic control devices, and appurtenances upon, over, under and through that dedicated property, with reservation of rights to property owners, homeowners' associations, or landscape maintenance associations for all other rights and uses in that dedicated property, provided such rights and uses in no way interfere, impede, invade and/or conflict with the easement granted.

(b) For the purpose of implementing this requirement, dedication to back of sidewalk shall be based upon that point where the back of sidewalk meanders closest to, but not less than 3 feet from, the required building setback.

(c) The front of sidewalk shall not meander closer than 3 feet from the back of the curb.

(d) Meandering sidewalks shall not be maintained by Clark County.

iii. Sidewalk Maintenance

(a) Sidewalks required by this Chapter shall be maintained in usable condition at all times.

(b) General maintenance of all sidewalks shall be performed by the property owner, homeowners' association, or landscape maintenance association, and shall include keeping the sidewalks clean and free of weeds, debris, trash, and preventing landscaping or structures of any kind from obstructing the sidewalk.

(c) Long-term maintenance of public sidewalks, within County-owned and -maintained rights-of-way, including repair and replacement shall be the responsibility of Clark County pursuant to NRS 41.1315, unless the sidewalk is damaged as a result of negligence on the part of, or actions taken by, the property owner, homeowners association, or landscape maintenance association.

(d) Clark County shall not be responsible for maintenance of detached meandering sidewalks or other non-standard sidewalks or on-site walkways.

(e) Clark County shall not be held liable for damage or injury that occurs as a result of a property owner's, homeowners' association's, or maintenance association's lack of general maintenance, as required in this Section, or if the actions of a property owner, homeowners' association, or maintenance association created a hazardous condition that caused or otherwise resulted in damage or injury.

7. Completion of Off-Site Improvements

i. Within 2 years of posting the surety bond, all improvements required by these regulations, and other applicable laws and regulations, shall be completely installed and constructed within the area covered by the improvement plans.

ii. The Director of Public Works may administratively approve extensions in accordance with §30.06.09K, *Extension of Time, Public Works.*

D. Dedication of Right-of-Way

1. Dedication of right-of-way is required prior to the issuance of building permits, concurrent with the recording of a subdivision map, or within 30 calendar days from a request for dedication by the County for dedication required by the approval of a land use application or subdivision map.

2. Pursuant to NRS 278.02317 and applicable to a broad class of property owners, dedication of right-of-way is required for all development that abuts or contains a street for which insufficient dedication has been secured when located within the property lines of the development. Extent of dedication based on minimum required width of right-of-way is shown in Table 30.04-14 below.

Table 30.04-14: Right-of-Way Widths

Functional Classification	Minimum Width
Arterials or Limited Access Arterials, Township Lines, Range Lines, and Section Lines	100 to 120 feet or more, or as designated on the Transportation Maps of the Master Plan
Collectors and Quarter Section Lines	60 to 80 feet or more, or as designated on the Transportation Maps of the Master Plan
Local streets, including 16th and 64th Section lines	60 feet or as approved by the Commission or Board, or as designated on the Transportation Maps of the Master Plan
Public residential local streets within the interior of a single-family residential subdivision	48 feet, which shall not be waived or varied

3. Non-through streets at lengths greater than 150 feet shall be required to dedicate an appropriate turnaround area.

4. Additional dedication may be required for public purposes, for right turn lanes and dual left turn lanes in accordance with the improvement standards of this Chapter, and in accordance with the conditions of an approved technical study.

5. Except as provided in subsections 6 and 7 below, all property owners along a street alignment must dedicate their portion (approximately 1/2) of required right-of-way. Offset street alignment dedication shall require Public Works approval.

6. Right-of-way dedication along Las Vegas Boulevard South shall be required per the approved Transportation Maps of the Master Plan, and in accordance with an approved Las Vegas Boulevard South Survey.

7. Dedication for any alignment that the Director of Public Works determines is unsuited to the establishment of a right-of-way because of extreme topographic conditions, established street patterns, areas suitable for historic or scenic purposes, or other similar condition, may be waived through the approval of a land use application, subdivision map, or a Minor Deviation, Public Works (AV) per §30.06.09N. If the alignment is shown in the Transportation Maps of the Master Plan, an amendment must by processed prior to or concurrent with the appropriate land use application or subdivision map.

8. Alleys are prohibited.

E. Single-Family Residential Private Streets, Access, and Flag Lots

1. Minimum street widths required by the Fire Department may not be waived or varied.
2. All private street and access easements greater than 150 feet in length shall:
    i. Have a minimum width of 37 feet, with a minimum 36-foot-wide drivable surface; and
    ii. Terminate in a County-approved turnaround.
    iii. If serving only one dwelling, be traversable with a minimum width of 24 feet, which shall not be waived or varied, and need not terminate in a County approved turnaround.
3. All private street and access easements less than 150 feet in length shall:
    i. Serve a maximum of 6 dwelling units which shall not be waived or varied; and
    ii. Have a minimum width of 25 feet, with a minimum 24-foot-wide drivable surface. These minimum width requirements shall not be waived or varied.
4. Each lot shall have a minimum street frontage of 24 feet, or be accessed by a 24-foot-wide traversable access easement. Evidence of the means through which the access was created must be provided. These minimum widths shall not be waived or varied.

F. Street Intersection Configuration for Single-Family Residential Subdivisions

1. Unless exempt per subsection 2 below, street intersections shall be off-set a minimum of 125 feet, measured from right-of-way line to right-of-way line, unless the streets are less than 50 feet wide, measured from back of curb to back of curb.
2. Private streets in conjunction with a parcel map need not meet the standard in subsection 1, above.

G. Sight Zones

Sight zones as shown in the Uniform Standard Drawings, Clark County Area, Nevada and appendices, the current editions or as amended, shall be established and maintained at all intersections of public streets, private streets, alleys and driveways.

1. Height Limitation

Except as specified in subsection 2, *Exceptions,* below, no structure, vegetation, or object of any kind is permitted over 24 inches in height, as measured from the top of the adjacent curb. If no curb exists, the height is measured from the future top of curb height. The graphical depiction of a sight zone must contain adequate dimensions so that it can be established on the ground from the parcel's property line(s) and shown on plans. Except as provided below, no variance or waiver to this requirement is allowed.

2. Exceptions

i. Traffic control devices, their related appurtenances, streetlights, and fire hydrants may be placed within the sight zones.

ii. Alternative sight zones may only be considered subject to §30.06.09N, *Minor Deviation, Public Works (AV),* if there are constraints caused by existing legally permitted and inspected improvements.

iii. For driveways with 1-way traffic on the intersecting street, or where a physical barrier only allows turning 1 way onto the intersecting street, an obstruction may be permissible in the sight zone on the side to which the turn can be made, subject to §30.06.09N, *Minor Deviation, Public Works (AV).*

3. Driveways for Nonresidential and Multi-Family Residential

Shared driveways are required, to the extent practical, to minimize access points to streets and access easements.

H. Utilities

1. Utility Improvement Requirements

i. Purpose

The purpose of this Section is to decrease the obstructions of streets and other rights-of-way; standardize, regulate and control the location, size, type, maintenance and quantity of cuts, breaks, alterations and installations of any improvements in the county rights-of-way; promote the health, safety, convenience and general welfare of the public; and improve the aesthetic appearance of the community or area, by requiring that new utility lines including, but not limiting to, electrical and communication distribution lines and appurtenances thereto, be located underground except as hereinafter provided.

ii. Underground Requirements

New utility lines or the modification of existing lines including, but not limited to, electric, water, sewer, gas, petrochemical, and communication transmission and distribution lines and related equipment, shall be located underground, except as provided below.

iii. Exceptions to Underground Requirements

The following are not required to be installed underground:

(a) County equipment installed under the supervision, and to the satisfaction, of the Director of Public Works including, but not limited to, traffic control devices and streetlight systems.

(b) New electrical or communications poles proposed to be installed to replace existing overhead poles located along the same existing utility line where no increase in the number of poles is being requested.

(c) New high voltage transmission lines of 34,500 volts or more (≥ 34.5 kv) which may be carried on overhead poles, upon approval of §30.06.05D, *Special Use Permit (UC),* identifying the route, pole locations and system design.

(d) Radio antenna and associated equipment, and supporting structures used for furnishing communications services.

(e) Service switch boxes and exposed conduit at buildings and gas and electric meters. The transformers shall be pad-mounted at the back of the sidewalk.

(f) Fire hydrants, valves, vaults, meters, reservoirs, and substations for public or private facilities.

(g) Utility lines and related equipment serving, and located within, subdivisions recorded prior to 1968, unless the adopted Master Plan specifies that utilities for the area should be underground.

(h) Temporary power poles needed for construction, for approved temporary projects, or for temporary government facilities.

(i) Attachments to existing utility poles shall be allowed until utility poles are removed, retired, or as underground location becomes mandatory. Underground relocation shall be at the owner's expense.

iv. Location of Utility Poles

When permissible, the forward edge of a utility pole may be located:

(a) 58.5 feet from the centerline of the existing or proposed street right-of-way along a township or range line, plus any additional setbacks at intersections, as required under this Chapter.

(b) 48.5 feet from the centerline of the existing or proposed street right-of-way along a section line, plus any additional setbacks at intersections, as required under this Chapter.

(c) 38.5 feet from the centerline of the existing or proposed street right-of-way along a quarter section line, plus any additional setbacks at intersections, as required under this Chapter.

(d) 18 inches from the edge of any other rights-of-way, or future rights-of-way, lines.

(e) In no case shall a utility pole or above ground related equipment be located that results in an existing, or proposed, sidewalk less than 5 feet adjacent to the pole or equipment.

(f) In no case shall a utility pole be located outside the back of existing of future curb at an intersection of two streets.

v. Responsibilities of Developers/Property Owners for the Provision of Utilities

(a) It shall be the responsibility of the developer/property owner to provide uniform and continuous utility easements as may be required.

(b) When subdividing property, the developer shall provide a statement on the tentative subdivision map, indicating the terminal points of the water and sewer distribution systems proposed to be used. After approval of the tentative map, the developer will provide the utility companies with an approved copy of the tentative map.

(c) An overall underground distribution system plan shall be submitted for approval, with the final improvement plans to show the proposed installation. The plan shall show the location of all underground services with locations to be marked at the sidewalk, or the curb, and the meters to be located so that there is access from the street side of the building. The underground services shall be shown to be covered with a safety guard.

I. Minor Deviation, Public Works

When an alternative design is shown to be equally serviceable in a particular instance or where site conditions make compliance with the standards impractical, and if the general prosperity, health, safety, and welfare of the public are not adversely affected, the Director of Public Works may approve a Minor Deviation, Public Works (AV) for:

1. Utility pole location, which shall not be permanent and may be withdrawn by the Director of Public Works upon 30 days' notice. Any change in location of any utility poles, or any guy wires, shall be made by the person or firm having ownership or control of the same, at no cost to the County.

2. Time restrictions, as set forth in §30.06.11I, *Time Restrictions on Work in Streets*.

3. Design standards and specifications as provided for in §30.04.08B, *Technical Impact Analysis,* §30.04.08C.1 *Offsite Improvement Standard*, and §30.04.08C.2. *References*. A complete and accurate technical impact analysis prepared by a Nevada-licensed professional engineer shall be submitted as required by this Title, or as a condition of the approval of any application. The technical impact analysis shall be conditionally accepted or approved prior to the submission of §30.06.09B, *Final Map Technical Review (NFM)* or §30.06.09E, *Parcel Map Technical Review (MSM),* prior to the issuance of building permits for the improvement.

4. Right-of-way width requirements in order to accommodate special conditions such as discontinuity with existing streets or topographic conditions.

5. For any issue of development design, if the alternative design is shown to be equally serviceable, or where site conditions make compliance with the standards impractical.

30.04.09 Subdivision Design

A. Applicability

The standards in this Section shall apply to any proposed major or minor subdivision unless otherwise stated.

B. Lot Configuration

1. All divisions of land shall result in the creation of lots that conform to lot requirements contained in this Title and are capable of being developed or built upon unless they are required for private streets, public or private utilities, for the provision of required landscaping, or other common area lots. Provisions must be made, by a recorded document, for the permanent maintenance of such street, utility and/or landscape lots. The entire area shall be subdivided and no remnant lots shall be created.
2. All lots, parks, or public ground created shall have legal access in the form of easements, conditions, reciprocal ingress/egress or other similar agreements, or to streets.
3. The side lines of lots shall be approximately at right angles to the street upon which the lot faces, or approximately radial if the street is curved.
4. Double frontage lots and through lots are not permissible, except in hillside development where they are encouraged, as described in §30.04.05K, *Hillside Development*.
5. Single-family residential access to any arterial or collector street is not permissible unless the arterial or collector street is the only means of access to a residential lot created prior to July 1, 2000.
6. Single-family residential lots shall face into a subdivision or front a local street and shall not face, front, or have direct driveway access to an arterial or collector street without an intervening street or access easement.
7. A single-family residential lot on a cul-de-sac street shall face into the cul-de-sac unless located on the intersecting corner of the cul-de-sac and a local street, in which case the lot may face or front the intersecting local street.
8. Residential lots cannot be divided by a city or county boundary.

C. Access

1. Tentative maps for single-family subdivisions on sites greater than 5 acres shall include a minimum of 2 through-access drives.
2. Driveways and drive aisles constructed across common property lines shall require the creation of easements or agreements for common ingress/egress and shared parking with the adjacent property.
3. Residential uses are prohibited on a lot that is part of a recorded commercial final map. The residential uses must be removed from the recorded commercial final map, through the recordation of a subsequent map or subdivision map. Any lot that contains, or will contain a residential use must provide and depict legal access to a public street by extending the residential lot lines to the public street with the frontage being a sufficient width to meet the requirements for driveways and access based on the type of residential use.

D. Street System

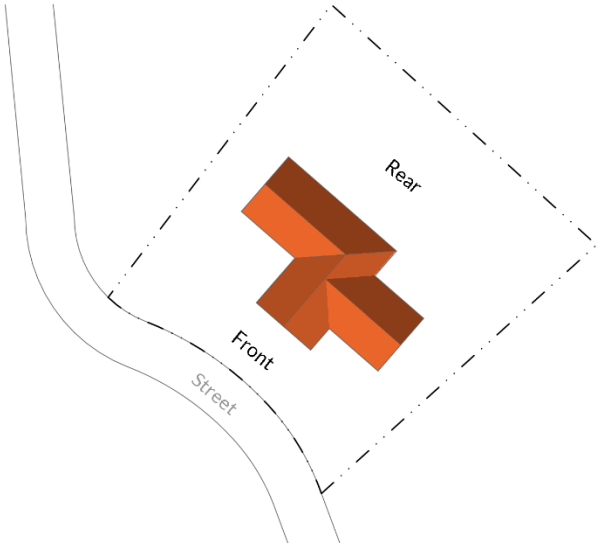
1. The design of street networks shall use through-streets where a connection to an existing or planned future public street is possible.
2. Subdivisions should be planned to provide 2 rows of lots, except where lots are planned to back up to an arterial or collector street, drainage channel, shopping center, etc. This shall not prevent the inclusion

within any subdivision plan of streets of greater width or irregular outline. Cul-de-sacs and looped access roads are encouraged to provide access to the central areas of the block.

3. The intersection of a local street with an arterial or collector street should occur approximately 660 feet apart, except near intersections of arterial and collector streets, where the length should be no more than 1,000 feet.

4. The street pattern shall connect the subdivision to existing or proposed future development and adjacent land, and the entire neighborhood, or district, incorporating slight amounts of curvature within level, or nearly level, areas, as shown in Figure 30.04-19.

Figure 30.04-191: Curvilinear Streets



5. Radius cul-de-sacs are the County's preferred turnarounds within residential subdivisions. Residential subdivisions utilizing a hammerhead design may be proposed. Factors that will be considered in determining whether a hammerhead design is appropriate include, but are not limited to:

   i. The number and layout of parking spaces;

   ii. Driveway length;

   iii. The number of hammerheads;

   iv. Size of lots; and

   v. Shape and other constraints of the property.

30.04.10 Non-Essential Water Features

A. General

1. The standards of this Section shall not be waived or varied.

2. This §30.04.10 shall not apply to the following uses:

   i. A body of water which stores water for use in flood control, in meeting peak water demands, or for purposes relating to the treatment of sewage by a political subdivision of this State.

ii. A body of water which stores water for use by the Las Vegas Valley Water District or by a water district created pursuant to NRS 318.

iii. A body of water which stores and distributes water or reclaimed wastewater for use by an irrigation district created pursuant to NRS 539.

iv. A body of water which stores water used in a mining reclamation project.

v. Non-essential water features deemed to be a hazard to air navigation are prohibited.

B. Swimming Pools

Swimming pools (above ground and below grade) are considered to be accessory uses in all districts when not a primary use of the property and shall comply with the most current International Swimming Pool and Spa Code, and with the following:

1. Any waterfall or other decorative feature associated with a pool may extend into the setback by up to 5 feet, but shall not cross a property line, and shall conform to the maximum fence or wall height standards, including any waiver thereto.

2. The water surface area of outdoor swimming pools shall not exceed the following:

   i. Non-single-family residential development, including community pools and recreational facilities, shall be limited to 4% for the first 10 acres or less, and 0.4% for the additional total development area that exceeds 10 acres.

   ii. For a resort hotel, an additional 5 square feet will be allowed for each guest room.

   iii. Single-family residences shall be limited to an area of 600 square feet.

C. Manmade Lakes

Manmade lakes are prohibited, except for the following:

1. A body of water constituting a wetlands project or located in a recreational facility that is owned or operated by a political subdivision of this State and that utilizes non-potable water.

2. A body of water in a recreational or entertainment facility that is open to the public and owned or operated by the United States of America or the State of Nevada.

3. Bodies of water in a cemetery that are used for the purpose of storing irrigation water for the cemetery and that have a combined aggregate surface area less than 5.5% of the total cemetery area.

D. Ornamental Water Features

1. The following ornamental water features are permissible:

   i. A water feature of not more than 10 square feet surface area when in conjunction with a single-family residence.

   ii. Those in conjunction with a resort hotel must enter into an abatement agreement with the purveyor, if required.

2. The following shall not be considered ornamental water features:

   i. Those that are necessary and/or functional components serving other allowable uses, including but not limited to an interpretive feature of an educational exhibit; or

   ii. Water features enclosed within a climate-controlled structure.

E. Recreational Water Park

The water surface area for recreational water parks for a single development shall be pursuant to water purveyor regulations.

Chapter 30.05 Signs

30.05.01 General Provisions

A. Purpose

The purpose of this Chapter is to create the legal framework for a comprehensive and balanced system of sign regulations that:

1. Promote the health, safety and general welfare of visitors and citizens of Clark County;
2. Promote and help accomplish the goals, policies, and objectives of Clark County's Master Plan;
3. Promote traffic and pedestrian safety;
4. Promote commerce and economic development;
5. Reduce the possibility for property damage or injury that may be caused by signs that are improperly constructed or poorly maintained;
6. Promote aesthetically pleasing and compatible signage;
7. Preserve the non-commercial character of residential neighborhoods;
8. Regulate electronic signs to reduce roadway distraction and negative impacts to surrounding neighborhoods.

B. Applicability

The regulations of this Chapter and a requirement for a sign permit shall apply to all signs except those identified as exempt in §30.05.01D, *Exemptions from Sign Regulations.*

C. General Standard

The decision-making body shall not consider the content of speech or the viewpoint of the speaker when deciding to approve or deny an application for a sign.

D. Exemptions from Sign Regulations

1. **No Trespassing/No Dumping/Security**

   Property signs posted to warn against trespassing, security, or dangerous conditions.

2. **Addresses and Nameplate Signs**

   Address numbers or plates, residential nameplates less than 2 square feet, and commercial nameplates less than 4 square feet.

3. **Internal Signs**

   Any sign that is not visible from an adjacent existing or proposed right-of-way, or adjacent use not under the same ownership.

4. **Integrated Signs**

   Signs that are an integral part of a manufactured device accessory to a nonresidential use, such as those signs on vending machines, automated teller machines, and gasoline pumps.

5. **Government Signs**

   Any sign required or installed by a County, State, or Federal government agency, and any sign or part of a sign regulated by state or federal law, such as NRS 590, related to gasoline pricing.

6. **Transit Signs**

   Signs on benches or shelters for passengers of public mass transportation when allowed by State law.

7. Scoreboards

Scoreboards on athletic fields, signs located on fences or walls facing the interior of athletic fields or arenas located on public property.

8. Umbrella Sign

Signs permanently embroidered, screened, dyed, stenciled, or painted on to or into the fabric of umbrellas.

9. Carried Signs

Signs carried or worn by a natural person including symbols and messages on clothing.

E. Prohibited Signs and Sign Locations

The following sign locations and displays are prohibited. These standards shall not be waived or varied.

1. Prohibited Signs

i. Vehicle signs or mobile signs which are parked and visible from the public right-of-way or signage attached to inoperable vehicles or vehicle equipment that has been separated from a vehicle cab or motor, any of which are for the primary purpose of utilizing the vehicle or mobile sign as advertising.

ii. Snipe signs of any type.

iii. Signs with illumination that may confuse, blind, or distract the vision of motorists, pilots, or air traffic controllers.

iv. Effective May 5, 2004, off-premises signage is prohibited, except as expressly permitted within this Title. This prohibition does not apply to noncommercial speech when in conjunction with any type of permissible sign.

v. Signs that:

(a) Imitate or simulate any traffic control device or structure, or directional sign, in size, shape, color, or other appearance.

(b) Emit any sound or smoke as part of the message, except when approved in conjunction with a resort hotel.

(c) Contain hazardous, immoral, misleading, erroneous or false messages.

(d) Contain messages or pictures of specified anatomical areas or sexually specified activities as described in the definitions of adult business, or of a similar obscene, indecent, or immoral character.

2. Prohibited Sign Locations

No sign shall be placed in any of the following locations:

i. On a vacant lot, with the exception of a Property/Yard Sign, as described in §30.05.03J. All other signs must be in conjunction with approved development;

ii. Within the Airport Airspace Overlay (AAO), except in compliance with the regulations of §30.02.26B;

iii. Within the right-of-way of any highway, road, or other public easement, or within a future right-of-way, except as expressly authorized per Clark County Code, or Nevada Revised Statutes;

iv. Within any wash or drainage channel;

v. So as to prevent free ingress and egress from any door, window, or fire escape, or attached to any standpipe or fire escape.

F. Limitations Based on Residential Proximity

Any sign within 200 feet of a Single-Family residential use or zoning district shall be subject to §30.04.06, *Residential Adjacency*.

30.05.02 Permanent Sign Regulations

A. Standards for Permanent Signs by Sign Type

1. Design Standards for all Permanent Signs

i. Required Mounting for all Signs

(a) Signs shall be mounted to a building or freestanding support structure.

(b) The vertical elements, bracing, and support structures of all signs shall:

(1) Be constructed of materials similar or complementary to the materials of the overall development;

(2) Use architectural features and elements that are similar or complementary to the architecture of the overall development;

(3) Utilize colors, finishes, or textures that are similar or complementary to the overall development; and

(4) Be covered with cladding to conceal the actual pole or structural support. The cladding must integrate the colors, materials, architectural features, or other appropriate design components of the overall development.

(c) Raceway mounts shall give the appearance of being an integral background design feature of the sign rather than a separate mounting device.

B. Explanation of Permanent Signs Table Abbreviations

The tables below depict each permanent sign type with applicable standards by zoning district.

1. A "P" indicates that the sign type is permissible in the corresponding zoning district.

2. A blank cell indicates that the sign type is not permissible in that district, unless a *Sign Design Review (SDR)* is approved per §30.06.07A.

3. If a setback distance is not specified in the tables below, zoning district setbacks apply.

4. In a commercial complex, for the purposes of determining applicable sign regulations, all area within a commercial complex or on a parcel with multiple tenants shall be considered to be on the same property and shall be treated as a single development.

C. Awning

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											P	P	P	P	P	P	P	P	P			P

Standards	
Maximum Area	Located on a side or valance: no limit. Located on any other portion of the awning: Up to 50% of the awning face area, excluding the side or valance.
Maximum Height	Shall not extend above the top of the awning where installed
Illumination	No
Other requirements	Sign shall not project beyond the face of the awning.

D. Canopy

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											P	P	P	P	P	P	P	P	P			P

Standards	
Maximum Area	Located on a side: width of the side plus height limit. Located on the front: 50% of the canopy face area plus height limit.
Maximum Number	1 per canopy face
Maximum Height	2 ft above canopy
Illumination	Yes

E. Directional

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
								P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

Standards	
Maximum Area	CR districts: 32 sf All other districts: 12 sf
Maximum Number	2 per entrance/exit CR district: 3 per drive-thru
Maximum Height	CR district: 9 ft All other districts: 7 ft
Setback	2 ft.
Illumination	Yes

F. Electronic Sign: Animation

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																P						P

Standards	
Maximum Area	Shall not exceed 25% of the sign area
Maximum Number	1 per site
Maximum Height	If wall sign: Shall not extend above the top of the wall where installed. If freestanding sign: Same as underlying zoning district.
Illumination	Yes
Other requirements	Allowed only in conjunction with a resort hotel. Allowed in conjunction with freestanding, supergraphic, or wall signs.

G. Electronic Sign: Electronic Message Unit, Static

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											P	P	P	P	P	P	P	P	P			P

Standards	
Maximum Area	CR district: 150 sf All other districts: 100 sf
Maximum Number	1 per site
Maximum Height	CR district: Shall not exceed height of building on site. All other districts If wall sign: Shall not extend above the top of the wall where installed. If freestanding sign: Same as underlying zoning district.

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Illumination	Yes																					
Other requirements	**1.** Allowed in conjunction with freestanding or wall signs. **2.** Messages must display a minimum of 6 seconds. **3.** Messages shall not transition with special effects.																					

H. Electronic Sign: Electronic Message Unit, Video

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																P						P
Standards																						
Maximum Area	150 sf																					
Maximum Number	1 per street frontage																					
Maximum Height	CR district: Shall not exceed height of building on site. PF district: If wall sign: Shall not extend above the top of the wall where installed. If freestanding sign: Same as underlying zoning district.																					
Illumination	Yes																					
Other requirements	**1.** Allowed in conjunction with freestanding or wall signs. **2.** Messages must display a minimum of 6 seconds. **3.** Messages shall not transition with special effects.																					

I. Electronic Sign: Projected Image Display, Static

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																P						P
Standards																						
Maximum Area	20% of the area of the building face																					
Maximum Number	1 per street frontage																					
Maximum Height	Shall not extend beyond the height or perimeter of the structure on which display is projected.																					
Illumination	Yes																					
Other requirements	**1.** Display shall not cross property lines unless within a resort hotel, and adjacent property is under the same ownership. **2.** Projector and associated equipment shall be screened. **3.** Projector and associated equipment shall not obstruct pedestrian movement.																					

J. Electronic Sign: Projected Image Display, Non-Static

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																P						P
Standards																						
Maximum Area	20% of the area of the building face																					
Maximum Number	1 per street frontage																					
Maximum Height	Shall not extend beyond the height or perimeter of the structure on which display is projected.																					
Illumination	Yes																					
Other requirements	**1.** Display shall not cross property lines unless within a resort hotel, and adjacent property is under the same ownership. **2.** Projector and associated equipment shall be screened.																					

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF

3. Projector and associated equipment shall not obstruct pedestrian movement.

K. Flag

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

Standards	
Maximum Area	Residential districts: 90 sf total All other districts: 126 sf total
Maximum Number	3 per lot
Maximum Height	Same as underlying zoning district; however, flagpoles within nonresidential development may exceed the building height of the district to a maximum of 100 feet.
Illumination	External
Other requirements	When fully extended, flags shall not overhang any right-of-way, future right-of-way line, street, property line, or sidewalk.

L. Freestanding

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
								P	P	P	P	P	P	P	P	P	P	P	P			P

Standards	
Maximum Area	CR district: 5 sf per linear foot of all street frontages combined All other districts: Combination of all freestanding signs shall not exceed 1.25 square feet per linear foot of street frontage; PLUS an additional 0.25 square feet per linear foot for tenant panels; PLUS an additional 0.25 square feet per linear foot may be allowed when the area consists of channel letters.
Maximum Number	Multi-vision: 1 per site Revolving: 1 per site Freestanding in CR district: 1 per 100 linear feet of street frontage Freestanding in all other districts: 1 per street frontage
Maximum Height	CR district: Shall not exceed height of building on site. All other districts: Same as underlying zoning district.
Setback	10 ft
Separation	CR district: 100 ft from other freestanding or monument sign on same side of street. All other districts: 300 ft from other freestanding sign on same side of the street.
Illumination	Yes
Other requirements	**1.** Multi-vision and revolving signs are not permissible in RM districts. **2.** Revolving signs: Maximum of 8 revolutions per minute. **3.** Parcels with frontage on more than 1 street may only use the length of 1 frontage for determining the allowance for sign area. The CR district is exempt from this condition. **4.** Maximum 2 freestanding signs are allowed per each street frontage if street frontage is 1,000 feet or greater. **5.** A monument sign may be installed in lieu of a freestanding sign. **6.** A corner pad site may have 1 additional sign. No sign installed may obstruct the sight zone, as described in §30.04.08G, *Sight Zones*. **7.** Sign may not be located along a freeway unless the property is accessed from a frontage road.

M. Monument

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
								P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

Standards	
Maximum Area	80 sf, with area of the separate base not included in this measurement
Maximum Number	CR district: 1 per 100 linear ft of street frontage. All other districts: 1 per pad site; or 2 for corner pad site.
Maximum Height	10 ft
Setback	2 ft
Separation	100 ft from other freestanding or monument sign on same side of street
Illumination	Yes
Other requirements	**1.** Sign shall be located within curbed landscaped or rockscaped area which extends no less than 2 feet from base of sign. **2.** Sign may not be located along a freeway unless the property is accessed from a frontage road.

N. Project Entrance

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

Standards	
Maximum Area	35 sf
Maximum Number	2 per primary subdivision or project entrance(s) per street frontage, and 1 per corner
Maximum Height	5 ft
Setback	Residential: 2 ft All other districts: 5 ft
Illumination	Yes
Other requirements	**1.** Sign shall be located within curbed landscaped or rockscaped area which extends no less than 2 feet from base of sign. **2.** Sign may not be located along a freeway unless the property is accessed from a frontage road. **3.** In both RS and RM districts, entrance signs may be wall signs mounted on a property perimeter wall or fence, subject to the same dimensional standards in this table.

O. Projecting

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											P	P	P	P	P	P	P	P	P			P

Standards	
Maximum Area	CR district: 250 sf All other districts: 32 sf
Maximum Number	1 per tenant
Maximum Height	Shall not exceed height of wall where installed.
Illumination	Yes

P. Roof

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																P						

Standards

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	A roof sign may be permissible in the CR district, subject to a Sign Design Review (SDR), as described in §30.06.07A.																					

Q. Wall

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
								P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Standards																						
Maximum Area	Residential: 5% of building face to which sign will be affixed. All other districts: 20% of the area of the building face. Additional 10% may be permissible when using channel letters.																					
Maximum Number	Residential: 1 per development (includes multi-building developments). All other districts: Limited by maximum area.																					
Maximum Height	Shall not extend above the top of the wall where installed.																					
Illumination	Yes																					
Other requirements	**1.** Display surface shall be parallel to supporting wall, shall not project more than 3 feet from building, and shall not project beyond top or bottom of wall to which sign is attached. **2.** May be located on any parapet when the parapet is integral to the overall building design and extending not more than 3 feet from such wall or building façade. **3.** Window or door signs shall not cover more than 30% of the window or door surface.																					

30.05.03 Specialty Signs

A. Standards Applicable to All Specialty Signs

1. Specialty Signs are regulated by this Title. Permitting, as with all other development, shall be administered by the Building Department.

2. Any sign not specifically defined as a Specialty Sign shall satisfy the requirements for permanent signs by applicable zoning district as established in §30.05.02, *Permanent Sign Regulations.*

3. Any Specialty Sign not in compliance with the rules and regulation of this Section may request approval per §30.06.07A, *Sign Design Review (SDR).* A blank cell indicates that the sign type is not permissible in that district, unless a *Sign Design Review (SDR)* is approved per §30.06.07A.

4. Specialty Signs, when fully extended, shall not overhang any right-of-way, future right-of-way line, street, property line, sidewalks along streets, clearance required for ADA compliance, or required for life/safety in accordance with applicable Building and Fire Codes.

5. Except for Property/Yard Sign, any sign structure and the reverse side of a single-faced sign shall be finished to be consistent with the design of the structure.

B. Specialty Sign Regulations

1. Issuance of a Business License or Certificate of Occupancy

One Specialty Sign per business is allowed for 30 days after the initial issuance of a business license, or certificate of occupancy for a model home, subject to the regulations as described in this Section.

2. Temporary Use

i. Specialty Signs may be allowed through an approved Temporary Use (TC) application as described in §30.06.05G, as follows:

(a) All uses, except resort hotels: One 10-day event in a calendar month with 6 events per calendar year.

(b) Resort hotels: No limit on the number of events and maximum 10 days per event.

ii. An increase in the number of signs or time limit may be established upon approval per §30.06.07A, *Sign Design Review (SDR).*

iii. A Temporary Use (TC) application approval is not required for the use of 1 Specialty Sign, but shall be required to have more than 1 Specialty Sign.

C. Standards for Specialty Signs by Sign Type

The tables below show the zoning districts where the Specialty Sign type is permissible, along with applicable standards.

1. A "T" indicates that the sign type is permissible in the corresponding zoning district. A blank cell indicates that the sign type is not permissible in that district, unless a *Sign Design Review (SDR)* is approved per §30.06.07A.
2. Sign types not listed here may be permissible as permanent signs, as described in §30.05.02, *Permanent Sign Regulations*.
3. The maximum permitted area in the tables below is the total sign allowance for all Specialty Signs of that type per business (e.g., 40 sf for all banners on a site, not per banner on a site), unless otherwise specified.

D. A-Frame

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T	T		T

Standards	
Maximum Area	12 sf
Maximum Number	1 per business
Maximum Height	4 ft
Setback	10 ft
Separation	Maximum of 5 feet from business entrance
Time Limit	Shall be displayed during business hours only
Illumination	No
Other requirements	**1.** A-Frame signs are allowed without approval of §30.06.05G, *Temporary Use (TC)* application, provided they meet the standards described herein.

E. Banner

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T			T

Standards	
Maximum Area	40 sf
Time Limit	§30.05.03B.2
Other requirements	Must be located on building wall.

F. Inflated

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T			T

Standards	
Maximum Area	Same as a freestanding sign on the site

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
Maximum Height	Same as maximum height for zoning district																					
Setback	Distance equal to the height of the device, from all property lines																					
Other requirements	Shall be securely attached to remain in a fixed location																					

G. Pennant

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T			T
Standards																						
Maximum Area	No more than 24 inches in length																					
Maximum Height	Same as underlying zoning district																					

H. Portable

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T			T
Standards																						
Maximum Area	16 sf																					
Maximum Number	1 per residence or business																					
Illumination	No																					
Other requirements	**1.** Property owner consent required prior to placement. **2.** If signs are not removed immediately after use is finished, Impounding/Fines shall apply.																					

I. Projected Image Display, Static

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T			T
Standards																						
Maximum Area	Same as a wall sign in the zoning district																					
Maximum Number	1 per street frontage																					
Maximum Height	Shall not extend beyond the height or perimeter of the structure on which it is displayed																					
Illumination	Yes																					
Other requirements	**1.** Display shall not cross property lines unless within a resort hotel, and adjacent property is under the same ownership. **2.** Projector and associated equipment shall be screened. **3.** Projector and associated equipment shall not obstruct pedestrian movement.																					

J. Property/Yard Sign

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T	T
Standards																						
Maximum Area	RS districts: 16 sf plus 16 sf for every 20,000 sf of lot area over 20,000 sf RM districts: 32 sf plus 32 sf for every 20,000 sf of lot area over 20,000 sf																					

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
	All other districts: 80 sf plus 40 sf for each additional 20,000 sf of lot area. All districts: No sign shall be greater than 128 sf.																					
Maximum Number	Limited by lot area																					
Maximum Height	Lots of 20,000 sf and under: 10 ft Lots of 20,000 sf and greater: 22 ft																					
Setback	Signs 16 sf or less: 0 ft Signs greater than 16 sf: 10 ft																					
Separation	200 ft between any Property/Yard signs greater than 16 sf																					
Illumination	No																					
Other requirements	Property owner consent required prior to placement. A building permit is required for any sign greater than 16 sf.																					

K. Specialty Flag

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
											T	T	T	T	T	T	T	T	T			T
Standards																						
Maximum Area	16 sf per business																					
Maximum Height	Same as underlying zoning district																					
Illumination	External																					

L. Supergraphic

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
																T						
Standards																						
Maximum Height	Shall not extend beyond the height or perimeter of the structure to which it is attached																					
Setback	Same as building on which sign is located																					
Illumination	External or Animation																					
Other requirements	**1.** Shall project 1 foot or less from the façade of the building to which it is attached. **2.** When adjacent to a freeway or frontage road, no sign shall face parallel, perpendicular, or otherwise be displayed at an angle that is oriented toward the freeway or frontage road. **3.** A supergraphic shall not be designed to appear as a display of multiple messages. **4.** Shall be a minimum of 15 feet above the grade of the adjacent sidewalk or the average finished grade of the subject property, whichever is greater.																					

M. Wind Sail

Zoning District	RS80	RS40	RS20	RS10	RS5.2	RS3.3	RS2	RM18	RM32	RM50	CN	CP	CG	CC	CU	CR	IP	IL	IH	AG	OS	PF
								T	T	T	T	T	T	T	T	T	T	T	T			T
Standards																						
Maximum Area	30 sf																					
Maximum Height	15 ft																					

30.05.04 Sign Illumination

A. Applicability

All signs shall comply with the following, except for development within the Las Vegas Boulevard Gaming Corridor as defined in NRS 463.3076.

B. Standards for Static Illumination

1. Illumination and Luminance

Except for Electronic Message Unit Signs, all signs shall apply the following illumination standards:

i. No sign shall use beacons, search lights, strobe lights or any form of lighting that would impair the vision of motorists, pilots, or air traffic controllers.

ii. No sign shall use any form of illumination that would impede the effectiveness of any Government Sign.

iii. Any exterior light source shall be shielded, directed solely on the sign, and not upon any other object or adjacent properties.

iv. Illuminated signs shall not operate at brightness levels of more than 0.3 footcandles, as measured using a footcandle meter. The distance from which to measure footcandles is calculated using the following formula, rounded up to the nearest whole number: Measurement Distance (in feet) =√(Area of Sign x 100).

2. Luminance Standards for Electronic Message Unit Signs

i. Electronic Message Units shall not exceed the following:

(a) In the Urban Area: a maximum luminance of 5,000 nits from dawn to dusk or a maximum of 300 nits from dusk to dawn.

(b) In the Nonurban Area: a maximum luminance of 5,000 nits from dawn to dusk or a maximum of 150 nits from dusk to dawn.

(c) Light trespass shall not exceed 0.3 footcandles above ambient light, measured at the property line as described in subsection 1 of the preceding subsection.

ii. Electronic Message Units shall be equipped with an automatic dimmer device to reduce wattage appropriate to ambient light.

iii. When an Electronic Message Unit malfunctions, the screen shall turn to black, or power off.

3. Certification

The sign permit owner or their designee must certify that the proposed sign complies with all luminance or illumination requirements found in this Section and provide evidence of compliance if requested.

30.05.05 Sign Measurements

A. Building and Property Frontage

Unless otherwise stated, for any sign area calculation based on the length of street frontage, a parcel with frontage on more than 1 street may only use the length of 1 frontage for determining the permissible sign area.

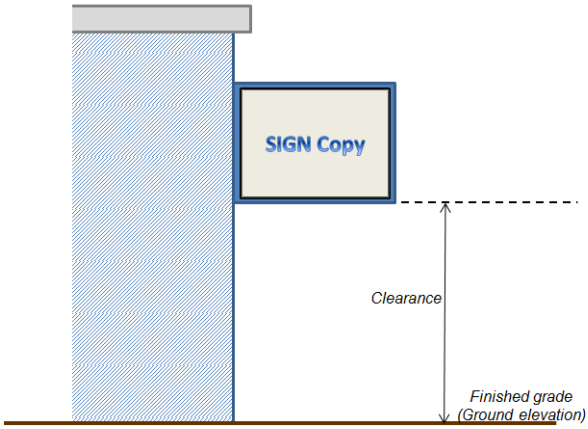
B. Clearance

1. The minimum clearance of a sign shall be measured from the horizontal surface of the ground to the lowest portion of the horizontal projection of the sign.

2. In pedestrian areas, the minimum clearance is 9 feet for any freestanding or projecting sign. See Figure 30.05-1.

3. Signs located in areas subject to vehicular traffic must have a minimum clearance of 14 feet.

Figure 30.05-1: Required Clearance for Projecting or Freestanding Sign

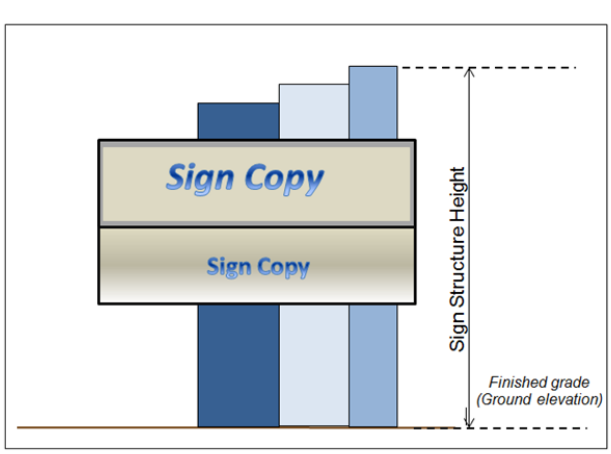


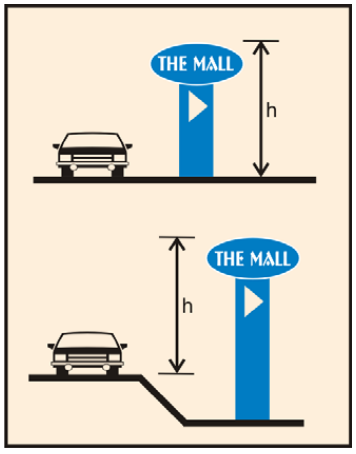
C. Height

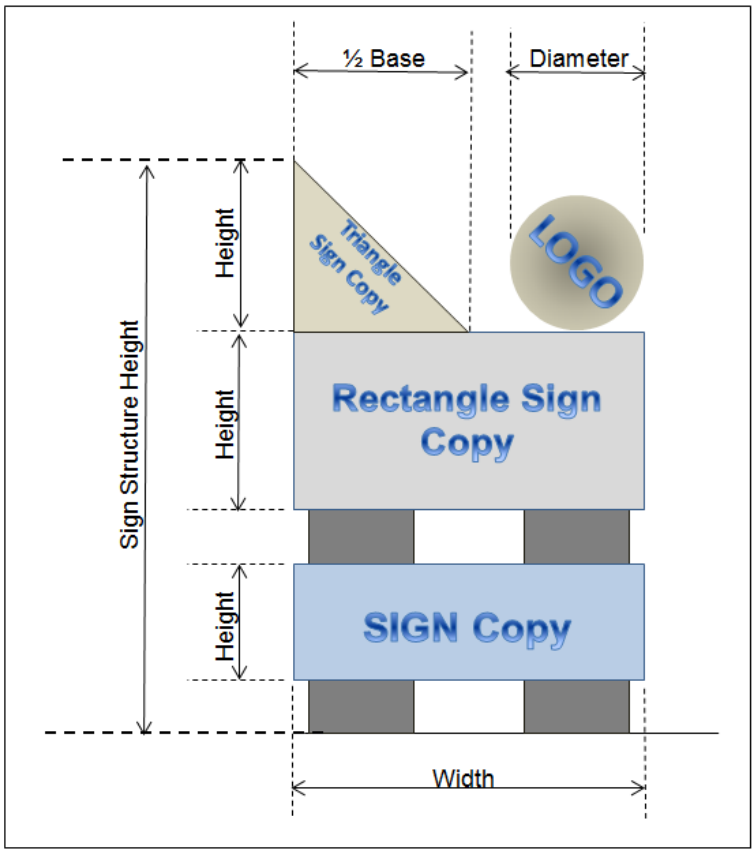
1. The vertical measurement from the finished grade at the base of the sign to the highest point of the sign structure shall determine the sign structure height. Exception: If a sign structure is mounted within 20 feet of a street that has a higher grade level than the site, the sign structure height shall be measured from the grade level of the street to the highest point of the sign structure. See Figure 30.05-2.

2. The base of a monument sign or a project entrance sign is not included in the calculation of the maximum permissible sign height.

Figure 30.05-2: Measuring Sign Height







D. Sign Area

1. Maximum Area

Maximum area is applied per individual sign unless otherwise specified.

2. Signs with Frame or Cabinet

The area of a sign is based on the outer dimension of the frame or cabinet surrounding the sign surface area**.** The total sign area is the smallest geometric shape, or the sum of the combination of regular geometric shapes, which comprise the cabinet or frame of the sign. The allowable sign area of a multiple sided sign is not the sum of each face, but shall be calculated as follows:

i. Typical doubled-sided sign: the area of 1 face.

ii. Double-sided or V-shaped sign whose faces form an interior angle no greater than 90°: the area of the largest single face.

iii. Double-sided or V-shaped sign whose faces form an interior angle greater than 90°: the area of both faces.

iv. More than 2-sided sign: 50% of the sum of the area of all sign faces.

3. Signs without Frame or Cabinet

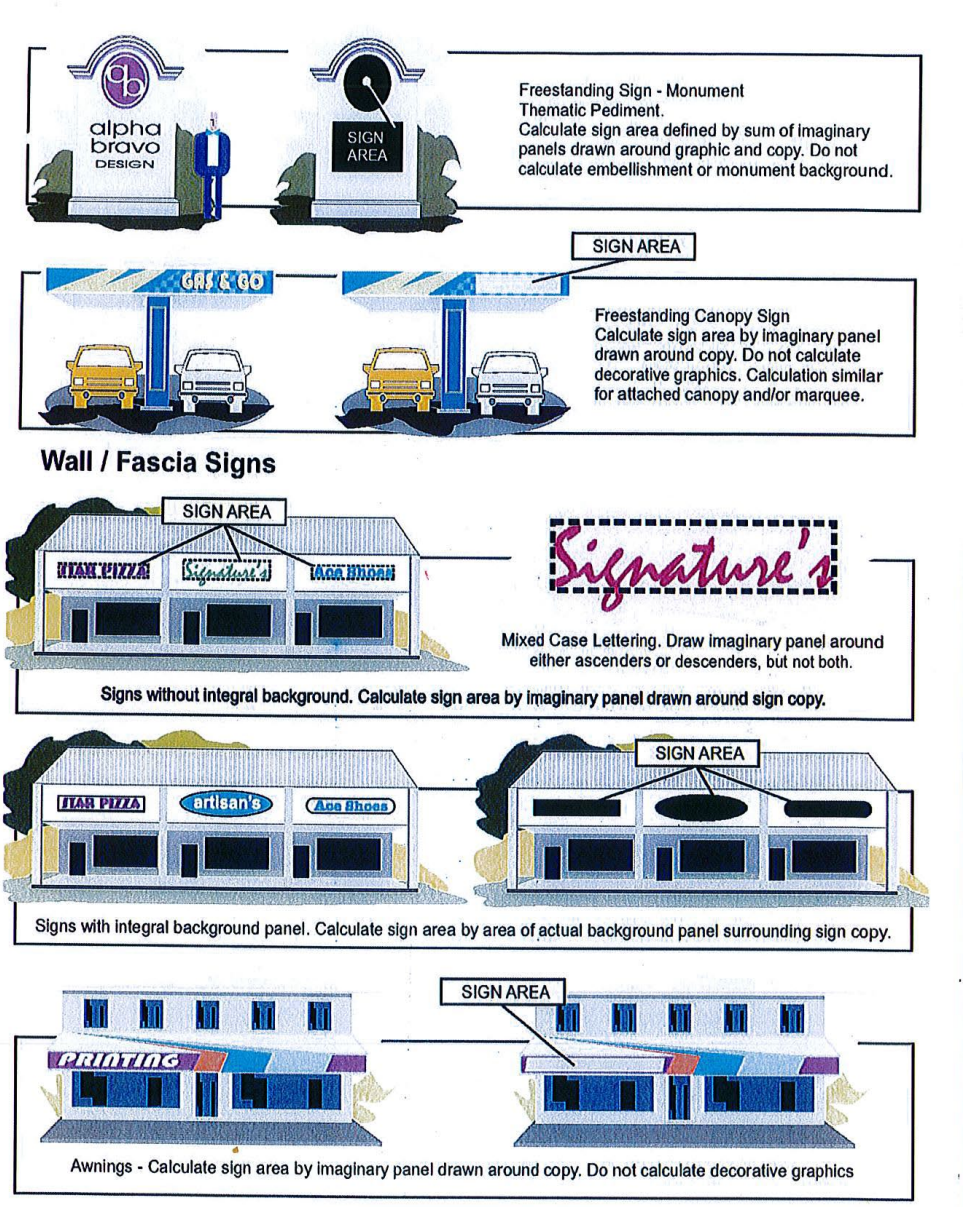
For signs with copy painted on or attached directly to a structure without an integrated background not enclosed in a frame or cabinet, the sign area is the smallest geometric shape that encompasses the entire area of the sign copy. In the case of sign copy enclosed within a painted or illuminated border or displayed on a background contrasting in color with the structure, the sign area shall include the area within the

contrasting background, or within the painted or illuminated border. Fabricated Letters, Canopy and Awning signs are examples of sign types that use this calculation.

i. Signs with Separate Elements

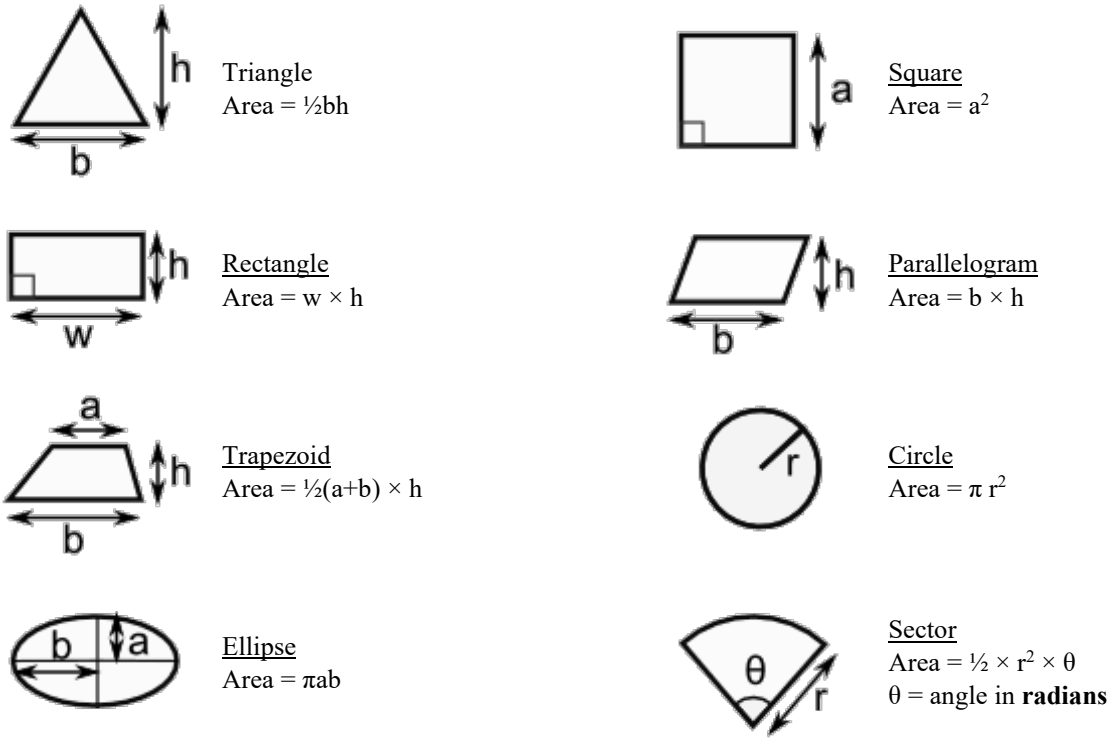
(a) When a sign is constructed of individual elements, sign area is measured by adding the sum of the areas of each geometric shape or any combination of which create the smallest single continuous perimeter enclosing the limits of the sign. See Figure 30.05-3.

Figure 30.05-3: Measuring Sign Elements



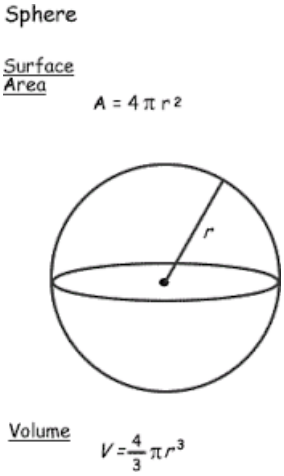
(b) Formulas for measuring common geometric shapes: Even the most complex sign backgrounds are combinations of various geometric shapes. Included here are common formulas. π (Pi) = numerical value equals 3.1416. See Figure 30.05-4 and Figure 30.05-5.

Figure 30.05-4: Formulas for Measuring Common Geometric Shapes



ii. Three-Dimensional Signs

Figure 30.05-5: Volume Formula of a Sphere for Revolving or 3-D Signs



4. Measuring Building Elevation or Face

Allowable sign area for most wall signs is a percentage of the building elevation or face, per §30.05.02Q. Measurement shall be taken vertically from grade to the top of a parapet or mansard wall or to the bottom of the eaves for a pitched roof and horizontally across the entire width of the building elevation or face.

30.05.06 Nonconforming Signs

This §30.05.06 applies to all signs except as follows:

A. A legally constructed nonconforming sign display or structure may be reconstructed if a governmental entity required relocation due to the construction of a public improvement, and then only if the reconstruction occurs on the same or abutting property, and permits are applied for within 180 days of receipt of notice from the governmental entity of the improvement's completion.

B. If the County requires the removal of a nonconforming outdoor advertising structure, as defined in NRS 278.0215, the nonconforming outdoor advertising structure may be relocated to the same or any adjacent property as described in §30.06.07B, *Administrative Sign Design Review (ASDR),* or request a comparable site approved by the Board as an appropriate location for the structure in accordance with §30.06.07A, *Sign Design Review (SDR).* When determining whether to approve a comparable relocation site, the Board shall find:

i. That the relocation site is 300 feet from a residential zoning district;

ii. That the relocation site is 1,000 feet from another nonconforming outdoor advertising structure; and

iii. That the relocation site is located in accordance with the criteria set forth in §30.05.06F.1 below (regarding locations where an owner of an existing legal nonconforming sign display or structure can seek a digital face replacement).

iv. The owner of an existing legal nonconforming sign display or structure who elects to relocate its sign display or structure under this Provision may not obtain a final building permit for construction of the relocated sign display or structure unless and until it has provided proof of demolition of the sign display or structure to be relocated.

C. The maximum height of a legally nonconforming sign display or structure oriented toward the roadway whose nearest edge is within 60 feet of a public improvement may extend the maximum structure height 30 feet above the grade of the travel lane of the roadway or 25 feet above the tallest surface of a public improvement located within the public right-of-way if the improvement obstructs or obscures the sign's visibility. In no case shall a sign be constructed which will obscure the view of the street or freeway upon which the motorist is traveling.

D. If any noise abatement improvement project is constructed within the right-of-way of a controlled-access freeway, and the improvement obstructs the visibility of an outdoor advertising structure, as defined in NRS 278.0213, from the main traveled way of the controlled-access freeway, the County shall authorize the height or angle of the sign to be adjusted to restore the visibility of the sign to the same or comparable visibility as before the construction of the improvement project.

E. A nonconforming outdoor advertising structure, as defined in NRS 278.0215, may not be relocated, replaced, or structurally altered if required to be removed as a result of the owner of the real property on which the nonconforming outdoor advertising structure is located terminating the lease that governs the placement of the nonconforming outdoor advertising structure on that property pursuant to the terms of that lease; or the structure is destroyed or damaged in excess of 50% of its material value as a result of a natural disaster, including, without limitation, a fire, flood, earthquake, windstorm, rainstorm, or snowstorm.

F. The owner of an outdoor advertising structure, as defined by NRS 278.0213 and 278.0215, may replace the faces of the sign with digital sign faces, as described in §30.06.07B, *Administrative Sign Design Review (ASDR)*, subject to the following conditions:

1. Permissible only within the following areas as shown on the Sign Display/Structure Digital Conversion Map on file with the Department of Comprehensive Planning, but in no case shall the sign be allowed within any residential zoning district.

2. Must display messages a minimum 6 seconds and messages cannot travel or flash;

3. The digital signs shall adhere to all applicable standards of this Chapter 30.05, *Signs;*

4. Consecutive signs facing the same direction of travel shall not display sequential messages;

5. Consecutive signs facing the same direction of travel shall not display messages at the same rate of synchronization; and

6. If NDOT approval is required, it must be received prior to permit issuance.

30.05.07 Maintenance and Abandonment

A. Maintenance

1. Sign Maintenance

i. All signs and sign supports, including decorative covers, must be maintained in a clean, safe, like-new condition. Any damage, including weathering, resulting from wind or any other natural or artificial cause, must be repaired within 30 calendar days.

ii. Signs must remain free of graffiti.

iii. Paint or debris associated with signs shall not litter property or rights-of-way.

2. Building Maintenance

A building façade damaged as the result of the removal, repair, replacement, or installation of any sign shall be repaired within 30 calendar days from the date of the damage.

B. Abandonment

Signs of a defunct or inoperative nature must have copy removed within 90 calendar days from the date the use was discontinued, as determined on the basis of business license expiration or other documented information indicating the business or establishment has ceased operation.

30.05.08 Violations and Enforcement

A. Violations

This §30.05.08A applies to all signs. When a sign is found to be in violation of the regulations of this Chapter 30.05*, Signs,* the Clark County Code or of any other ordinance or law, the County, at its discretion, may remove or order that such sign be removed or brought in compliance as described within this subsection.

1. Immediate Removal/Impoundment

The County may remove without notice any sign illegally located in the public right-of-way, or placed on public property without the entity's consent, or which causes the threat of immediate peril or menace to the public. Within 10 days of impoundment, notice shall be sent by U.S. mail to the property owner and the beneficial user of the sign, if such user can reasonably be identified, informing them of the removal and how to reclaim the sign per subsection 5. below, *Impounded Signs,* of this subsection.

2. Notice of Abatement

The County may issue a Notice of Abatement which identifies the specific violation to the applicable law, and includes an order that may require the alteration, repair, reconstruction, demolition, relocation, or removal of the sign, as may be appropriate. Any work required shall be completed within 30 days of the date specified on the order, unless a different timeframe for compliance is specified.

i. Notification

The County shall notify the property owner and the beneficial user of the sign, if such user can reasonably be identified, of the Notice of Abatement served either personally or by first-class mail. The Notice must advise the property owner or beneficial user of the:

(a) The location of the sign.

(b) The type and description of the sign.

(c) The Code Section(s) in alleged violation.

(d) Specific date by which the sign shall be brought into compliance or removed.

(e) Penalties if the sign is not brought into compliance or removed.

(f) Manner by which to appeal the County's determination described in the order.

ii. Penalty

If voluntary abatement does not occur by the date specified in the Notice of Abatement, or a hearing has not been requested to appeal the order, the County has the discretion to remove the sign, assess a fine to the property owner, or both as follows:

(a) Fine

The County is authorized to impose a fine in accordance with Clark County Code, Title 1.14. The fine may begin the day after the date specified in the Notice of Abatement, and accrue every day until the sign is brought into compliance or removed.

(b) Removal of Signs

Signs may be removed by Clark County, or its agents after the specified date in the Notice of Abatement if consent is obtained from the property owner or other person with legal possession of the property, or as otherwise allowed by law.

iii. Appeal

Any property owner or beneficial user who has received a Notice of Abatement may appeal the County's determination by requesting a hearing before the Hearing Officer within 10 days from the date of the written Notice of Abatement. The request for hearing shall include the property owner's or beneficial user's name and address and shall state in detail the reasons for the hearing request. The County's action toward sign removal or assessment of a fine shall be stayed until a hearing is held and a decision made pursuant to subsection 4 below.

3. Appeal Hearing for Fine Assessment

A Hearing Officer will make a final decision on whether the County's determination of the fine is justified. This hearing shall be conducted in accordance with the procedures listed in Title 1.14.

4. Appeal Hearing for Notice of Abatement or Impoundment

A Hearing Officer will make a final decision whether the County's determination of the violation is justified.

i. All requests for hearing shall specify the name and address where the person requesting the hearing may be contacted and shall state in specific detail the reasons for the hearing request.

ii. A timely request for a hearing made prior to the imposition of fines or the impoundment of the sign shall stay such action(s) until 5 working days after the decision is rendered.

iii. A hearing shall occur within 3 working days of the date of the request for a hearing, unless continued by agreement. At the hearing, the owner or beneficial user may present evidence or argument as to whether the sign was in violation of this Chapter or if the impoundment is improper.

iv. The Hearing Officer may give oral notice of the decision at the close of the hearing and shall also send by first-class mail written notice of the decision within 5 working days after the date of the close of the hearing.

v. The decision of the Hearing Officer shall be considered final. The County may not take any action granted by that decision until 5 days after the written decision is mailed.

5. Impounded Signs

The property owner or beneficial user, after providing sufficient proof of ownership of a sign may, at any time up to and including 30 days after the impounding, obtain a return of the sign upon paying, in addition to any applicable penalty fees, an impound fee of $100 per sign, plus the reasonable additional special itemized costs, if any, of impounding the sign in excess of the required impound fee.

i. Appeal

The property owner or beneficial user of the sign may request an appeal hearing to determine whether the sign should be returned without payment of an impound fee within the 30 days from impoundment. The Hearing Officer, after a hearing in accordance with subsection 4, and a determination that the impoundment was improper, may order the sign returned without payment of any impound fee, or if an impound fee has been paid, may order the return of any such impound fee.

ii. Unclaimed Signs

If the property owner or beneficial user has not requested to have the sign returned, sufficient proof of ownership is not provided, or a hearing on the impounding of the sign is not requested within the time limits list above, the sign will not be returned nor impound fees accepted. Clark County may sell or otherwise dispose of the sign and deposit the proceeds, if any, from any such sale or other disposition in the County Treasury.

Chapter 30.06 Administration and Procedures

30.06.01 Purpose

The purpose of this Chapter is to provide consistent, equitable procedures for the administration of this Title and to ensure that proposed development will be in accordance with the purposes and standards of this Title.

30.06.02 Summary Table of Review Procedures

Table 30.06-1: Summary Table of Review Procedures

KEY: R= Review and Recommendation D= Review and Decision [brackets]= Public Hearing ✓= required

Procedure	Reference	Pre-Submittal Conf.	Notice [1]				Review and Decision-Making Bodies			
			Newspaper	Mailed	Posted	Sign	Dept. and/or Agency Staff	Town Boards	Commission [2]	Board
PLAN AND ORDINANCE AMENDMENTS										
Master Plan Amendment	§30.06.04A	✓[3]	✓	✓	✓		R	R	[D]	[D]
Rezone (Zone Change)	§30.06.04B	✓[3]	✓	✓	✓	✓	R	R	[R]	[D]
Title 30 Text Amendment	§30.06.04C				✓		R	R	[R]	[D]
APPLICATION TYPES										
Admin. Design Review	§30.06.05A						D			
Design Review	§30.06.05B	✓[3]		✓	✓		R	R	[R]/[D]	[D]
Planned Unit Development (PUD)	§30.06.05C	✓[3]		✓	✓		R	R	[R]	[D]
Special Use Permit	§30.06.05D	✓[3]	✓[3]	✓	✓	✓[3]	R	R	[R]/[D]	[D]
Concept Specific Plan	§30.06.05E	✓		✓	✓	✓	R	R	[R]	[D]
Specific Plan	§30.06.05F			✓	✓	✓	R	R	[R]	[D]
Temporary Use	§30.06.05G						D			
FLEXIBILITY AND RELIEF										
Admin. Extension of Time	§30.06.06A						D			
Extension of Time	§30.06.06B			✓	✓		R	R	[D]	[D]
Minor Deviation	§30.06.06C						D			
Variance	§30.06.06D			✓	✓		R	R	[R]/[D]	[D]
Waiver of Conditions	§30.06.06E			✓[3]	✓		R	R	[D]	[D]
Waiver of Development Standards	§30.06.06F			✓	✓		R	R	[R]/[D]	[D]
SIGN PROCEDURES										
Sign Design Review	§30.06.07A			✓	✓		R		[D]	[D]
Administrative Sign Design Review	§30.06.07B						D			
OTHER APPLICATIONS										
Annexation	§30.06.08A			✓	✓		R	R		D
Application for Review	§30.06.08B			✓	✓		R	R	[D]	[D]
Development Agreement										
Negotiated	§30.06.08C		✓		✓		R			[D]
Standard	§30.06.08C		✓		✓		R			[D]
Street Name or Numbering System Change	§30.06.08D			✓	✓		R	R	[D]	
Administrative Street Naming	§30.06.08E						D			
Vacation and Abandonment	30.06.08F		✓	✓	✓		R	R	[R]/[D]	[D]
Zoning Compliance	§30.06.08G						D			

Table 30.06-1: Summary Table of Review Procedures

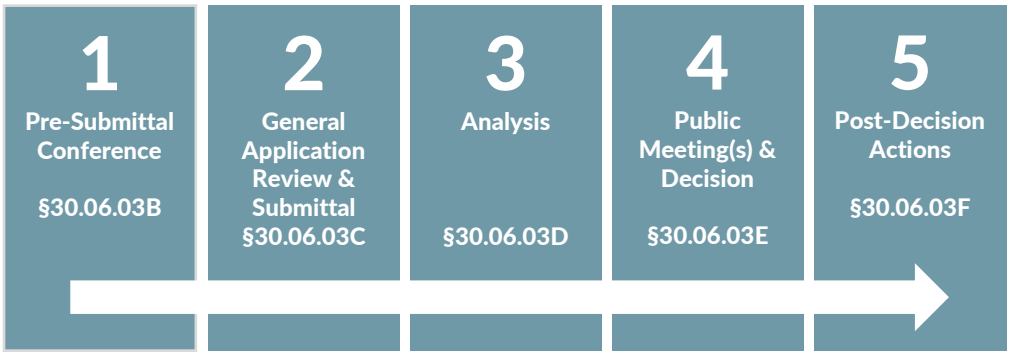
KEY: R= Review and Recommendation D= Review and Decision [brackets]= Public Hearing ✓= required										
Procedure	Reference	Pre-Submittal Conf.	Notice [1]				Review and Decision-Making Bodies			
			Newspaper	Mailed	Posted	Sign	Dept. and/or Agency Staff	Town Boards	Commission [2]	Board
SUBDIVISION/PUBLIC WORKS PROCEDURES										
Major Subdivision										
Tentative Map	§30.06.09A				✓		R	R	R/D	D
Final Map Technical Review	§30.06.09B						D			
Final Map Mylar	§30.06.09C						D			
Minor Subdivision										
Parcel Map Review	§30.06.09D						D			
Parcel Map Technical Review	§30.06.09E						D			
Parcel Map Mylar	§30.06.09F						D			
Reversionary Maps							D			
Reversionary Map Technical Review	§30.06.09G						D			
Reversionary Map Mylar	§30.06.09H						D			
Boundary Line Adjustment	§30.06.09I						D			
Extension of Time, Public Works	§30.06.09J						D			
Separate Documents	§30.06.09L						D			
Vacation of Patent Easement	§30.06.09M						D			
Minor Deviation, Public Works	§30.06.09N						D			
Las Vegas Boulevard South Survey	§30.06.09O						D			

Notes:
[1] Where any form of a specific application requires one of these notice types, it is marked with ✓. See specific application type for full details.
[2] Where a Commission table cell shows "R/D," consult the specific procedure for information on when the Commission renders the final decision, rather than the Board.
[3] Required for specific project types.

30.06.03 Common Review Procedures

A. General

This Section describes the standard review procedures required for all applications unless otherwise stated in this Title. Generally, the review procedures include the steps shown below, however not every application requires every step. Application-specific procedures are in §30.06.04 through 30.06.08.



B. Pre-Submittal Conference

1. Purpose

The Pre-Submittal Conference provides an opportunity to meet with staff, other County departments, and external agencies to discuss the proposed development plans, review procedures, submittal requirements, any impact to public facilities, infrastructure needs, and mitigation measures, if necessary.

2. When Required

A Pre-Submittal Conference is required for:

- **i.** A Project of Regional Significance for only those within ½ mile of the boundary of a local government's jurisdiction as identified in subsection 2 of the definition;
- **ii.** Concept Specific Plan;
- **iii.** Special Use Permit for Resort Hotel, Rural Resort Hotel, or Neighborhood Casino;
- **iv.** Special Use Permit for Hazardous Materials or Waste Storage; and
- **v.** Any of the following:
  - **(a)** Projects with 500 or more dwelling units;
  - **(b)** Projects with a minimum 1,200 rooms for transient guests;
  - **(c)** Projects generating 8,000 or greater average daily trips (ADTs) as defined by the latest edition of the Institute of Transportation Engineers or its successor;
  - **(d)** Development reaching the above thresholds by successive additions to the overall development after March 1, 2006; and
  - **(e)** Industrial and commercial projects encompassing more than 300 acres. This does not include government facilities.

3. Procedure

A Pre-Submittal Conference meeting request shall be submitted to the Department of Comprehensive Planning.

4. Effect

Any information or discussions held at the Pre-Submittal Conference shall not be binding upon the meeting participants. Suggested revisions and discussions of potential conditions to mitigate impacts are not a guarantee of project approval, which is subject to the discretion of the decision-making body.

5. Expiration

If an application is not submitted within 180 days following the Pre-Submittal Conference, a new application for a Pre-Submittal Conference shall be required.

C. General Application Review and Submittal

1. Initiating Authority

- **i.** The following are authorized to initiate or submit an application:
  - **(a)** The property owner, which may consist of an individual, firm, government entity, association, syndicate, partnership, or corporation;
  - **(b)** A person specifically authorized by any of the parties listed in subsection (a) above, as evidenced by a signed letter or document;
  - **(c)** A public utility for any water, sanitary or storm sewers, telecommunications, traffic signal and street lighting systems, petrochemical pipelines, electric power, gas, cable television systems or facilities, irrigation water company systems, or other facilities permissible within County rights-of-way or the companies operating such facilities, and including the meaning ascribed under NRS 704.020 for Public Utility or Utility; and
  - **(d)** The Board.
- **ii.** Property owned by a government entity requires authorization prior to the filing of an application on its property.
- **iii.** If there are multiple owners, contract purchasers, or other persons authorized to submit the application, a single representative for all such persons shall sign the application or a letter or document consenting to the application.
- **iv.** When a Pre-Submittal Conference is required, application submittal cannot occur until the Pre-Submittal Conference is complete.

2. General Standards for Acceptance

i. The official submittal requirements for each application are established by the Director of Comprehensive Planning and/or the Director of Public Works.

ii. Applications shall be submitted to the appropriate department, Comprehensive Planning or Public Works, with the appropriate application forms and all submittal requirements.

iii. Unless otherwise specified in this Title, County review and decision-making bodies shall review all development applications submitted pursuant to this Chapter for compliance with the general standards stated below.

iv. Applicant must demonstrate compliance with the applicable Standards of Approval set forth in this Title.

v. Additional review standards by application type are set forth in §30.06.04 through §30.06.10 and shall supersede any conflicting general Standards for Acceptance in this Section.

vi. Simultaneous processing of applications for the same project is permissible. Applications to be considered concurrently shall include all required materials for all application types at one time. Application documentation and maps or plans may be combined, if all requirements in this Section are satisfied and all required information is provided.

vii. All parcels of land included on an application shall be contiguous.

viii. Applications for any land use that requires FAA Form 7460-1 submittal, *Notification of Proposed Construction*, shall not be accepted without written evidence from FAA of prior submittal to the agency.

ix. Property subject to the Cooperative Management Agreement Area Deed Modification Policy shall not be accepted without receiving confirmation from the Department of Aviation.

3. Affordable Housing

Applications for Affordable Housing projects, as defined per Chapter 30.07, shall be expedited and prioritized to the extent practicable.

4. General Variation from Submittal Requirements

Where the County's application requirements do not apply to a given proposal or property, the requirements will be tailored to information deemed necessary to review the project.

5. General Standards for Completeness

Staff shall determine whether the application is complete or incomplete in accordance with the below. A complete application shall be processed according to the procedures in this Chapter. An incomplete application shall not be accepted until all deficiencies noted have been resolved by the applicant.

i. Submittal Requirements

All required submittal requirements shall be included in the application package and have been deemed adequate.

ii. Conformance with Title 30 Required for Acceptance

Applications, including all plans, shall demonstrate conformance with this Title, except for those requesting to waive or modify standards. If an application is accepted and later found to be in noncompliance with this Title, the application shall be considered withdrawn.

iii. Fees

Fees are required to be paid after an application is deemed ready for submittal. The fee schedule, adopted by the Board by ordinance and reviewed periodically, is available on the County website. Fees not paid within 30 days of invoice shall deem the application void.

6. Applications Previously Denied or Withdrawn with Prejudice

Applications denied or withdrawn with prejudice shall not submit the same, or more dense or intense project, within 12 months of denial or withdrawal.

D. General Standards of Analysis

1. Referral to Staff and Review Agencies

A listing of submitted applications shall be distributed to applicable County departments, and interested governmental and public utility entities, to review, comment, and make recommendations.

2. Processing Timeline

Applications are processed in accordance with established timeframes. Processing times, if applicable, are described in the application-specific procedures.

3. Staff Review and Analysis

The review and analysis may result in a staff recommendation for approval, approval with conditions, or denial.

4. Distribution of Staff Report

A copy of the staff report shall be sent to the applicant and the advisory and/or decision-making body and made available for public review on the Clark County internet web page at least 3 working days (as defined in NRS 241.015) prior to the hearing at which the application is scheduled to be heard.

5. General Revisions

- **i.** A reviewing department, agency, Commission, or Board may require revisions after submittal.
- **ii.** Revisions shall be limited to minor changes, additions, deletions, or corrections that do not include substantive changes to the development proposed in the application, as determined by the Director.
- **iii.** Minor revisions may require an application to be held.
- **iv.** Revisions not deemed minor require renotification.

6. General Withdrawal

- **i.** A property owner or applicant may submit a letter of withdrawal. A property owner or applicant may not withdraw an application initiated by the Board.
- **ii.** An application requested to be withdrawn shall be considered to be without prejudice, unless otherwise acted on by the Commission or Board pursuant to subsection iii below.
- **iii.** Withdrawals submitted after the posting or issuance of a public notice must be announced at the noticed meeting(s), at which time the application may be withdrawn with or without prejudice at the discretion of the Commission or Board.

7. General Standards for Approval

i. Consistency with Clark County Master Plan

The proposal is consistent with the Clark County Master Plan.

ii. Compliance with This Title

The proposal shall comply with all applicable standards in this Title unless the standard is proposed to be waived or varied.

iii. Prior Approvals

The proposal shall be consistent with the conditions of any prior unexpired land use, plan, or subdivision map approval. The proposed development shall also be consistent with any approved phasing plan for development and installation of public improvements and amenities.

iv. Evidence of FAA Determination

Structures and/or uses subject to the Airport Airspace Overlay (AAO), as described in §30.02.26B.2(i)(a)(1), require written evidence from the FAA that a determination has been made whether a proposed structure constitutes a hazard to air navigation and/or is objectionable. A heliport, vertiport, airport, airstrip or aviation-flight use, requires written evidence from the FAA that the development has received a determination of no objection This evidence shall be submitted at least 2 weeks prior to final approval, unless the Director with the concurrence from the Director of Aviation concludes the FAA determination has been submitted early enough for action to occur, on any proposed structure that intrudes into the Airport Airspace Overlay that is not excepted. Applications for which required FAA determinations have not been received shall be held or denied.

E. General Public Meeting(s) and Decision

1. Scheduling

- **i.** Applications subject to a hearing shall be scheduled at either a regularly scheduled or special meeting of the appropriate decision-making body.

ii. The public hearing shall be scheduled to allow sufficient time to analyze a proposal and prepare a staff report.

2. General Required Public Notice

i. General Notice Requirements

(a) All applications required by this Title subject to hearing shall be preceded by public notice.

(b) If an item is held twice, or more than 85 calendar days have passed since the last notice was sent, renotification is required. Renotification is also required if a more intense or dense requests is made part of a change to the initial application.

ii. Types of Hearing Notice

(a) Newspaper Notice

Newspaper notice shall be published in a newspaper of general circulation in the County at least 10 calendar days prior to the scheduled hearing.

(b) Mailed Notice

Mailed notice shall be:

(1) Sent via first-class mail at least 10 calendar days prior to the scheduled meeting date.

(2) Provided to all owners whose property is wholly or partially within 1,500 feet of the subject property, unless an alternative notice radius is specified by this Title.

(i) Property owners shall be as listed in the most recent records of the Assessor's Office.

(ii) The notification radius shall be measured from the outer boundary of the proposed land a distance outward including the properties within the listed radius distance.

(iii) If at least 100 property owners are not captured, the radius shall be increased to include the nearest 100 separately owned parcels.

(iv) When an application is concurrent with another application that requires a greater notice radius, the radius notice for all concurrent applications shall be increased.

(3) Provided to any property or homeowner's association whose boundaries are defined by a recorded subdivision map and who has requested to receive mailed notice for any application types if located within the specified notification radius.

(4) Provided to a city when a project site abuts a city boundary or when a Project of Regional Significance;

(5) Provided to any Town Board whose jurisdiction includes the project; a courtesy notice shall also be sent to any Town Board within one-half mile of the proposed project; and

(6) Provided to the commander of any military installation located within 3,000 feet of the subject property.

(7) Provided to each tenant in a manufactured home park when the park is within the notification radius.

(8) At minimum, mailed notice shall include the following information:

(i) A description of the proposed project with the application type;

(ii) A location map or description of the location of the proposed project;

(iii) The date, time, and location of the hearing being noticed; and

(iv) Hazardous Materials or Waste Storage, notice shall include a list of the substances and quantities that will be located at the facility.

(c) Posted Notice

The agenda of applications scheduled for a Town Board meeting or Commission and/or Board hearing shall be posted in designated public locations within the community, at least 3 working days, as defined in NRS 241.015, prior to the meeting. Additionally, all agendas are posted and accessible on the Clark County internet web page at https://www.clarkcountynv.gov/

(d) Sign Notice

(1) Sign(s) shall be a minimum of 4 sf (2x2) in size with letters indicating the time of the public hearing and the application number; letters shall be a minimum 2 inches in height.

(2) Sign content shall include the following:

(i) Date, time, and place of the public hearing; and

(ii) A telephone number for interested persons to obtain additional information.

(3) Signs shall remain posted on the property until final action is complete.

(4) The sign shall be constructed to withstand the elements for 40 calendar days and shall use consistent colors for the background and lettering of the sign.

(5) Projects with tracts of land less than 15 acres require 1 notification sign.

(6) Projects with tracts of land exceeding 15 acres and exceeding 1,320 feet of street frontage require an additional sign.

(7) No more than 5 signs shall be required per application.

(8) When a manufactured home park proposes redevelopment to a different use, one additional sign at the entrance of the park's on-site management office shall be posted per NRS 118B.

iii. Adequate Notice

(a) Minor Defects in Notice Shall Not Invalidate Proceedings

(1) Minor defects in any notice shall not invalidate the hearing proceedings.

(2) Minor defects in notice are those that do not impede communication of the notice to affected parties. The notice shall be considered to have a minor defect where the content still effectively describes the proposed project, its location, application type, and date, time and location of hearing.

(b) Failure to Receive Notice Shall Not Invalidate County Action

The failure of any person or entity to receive notice sent as set forth in this Title shall not constitute grounds to invalidate the actions of the County.

3. General Hearing, Review, and Decision

i. The application shall be subject to review, recommendation(s), hearing(s), and decision(s) as indicated in Table 30.06-1: *Summary Table of Review Procedures*.

ii. The applicant has the burden of proof to demonstrate compliance with the applicable standards of approval set forth in this Title.

iii. The decision-making body listed in Table 30.06-1: *Summary Table of Review Procedures*, shall have the authority to take final action. The Board shall take final action in place of the Commission for applications submitted in conjunction with another application requiring Board action.

iv. For Commission recommendations forwarded to the Board, the Board meeting shall occur no sooner than the second zoning agenda following Commission action.

v. The decision-making body considers the project, relevant supporting materials, staff report, recommendations from other reviewing bodies, and any evidence and public comments from the hearing if required.

vi. The decision-making body may approve, approve with conditions, or deny based on the applicable approval criteria.

vii. The maximum density and intensity stated within a zoning district designation does not obligate the decision-making body to approve a development at the density or intensity proposed by an applicant, including up to the maximum. It shall be the obligation of the applicant to show, through sound land use planning practices and exceptional site and building design, that approval of a project at a proposed density or intensity is warranted.

4. General Request to Hold

i. Requests to hold applications and postpone consideration to a later date may be submitted by the property owner, applicant, Commission, Board, or staff.

ii. Once a request to hold is received, it cannot be withdrawn.

iii. The decision-making body may hold the application as requested, hold it to a date other than requested, or may vote to act on it.

iv. Per NRS 278.050 and 278.3195, the decision-making body shall not grant more than 2 continuances on the same matter without good cause shown.

v. When a request to reschedule an item is received, renotification may be required.

vi. Renotification is required after an item is consecutively held twice, or more than 85 calendar days have passed, since the scheduled hearing date of the last mailed notice.

vii. Insufficient funds shall cause an application to be removed from an agenda. If an item is removed from an agenda due to insufficient funds, the application shall expire if funds are not remitted within 3 months from the date of notice of required payment.

viii. An application held indefinitely shall expire if no request to reschedule has been received within 6 months. Applications must be placed on an agenda the next available meeting after the request has been received.

ix. Administrative applications placed on hold shall expire 6 months from original submittal date. If a request to proceed is received prior to the expiration date, the processing time clock starts from the date the request is received.

5. General Conditions of Approval

i. Any decision-making body may impose conditions necessary to meet the objectives of this Title and to mitigate potential adverse impacts of that development on the surrounding properties, communities, and streets.

ii. All conditions of approval shall be reasonably related to the anticipated impacts of the proposed use or development or based upon standards duly adopted by the County. Such conditions may include those necessary to carry out the purpose and intent of the Clark County Master Plan, other adopted County plans, and this Title.

iii. No conditions of approval shall be less restrictive than the requirements of this Title, except where the Code expressly allows otherwise.

iv. Any condition imposed by the Commission or Board designed to mitigate an adverse impact, even if the condition conflicts with any requirement of this Title, shall be granted without additional application, unless the condition would create a health or safety hazard (including, without limitation, sight zone or airport environs hazards).

v. Any condition imposed on a previously approved application may be waived or modified through approval of a Waiver of Conditions. The Commission may only waive or modify conditions imposed by the Commission; however, the Board may waive or modify conditions imposed by either body.

vi. If a prior approved application, or portion thereof, is expunged by a subsequent application approval, any prior conditions of approval shall also be considered expunged.

vii. A Development Agreement may be required to address:

(a) Public facilities and/or infrastructure needs, including but not limited to transportation, fire and police protection, flood control and drainage, parks, and open space, trails system, schools, water and sewer services, related to the proposed development or the cumulative impact of the proposed development, or as identified in the PFNA or RISE report; or

(b) The needs identified by the Southwest Las Vegas Valley PFNA Report.

viii. Conditions imposed on any application shall run with the land and be binding on the property owner and their successors.

6. General Effect of Approval

i. A decision of approval shall constitute a finding by the decision-making body that the application is consistent with the standards and purposes enumerated in the Master Plan, this Title, and/or the Nevada Revised Statutes.

ii. The approval of an application does not waive Building, Fire, or Business License codes, or any other requirements imposed by County, State, or Federal regulations or law.

7. General Effect of Denial

A decision to deny shall constitute a finding by the decision-making body that the application is inconsistent with the standards and purposes enumerated in the Master Plan, this Title, and/or the Nevada Revised Statutes.

8. General Expiration of Approval

Applications shall expire as described by each application type, or as otherwise approved.

F. General Post-Decision Actions

1. Finality of Decision

A decision becomes final at the expiration of the fifth working day if a request for appeal or reconsideration is not received. No permits or licenses shall be issued until the decision becomes final.

2. Notice of Action

i. Hearing

A Notice of Final Action shall be issued after the decision is final.

ii. Administrative

A Notice of Administrative Decision shall be issued the day of the decision, noting the decision is final after the appeal period.

iii. Contents

The notice shall:

(a) Contain any conditions of approval imposed upon the application by the decision-making body; and

(b) Be sent to the applicant listed on the application.

3. Changes to Approved Plans

After approval of any application, changes to the approved plan may require approval of a new application prior to proceeding with any development permits or map recordation.

4. Appeals

Decisions by the Commission, Zoning Administrator, Director of Public Works, and determinations by the Director made in the administration of this Title, may be appealed to the Board.

i. Filing an Appeal

(a) Any appeal must be submitted no later than 5 p.m. on the fifth working day following action on an application or receipt of a determination.

(b) All appeals shall be filed in writing, using the form on the Department of Comprehensive Planning County website, with exceptions as noted below:

(1) Appeal of a denial for a Vacation of Patent Easement shall file a Vacation and Abandonment application, which shall be considered by the Board.

(2) Appeal of an Extension of Time, Public Works for off-site improvements shall file a Waiver of Development Standards, which shall be considered by the Board.

(3) Appeal of a Minor Deviation, Public Works, shall file a Waiver of Development Standards, which shall be considered by the Board.

(4) Appeal of the conditions imposed by a technical impact analysis, shall file a Waiver of Development Standards, which shall be considered by the Board.

(5) Appeal of an approval of an expansion of the Gaming Enterprise District outside the Las Vegas Boulevard Gaming Corridor or the Rural Clark County Gaming Zone, per NRS 463, shall be to the review panel of the Gaming Policy Committee within 10 working days of the Board's decision.

(c) An appeal may be filed by:

(1) An applicant.

(2) Any person aggrieved by the decision. In accordance with NRS 278.3195, a person shall be deemed to be aggrieved if the person appeared, either in person, through an authorized representative or in writing, before a person or entity, on the matter which is the subject of the decision.

(3) A County Commissioner, or the County Manager.

(d) A Planning Commissioner who voted on an application may not file an appeal.

(e) Once an appeal has been filed, it cannot be withdrawn.

(f) Appeals must be placed on an agenda the next available meeting after the request has been received.

ii. Notice of Appeal

Notice of appeal shall follow the same mailed notice procedure required for the original application type. Anyone attending a Commission meeting who included mailing information on the sign-in sheet will also receive mailed notice.

iii. Review and Decision by the Board

(a) The Board may reverse or affirm, in whole or in part, the decision, determination, or conditions appealed.

(b) The Board may remand the matter to the original hearing body for consideration with a statement detailing the reason for the remand.

5. General Reconsideration

i. After the Board has taken final action on an application, any member of the Board who voted in favor of the motion that carried may request to reconsider the item. Requests for reconsideration shall be made in writing to the Director within 5 working days of the final action.

ii. The request for reconsideration suspends the finality of the original decision, and the reconsideration shall be placed on the second Board agenda after the request is made to determine whether reconsideration should move forward.

iii. If the Board directs staff to bring the reconsidered application forward, it shall be scheduled for a public hearing at a subsequent meeting of the Board subject to the same mailed notice procedure as the original application.

6. General Reconstruction or Reinstatement

i. Any application for the design and establishment of a structure that has been destroyed shall expire within 1 year from the destruction date unless the structure is reconstructed. When reconstruction is required, if reconstruction is commenced within 1 year, the application shall not expire, providing construction is continuous and building permits do not expire.

ii. Any application approving an established use that has been discontinued shall expire within 1 year if the use is not reestablished. A use shall be considered discontinued if the required license or permit for the use has expired.

iii. The conditions above do not apply if the use or structure is or has become nonconforming. See §30.01.09, *Nonconformities.*

30.06.04 Plan and Ordinance Amendments

A. Master Plan Amendment (PA)

1. Purpose

The purpose of this Section is to provide standards and procedures for the acceptance, processing, hearing, and final action on Master Plan updates and amendments, with the intent of providing for the orderly and efficient development of land. The amendment process is established to provide flexibility in response to changing circumstances and to reflect changes in public policy, and to advance the general welfare of the County.

2. PA Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Amendments and Updates to Planning Area(s) or Transportation Map(s)

Clerical errors and omissions may be administratively corrected at any time without a hearing.

ii. Planning Area Update Schedule

Each Planning Area should be reviewed, and revised, if appropriate, according to the schedule established by the Board. Each year, the Director of Comprehensive Planning may request direction from the Board whether to begin the process of comprehensively updating a Planning Area.

iii. Site-Specific Planning Area Amendments

The Board may initiate an amendment to a Planning Area.

iv. Planning Area Amendments Reconsideration Process

The Board may reconsider any part of an amendment in accordance with the reconsideration process.

v. Exceptions

The Board may initiate an amendment to incorporate an approved Specific Plan.

vi. Transportation Map Amendment

A Transportation Map must be amended prior to or concurrent with any land use request to reduce the width or modify the alignment of any roadway shown on the map(s).

vii. Pre-Submittal Conference

May be required per §30.06.03B, *Pre-Submittal Conference*.

viii. PA Review and Submittal

(a) Initiating Authority

(1) Property owner for site-specific amendments to the owner's property;

(2) Property owners abutting a trail or transportation alignment; or

(3) The Board. Upon receipt of a request by a member of the Board to amend the Comprehensive Master Plan, the Director of Comprehensive Planning shall prepare an agenda item to receive direction at a subsequent meeting of the Board.

(b) Submittal Requirement

Additional submittal requirement shall include:

1. Approval received in writing from the Board member in whose district the request is located; or, if such Board member is constrained by ethical conflicts of interest, the request for acceptance shall be placed on an agenda for the Board to consider.

2. A summary of a neighborhood meeting consisting of a copy of the mailed notice, mailing list, meeting attendee log, and meeting summary. Neighborhood meetings are not required for plan amendments initiated by the Board when within the boundaries of a Town Board or for area specific land use plan updates.

ix. PA Analysis

(a) Standards for Approval

The Commission and Board shall evaluate proposed Master Plan amendments based on whether and the extent to which they will serve the general prosperity, health, safety, and/or welfare of the County.

x. PA Public Meeting(s) and Decision

(a) Required Public Notice

Newspaper, Mailed, and Posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities

(i) Site-specific requests: Town Board(s), government entities, and Commission.

(ii) Transportation Map Amendments: Town Board(s), government entities, and Commission. Public Works and RTC recommendation prior to Town Board meeting or neighborhood meeting.

(iii) All other Master Plan Amendments: Agencies and Commission.

(2) Hearing

Public Hearing required.

(3) Decision-Making Body

(i) Commission

The affirmative vote of not less than two-thirds of the total Commission membership shall be required to adopt any amendment. The Commission shall forward a certified copy to the Board for final action.

(ii) Board Final Action

Following Commission action, the Board shall conduct a public hearing to consider the amendment.

a) If the Board adopts the amendment certified by the Commission, the amendment shall be considered effective, and no further action is required.

b) Pursuant to NRS 278.220, if the Board denies or adopts the amendment with changes from the Commission's certified copy, a report of the Board's action shall be submitted to the Commission.

c) The Commission may respond in a report addressing the Board's action which shall be filed with the Board within 40 days. The effective date of the amendment shall then be the date the Commission report is received by the Board.

d) If the Commission does not respond within 40 days, the effective date is the date the Board adopted the amendment.

e) The Board may only consider an amendment that has been considered by the Commission.

f) The denial of an amendment shall constitute a finding that the amendment is inconsistent with the standards and purposes enumerated in the Master Plan, this Title, and/or the Nevada Revised Statutes.

B. Rezone (Zone Change) (ZC)

1. Purpose

The purpose of a Rezone (Zone Change) is to amend the Official Zoning Map of Clark County and zoning overlay districts. The purpose is neither to relieve hardships nor to confer special privileges or rights on any person.

2. ZC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Pre-Submittal Conference

May be required per §30.06.03B, *Pre-Submittal Conference.*

ii. ZC Review and Submittal

(a) Standards for Acceptance

(1) Amendments to the Official Zoning Map shall only be accepted when consistent with the Master Plan land use category.

(2) Applications may be submitted on or after the adoption date of the Planning Area; however, such applications shall not be acted upon prior to the effective date of the adopted land use plan.

(3) Amendments may follow the parcel lines identified on the Clark County Assessor's parcel map(s) if the submitted legal description does not match parcel boundaries, unless the reclassification request includes more than one district within the parcel or is for only a portion of the parcel.

iii. ZC Analysis

(a) Standards for Approval

In addition to the general standards of approval in §30.06.03D.7, *General Standards for Approval* , the following shall be met:

(1) The existence or approval of a Master Plan land use category shall not be construed to obligate the Board to approve a request for a zoning district.

(2) The zoning district density and intensity of uses shall be compatible with the surrounding area.

(3) If the allowable density or intensity of use is sought to be reduced, and at least 20% of the owners within the notification radius object to the change, the Board shall consider the merits of the objections and shall make a written finding that the public interest and necessity will be promoted by the change.

iv. ZC Public Meeting(s) and Decision

(a) Required Public Notice

(1) Newspaper, Mailed, Posted notices, Signs.

(2) Establishing a Historic Neighborhood Overlay: Mailed notice shall also be sent to the State Historic Preservation Office.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, plus cities for projects of regional significance, and Commission when processed concurrently with an application requiring a recommendation from the Commission.

(2) Hearing

Public Hearing required.

(3) Decision-Making Body

Board. A request may be approved as submitted or may be reduced to a more restrictive district, within the specific residential, commercial, or manufacturing zoning district category. A Rezone request to a less restrictive different zoning district category requires renotification.

v. Post-Decision Actions

(a) An ordinance to finalize the zoning and amend the Official Zoning Map or establish/modify a zoning overlay district shall be prepared and introduced for consideration by the Board.

(b) Approval of a zoning district shall not obligate the decision-making authority to approve a development proposing the maximum density or intensity of uses of that district.

C. Title 30 Text Amendment (TA)

1. Purpose

This Title 30 may be amended to respond to changed conditions or changes in public policy, or to advance the general welfare of the County.

2. TA Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. TA Review and Submittal

Any member of the Board may direct the Director to prepare an ordinance and schedule it for introduction and a public hearing.

(a) Initiating Authority

(1) An amendment to this Title may be initiated by the Director of Comprehensive Planning, the Director of Public Works, the Director of Department of Building, the Board, or any Board member.

(2) A person with a property interest related to the requested Text Amendment.

(b) Standards for Acceptance

A person with property interest shall obtain the concurrence of a Board member prior to submission of a Text Amendment.

ii. TA Analysis

(a) Standards for Approval

(1) A Text Amendment is a legislative decision by the Board.

(2) The Text Amendment does not and is not intended to relieve particular hardships nor to confer special privileges or rights upon any person or property.

(3) The Commission and Board shall consider whether and to what extent the proposed amendment:

(i) Serves the general prosperity, health, safety, and/or welfare of the entire County;

(ii) Is consistent with the Master Plan and other County plans;

(iii) Does not conflict with other subsections of this Title or other Chapters in the Clark County Code;

(iv) Is necessary to address a demonstrated community need; and

(v) Is necessary to respond to substantial changes in conditions and/or policy.

iii. TA Public Meeting(s) and Decision

(a) Required Public Notice

(1) Generally: Posted notice.

(2) Amendment to airport zoning regulations: notice in accordance with NRS 497.080.

(b) Hearing, Review and Decision

(1) Recommending Entities
Government entities, Town Board, and Commission.

(2) Hearing
Public Hearing required.

(3) Decision-Making Body
Board.

(c) Effect of Approval
Approval shall serve as direction to the Director to prepare an ordinance.

iv. TA Post-Decision Actions

(a) The Director shall schedule an ordinance incorporating the Text Amendment changes into Title 30 for introduction and a public hearing in accordance with NRS 244.095 through 119.

(b) Any related application may be submitted after an enabling Text Amendment ordinance has been adopted; however, the application shall not be acted upon before the effective date of the ordinance.

30.06.05 Application Types

A. Administrative Design Review (ADR)

1. Purpose

Administrative Design Review is intended to ensure compliance with the development and design standards of this Title.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ADR Review and Submittal

(a) Standards for Acceptance

(1) Administrative Design Review may be required for the following or as otherwise specified in this Title:

(i) Initial non-single-family development with less than 25,000 square feet of total building area;

(ii) Changes from prior land use approval for non-single-family development exceeding the requirements within Section 30.06.06 shall not exceed a total building area of 25,000 square feet. A design review is required for changes exceeding 25,000 square feet of building area.

(iii) Additions after original approval or construction, including but not limited to: Retail/vending structures; electric vehicle charging stations; windmill and similar water dispensers; smog checks; ATMs; drycleaners; drive-thru windows and other features added to address parking, parking lot design, queuing, onsite circulation, and landscaping;

(iv) Development located within a PF district if the proposed development will not have significant impacts to the neighboring area; and

(v) As determined by the Director.

(2) An application for Administrative Design Review shall not be accepted if a deed modification is required.

ii. ADR Analysis

(a) Processing Timeline

10 working days.

(b) Standards for Approval

(1) The proposed development is compatible with adjacent development and is harmonious and compatible with development in the area;

(2) Elevations, design characteristics and others architectural and aesthetic features are not unsightly or undesirable in appearance; and

(3) Site access and circulation do not negatively impact adjacent roadways or neighborhood traffic.

iii. ADR Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government Entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

2 years to commence, unless otherwise approved.

iv. ADR Post-Decision Actions

(a) Changes to Approved Plans

Changes that cannot be accommodated through a Revised Plan shall require a new Administrative Design Review, Design Review, and/or Waiver of Development Standards.

B. Design Review (DR)

1. Purpose

Design Review is intended to ensure compliance with the development and design standards of this Title.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Pre-Submittal Conference

May be required per §30.06.03B, *Pre-Submittal Conference*.

ii. DR Review and Submittal

(a) Standards for Acceptance

Design Review is required for the following or as otherwise specified in this Title, unless the Director, Commission, or Board determines such is not necessary:

(1) All new single-family attached residential construction;

(2) Initial non-single-family development with total building area of 25,000 square feet or more;

(3) Changes in previously approved uses or primary structures;

(4) When in conjunction with any other required application;

(5) Initial development located within a PF zoning district; or

(6) As determined by the Director.

iii. DR Analysis

(a) Standards for Approval

(1) The proposed development is compatible with adjacent development and is harmonious and compatible with development in the area;

(2) Elevations, design characteristics and others architectural and aesthetic features are not unsightly or undesirable in appearance; and

(3) Site access and circulation do not negatively impact adjacent roadways or neighborhood traffic.

iv. DR Public Meeting(s) and Decision

(a) Required Public Notice. Mailed and Posted notice, plus:

(1) If a public hearing is required by the Commission, Board, or Director for a subsequent application, the notice shall require the Mailed Notice radius for Design Review, unless a larger mailed notice is required by the subsequent use/application type.

(b) Hearing, Review, and Decision

(1) Recommending Entities. Government entities, public utilities, and Town Board, plus cities for projects of regional significance.

(2) Hearing. Public Hearing.

(3) Decision-Making Body. Commission, except Board for the following:

(i) When required as a condition of approval of any final action by the Board;

(ii) Those submitted in conjunction with, or in lieu of, another application requiring Board approval;

(iii) Modifications to an application or development previously approved by the Board;

(iv) Projects of Regional Significance;

(v) Applications for development within a Historic Designation Overlay per §30.02.26D.4, *Procedure for Review of New Construction, Alteration, and Demolition*;

(vi) Property requiring deed modification pursuant to the Cooperative Management Area Deed Modification Policy; and

(vii) At the discretion of the Director.

(4) Expiration of Approval

2 years to commence, unless otherwise specified. When heard in conjunction with a Tentative Map, the expiration date shall match the corresponding application.

v. DR Post-Decision Actions

(a) Changes to Approved Plans

Any changes that cannot be accommodated through a Revised Plan shall require a Design Review, and/or a Waiver of Development Standards.

C. Planned Unit Development (PUD)

1. Purpose

A Planned Unit Development (PUD) allows greater flexibility than allowed by the strict application of this Title, and/or unique or innovative land use concepts, while providing greater public benefits to the County in support of the Master Plan goals.

2. PUD Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Pre-Submittal Conference

May be required per §30.06.03B, *Pre-Submittal Conference.*

ii. PUD Review and Submittal

(a) Application Content

(1) A PUD may be submitted for any contiguous area of five acres or more within any combination of zoning districts or for any infill residential development.

(2) A PUD plan shall be prepared and submitted for purposes of establishing the development regulations for a planned development and specifically identifies where there are modifications from this Title.

(i) Where the applicant is proposing modifications from the zoning regulation of this Title, the applicant shall specify both the existing regulations and the wording of each corresponding substitution, as proposed.

(ii) The PUD plan shall demonstrate how the proposed PUD will generally provide public benefits to justify the increased flexibility offered by the County through the PUD procedure.

(b) Standards for Acceptance

The PUD procedure shall not be used when a Special Use Permit, Variance, Waiver of Development Standards, Minor Deviation, or Rezone (Zone Change) to an existing base zoning district could achieve a similar result.

iii. PUD Analysis

(a) Standards for Approval

In reviewing a proposed PUD, the Commission and Board shall consider whether and to what extent the proposed PUD:

(1) Complies with this Title, except where modifications are expressly authorized through the PUD zoning document, the PUD development standards document, and in the PUD development plan map;

(2) Addresses a unique situation, provides substantial benefit to the County, or incorporates a greater level of building design quality, community amenities, and connectivity than would be required if the project were not being developed in a PUD;

(3) In the case of proposed residential development, that the development will promote compatible buildings and uses and that it will be compatible with the character of the surrounding area;

(4) In the case of proposed commercial, industrial, institutional, recreational, and other nonresidential uses or mixed-uses, that such development will be appropriate in area, location, and overall planning for the purpose intended; and

(5) Public facilities such as schools, fire protection, law enforcement, water, wastewater, streets, public services, and parks are adequate to serve the anticipated population within the PUD.

iv. PUD Public Meeting(s) and Decision

(a) Required Public Notice

Mailed and Posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, plus cities for Projects of Regional Significance.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Board.

(4) Expiration of Approval

2 years to commence. When heard in conjunction with Tentative Map, the expiration date shall match the corresponding application.

v. PUD Post-Decision Actions

(a) Future Development

All future development within the PUD shall be in conformity with the approved PUD plan and the applicant may proceed with the development of the property by applying for any necessary plan or plat approval(s).

(b) Administration and Enforcement

While ownership of a project may subsequently be transferred (in whole or in part), the PUD plan shall continue to be implemented and maintained on the total acreage of the PUD. Prior to issuance of any development permits, a copy of the PUD plan shall be recorded against the property.

(c) Amendments to a Planned Unit Development

The applicant or its successors may request amendments to the PUD plan. Amendments shall be delineated as major or minor amendments, according to the criteria set forth below. Amendments to the approved PUD plan will not affect development units not included in the proposed amendment.

(1) Major Amendments

A major amendment shall be processed as a new PUD. An amendment will be deemed major if it involves any one of the following:

- **(i)** A change in the overall PUD boundary;
- **(ii)** A significant change to the approximate boundary of one or more development unit(s) from that approved in the PUD. A change to an individual development unit generally shall be deemed to be significant if it represents a 10% increase to the approximate gross area of the development unit as approved in the PUD;
- **(iii)** An increase of 10% or more of the approved number of projected dwelling units or gross leasable area (GLA) for an individual development unit;
- **(iv)** Any change in land use or density that is likely to negatively impact or burden public facilities and utilities infrastructure as determined by the Director;
- **(v)** Any change in land use or density that is likely to negatively impact or burden mobility adjacent to the PUD or to the overall major street system; or
- **(vi)** Any other proposed change to the development plan, which substantively alters one or more components of the PUD.

(2) Minor Amendments

- **(i)** Amendments not meeting one or more of the criteria listed above for major amendments, and meeting the requirement below, shall be considered minor.
- **(ii)** Letters of consent shall be included, which must clearly illustrate or describe the proposed amendment. Letters shall be signed by adjacent property owners.
- **(iii)** Minor amendments may request an administrative application, which may include conditions of approval.

D. Special Use Permit (UC)

1. Purpose

i. Generally

The Special Use Permit procedure provides a mechanism for the County to evaluate proposed development and land uses that have unique or widely varying operating characteristics or unusual features. This procedure is intended to ensure compatibility with surrounding areas.

ii. UC Gaming Enterprise District

- **(a)** The Gaming Enterprise District (GED) is an area suitable for operating a nonrestricted license in accordance with NRS 463 and may be expanded after meeting specific criteria that identify areas suitable for the potential expansion of gaming activities and resort hotel uses. Property within the Las Vegas Boulevard Gaming Corridor continuously zoned H-1 as of July 16, 1997 is included within the GED. H-1 zoning has been updated to CR (Commercial Resort) on January 1, 2024 per Ord.5060.
- **(b)** An expansion of the GED will only occur after a Special Use Permit has been approved to establish a resort hotel (or rural resort hotel) and a nonrestricted gaming license has been issued. After approval of a Special Use Permit to expand the GED, the property will be treated as being within the GED for the purpose of issuing building permit(s) and business license(s) for the project.

2. UC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Pre-submittal Conference

ii. May be required per §30.06.03B, *Pre-Submittal Conference.*

iii. UC Review and Submittal

(a) Standards for Acceptance

A Special Use Permit is required when specified in this Title. The following uses must comply with the listed standards:

(1) Cannabis Establishment

A separate application is required for each Cannabis Establishment use.

(2) Limitations on Expansion of Gaming Enterprise District

Applications to expand the GED by expanding an existing development or establishing a new development shall include evidence certified by a professional land surveyor licensed in the State of Nevada demonstrating conformity with the separation requirements listed below only under the following circumstances, which shall not be waived or varied:

(i) The property is zoned Commercial Resort (CR)and

(ii) The property is within the Las Vegas Boulevard Gaming Corridor, as defined in NRS 463.3076; or

(iii) The property is exempt by NRS 463 from the provisions of NRS 463.3086; or

(iv) The property is within an area designated by the Master Plan as Entertainment Mixed-Use (EM) outside of the Las Vegas Boulevard Gaming Corridor. However, if the property is within the Las Vegas Valley BLM Disposal Boundary and is not exempted from the provisions of NRS 463, it shall also conform to the separations below. Property within the Rural Clark County Gaming Zone per NRS 463 is not required to meet the separations.

a) Is 1,500 feet from the property upon which any structure, including structures within another political subdivision, used primarily for religious services, or school for pre-school through grade 12 as defined by NRS 394.103 or NRS 385.007; and

b) Is 500 feet from the property line of a developed residential district, including uses within another political subdivision. For this subsection, a developed residential district means a parcel of land zoned primarily for residential use in which at least 1 completed residential unit has been constructed on the date of the application for enlargement or establishment. A parcel in the Commercial Resort (CR) district that is also designated as Entertainment Mixed-Use (EM) by the Master Plan, shall not be considered land zoned primarily for residential use regardless of any existing, proposed, or approved use on that parcel of land; or

(v) Any other property shall:

a) Be a minimum of 5,000 feet from the lot line of any residential use, school for pre-school through grade 12 as defined by NRS 394.103 or NRS 385.007, or place of worship;

b) Not be within the Cooperative Management Agreement Area;

c) Contain a minimum of 50 acres;

d) Have a minimum lot depth of 600 feet; and

e) Have immediate access to freeways/beltways and or future frontage roads via arterial streets or access roads within ¼ mile of the freeway/beltway on-ramps/off-ramps. The Board may consider other locations that deviate from this requirement where the location generally meets the intent of this subsection.

(vi) Where property is zoned residential, but undeveloped and designated for nonresidential use by the Master Plan, separations shall be considered based on the land use category designation. Where the land use designates a mixture of residential and nonresidential uses, the separation requirements shall be considered a residential designation.

(vii) GED Support Material

GED expansion requests shall include written documentation demonstrating that:

a) The roads, water, sanitation, utilities, and related services to the location are adequate;

b) The proposed establishment will not unduly impact public services, consumption of natural resources, and the quality of life enjoyed by residents of the surrounding neighborhoods;

c) The proposed establishment will enhance, expand, and stabilize employment and the local economy;

d) The proposed establishment will be located in an area planned or zoned for that purpose pursuant to NRS 278.010 to 278.630, inclusive;

e) The proposed use shall not adversely affect any developed residential district, or any structure used primarily for religious services, or school for pre-school through grade 12 as defined by NRS 394.103 or NRS 385.007 within 2,500 feet; and

f) The proposed establishment will not be detrimental to the health, safety or general welfare of the community or be incompatible with the surrounding area.

(3) Neighborhood Casino

To establish a neighborhood casino, at least one neighborhood meeting with property owners within a 2,500-foot radius shall be required prior to application submittal.

(4) Monorail

The developer of a monorail shall be treated the same as a public utility for the sole purpose of determining the initiation of an application.

iv. UC Analysis

(a) Standards for Approval

Requests shall be considered subject to Commission and/or Board discretion in consideration of the general standards for approval in §30.06.03D.7, *General Standards for Approval* , and the following specific standards:

(1) Special uses shall not be permitted by right, but shall be considered on a case-by-case basis subject to the discretion of the Commission and/or Board in consideration of the Master Plan.

(2) The proposed use shall be in harmony with the purpose, goals, objectives, and standards of the Master Plan and this Title.

(3) The proposed use shall not result in a substantial or undue adverse effect on adjacent properties, character of the neighborhood, traffic conditions, parking, public improvements, public sites or right-of-way, or other matters affecting the public health, safety, and general welfare; and

(4) The proposed use will be adequately served by public improvements, facilities, and services, and will not impose an undue burden.

(5) Cannabis Establishments

The following additional factors shall apply in determining which, if any, proposed location for a Cannabis Establishment is appropriate and best-suited to serve the needs of the residents of Clark County:

(i) Whether crime in the area poses an undue threat to the security of the proposed Cannabis Establishment, its products, employees or prospective patrons;

(ii) Whether the design of the proposed Cannabis Establishment maintains a professional appearance;

(iii) Whether the proposed Cannabis Dispensaries are properly dispersed throughout the more populous area of Clark County so that those authorized to use medical cannabis will have convenient access to a sufficient distribution of cannabis for medical use, while also considering whether the locations that are approved, if any, do not adversely impact any one area by being located too closely to another Dispensary.

(iv) Whether the Cannabis Dispensary is proximately located to medical offices, pharmacies, neighborhood services or similar facilities, including by way of public transportation, such that patrons of a Dispensary may conveniently access other facilities serving their medical needs.

(v) Whether the Cannabis Retail Store is adequately separated from other Cannabis Retail Stores to prevent a high concentration of stores within close proximity.

(vi) Whether the proposed Cannabis Consumption Lounge has received concurrence on an Impaired-Driver Prevention Plan from the Clark County Office of Traffic Safety.

(vii) Any Cannabis Establishment that obtains a Cannabis Establishment Certificate/License from the State without obtaining the appropriate land use approval from Clark County shall not be considered a legal use and a business license shall not be issued unless all required land use approvals for the Cannabis Establishment have been obtained.

(6) Above-Ground Transmission Lines

Requests for above-ground transmission lines 200kv or greater, which are located outside the corridors identified in the Aboveground Utility Corridors Map of the Master Plan shall demonstrate that:

(i) The construction of the aboveground transmission line des not conflict with any existing or planned infrastructure or other utility projects; and

(ii) The proximity of the proposed site does not negatively impact any school, hospital, or urban residential area with a density greater than two dwelling units per acre.

(7) Expansion of Gaming Enterprise District

Requests to expand the Gaming Enterprise District shall demonstrate that all applicable requirements have been met.

v. UC Public Meeting(s) and Decisions

(a) Required Public Notice

Mailed and Posted notice, except for the following:

(1) UC Gaming Enterprise District Expansion

(2) Mailed notice with 2,500-foot radius, posted notice, and sign(s).

(3) Neighborhood Casino

Newspaper notice in a newspaper of general circulation within the County, minimum ⅛ of page, substantially concurrent with the time mailed notices are sent. Content of advertising is left to applicant, but must be approved by staff. Mailed notice with 2,500-foot radius, sign(s), and posted notice.

(4) Explosives, Hazardous Materials or Waste in Amounts Regulated by NRS and NAC

Newspaper notice, mailed notice, posted notice, and signs. The same notice must be provided for hearings before both the Commission and Board, at least 30 days before the date of each respective hearing. Such notice must also be sent to the entities listed in NRS 278.147:

(i) The Administrator of the Nevada Division of Environmental Protection of the Department of Conservation and Natural Resources;

(ii) The State Fire Marshal; and

(iii) The Administrator of the Nevada Division of Industrial Relations of the Department of Business and Industry.

(5) Alcohol as Primary Use Outside a Gaming Enterprise District

For any liquor store, tavern, or other establishment whose primary business is the on/off-premises consumption of alcohol shall also include a sign pursuant to NRS 278.315.

(6) Redevelopment of Manufactured Home Park

(7) Signs per §30.06.03E.2.ii(d)(8).

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, plus:

(i) For a Project of Regional Significance: Cities.

(ii) For Explosives, Hazardous Materials or Waste: entities listed under NRS 278.147.

(2) Hearing

(3) Public hearing required.

(4) Expansion of Gaming Enterprise District

(i) Upon receipt of the documentation required above, the Board shall hold a public hearing in accordance with the procedures established in §30.06.03, *Common Review Procedures*.

A majority vote of the total membership of the Board, meaning the entire elected or appointed membership of the Board, but does not include members present at a meeting who abstain for ethical reasons, is required to approve an application for such a use.

(ii) Applicant is required to provide a court reporter in accordance with NRS 463.3086 and 656.

(iii) Following the public hearing, the Board shall either grant or deny the petition. The Board may grant a petition only if it is determined that the proponents have brought forth adequate evidence to demonstrate that the petition meets the requirements of §30.06.05D.2.iii(a)(2)(vii), *GED Support Material.*

(5) Decision-Making Body

(i) Commission, except for the following, when the recommendation of the Commission shall be forwarded to the Board for final decision:

a) Establish a facility for Explosives, Hazardous Materials or Waste in amounts regulated by NRS and NAC and as required pursuant to 278.147.

b) Expand or establish Monorail.

(ii) Board for the following:

a) Development requiring a pre-submittal conference prior to submittal;

b) Expand the Gaming Enterprise District;

c) Establish a heliport;

d) Project of Regional Significance;

e) Redeveloping manufactured home parks to a different use;

f) Exotic or wild animals and inherently dangerous exotic or wild animals;

g) Cannabis establishment;

h) Transitional living facility for released offenders;

i) Property requiring a deed modification pursuant to the Cooperative Management Area Deed Modification Policy;

j) A Special Use Permit request submitted in conjunction with, or in lieu of, another application requiring Board approval; and

k) At the discretion of the Director.

(6) Expiration of Approval

2 years to commence, unless otherwise approved. When heard in conjunction with Tentative Map, the expiration date shall match the corresponding application.

E. Concept Specific Plan (MPC)

1. Purpose

The Concept Specific Plan procedure provides a mechanism for review of large and/or complex development projects. The Concept Specific Plan is a general development plan reviewed for potential impacts prior to a Specific Plan.

2. MPC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Pre-Submittal Conference

Required per §30.06.03B, *Pre-Submittal Conference.*

ii. MPC Review and Submittal

(a) Application Contents

A Concept Specific Plan application shall include the types of uses and zoning designations required for such including:

(1) General development standards, including landscaping, streetscape, buffering and screening between uses; and design standards;

(2) All land uses within the project, which must follow the designations found in the Master Plan; and

(3) Phasing plan.

iii. MPC Analysis

(a) Draft Concept Specific Plan

The applicant shall present a draft Concept Specific Plan to the Town Board within 30 days from application submittal.

(b) Final Concept Specific Plan

The applicant shall submit a Final Concept Specific Plan. Once received, the application will be scheduled for Town Board, Commission, and Board meetings for final action.

(c) MPC Standards for Approval

The application may be approved if the Board determines the intent of a Concept Specific Plan has been met.

iv. MPC Public Meeting(s) and Decision

(a) Required Public Notice

Mailed notice with 2,500-foot radius, Posted notice, and Signs.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, cities, and Planning Commission.

(2) Hearing

Public Hearing required.

(3) Decision-Making Body

Board.

(4) Expiration

1 year if a Specific Plan has not been submitted.

F. Specific Plan (MPS)

1. Purpose

The Specific Plan procedure provides a mechanism for review of large and/or complex development projects. The Specific Plan is reviewed for compliance with the development and design standards of this Title, and allows the Board to ensure that potential impacts of development are considered before plan approval or issuance of a building permit.

2. MPS Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. MPS Review and Submittal

(a) Contents

Application shall include a Public Facilities Needs Assessment (PFNA).

(b) MPS Standards for Acceptance

(1) A Specific Plan application shall include the following at minimum:

(i) Applicable development and design standards, including landscaping, streetscape, and buffering and screening between uses;

(ii) Signage;

(iii) Transportation plan,
(iv) All land uses within the project, which must follow the designations found in the Master Plan; and
(v) Phasing plan.

(2) The Specific Plan must also demonstrate resolution of issues related to development of the project identified by the Board and staff.
(3) The PFNA must address resolution of all issues related the development of the project identified by the Board, staff, and all involved departments and agencies.
(4) If the proposed Specific Plan is not in conformance with the adopted land use plan, a plan amendment in accordance with §30.06.04A**,** *Master Plan Amendment (PA)***,** must be approved by the Board after the approval of the Specific Plan.

ii. MPS Analysis

(a) Standards for Approval

The application may be approved if the Board determines that the application meets the general standards of approval in §30.06.03D.7, *General Standards for Approval* , and the following:

(1) The Specific Plan is consistent with community goals, compatible with existing and planned land uses, and addresses issues identified in the PFNA.
(2) The Specific Plan and PFNA will ensure adequate public services including transportation, fire and police protection, flood control and drainage, parks and open space, trails system, schools, and water and sewer services;
(3) The proposed phasing for facilities and services adequately address the needs of the proposed development, and
(4) Existing services to established development will not be significantly affected.

iii. MPS Public Meeting(s) and Decision

(a) Required Public Notice

Mailed notice with 2,500-foot radius, and Posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities
Government entities, Town Board, cities, and Commission.

(2) Hearing
Public hearing required.

(3) Decision-Making Body
Board.

(4) Conditions of Approval

(i) Generally

a) The Board may identify issues, significant improvements and anticipated phasing, and may modify the PFNA and/or Specific Plan as needed.
b) Approval of the PFNA and/or the Specific Plan shall not confer the right to commence development, but shall instead provide guidance regarding the potential of the project and the issues which need to be resolved to the satisfaction of the Board through subsequent applications and agreements.

(ii) Specific Plan

a) The approval of the Specific Plan establishes the allowable land use categories.
b) The applicant shall process a Planning Area Map amendment per §30.06.04A to adopt the land use categories approved in the Specific Plan.

(5) Expiration of Approval

Once a Specific Plan is incorporated into a Planning Area, there is no time limit. If a Specific Plan is not incorporated into a Planning Area, any approved Specific Plan for which land use applications for development have not been submitted within two years of the approval shall expire, and all approvals shall be void, unless an Extension of Time has been submitted.

iv. MPS Post-Decision Actions

(a) Addition to Zoning Map

After Specific Plan approval, the property shall be identified as a Planned Community on the Official Zoning Map.

(b) Extension of Time

Any request for an Extension of Time requires an updated project analysis.

(c) Amendments

During construction, the Director may authorize minor adjustments without requiring resubmittal of an application provided such adjustments:

(1) Comply with the standards of this Title;

(2) Are necessary to meet provisions of the building code or other life safety code;

(3) Are necessary to meet conditions of approval by other city, county, or state departments and/or agencies; or

(4) Would not significantly alter the function, form, intensity, character, demand on public facilities, or impact on adjacent properties as approved with the Design Review.

G. Temporary Use (TC)

1. Purpose

The Temporary Use procedure provides a mechanism for the County to evaluate prospective uses and/or structures on private property of limited duration to ensure compliance with applicable standards of this Title, including §30.03.01E, *Temporary Uses and Structures*.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Review and Submittal

(a) Standards for Acceptance

(1) Applications shall only be accepted when permissible in Table 30.03-1: *Summary Table of Allowed Uses*, as temporary (T) or as required by Chapter 30.05, *Signs*.

(2) Specialty Signs proposed in conjunction with seasonal sales or a special event, the sign request may be processed concurrently with the temporary use application for the seasonal sales or a special event.

(3) Applications must be submitted at least 30 days prior to the start date of the seasonal sales, special event, or sign installation.

ii. TC Analysis

(a) Processing Time

(1) Seasonal sales and special event: 10 working days.

(2) Specialty signs: 5 working days.

(b) Standards for Approval

The Temporary Use shall be approved upon demonstration that the proposed temporary use is appropriate at the proposed location during the proposed period.

iii. Public Meeting(s) and Decision

(a) Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

(2) Government entities.

(3) Hearing

(4) None required.

(5) Decision-Making Body

(6) Zoning Administrator.

(7) Conditions of Approval

(8) Limited to the approved dates.

30.06.06 Flexibility and Relief Procedures

A. Administrative Extension of Time (ADET)

1. Purpose

To extend an approved application's expiration date.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ADET Review and Submittal

(a) Standards for Acceptance

(1) A request shall be submitted prior to the expiration date or no later than 5:00 p.m. on the actual expiration date. When the expiration date is not a working day, the application shall be submitted on the last working day prior to expiration.

(2) An Administrative Extension of Time may only be granted for the first extension of time of a land use application. An application for an Administrative Extension of Time shall not be accepted where the Notice of Action requires a subsequent application as a Public Hearing or the Notice of Action prohibits an Extension of Time.

(3) For Vacation and Abandonment, see §30.06.08F, *Vacation and Abandonment (VS).*

(4) Tentative Maps are not eligible for an Administrative Extension of Time.

ii. ADET Analysis

(a) Processing Timeline

10 working days.

(b) Standards of Approval

Conditions have not substantially changed to warrant a denial. Consideration may include, but is not limited to, a change to the subject property, a change in the areas surrounding the subject property, or a change in the laws, regulations, or policies affecting the subject property.

iii. ADET Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Conditions of Approval

Any Original Conditions of Approval that applied to the original approval shall apply.

(5) Expiration of Approval

1 year from the original expiration date. If a separate land use application which is related to a previously approved land use application for the same project is active, the expiration date may be extended to match the expiration date of said application, even if it is more than one year from the original expiration date.

B. Extension of Time (ET)

1. Purpose

An applicant may request to extend the expiration time of any application.

2. ET Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ET Review and Submittal

(a) Standards for Acceptance

A request to extend an application shall be submitted prior to the expiration date or no later than 5:00 p.m. on the day the application is due to expire. When the expiration day is not a working day, the application shall be submitted on the last working day prior to expiration.

ii. ET Analysis

(a) Standards of Approval

(1) Conditions have not substantially changed to warrant a denial. A substantial change may include, without limitation, a change to the subject property, a change in the areas surrounding the subject property, or a change in the laws, regulations, or policies affecting the subject property.

(2) Project is progressing through the applicable development permit or licensing process.

iii. ET Public Meeting(s) and Decision

(a) Required Public Notice

(1) Mailed and Posted notice. Where the mailed notification radius on the original application was greater than 1,500 feet, the ET notification radius shall match that of the original application.

(2) When the original application was a Waiver of Development Standards for a standard in §30.04.08, *Public Works Development Standards,* or a Tentative Map, mailed notice is not required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and Town Board.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Commission or Board; original decision-making body.

(4) Conditions of Approval

(i) Project is subject to any previous Conditions of Approval.

(ii) Decision-making body may add or modify conditions if it finds that circumstances have changed.

(5) Expiration of Approval

2 years to commence, unless the Commission or Board determines otherwise.

C. Minor Deviation (AV)

1. Purpose

The Minor Deviation procedure is intended to allow minor deviations from various standards of this Title. Minor Deviations are intended to provide greater flexibility without requiring a Waiver of Development Standards or Variance, or other land use application.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. AV Review and Submittal

(a) Application Content

(1) Multiple deviations may be included on one application; however, each deviation requires separate analysis per the approval criteria in §30.06.06C.

(b) Standards for Acceptance

In addition to where otherwise allowed in this Title, a Minor Deviation may be requested as follows:

(1) To remediate a construction error (even when this Title prohibits Minor Deviations or Waivers of Development Standards), if the approved building permit plans showed the correct standard and previous related inspections were approved.

(2) Up to 10% of the following standards:

Table 30.06-2: Deviations to Standards

Code Standard
SITE STANDARDS
Lot area, minimum
Lot coverage, maximum
LOT DIMENSIONAL STANDARDS
Front setback, minimum
Side setback, minimum
Rear setback, minimum
Encroachment into setback pursuant to Table 30.02-4, Authorized Encroachments into Required Setbacks, maximum
BUILDING STANDARDS
Structure height, maximum (excludes wireless communication antennas and towers)
Accessory building height, maximum (excludes wireless communication antennas and towers)
DEVELOPMENT STANDARDS
Number of required parking spaces, maximum or minimum
Lighting height, maximum
Fence or wall height, maximum

(3) Letters of consent from adjacent affected property owners, but not vacant property owned by the federal government, are required for any deviations pursuant to Table 30.06-2: *Deviations to Standards*, and where a Minor Deviation is otherwise allowed in this Title.

(4) Applications are prohibited for the following:

(i) Increased density.

(ii) Minimum lot area for properties subject to the Lone Mountain Interlocal Agreement when the resulting net lot size would be reduced below 18,000 square feet.

(iii) Minimum driveway length requirements.

(iv) Structures over 200 feet in height.

(v) Deviations to further increase or reduce a previously approved Minor Deviation, Waiver of Development Standards, or Variance.

ii. AV Analysis

(a) Processing Timeline

10 working days.

(b) Standards for Approval

(1) The deviation will not adversely affect adjacent property or property owners.

(2) The deviation complies with all other provisions of this Title.

iii. AV Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

2 years to commence, unless otherwise approved.

D. Variance (VC)

1. Purpose

The Variance procedure is intended to afford relief to property owners with lots where there are special circumstances or conditions peculiar to the property or building by reason of exceptional narrowness, shallowness, shape, or topographic condition of a specific piece of property, or by reason of other extraordinary or exceptional situation. Where strict adherence to the regulations of this Title would result in exceptional practical difficulties to the development of the property, an applicant may request a Variance and shall have the burden of proof to establish that the proposed Variance is appropriate for its proposed location.

2. VC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. VC Review and Submittal

(a) Standards for Acceptance

(1) When a Waiver of Standards application is identified in this Title as an alternative method to seek relief, an applicant must pursue the Waiver of Standards application, receive decisions from the appeal authority, prior to submittal.

(2) A Variance request shall only be considered when no other form of flexibility and/or relief authorized in this Title is sufficient to mitigate the practical difficulties that would result from the strict application of the standards and criteria in this Title.

(3) A Variance application may only request relief from the development standards of this Title.

(4) The Variance requested shall be the minimum necessary to afford relief.

(5) FAA requirements are in §30.06.03D.7.iv, *Evidence of FAA Determination*, and the standards of the Airport Airspace Overlay per §30.02.26B shall also apply.

(6) A Variance request is prohibited for the following:

(i) To request a use otherwise not permitted within the zoning district.

(ii) Site development standards required for specific uses in Chapter 30.03, *Use Regulations.*

(iii) Airport Environs Overlay requirements of §30.02.26C.

(iv) Requirements for the expansion of the Gaming Enterprise District of §30.06.05D, *Special Use Permit (UC).*

(v) Sight zone requirements in §30.04.08G.

(vi) Clear visibility for all interior drive aisles per §30.04.04H.1.iii, *Interior Configuration*.

(vii) Mobility-impaired parking spaces per §30.04.04H.4.v.

(viii) Procedural requirements of this Title in Chapter 30.06, *Administration and Procedures.*

(ix) Parking spaces required per Table 30.04-2: *Minimum Required Parking.*

(x) Residential density standards in Chapter 30.02, *Zoning Districts,* and §30.02.26, *Overlay Districts.*

(xi) Incidental take permits in §30.06.11F, *Incidental Take Permit: Compliance with Endangered Species Act*.

(xii) Standards for uses involving hazardous chemicals, explosives, materials, or wastes.

(xiii) To depart from any regulation of this Title that is derived from an NRS requirement.

ii. VC Analysis

(a) Standards for Approval

(1) The Variance is consistent with the Master Plan and does not contradict the intent of this Title to protect the general health, safety, and welfare of the public.

(2) The proposal uses the property in a reasonable manner that cannot be achieved by any other feasible means than approval of a Variance from the standards of this Title.

(3) The practical difficulties that form the basis for the Variance request are unique to the property, are not solely economic considerations, and have not been created by the landowner. Examples of practical difficulties that are unique to the property include but are not limited to irregularity, narrowness, or shallowness of the lot, exceptional topographical or physical conditions, or inadequate access to direct sunlight for solar energy systems, that are peculiar to the property that do not apply to other lands within the neighborhood or the same class of zoning district.

(4) The extent of the Variance request is the minimum extent necessary to afford relief.

(5) The Variance will not alter the essential character of the surrounding area, will not be materially detrimental to other property in the area, and will not produce an adverse effect or impact on the physical or environmental conditions in the neighborhood or district.

iii. VC Public Meeting(s) and Decision

(a) Required Public Notice

(b) Mailed and Posted notice.

(c) Hearing, Review, and Decision

(1) Recommending Entities

(2) Government entities and Town Board.

(3) Hearing

(4) Public hearing required.

(5) Decision-Making Body

(6) Commission, except Board for the following;

(i) Application submitted in conjunction with, or in lieu of, another application that requires Board approval;

(ii) Applications for a Project of Regional Significance;

(iii) At the discretion of the Director.

(7) Expiration of Approval

2 years to commence, unless otherwise approved. When heard in conjunction with a Tentative Map, then expiration date shall match the corresponding application.

E. Waiver of Conditions (WC)

1. Purpose

The Waiver of Conditions procedure may be used to request a modification of, or deletion to, a condition of approval imposed by the Commission or Board.

2. WC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. WC Review and Submittal

(a) Standards for Acceptance

An application may be accepted to waive a condition imposed by the Commission or Board on any approved land use application or tentative map application.

ii. WC Analysis

(a) Standards for Approval

Upon finding that the condition will no longer fulfill its intended purpose, the decision-making body may waive conformance to the condition.

iii. WC Public Meeting(s) and Decision

(a) Required Public Notice

(1) Mailed and Posted notice. Where the mailed notification radius on the original application was greater than 1,500 feet, the WC notification radius shall match that of the original application.

(2) When the original application was a Waiver of Development Standards for a standard in §30.04.08, *Public Works Development Standards,* or a Tentative Map, mailed notice is not required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, and Town Board.

(2) Hearing

Public Hearing is not required if a Tentative Map was the original application.

(3) Decision-Making Body

Commission or Board; original decision-making body.

(4) Conditions of Approval

Project is subject to any previous conditions of approval.

(5) Expiration of Approval

Effective immediately unless other timing is approved.

F. Waiver of Development Standards (WS)

1. Purpose

A Waiver of Development Standards request may be submitted to modify a development standard in this Title where the adherence to an alternative standard, or other factors which mitigate the impact of the relaxed standard, may justify an alternative.

2. WS Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. WS Review and Submittal

(a) Standards for Acceptance

(1) A Waiver of Development Standards may be requested when not otherwise specifically prohibited by this Title.

(2) Applications to waive or modify zoning base district standards for density shall not be accepted.

ii. WS Analysis

(a) Standards for Approval

(1) The applicant for a Waiver of Development Standards shall have the burden of proof to establish that the proposed request is appropriate for its proposed location by showing the following:

(i) The use of the area adjacent to the property included in the waiver request will not be affected in a substantially adverse manner;

(ii) The proposal will not materially affect the health and safety of persons residing in, working in, or visiting the immediate vicinity, and will not be materially detrimental to the public welfare;

(iii) The granting of such application shall be in harmony with the general purpose, goals, objectives, and standards of the Master Plan and of this Title; and

(iv) The proposal will be adequately served by, and will not create an undue burden on, any public improvements, facilities, or services.

(2) See specific provisions or Sections within this Title for any applicable additional requirements to request a Waiver of Development Standards.

iii. WS Public Meeting(s) and Decision

(1) Required Public Notice

Mailed and Posted notice. Waivers to §30.04.08, *Public Works Development Standards,* and §30.06.11I, *Time Restrictions on Work in Streets,* do not require mailed notice.

(2) Hearing, Review, and Decision

(i) Recommending Entities

(ii) Government entities and Town Board.

(iii) Hearing

Public Hearing required. Hearing is required for waivers to §30.04.08, *Public Works Development Standards* and §30.06.11I, *Time Restrictions on Work in Streets.*

(iv) Decision-Making Body

Commission, except Board for the following:

a) Applications submitted in conjunction with, or in lieu of, another application that requires Board approval.

b) Waivers to §30.04.08, *Public Works Development Standards.*

c) Waivers to appeal a denial of extension of time for bond per §30.04.08C.7, *Completion of Off-Site Improvements*.

d) Waivers to §30.06.11I, *Time Restrictions on Work in Streets.*

e) Applications to waive a communication towers bond.

f) Applications requiring a deed modification pursuant to the Cooperative Management Area Deed Modification Policy.

g) At the discretion of the Director.

(3) Conditions of Approval

A waiver of off-site improvements constitutes a temporary postponement only and shall only be approved subject to signing deed restrictions for the future improvements.

(4) Expiration of Approval

2 years to commence, unless otherwise approved. When heard in conjunction with a Tentative Map, then expiration date shall match the corresponding application.

G. Revised Plans (RP)

1. Purpose

The Revised Plans application is intended to allow changes to plans and documents related to or for a prior land use application or tentative map. A Revised Plan shall be submitted as specified below but is not required in order to demonstrate compliance with conditions of approval of a land use application or tentative map. Acceptance of Revised Plans does not absolve compliance with Title 30 or conditions of approval of a land use application or tentative map.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. RP Review and Submittal

(a) Application Content

(1) A detailed written description specifying all proposed changes shall be provided identifying the deviations to the plans or tentative map. The review of the changes will be limited to the description. A complete plan review will not be conducted; however, all requirements and regulations related to the change shall meet Title 30 and any conditions of approval of all land use applications or tentative map. Such related requirements and regulations shall be specified in the description and shown on the plans. Any subsequent deviation shall include a summary and calculation indicating the cumulative changes do not exceed the limits in Section 30.06.06G.2.i(b).

(b) Standards for Acceptance

(1) Revised plans may be accepted as follows:

(i) Greater than 10% up to 25% reduction in the area of any open space, parking area, lot area, or other area as shown on the original approved plan.

(ii) Greater than 10% up to 25% reduction in landscape buffers or width of street landscaping strip.

(iii) Greater than 10% up to 25% reduction in setback as shown on the original approved plan.

(iv) Greater than 10% up to 25% increase in the size of any non-single-family residential building or structure, or the total area of multiple buildings, or the total land area covered by any building or structure.

(v) Greater than 10% up to 25% increase in the number of non-single-family residential buildings or structures shown on the original approved plan provided the total land area covered by all buildings and structures does not increase more than 25%.

(vi) Greater than 10% up to 25% increase of the height of any building or structure or of any part thereof.

(vii) A modification of the design, or architectural style of the project, including prior to completion of construction of all lots, residential models within the size range of the approved models. Models that have been previously approved and cataloged are not subject to a Revised Plan and can be included in previously approved subdivisions.

(viii) Modifications to Tentative Maps per the criteria below. An increase in the number of lots, modifications to the street network and overall lot layout requires approval of a new Tentative Map.

(1) Decrease in the lot area greater than 10% up to 25% for up to 10% of the lots within the map.

(2) Revised Plan or new Tentative Map is not required to decrease the number of lots or increase the lot area within the map.

(ix) As determined by the Zoning Administrator or Director.

(2) Applications are prohibited for the following:

(i) Increased density.

(ii) Minimum lot area for properties subject to the Lone Mountain Interlocal Agreement when the resulting net lot size would be reduced below 18,000 square feet.

(iii) Minimum driveway length requirements.

(iv) Structures over 200 feet in height.

(v) Changes to further increase or reduce previously approved Waiver of Development Standards or Variance, or result in further reduction in separation to a less intense use.

ii. RP Analysis

(a) Processing Timeline

10 working days.

(b) Standards for Approval

(1) The revision will not adversely affect adjacent property or property owners.

(2) The revision is in conformance with the approved land use application and associated plan, and any of its conditions.

(3) The revision complies with all other provisions of this Title.

iii. RP Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

The expiration date shall match the expiration of the original application.

30.06.07 Sign Design Review

A. Sign Design Review (SDR)

1. Purpose

A Sign Design Review may be used to request a sign type in a zoning district where such a sign is not allowed, or to request a modification of greater than 10% from certain standards and requirements in Chapter 30.05, *Signs.*

2. SDR Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. SDR Review and Submittal

(a) Standards for Acceptance

(1) Applications for any prohibited signs shall not be accepted.

(2) A Comprehensive Sign Plan may be requested for resort hotels, including rural resort hotels, in the CR district. Comprehensive Sign Plans shall include a sign plan for the entire development consisting of the following:

(i) Dimensions and locations of all sign structures and faces;
(ii) Materials and colors;
(iii) Proposed illumination and illumination levels when in conjunction with a Neighborhood Casino;
(iv) A design theme with illustrative examples of each sign type; and
(v) Any other maps, drawings or materials to adequately describe the sign proposal.

ii. SDR Analysis

(a) Standards for Approval

(1) Compatibility, in terms of scale and architectural features, with the site and surrounding area;
(2) Harmony with the character of the neighborhood;
(3) Impact on the surrounding land uses; and
(4) The health, safety, and welfare of the inhabitants of the area.
(5) For a Comprehensive Sign Plan, the proposal will improve the aesthetics of the development and will not have an adverse impact on the use, enjoyment, or value of property.

iii. SDR Public Meeting(s) and Decision

(a) Required Public Notice

Mailed and Posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government Entities and Town Board.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Commission, except Board for the following:

(i) Comprehensive Sign Plans; and

(ii) Sign Design Review applications required by prior action of the Board.

(4) Expiration of Approval

2 years to commence, unless otherwise approved.

iv. SDR Post-Decision Actions

(a) Changes to Approved Plans

Changes will require an Administrative Sign Design Minor Review or new Sign Design Review.

B. Administrative Sign Design Review (ASDR)

1. Purpose

An Administrative Sign Design Review may be requested for minor modifications to the standards of Chapter 30.05, *Signs*, and to an approved land use application and associated plans.

2. ASDR Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ASDR Review and Submittal

(a) Multiple minor modifications may be included on one application; however, each modification requires separate analysis per the approval criteria in Chapter 30.05, *Signs*.

(b) A summary table and complete description of all proposed changes shall be provided. Any subsequent modification shall include a revised summary and calculation.

(c) Standards for Acceptance

(1) An Administrative Sign Design Review may be requested as follows:

(i) To remediate a construction error (even when this Title prevents the filing of waivers) if the approved building permit plans showed the correct standard and previous related inspections were approved on the property.

(ii) To increase the maximum sign height and sign face up to 10%.

(iii) To relocate an existing or previously approved sign on the same parcel or within the commercial complex.

(iv) When necessary for minor modifications from an approved Comprehensive Sign Plan, an Administrative Sign Design Review may be requested for the following:

a) Increase the area of any sign face up to 25%.

b) Increase the height of a sign structure up to 25%.

c) Increase the number of signs on the original approved plan up to 25% provided the sign area of all signs does not increase or decrease more than 25%.

d) Architectural changes to the sign structure or conversion of sign type or other similar changes may be allowed provided the approved architectural style and sign theme is maintained.

(2) Applications will not be accepted to grant additional allowances from any previously approved application.

ii. ASDR Analysis

(a) Processing Timeline

10 working days.

(b) Standards for Approval

(1) The modification will not adversely affect adjacent property or property owners.

(2) The modification is in conformance with the approved land use application and associated plan, and any of its conditions.

(3) The modification complies with all other provisions of this Title.

iii. ASDR Public Meeting(s) and Decision

(a) Public Notice

None.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

(i) 2 years to commence, unless otherwise approved.

(ii) Digital conversion of outdoor advertising structure: 6 months to commence. Extensions of Time are prohibited.

iv. ASDR Post-Decision Actions

(a) Changes to Approved Plans

Once approved, changes to plans will require an Administrative Sign Design Review or new Sign Design Review.

30.06.08 Other Approvals

A. Annexation (ANX)

1. Purpose

The Annexation procedure allows for the reclassification of parcels of land from one jurisdiction to another.

2. ANX Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ANX Review and Submittal

(a) Standards for Acceptance

Annexation may be requested to consider the inclusion of property within the boundaries of an unincorporated town as such boundary existed on July 1, 1983, as required by NRS 268.580(d), into one of the County's incorporated cities (Boulder City, Henderson, Las Vegas, Mesquite, or North Las Vegas).

ii. ANX Analysis

(a) Standards for Approval

An Annexation application may be approved by the Board when it achieves any of the following:

(1) Establish consistent boundaries based on natural features which will provide for consistent and logical services and service areas;

(2) Correction of survey errors; or

(3) No negative fiscal impact upon the County.

iii. ANX Public Meeting(s) and Decision

(a) Required Public Notice

Mailed notice to city only and posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and Town Board.

(2) Hearing

Hearing required.

(3) Decision-Making Body

Board.

(4) Expiration of Approval

Decision effective immediately. No expiration.

B. Application for Review (AR)

1. Purpose

Requests for Application for Review enable the decision-making body to verify compliance with conditions of approval applied to the original application request or to monitor a project for impacts.

2. AR Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. AR Review and Submittal

(a) Standards for Acceptance

(1) An Application for Review shall be submitted prior to the review date or no later than 5:00 p.m. of the day the application is due for review. When the review deadline is not a working day, the application shall be submitted on the last working day prior to the review due date.

(2) A project-specific analysis may be required pending the original rationale for requiring the Application for Review. A report is required summarizing compliance with conditions and/or how project is progressing through the development process; is not impacting the surrounding neighborhood, community, or streets; or is otherwise required to address the concern from the application that required the Application for Review.

ii. AR Analysis

(a) Standards for Approval

Applicant has demonstrated compliance with conditions and/or how project is progressing though the development process, or is not impacting the surrounding neighborhood, community, or streets. If the Application for Review was required to address a specific issue not listed above, the applicant has addressed the concern from the application which required the Application for Review.

iii. AR Public Meeting(s) and Decision

(a) Required Public Notice

(1) Mailed and Posted notice. Where the mailed notification radius on the original application was greater than 1,500 feet, the AR notification radius shall match that of the original application.

(2) When the original application was a Waiver of Development Standards for a standard in §30.04.08, *Public Works Development Standards,* or a Tentative Map, mailed notice is not required.

(b) Hearing, Review, Decision

(1) Recommending Entities

Government entities and Town Board.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Commission or Board; original decision-making body.

(4) Conditions of Approval

(i) The decision-making body may require additional review or eliminate further review.

(ii) Conditions may be added or modified to further mitigate potential adverse effects of the proposal or if found there are no adverse effects.

(iii) All reviews are subject to all the conditions of the original approval unless otherwise specified by the Commission or Board.

(5) Expiration of Approval

The decision-making body shall determine a time limit. A time limit for review to assess the continued impact of the use on the community and adjacent uses may also be imposed.

C. Development Agreement (ORD)

1. Purpose

A Development Agreement may be entered into for the provision of sufficient public facilities and infrastructure needs related to the development.

2. ORD Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. ORD Review and Submittal

(a) Standards for Acceptance

A Notice of Final Action has been issued and includes a condition requiring a Development Agreement.

ii. ORD Analysis

(a) Standards for Approval

Approval is contingent upon the Board determining:

(1) The issues identified in the Public Facilities Needs Assessment or RISE Report relating to this project have been adequately addressed;

(2) A Development Agreement is a necessary and appropriate mechanism to implement the development of the project;

(3) The Development Agreement is consistent with the objectives, policies, general land uses and programs specified in the Master Plan;

(4) The Development Agreement is compatible with the uses authorized in, and the regulations prescribed for, the zoning district in which the property is located and all other provisions of this Title;

(5) The Development Agreement is in conformity with the public convenience, general welfare and good land use practices;

(6) The Development Agreement will not be detrimental to the public health, safety and general welfare;

(7) The Development Agreement will not adversely affect the orderly development of property; and

(8) The Development Agreement is consistent with the provisions of NRS 278.

iii. ORD Public Meeting(s) and Decision

(a) Required Public Notice

Posted notice required for introduction of an ordinance, and newspaper notice and posted notice are required for public hearing of the ordinance.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

Hearing required to introduce an ordinance and a public hearing required for final action.

(3) Decision-Making Body

Board.

(4) Expiration of Approval

As specified in the Development Agreement, with all negotiated agreements subject to a 2-year review.

iv. ORD Post-Decision Actions

(a) Negotiated Development Agreement Vesting of Rights

Any Negotiated Development Agreement approved and adopted pursuant to this Section may provide vesting for specified development rights only upon achieving specific progress thresholds. The thresholds shall be based on the construction of specific public or private improvements or the submission of Specific Plans or data prior to the exercise of certain development rights. If any negotiated improvement is not completed or contribution is not made by the negotiated threshold date listed in the Development Agreement, no additional building permits shall be issued for the project. No vested rights shall be acquired other than those allowed in the agreement and otherwise provided under the laws of Clark County, the state of Nevada or governmental or quasi-governmental bodies.

(b) Negotiated Development Agreement Applicability to Code

When specified in the Negotiated Development Agreement, the laws, ordinances, codes, resolutions and regulations in effect as of the effective date of the agreement shall apply to all development within the

community. If not specified, the laws, ordinances, codes, resolutions, and regulations in effect at time of map approval or permit issuance shall apply, unless changed by an amended Development Agreement. This shall not include fees, monetary payments, submittal requirements or review procedures prescribed by ordinance for any provision relating to standards and specifications that have been adopted by any other governmental agency and those sections of the Code which apply to state and federal laws and regulations; uniformly applying to all development and construction.

D. Street Name or Numbering System Change (SC)

1. Purpose

A Street Name or Numbering System Change request may be filed to change the legally established name of an existing street alignment when there are habitable or occupied buildings facing the street, to name streets inconsistent with the standards of the Las Vegas Valley Street Naming and Address Assignment Policy, or to change the address numbering system used on a street.

2. SC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. SC Review and Submittal

(a) Standards for Acceptance

(1) Only one street alignment, or numbering system, shall be considered with each application;

(2) Applications shall be processed for entire street segments, from intersection to intersection.

(3) Nothing in this subsection shall prevent a property owner from requesting an address change that conforms to Las Vegas Valley Street Naming and Address Assignment Policy.

(4) Cooperative Management Deed Modification Policy does not apply.

ii. SC Analysis

(a) Standards for Approval

All proposed street names shall comply with the Las Vegas Valley Street Naming and Address Assignment Policy, as adopted by the Board on August 3, 1988, unless the decision-making body determines the public interest would be served by the change.

iii. SC Public Meeting(s) and Decision

(a) Required Public Notice

Mailed notice to city and abutting property owners only and Posted notice.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, and the Las Vegas Fire & Rescue, Combined Communications Center.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Commission.

(4) Expiration of Approval

None.

iv. SC Post-Decision Actions

(a) Upon the approval of a system of street naming, numbering or house numbering, or any amendment thereto, the Director shall determine its application to all streets, avenues, thoroughfares or other traffic-ways, or to the numbering of any premises thereon, and shall communicate the same to the owner of each abutting developed parcel.

(b) The official, assigned address of all buildings, units of buildings, or other approved land uses shall be displayed in accordance with the display requirements prescribed in the Las Vegas Valley Street Naming and Address Assignment Policy.

(c) Applicant shall cover the costs of the advertising signs and costs to businesses and residences along the street alignment.

(d) Applicant to notify affected business/property owners when the street name change will take effect.

(e) The applicant shall be responsible for the installation of street signs, per Public Works requirements, within 60 calendar days of the approval of the application unless otherwise approved.

E. Administrative Street Naming (SN)

1. Purpose

This procedure is used to name unnamed streets, or to change names of certain streets.

2. SN Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. SN Review and Submittal

(a) Standards for Acceptance

(1) An administrative Street Naming may be processed to change the name of a street when in compliance with compliance with the Las Vegas Valley Street Naming and Address Assignment Policy and:

(i) There is no habitable structure on the street;

(ii) All property abutting the street is under common ownership; and

(iii) There is no objection from the Fire Alarm Office of the City of Las Vegas Fire Department.

(2) Requests not in compliance with (a) above may be submitted in accordance with §30.06.08D, *Street Name or Numbering System Change*.

(3) Cooperative Management Deed Modification Policy does not apply.

(b) Exceptions

(1) Streets within a subdivision shall be named by the recordation of the map and need not follow this procedure.

(2) If in compliance with this subsection, street names established by the recording of a subdivision map, may be changed by filing a Certificate of Amendment with the County Surveyor rather than following this procedure.

ii. SN Analysis

(a) Processing Time

10 working days.

(b) Standards for Approval

Street names are in compliance with the Las Vegas Valley Street Naming and Address Assignment Policy, as adopted by the Board on August 3, 1988.

iii. SN Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Las Vegas Fire & Rescue, Combined Communications Center

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

None.

iv. SN Post-Decision Actions

(a) Upon the approval of a street name, the Director shall determine its application to all streets, avenues, thoroughfares, or other traffic-ways, or to the numbering of any premises on the street, and shall communicate the same to the owner of each abutting developed parcel.

(b) The official, assigned address of all buildings, units of buildings, or other approved land uses shall be displayed in accordance with the display requirements prescribed in the Las Vegas Valley Street Naming and Address Assignment Policy.

(c) The applicant shall be responsible for installation of street signs, per Public Works requirements within 60 calendar days of the approval of the application, unless otherwise approved.

F. Vacation and Abandonment (VS)

1. Purpose

The procedure for the relinquishment of any interest of any dedicated public road, improvement or public easement of interest to Clark County, in conformance with NRS 278.480.

2. VS Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. VS Review and Submittal

(a) Initiating Authority

Property owner includes the property owner of any property abutting the alignment proposed to be vacated.

(b) Standards for Acceptance

(1) Applications shall be processed for entire street segments, from intersection to intersection, unless the Director of Public Works or Comprehensive Planning determines that the vacation and abandonment of a partial segment is appropriate.

(2) A Transportation Map must be amended prior to or concurrent with any vacation request to reduce the width or modify the alignment of any roadway shown on the map(s). See §30.06.04A, *Master Plan Amendment (PA)*.

(3) Cooperative Management Deed Modification Policy does not apply.

ii. VS Analysis

(a) Standards for Approval

There is no present or future public need for the area proposed to be vacated, and that the public will not be materially injured by the proposed vacation.

iii. VS Public Meeting(s) and Decision

(a) Required Public Notice

Newspaper notice, mailed notice, and posted notice. Delivery confirmation of mailed notice is required for abutting properties only, not less than 10 business days before the public hearing per NRS 278.480.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, public utilities, and Town Board.

(2) Hearing

Public hearing required.

(3) Decision-Making Body

Commission, except Board for the following:

(i) Vacations of right-of-way for streets included on a Transportation Map of the Master Plan, if the vacation runs concurrent with a Master Plan Amendment;

(ii) Vacation requests submitted in conjunction with, or in lieu of, another application that requires Board approval; or

(iii) At the discretion of the Director.

(4) Approval Expiration

2 years to record, unless otherwise conditioned. When heard in conjunction with a Tentative Map, the expiration date shall match.

iv. VS Post-Decision Actions

(a) Recordation

The order of vacation shall not be recorded in the Office of the County Recorder until:

(1) Consenting recommendations have been received from any public utility with updated utility responses being required every 2 years if not recorded; however, if no utility company has responded within 90 days of the approval, the County may record the order of vacation; and

(2) All conditions of approval have been satisfied.

G. Zoning Compliance (AC)

1. Purpose

Zoning Compliance applications may be processed to demonstrate that a proposed project is in compliance with all applicable requirements of this Title.

2. AC Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. AC Review and Submittal

(a) Standards for Acceptance

Zoning Compliance applications may be used to ensure compliance with the requirements of this Title prior to issuance of required permits or licenses when this Title does not require any other form of land use application or review of a proposed development project.

(1) Where letters of consent are required from adjacent property owners, such letter shall not be required from vacant property under BLM ownership.

ii. AC Analysis

(a) Processing Time

10 working days.

(b) Standards for Approval

The Zoning Compliance shall be approved upon demonstration by the applicant that the proposed project complies with all applicable regulations of this Title.

iii. AC Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Zoning Administrator.

(4) Expiration of Approval

2 years to commence.

30.06.09 Subdivision/Public Works Procedures

A. Tentative Map (TM)

1. Purpose

The Tentative Map review is the initial action that shows the design of a proposed subdivision and the existing conditions in and around it.

2. TM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. TM Review and Submittal

(a) Standards for Acceptance

(1) All land included within a single map must be contiguous.

(2) All property included within the tentative map shall be a legal lot(s), or shall be legalized prior to recording the first final map mylar.

(3) All components of a mixed-use development may be included on one major subdivision map, provided all proper land use approvals for such a mixed-use development have been obtained by the local governing body.

(4) Applications subject to the Cooperative Management Area Deed Modifications Policy shall not be accepted without confirmation from the Department of Aviation.

(5) A Vacation and Abandonment application must be filed prior to or concurrently with a tentative map application to vacate any easements and/or right-of-way necessary to develop/subdivide the legal lot(s). The Vacation and Abandonment must be approved prior to or concurrently with the approval of a tentative map.

ii. TM Analysis

(a) Standards for Approval

(1) The property owner shall demonstrate that the proposed subdivision is in full compliance with the requirements of this Title.

(2) Each of the proposed lots shall be designed with adequate width and depth to accommodate the proposed use(s).

(3) The decision-making body shall consider:

(i) Environmental and health laws and regulations concerning water and air pollution, the disposal of solid waste, facilities to supply water, community or public sewage disposal and, where applicable, individual systems for sewage disposal;

(ii) The availability of water which meets applicable health standards and is sufficient in quantity for the reasonably foreseeable needs of the subdivision;

(iii) The availability and accessibility of utilities;

(iv) The availability and accessibility of public services such as schools, police protection, transportation, recreation and parks;

(v) Conformity with the zoning ordinances and master plan, except that if any existing zoning ordinance is inconsistent with the master plan, the zoning ordinance takes precedence;

(vi) General conformity with the governing body's master plan of streets and highways;

(vii) The effect of the proposed subdivision on existing public streets and the need for new streets or highways to serve the subdivision;

(viii) Physical characteristics of the land such as floodplain, slope and soil;

(ix) The recommendations and comments of those entities and persons reviewing the tentative map pursuant to NRS 278.330 to 278.3485, inclusive;

(x) The availability and accessibility of fire protection, including, but not limited to, the availability and accessibility of water and services for the prevention and containment of fires, including fires in wild lands;

(xi) The potential impacts to wildlife and wildlife habitat; and

(xii) The submission by the subdivider of an affidavit stating that the subdivider will make provision for payment of the tax imposed by NRS and for compliance with the disclosure and recording requirements of paragraph (f) of subsection 1 of NRS 598.0923, if applicable, by the subdivider or any successor in interest.

iii. TM Public Meeting(s) and Decision

(a) Public Notice

Posted notice. Additionally for manufactured home parks proposed for subdivision and/or redevelopment to a different use, Mailed notice for each tenant of the manufactured home park, plus signs per §30.06.03E.2.ii(d), *Sign Notice.*

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities, Town Board, and cities for projects of regional significance.

(2) Hearing

Hearing required.

(3) Decision-Making Body

Commission, except Board for the following:

(i) Application submitted in conjunction with, or in lieu of, another application that requires Board approval;

(ii) Applications requiring a deed modification pursuant to the Cooperative Management Area Deed Modification Policy; or

(iii) At the discretion of the Director.

(4) Expiration of Approval

A Tentative Map shall expire if:

(i) No Final Map Mylar covering all or a portion of the property included in the Tentative Map is recorded within four years from the date of approval of the Tentative Map; or

(ii) No Final Map Mylar of a series of final maps is recorded within 2 years from the recordation date of a Final Map Mylar covering a portion of the Tentative Map; or

(iii) The Commission or Board may grant an extension for 2 years provided a Final Map Mylar of a series of final maps has been recorded since the recordation date of the last Final Map or the last Extension of Time.

B. Final Map Technical Review (NFM)

1. Purpose

The purpose of the Final Map Technical Review is to allow the Director of Public Works the opportunity for a technical review of Final Maps and amended Final Maps to ensure conformance with improvement requirements, design standards, detailed survey information, and technical correctness of the map.

2. NFM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. NFM Review and Submittal

(a) Standards for Acceptance

(1) The Tentative Map must be approved.

(2) The Technical Impact Analysis must be conditionally accepted by the Director of Public Works in accordance with §30.04.08B, *Technical Impact Analysis.*

(3) All components of a mixed-use development may be included on Final Map Technical Review, provided all proper land use approvals for such a mixed-use development have been obtained by the local governing body.

(b) NFM Analysis

(1) Distribution and Review

Copies of the map shall be distributed to interested government entities and/or public utilities potentially affected by the proposed subdivision who, together with the Director of Public Works, will conduct the necessary reviews, inspections and research to determine the requirements to be completed by the property owner in order to record a future map, and shall transmit such information to the Director of Public Works within 15 working days.

(2) Standards for Approval

(i) All divisions of land shall conform to the Plan, the zoning requirements applicable to the zoning district, to the improvement standards listed under §30.06.11, *Permits and Licenses*, unless otherwise specified, to all conditions of land use applications pertaining to the property, and to any other applicable state law or county ordinance.

(ii) All approved plans, conditions, restrictions, and rules shall be made a part of the application's approval and shall be binding on the property owner. A map shall be held to conform to the tentative map if no additional building lots are created, no additional property is added, and the design of the subdivision matches the general traffic and drainage pattern of the approved Tentative Map.

(iii) The Final Map Technical Review must be approved prior to the submission of the Final Map Mylar.

ii. NFM Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government and public utility entities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

iii. NFM Post-Decision Actions

(a) Notice of Requirements

(1) The Director of Public Works, taking into account the requirements of other governmental entities, shall prepare and issue a notice of requirements to the property owner detailing requirements for recording the map.

(2) This notice can be relied upon for the same time period as the initially approved Tentative Map, or 1 year if the associated Tentative Map has been previously extended past the initial 4 years due to recorded phases.

(3) Any changes made by the applicant to the technical geometry of the map can be accomplished with revisions to the original plans, provided applicable fees are paid.

(b) Completion of Requirements

(1) The property owner shall complete all the requirements listed on the notice provided by the Director of Public Works and return required corrections to the Director of Public Works for subsequent review.

(2) Specific agencies must separately review and approve the proposed subdivision, Technical Impact Analysis, and improvement plans in accordance with §30.06.11*, Permits and Licenses.* When satisfied as to the suitability of the subdivision and the technical correctness of the material submitted, approval will be transmitted to the Director of Public Works.

(c) Expiration of Approval

The same time period as the initially approved Tentative Map, or one year if the associated Tentative Map has been previously extended past the initial four years due to recorded phases. One year for an amended map without an associated Tentative Map.

C. Final Map Mylar (NFM)

1. Purpose

The purpose of the Final Map Mylar review is to enable the Director of Public Works to verify completion of and conformance to the Final Map Technical Review.

2. NFM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. NFM Review and Submittal

(a) Standards for Acceptance

(1) The Final Map Technical Review must be approved prior to submittal of the Final Map Mylar.

(2) The Director of Public Works shall verify completion of and conformance to the Final Map Technical Review, and shall ensure that off-site improvement permits are issued, all required bonds are posted, and fees paid.

(3) When subject to the Cooperative Management Area Deed Modification Policy and a deed modification is required, a copy of the new recorded CC&Rs must be provided with submission of the Final Map Mylar.

(4) All required land use applications are active.

ii. NFM Analysis

(a) Standards for Approval

Upon final review, and the obtaining of all required signatures on the map, the map shall be approved and shall be recorded.

iii. NFM Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

The map must be recorded within 30 days from release by the Director of Public Works or to the expiration of the Tentative Map, whichever is less.

D. Parcel Map Review (MSM)

1. Purpose

The Minor Subdivision Parcel Map Review procedure is to allow the Director of Public Works to review preliminary maps for subdivision of four or fewer lots to ensure conformance with improvement requirements, design standards, and all other applicable regulations.

2. MSM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. MSM Review and Submittal

(a) Standards for Acceptance

(1) All land included within a single map must be contiguous.

(2) Applications subject to the Cooperative Management Area Deed Modification Policy shall not be accepted without confirmation from the Department of Aviation.

ii. MSM Analysis

(a) Distribution and Review

Copies of the plan shall be distributed to interested government entities and/or public utilities potentially affected by the proposed subdivision who, together with the Director of Public Works, will conduct the necessary reviews, inspections and research to determine the requirements to be completed by the property owner in order to record a future map, and shall transmit such information to the Director of Public Works within 15 working days, excepting the technical review of any future surveyed map.

(b) Standards for Approval

All divisions of land shall conform to the Plan, the zoning requirements applicable to the zoning district, the improvement standards listed under §30.06.11*, Permits and Licenses*, unless otherwise specified, all conditions of land use applications pertaining to the property, and any other applicable state law or County ordinance. All approved plans, conditions, restrictions and rules shall be made a part of the application's approval and shall be binding on the property owner.

iii. MSM Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

One year from date of the notice of requirements letter.

iv. MSM Post-Decision Actions

(a) Notice of Requirements

The Director of Public Works, taking into account the requirements of other governmental entities, shall prepare and issue a notice listing requirements. This notice can be relied upon by the property owner for the purposes of submitting a Parcel Map Mylar for a period of one year from the date of the notice of requirements letter, subject to any state statute or local ordinance adopted prior to final approval of the map and to the technical review of any surveyed map as required in §30.06.09E, *Parcel Map Technical Review*.

3. Administrative Exception

i. An administrative exception to filing a Parcel Map Review may be submitted if all issues that would have been identified in the Parcel Map Review have been addressed. Such request for administrative exception must be in writing and must be accompanied by the following:

(a) One copy of documentation explaining that the following requirements have been identified and satisfied through previous subdivision or land use application approvals;

(b) Approval of the proposed land use;
(c) Demonstration of legal access to the parcel;
(d) Evidence that the property is outside the 100-year flood plain;
(e) Approved drainage impact analysis or evidence that the drainage requirements have otherwise been identified and/or satisfied, and;
(f) Evidence that any required off-site improvement requirements have been identified and/or satisfied.
(g) Applications subject to the Cooperative Management Area Deed Modification Policy shall not be accepted without confirmation from the Department of Aviation.

ii. Submission of applicable fees.
iii. The Director of Public Works shall issue a written approval or denial of the request within 10 working days of receipt of a complete request.
iv. Time limit for an exception is 1 year from date of approval.

E. Parcel Map Technical Review (MSM)

1. Purpose

The Parcel Map Technical Review procedure is to allow the Director of Public Works to review Minor Subdivision Parcel Maps or amended maps to ensure conformance with improvement requirements, design standards, detailed survey information, and technical correctness of the map.

2. MSM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. MSM Review and Submittal

(a) Standards for Acceptance

(1) The Parcel Map Review or Administrative Exception must be approved.

(2) Any Technical Impact Analysis must be conditionally accepted by the Director of Public Works in accordance with §30.04.08B, *Technical Impact Analysis*.

(3) Off-site improvement plans, if required, must be submitted.

(4) Applications subject to the Cooperative Management Area Deed Modification Policy shall not be accepted without confirmation from the Department of Aviation.

(5) A vacation and abandonment application must be approved, if required, to vacate any easements and/or right-of-way.

ii. MSM Analysis

(a) Distribution and Review

Copies of the map shall be distributed to interested government entities and/or public utilities potentially affected by the proposed subdivision who, together with the Director of Public Works, will conduct the necessary reviews to determine that the requirements of the parcel map review have been met, and shall transmit such information to the Director of Public Works within 15 working days.

(b) Standards for Approval

(1) All divisions of land shall conform to the Plan, the zoning requirements applicable to the zoning district, to the improvement standards listed under §30.04.08, *Public Works Development Standards,* unless otherwise specified, to all conditions of land use applications pertaining to the property, and to any other applicable state law or County ordinance.

(2) All approved plans, conditions, restrictions, and rules shall be made a part of the application's approval and shall be binding on the property owner.

(3) When subject to the Cooperative Management Area Deed Modification Policy and a deed modification is required, a copy of the new recorded CC&Rs must be provided with submission or the Parcel Map Mylar.

(4) The Parcel Map Technical Review must be complete prior to the submission of the Parcel Map Mylar.

iii. MSM Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

To match the expiration date of the Parcel Map Review or Administrative Exception.

iv. MSM Post-Decision Actions

(a) Notice of Requirements

(1) The Director of Public Works, taking into account the comments of other governmental entities, shall prepare and issue a notice to the property owner detailing any technical corrections to be made to the map or requirements of the Parcel Map Review not yet met.

(2) If there are no corrections and all requirements are complete, the letter shall indicate that the Parcel Map Mylar can be submitted.

(3) Any changes made by the applicant to the technical geometry of the map can be accomplished with revisions to the original plans, provided applicable fees are paid.

(b) Completion of Requirements

The property owner shall complete all the requirements listed on the notice provided by the Director of Public Works and return required corrections to the Director of Public Works for subsequent review. Specific agencies must separately review and approve the proposed subdivision, technical impact analysis, and improvement plans in accordance with §30.06.11, *Permits and Licenses.*

F. Parcel Map Mylar

1. Purpose

The Parcel Map Mylar review is to enable the Director of Public Works to verify completion of and conformance to the Parcel Map Technical Review.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Review and Submittal

(a) Standards for Acceptance

(1) The Parcel Map Technical Review must be approved prior to submittal of the Parcel Map Mylar.

(2) The Director of Public Works shall verify completion of and conformance to the Parcel Map Technical Review, and shall ensure that off-site improvement permits are issued, all required bonds are posted, and fees paid.

(3) All required land use applications are active.

ii. Analysis

(a) Standards for Approval

Standards for Acceptance are met.

iii. Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

If not recorded, an approved map shall expire at the expiration of the Parcel Map Technical Review.

G. Reversionary Map Technical Review (RM/RPM)

1. Purpose

The Reversionary Map Procedure offers a means for a recorded Final Map, Parcel Map, Certificate of Land Division, or division of land into large parcels, or part thereof to be reverted.

2. RM/RPM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. RM/RPM Review and Submittal

(a) Standards for Acceptance

(1) All land included within a single map must be contiguous.

(2) One reversionary map may revert more than one map of platted lands and/or more than one map type.

(3) If applicable, public right-of-way and easements must be vacated prior to submission of the map.

ii. RM/RPM Analysis

(a) Distribution and Review

Copies of the map shall be distributed to interested government entities and/or public utilities potentially affected by the proposed reversion who, together with the Director of Public Works, will review the map, and shall transmit required corrections to the Director of Public Works within 15 working days.

(b) Standards for Approval

The Reversionary Map Technical Review must be completed prior to the submission of the Reversionary Map Mylar.

iii. RM/RPM Public Meeting(s) and Decision

(a) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(b) Expiration of Approval

1 year from the date of the notice of requirements letter.

iv. RM/RPM Post-Decision Actions

(a) Notice of Requirements

(1) The Director of Public Works, taking into account the requirements of other governmental entities, shall prepare and issue a notice of requirements to the property owner detailing requirements for submitting the Reversionary Map Mylar.

(2) This notice can be relied upon by the property owner for the purposes of submitting a mylar for a period of one year from the date of the notice of requirements letter, subject to any state statute or local ordinance adopted prior to final approval of the map.

(3) Any changes made by the applicant to the technical geometry of the map can be accomplished with revisions to the original plans, provided applicable fees are paid.

H. Reversionary Map Mylar (RM/RPM)

1. Purpose

The purpose of the Reversionary Map Mylar review is to enable the Director of Public Works to verify completion of and conformance to the Final Map Technical Review.

2. RM/RPM Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. RM/RPM Review and Submittal

(a) Standards for Acceptance

(1) The Final Map Technical Review or Parcel Map Technical Review must be approved prior to submittal of the Reversionary Map Mylar.

(2) The Director of Public Works shall verify completion of and conformance to the Final Map Technical Review or Parcel Map Technical Review.

(3) All required land use applications are active.

ii. RM/RPM Analysis

(a) Standards for Approval

Upon final review, and the obtaining of all required signatures on the map, the map shall be approved and shall be recorded.

iii. RM/RPM Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

The map must be recorded within 30 days from release by the Director of Public Works.

I. Boundary Line Adjustment (BLA)

1. Purpose

A Boundary Line Adjustment may be used within a subdivision to adjust the location of lot lines.

2. BLA Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. BLA Review and Submittal

(a) Standards for Acceptance

A Boundary Line Adjustment may be submitted for the following:

(1) To correct a construction error in the field; or

(2) To make a nonconforming lot or lots more conforming; or

(3) As determined by the Director of Public Works.

ii. BLA Analysis

(a) Standards for Approval

(1) The Director of Public Works shall review submittal materials for conformance to this Title and accuracy of surveying procedure, as well as sufficiency, mathematical correctness, monumentation, legal description and title impact.

(2) The Boundary Line Adjustment shall be subject to this Title and any other applicable state law or County ordinance.

(3) When the Director of Public Works confirms that the map is in conformance with this Title and is technically complete and accurate, the Boundary Line Adjustment shall be approved and may be recorded.

iii. BLA Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

None.

(2) Decision-Making Body

Director of Public Works.

(3) Expiration of Approval

The map expires if not recorded within one year of the notice of requirements letter.

iv. BLA Post-Decision Actions

(a) Notice of Requirements

(1) The Director of Public Works, in consideration of the requirements of other governmental entities, shall prepare and issue a notice of requirements to the property owner detailing requirements for recording the mylar.

(2) Said notice can be relied upon by the property owner for the purposes of submitting a mylar for a period of 1 year from the date of the notice of requirements letter, subject to any state statute or local ordinance adopted prior to final approval of the mylar.

(3) Any changes made by the applicant to the technical geometry of the mylar can be accomplished with revisions to the original plans, provided assessed fees are paid.

J. Boundary Line Adjustment Mylar (BLA)

1. Purpose

The purpose of the Boundary Line Adjustment Mylar review is to enable the Director of Public Works to verify completion of and conformance to the Boundary Line Adjustment.

2. BLA Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. BLA Review and Submittal

(a) Standards for Acceptance

(1) The Boundary Line Adjustment must be approved prior to submittal of the Boundary Line Adjustment Mylar.

(2) The Director of Public Works shall verify completion of and conformance to the Boundary Line Adjustment.

(3) All required land use applications are active.

ii. BLA Analysis

(a) Standards for Approval

Upon final review, and obtaining all the required signatures on the map, the map shall be approved and shall be recorded.

iii. BLA Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

The map must be recorded within 30 days from release by the Director of Public Works.

K. Extension of Time, Public Works

1. Purpose

The purpose of the Extension of Time procedure is to allow additional time for property owners to complete requirements of this Title or for the recordation of applications in §30.06.09A through §30.06.09I and §30.06.09L.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Analysis

(a) Reevaluation of Requirements

Requests for extension may require the re-evaluation of map requirements, which may result in revised or additional requirements or recalculated bonds and fees to ensure they are sufficient for the construction of required improvements. The decision-making body may deny or add new conditions to the application if it finds that circumstances have substantially changed to warrant denial or additional conditions.

(b) Standards for Approval

(1) Final Map Technical Review

The same time period as the initially approved tentative map, or one year if the associated tentative map has been previously extended past the initial four years due to recorded phases. An amended map without an associated tentative map may apply for an Extension of Time of up to one year.

(2) All Other Maps

An Extension of Time not to exceed one year.

(3) Separate Documents

An Extension of Time not to exceed one year.

(4) Vacation and Abandonments

2 extensions of time may be granted, each not to exceed 2 years. If additional time is needed, a new Vacation and Abandonment application is required.

(5) Off-Site Improvements

An Extension of Time not to exceed one year with a maximum of 2 Extensions of Time subject to the following:

(i) The developer shall verify that field conditions in the surrounding area have not changed. If field conditions in the surrounding area have changed and require revisions to the approved plans, revised plans shall be submitted;

(ii) There will be no resulting impacts to programmed, publicly-funded projects;

(iii) There will not be a hazardous traffic situation or have a substantial impact on traffic flow;

(iv) The bond is sufficient as provided in §30.04.08C.3, *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements,* and as determined by the Director of Public Works; and

(v) The applicable bonds, or cash guarantees, shall be recalculated and renewed to cover the Extension of Time. If the work is not completed within the approved time frame, the developer and the off-site improvement agreement shall be deemed in default, and the County may seek recourse under the bond posted, according to §30.04.08C.3, *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements*.

ii. Public Meeting(s) and Decision

(a) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and, for Vacation and Abandonments, public utilities.

(2) Public Notice/Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(4) Approval Expiration

See Standards for Approval.

iii. Post-Decision Actions

(a) Finality of Decision

The decision of the Director of Public Works becomes final when the Director signs the application, or upon expiration of the appeal period, as described in §30.06.03F, *General Post-Decision* Actions. The property owner shall be notified of the decision. No maps shall be recorded until the decision becomes final.

L. Separate Documents

1. Purpose

The purpose of this procedure is to enable the review of Separate Documents, such as but not limited to, right-of-way dedications, drainage easements, bus pad easements, pedestrian access easements,

ingress/egress access easements, utility easements, traffic control easements, roadway easements, and BLM grants.

2. Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. Review and Submittal

(a) Standards for Acceptance

(1) Submittals shall only be accepted when the applicant demonstrates that the proposed Separate Document conforms to this Title.

(2) Land use must be approved, if applicable.

(3) Technical impact analysis must be conditionally accepted, if applicable.

(4) Improvement plan must be submitted, if applicable.

ii. Analysis

(a) Standards for Approval

(1) All Separate Documents shall be in compliance with all applicable approved plans, conditions, restrictions and rules.

(2) When the Director of Public Works confirms that the Separate Document is in conformance with this Title and is technically complete and accurate, the Separate Document shall be approved and recorded.

iii. Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(c) Expiration of Approval

The Separate Document expires if not recorded within one year. BLM applications remain active until recorded.

iv. Post-Decision Actions

(a) Finality of Decision

The decision of the Director of Public Works in reviewing the Separate Documents becomes final upon recording of the separate documents by the Director of Public Works. Following decision, the property owner shall be notified of the recording.

(b) Extension of Time

Extensions of time for up to one year each may be granted.

M. Vacation of Patent Easement (VAPE)

1. Purpose

The administrative Vacation of Patent Easements procedure is to eliminate of government patent easements that are no longer required for a public purpose.

2. VAPE Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. VAPE Review and Submittal

(a) Standards for Acceptance

Written consent of each owner of property abutting the proposed vacation and public utility responses are required.

ii. VAPE Analysis

(a) Processing Time

10 working days.

(b) Standards for Approval

In addition to meeting the general standards in §30.06.03D.7, *General Standards for Approval* , the Director of Public Works shall determine that there is no present or future public need for the area proposed to be vacated, and that the public will not be materially injured by the proposed vacation. The approval of the Vacation shall constitute such a determination.

iii. VAPE Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

Government entities and public utilities.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

iv. VAPE Post-Decision Actions

(a) Recordation

The order of vacation shall not be recorded in the Office of the County Recorder until all conditions of approval have been satisfied.

(b) Approval Expiration

(1) Vacation must be recorded in the Office of the County Recorder within 2 years from the date of approval.

(2) Extensions of Time are prohibited.

(c) Appeal

The means to appeal a denial of Vacation of Patent Easement is submitting a Vacation and Abandonment.

N. Minor Deviation, Public Works (AV)

1. Purpose

The administrative Minor Deviation, Public Works procedure is to allow minor modifications or deviations from various standards of this Title and from an approved land use application and associated plans. Minor Deviations, Public Works are intended to provide greater flexibility without requiring a Waiver of Development Standards or Variance,

2. AV Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. AV Review and Submittal

(a) Standards for Acceptance

(1) As allowed by §30.04.08I, *Minor Deviation, Public Works*.

(2) As allowed by §30.06.11I, *Time Restrictions on Work in Streets*.

ii. AV Analysis

(a) Standards for Approval

In addition to meeting the general standards in §30.06.03D.7, *General Standards for Approval*, the Director of Public Works shall determine that there is no detriment to the public health, safety, or welfare.

iii. AV Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

None required.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(4) Approval Expiration

None, unless otherwise conditioned.

(5) Appeal

The means to appeal a Minor Deviation, Public Works, is submitting a Waiver of Development Standards, which must be considered by the Board.

O. Las Vegas Boulevard South Survey (RS)

1. Purpose

The purpose of this procedure is to enable the review of Las Vegas Boulevard South Surveys to show underlying title rights in relationship to “as built” improvements on Las Vegas Boulevard South to determine the necessary right-of-way dedication.

2. RS Procedure

Common Review Procedures in §30.06.03 apply, subject to the following additions and modifications:

i. RS Review and Submittal

(a) Standards for Acceptance

Submittals shall only be accepted when the applicant demonstrates that the Las Vegas Boulevard South Survey conforms to this Title.

ii. RS Public Meeting(s) and Decision

(a) Required Public Notice

None required.

(b) Hearing, Review, and Decision

(1) Recommending Entities

None required.

(2) Hearing

None required.

(3) Decision-Making Body

Director of Public Works.

(4) Expiration of Approval

The Las Vegas Boulevard South Survey expires if not recorded within one year.

iii. RS Post-Decision Actions

(a) Finality of Decision

The decision of the Director of Public Works in reviewing the Las Vegas Boulevard South Survey becomes final upon recording.

(b) Extension of Time

Extensions of Time for up to one year each may be granted.

30.06.10 Review and Decision-Making Bodies

The County officials and bodies listed below have the responsibility for implementing and administering this Title in cooperation with all listed authorities:

A. Board of County Commissioners (Board)

1. Initiate, adopt, and amend a Master Plan pursuant to §30.06.04A, *Master Plan Amendment (PA).*
2. Approve, conditionally approve, or deny land use applications and subdivisions as specified in Table 30.06-1: *Summary Table of Review Procedures*.
3. Hear appeals of decisions made by the Commission, Zoning Administrator, the Director of Public Works, Director of Department of Building, or Director of Comprehensive Planning regarding any application for which they have final authority to act.
4. Take any other action not delegated to other bodies that may be desirable and necessary.
5. The Chair is authorized to sign land use applications for projects which have been initiated or otherwise approved by the Board.

B. Planning Commission (Commission)

1. Prepare, adopt, and amend the Clark County Master Plan pursuant to §30.06.04A, *Master Plan Amendment (PA).*

2. Approve, conditionally approve, or deny land use applications and subdivisions, and make recommendations for approval or denial to the Board as specified in Table 30.06-1: *Summary Table of Review Procedures*.

C. Town Boards

1. Participate in the Town Board review process, which is intended to ensure early and effective citizen participation in conjunction with proposed applications, giving area residents an opportunity to understand proposed development, and allowing an opportunity to mitigate any impacts such proposals may have on the community.
2. Based on the results of Town Board meetings, present recommendations on proposed development to the decision-making bodies charged with approving or denying applications.
3. Receive community input and provide advice and recommendations to the decision-making body for any land use and subdivision application, except administrative applications.
4. Review land development studies or hold public meetings as requested by the Commission or Board.

D. County Officials

The County officials below have the listed responsibilities in the administration of this Title:

1. **Director of Building**

   Oversight of the Department of Building, which is responsible for:

   i. Coordinating with other agencies to implement the enforcement of this Title only during the construction and building permit process for on-site buildings and structures.

   ii. Administration and enforcement of Titles 22, 24, and 25 of this Code.

   iii. Interpretation of the requirements related to on-site accessible parking.

2. **Director of Comprehensive Planning (Director)**

   i. Administer and enforce this Title.

   ii. In consultation and co-operation with other governmental entities, formulate recommendations for all applications to be considered by the Commission or the Board.

   iii. Act as the Zoning Administrator to approve, conditionally approve, or deny certain land use applications subject to administrative approvals, including verification of all zoning requirements and developability of lots.

   iv. Determine whether rezoning requests are conforming to the various adopted land use plans.

   v. Administer specifications and procedures relating to this Title.

   vi. Accept an Extension of Time or Application for Review when the extension or review is submitted within one year of the expiration date or review deadline if:

      (a) The applicant has encountered verifiable extenuating circumstances such as a medical emergency for oneself or a family member, death of a family member, or litigation associated with the subject application which prevented the submission of the extension in a timely manner.

      (b) If the subject application expired, or review deadline passed, during the diligent processing of any development permits or licenses.

   vii. Prepare updates and amendments to the Master Plan and render interpretations of this Title relative to the Master Plan.

viii. Conduct reviews of land use applications, and subdivision maps to ensure compliance with this Title. including the acceptance, review and processing of land use applications and subdivisions, the maintenance of all records in compliance with Nevada Open Meeting Law, and rendering interpretations of this Title in cooperation with other government entities.

ix. Render interpretations of the Master Plan.

3. Director of Public Works

i. Establish standards for approval of technical studies, off-site plans, permits and off-site improvements.

ii. Prepare amendments to and render interpretations of the improvement standards of this Title.

iii. Establish standard conditions for excavations in "No Cut" streets.

iv. Approve all full street closures.

v. Review of off-site plans and technical studies on development projects affecting Public Works Capital Improvement Projects.

vi. Establish criteria and standards for License and Maintenance Agreements.

vii. Construct off-site improvements on defaulted bond projects.

viii. Establish night work only streets.

ix. Establish standards for Flood Plain Management.

x. Establish standards for and approve encroachments in the right-of-way for special event permits, coordinated through the Las Vegas Metropolitan Police Department, and oversized loads.

xi. Conduct technical reviews of subdivision maps, permits, and land use applications to ensure compliance with this Title.

xii. Approve amount of bonds or cash deposits related to construction and installation of required facilities and improvements.

xiii. Claim bonds on defaulted projects and deposit funds with Public Works.

xiv. Issue encroachment permits in "No Cut" streets in conformance with established standard conditions.

xv. Coordinate all comments and issue approvals on off-site plans and technical studies affecting Public Works Capital Improvement Projects and issue right-of-way permits.

xvi. Issue encroachment permits.

xvii. Administer the FEMA Community Rating System.

xviii. Accept, process, and record any and all documents necessary to effect the dedication of real property of any interest therein to Clark County or the termination of temporary easements that are resulting from the general application of land use and development requirements, including applicable conditions of discretionary approvals there for the rights-of-way, easements, and public facilities.

xix. Authorize the submittal of an Extension of Time when the request for an extension is submitted within one year of the expiration date of the application if the applicant has encountered verifiable extenuating circumstances such as a medical emergency for oneself or a family member, death of a family member, or litigation associated with the subject application which

prevented the submission of the extension in a timely manner; or if the subject application expired during the diligent processing of any development permits or licenses.

xx. Administer specifications and procedures relating to subdivision regulations and the technical data required.

xxi. Grant or deny certain administrative land use applications as specified in Chapter 30.06, *Administration and Procedures.*

xxii. Review and approve plans, technical studies, and cost estimates for improvements, including private streets, in conformance with established standards.

xxiii. Prepare and have executed License and Maintenance Agreements in accordance with established criteria and standards.

4. Code Enforcement Manager

Enforce the Unified Development Code.

5. County Surveyor

The County Surveyor is responsible for complying with the Nevada Revised Statutes and Clark County Code concerning all matters relating to the Office of County Surveyor, professional land surveying and mapping, legal descriptions, mining claims and any duties assigned by the Board and, or the Director of Public Works.

6. Director of Business License

Enforce this Title prior to the approval of a business license.

7. Director of Environment and Sustainability

Enforce this Title regarding public health. Further, the Director of Environment and Sustainability has all authority with respect to the regulation and control of odor, smoke, particulate emissions, dust, desert conservation, and sustainability.

8. District Attorney

Provide legal advice to County Officials and represent Clark County in the prosecution of any criminal or civil action necessary to enforce this Title, including an action for injunctive relief, ensure compliance with Nevada Open Meeting Law, and provide legal advice to Director of Building, Director of Public Works, the Director of Comprehensive Planning, Board, and Commission.

9. County Recorder

Record all maps and required documents presented for recording, and enforce this Title with respect to the recording of documents.

10. Sheriff

Enforce this Title as directed by the Director of Comprehensive Planning.

11. Director of Aviation

Oversight of the Department of Aviation, which is responsible for:

i. Issuance of Director of Aviation permits for construction and alteration of structures that may create obstructions or hazards to air navigation, pursuant to Title 20 of this Code.

ii. Issuance of Director of Aviation permits for spaceports, heliports, vertiports, airports, airstrips, or similar aviation-flight use.

iii. Administration and enforcement of Title 20 of this Code.

iv. Interpretation of requirements related to civilian aviation or civilian spaceport facilities.

30.06.11 PERMITS AND LICENSES

A. Purpose

1. The purpose of this Section is to provide means for the acceptance, processing, and final action on various permits and licenses necessary to establish uses and structures.
2. Permits and licenses may be issued if in conformance with this Title. Any permit or license issued in conflict with this Title shall be void.
3. It is illegal to commence any use, or any work for the erection, construction, reconstruction, moving, conversion, alteration, demolition, excavating, grading, right-of-way improvement, or addition upon any property, or within a right-of-way, until all applicable permits and licenses have been obtained.
4. These requirements are also intended to ensure that off-site improvements meet proper standards, do not unnecessarily obstruct streets and other rights-of-way, and promote the general prosperity, health, safety, and welfare of the public.
5. Structures and premises shall be maintained consistent with the approved plans. Any change of use shall be allowed subject to conformance to this Title and the issuance of licenses when applicable.

B. Seasonal Sales or Special Events

Amusement rides and inflatable amusement devices in conjunction with seasonal sales or special events shall comply with the standards below.

1. Amusement Ride and Inflatable Amusement Device Standards

i. Operational Requirements

At a minimum, an amusement ride or inflatable amusement device shall be:

(a) Placed on solid footings or anchored to prevent shifting and tipping;

(b) Fenced, barricaded or otherwise guarded against public intrusion in all areas around the ride or device, where persons may be endangered during its operation;

(c) Installed and maintained in accordance with the manufacturer's specifications;

(d) Free of stress-related or wear-related damage to critical parts, the failure of which could result in injury to a member of the public;

(e) Operators shall carry liability insurance insuring the owner or operator of the amusement ride or inflatable amusement device against liability for injury to persons arising out of the use of an amusement ride or inflatable amusement device in an amount not less than $1,000,000 per occurrence;

(f) Operators shall include a statement with the applicable land use application indicating installation and operation standards will be followed; and

(g) Temporary amusement rides may exceed the height of the zoning district; however, intrusions into airport airspace shall obtain the required approval per §30.02.26B, *Airport Airspace Overlay (AAO).*

ii. Amusement Ride Inspection Standards

At a minimum, if applicable, an amusement ride must be inspected for the following:

(a) Temporary amusement ride inspections are required and shall satisfy the inspection requirements of the amusement ride standards in this §30.06.10, as determined by an inspector certified by the National Association of Amusement Ride Safety Officials (NAARSO), or other similarly qualified association or group, or by an engineer licensed in Nevada and qualified to inspect the amusement ride in question;

(b) Temporary amusement rides shall have been inspected within 6 months of the date of the event;

(c) Whether the amusement ride is maintained in accordance with the manufacturer's specifications for the ride;

(d) Whether there exists stress-related or wear-related damage to critical parts of the amusement ride, the failure of which could result in injury to a member of the public;

(e) Whether belts, bars, footrests, interior padding, and other equipment necessary for safe entrance and exit, and necessary to support and restrain a passenger safely while an amusement ride is in operation, are provided and maintained in a safe condition; and

(f) Whether supporting structures used in connection with an amusement ride are designed and constructed so that the amusement ride may be operated safely given proper allowance for wind forces, dynamic effects of equipment, load reversals and repetitions to which such structures may be subjected during normal operation of the ride.

C. Business Licenses

1. No business license may be issued until all required land use applications have been approved and all conditions of approval have been satisfied.

2. A business license for each separate use as required by Titles 6, 7, and 8 of the Clark County Code shall be issued by the Director of Business License, who shall ensure compliance with all applicable requirements of this Title prior to the approval of the license.

D. Building Permits

Grading permits may be issued independently per §30.06.11E**,** *Grading Permits*.

1. No building permit shall be issued for any purpose until all required land use applications have been approved and the property is a legal lot or, when applicable, required subdivision maps have been recorded, and compliance with Hillside Development regulations as required in §30.04.05K, *Hillside Development,* has been confirmed, if applicable and as required by this Title, except as expressly allowed.

2. The Building Official shall coordinate with other agencies to ensure that permits are issued and structures are constructed only in accordance with this Title. Prior to the issuance of a certificate of occupancy, the Building Official shall verify that all applicable on-site improvements under their authority meet the requirements of this Title. The Building Official shall require any plans, such as site, elevations, landscape plans, and any documentation necessary, including information regarding neighboring lots, which may be necessary to determine and provide for the enforcement of this Title.

3. Building permits shall not be issued for any single-family residence on a lot that abuts a street on which off-site improvements have not been completed, unless Air Quality regulations for the street have been met. A Restrictive Covenant Agreement is required for any improvements less than full off-sites; see §30.04.08C.1.ix, *Less Than Full Off-Site Improvements.*

4. No building permit shall be issued for any building, or structure, other than a single-family residence in compliance with subsection 3 above, on a lot which abuts a street on which off-site improvements per §30.04.08, *Public Works Development Standards,* have not been completed adjacent to the property, or bonds posted and off-site improvement plans approved for the improvements per §30.04.08C.3, *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements*, in accordance with the specifications of the Clark County Department of Public Works. If a Waiver of Development Standards is approved to modify off-site improvements pursuant to §30.06.06F, or at the discretion of the Director of Public Works, compliance with §30.04.08C.1.ix, *Less Than Full Off-Site Improvements,* is required.

5. No building permit shall be issued for any building, or structure, on a lot from which insufficient dedication has been secured per §30.04.08C.3 *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements*.

6. A building permit for each separate building and/or structure shall be secured from the Building Official of the County by the owner, or their agent, in accordance with Title 22 of the Clark County Code.

7. For commercial projects, no permanent public certificate of occupancy shall be issued until the traffic impact analysis and the improvement plans are approved by the County, the required participation agreements executed and the required improvements are permitted, constructed and accepted by the Director of Public Works.

8. For residential subdivision projects for which bonds have been posted and off-site improvement plans approved for the improvements per §30.04.08C.3, *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements*, in accordance with specifications of the Clark County Department of Public Works, the required agreements executed and required improvements permitted, the improvements must be constructed, completed and accepted by the Director of Public Works or their designee prior to the final inspection and approval by the Building Official of all homes, buildings and structures within the residential subdivision.

9. Prior to the issuance of a certificate of occupancy for nonresidential development, a certificate of compliance signed by the property owner or the landscape contractor shall be submitted certifying that all required landscaping has been installed in accordance with §30.04.01, *Landscaping.*

10. Prior to the issuance of permits for Non-Essential Water Features, as described in §30.04.10, the Building Official shall ensure that the requirements of the water purveyor have been met.

E. Grading Permits

1. Except for ongoing agricultural cultivation within the Nonurban Area or site stabilization for disturbed soils, land shall not be disturbed, which includes clearing vegetation, rough grading, stockpiling, or altering the natural ground surface or its elevation, until a grading permit has been issued by Clark County in accordance with all of the requirements listed in this subsection: (NOTE: A temporary stormwater permit for construction activities should be obtained through the Nevada Division of Environmental Protection and stockpiling permits must be obtained from the Building Official.)

    i. A land use application has been approved pursuant to Chapter 30.06, *Administration and Procedures,* of this Title, if required for the proposed use, or a parcel map review letter has been issued by Clark County Public Works, if required.

    ii. Both drainage impact and/or traffic impact analyses are approved, if required.

    iii. A grading plan is approved.

    iv. Improvement plans required under §30.04.08, *Public Works Development Standards,* have been reviewed and a bond estimate approved, when applicable.

    v. When applicable, a bond is posted and all fees paid in accordance with §30.04.08C.3, *Surety Bonds, Cash Deposits, and Agreements in Conjunction with Off-Site Improvements*, for the construction and installation of required off-site improvements, which may be based on an estimate calculated from the improvement plans required under §30.06.11E.

    vi. Pursuant to Section 94 of the Clark County Air Quality Regulations, a Dust Control Permit from the Department of Environment and Sustainability is required if grading or soil disturbing activities exceed one quarter acre or if trenching exceeds 100 feet in length.

    vii. If there is an interval of 30 days or longer between grading and continuing construction activity, or if construction activity ceases for a 30-day period for any reason, then long-term soil

stabilization is required. Long-term soil stabilization consists of the application and maintenance of a dust palliative; gravel; landscaping; or the development of a strong soil crust combined with fencing or some other means of controlling site access. Merely watering the soil to develop a crust is not generally sufficient for long-term stabilization. The Director of the Department of Environment and Sustainability shall determine whether a specific treatment constitutes long-term treatment.

viii. The area to be graded shall not exceed the area encompassed within the grading plan approved by the Director of Public Works and the Building Official.

ix. If the land to be graded includes property designated for public purposes by public ownership or easement but intended for private use, a vacation and abandonment shall be approved by all government and utility entities with an interest in the right-of-way or easement, but need not be recorded if a signed, notarized statement releasing Clark County of any liability for damage to any public or utility improvement within the right-of-way or easement to be vacated is provided.

x. Permits for grading may include retaining walls, flood walls and drainage channels, block walls or fences.

xi. When the lot is subject to the regulations established in §30.04.05K, *Hillside Development*:

(a) The grading plans shall clearly identify the area and percentage of the lot to be disturbed;

(b) Where natural areas are designated, temporary fencing shall be installed where they abut construction areas in order to prevent encroachment into the natural areas; and

(c) For additional requirements, including the requirement for a Design Review, see §30.04.05K, *Hillside Development.*

xii. Prior to any disturbance of any land, including rough grading, grubbing, or stockpiling, the applicant shall pay a Multiple Species Habitat Conservation Plan (MSHCP) mitigation fee prior to the issuance of a grading permit, pursuant to (a) and (b) below.

(a) The purpose of this fee is to allow the applicant, by certificate of inclusion, to comply with the Federal Endangered Species Act through the Incidental Take Permit issued to the County. Fees collected are used to implement the terms of the Incidental Take Permit.

(b) All applicants for grading, building or off-site permits shall, prior to issuance thereof, complete a land disturbance/mitigation fee form furnished by each Clark County Department which issues such permits. The land disturbance/mitigation fee form must be complete, signed by the applicant for the permit and contain, at a minimum, the following information:

(1) The Assessor's parcel number.

(2) The number of acres within the parcel and the area disturbed by related offsite improvements.

(3) The amount of mitigation fees actually paid.

xiii. Exception

A grading permit may be issued prior to the completion of the requirements in subsections iv and v above, providing all the other requirements listed in this §30.06.11E have been met, and so long as the developer has entered into a grading agreement adopted by the County.

F. Incidental Take Permit: Compliance with Endangered Species Act

All applicants for a Land Disturbance Permit shall complete a land disturbance/mitigation fee form described in §30.06.11E.1.xii(b) above prior to issuance of the permit.

1. Compliance with the Endangered Species Act

i. All persons, firms, or entities located within Clark County that engage in any activity covered pursuant to the Clark County Multiple Species Habitat Conservation Plan, including but not limited to residential and commercial development, agriculture, mining, grazing and off highway vehicle activities must comply with the applicable requirements of the Incidental Take Permit to be included, by certificate of inclusion, for coverage under the Incidental Take Permit.

ii. All persons, firms, or entities, their agents and employees, which comply with this Chapter are hereby allowed to incidentally take any species for which the United States Fish and Wildlife Service has issued the Incidental Take Permit so long as such person, firm or entity has complied and continues to comply with the applicable requirements of the Incidental Take Permit.

iii. All persons, firms, or entities which are not required to pay an MSHCP Mitigation Fee pursuant to the terms of this Chapter, but are otherwise in compliance with the applicable requirements of the Incidental Take Permit, are hereby allowed to incidentally take any species covered by the Incidental Take Permit.

iv. The certificate of inclusion that allows a person, firm or entity to comply with Federal Endangered Species Act through the Incidental Take Permit, including the incidental take of species listed in the Incidental Take Permit, shall be immediately revoked, without further action or notice, in the event such person, firm or entity ceases to be in compliance with subsections i, ii, and iii above.

G. Right-of-Way Permit

A right-of-way permit shall be obtained for any improvements within a right-of-way or public easement in accordance with the following.

1. Off-Site Permit

i. An off-site permit shall be issued for the purposes of constructing any major new improvements when:

(a) The improvement plans and technical impact analyses for the proposed work have been reviewed and approved.

(b) All necessary fees have been paid and bonds and agreements have been executed in accordance with the applicable requirements of this Title.

(c) A grading permit is issued for the grading of the project, if applicable.

(d) The Final Map Technical Review or the Parcel Map Technical Review, if required, has been approved.

2. Encroachment Permit

i. When Issued

An encroachment permit shall be issued for the purposes of minor reconstruction, modification or maintenance of existing improvements, the installation of new utility facilities, or any other minor encroachment approved by the Director of Public Works within five working days when:

(a) The applicant has completed an application for a permit on the forms provided and has submitted all plans, engineering calculations, and other data that is required and applicant has agreed, in writing, to comply with all conditions as stated on that permit.

(b) The applicant is properly licensed by the State Contractor Board, for performance of work within public right-of-way, or is a utility company.

(c) The plans for the proposed work, including a Construction Traffic Control Plan in accordance with §30.06.11G.5 of this Title, have been reviewed and approved.

(d) All necessary fees and deposits have been made in accordance with this §30.06.11 and the County fee schedule available on the County's website.

(e) The applicant is not currently in default on an existing permit. If an applicant is currently in default, the application will be denied until final resolution of the defaulted permit, either by completing the work or, in the event the County has already completed the work, reimbursing the County for costs incurred exceeding the deposits posted in accordance with this §30.06.10 of this Title.

ii. Cash Deposit in Conjunction with an Encroachment Permit

(a) Prior to the issuance of an encroachment permit for any of the purposes designated in §30.06.11G.2.i, an applicant that has had a previous permit in default within the previous two years shall be required to make a deposit with the Director of Public Works in such sum as designated by the Director of Public Works to restore the streets and improvements to their proper condition.

(b) Should the person obtaining such permit default or fail, neglect, or refuse to restore the right-of-way to proper condition to the satisfaction of the Director of Public Works, the Director of Public Works may use any part of the deposit for such work.

(c) Deposit shall be released upon final approval of the work by the Director of Public Works, less any deductions made pursuant to this Section.

3. Emergency Work

If an emergency arises, necessitating immediate work within the right-of-way during the hours when the Public Works Department is not open for business, notification shall be made to the Las Vegas Metropolitan Police Department and Clark County Fire Department, prior to commencement of work, giving the location, time and the extent of work required. An application for an encroachment permit shall be submitted to the Director of Public Works on the following working day, whether the emergency work has been completed or not. The permit shall be granted if the applicant complies with this §30.06.11.

4. Work Without a Permit

Whenever any work, with the exception of emergency work per subsection 3 above, for which a permit is required by this Title has commenced without first obtaining the required permit, or exceeding the scope of a valid permit, an investigation shall be made before a permit may be issued for such work. A right-of-way permit violation fee shall be collected in addition to all other applicable fees prior to issuance of a permit. The payment of such permit violation fee shall not exempt any person from compliance with all other requirements of this Title or the technical codes nor from any penalty described by law.

5. Construction Traffic Control Plan

i. When Required

Prior to issuance of an encroachment permit or prior to commencement of construction for an offsite permit, a Construction Traffic Control Plan must be submitted, a review fee paid, and the Construction Traffic Control Plan approved by the Director of Public Works to ensure that the work will not unreasonably interfere with vehicular and pedestrian traffic, the demand and necessity for parking spaces, and the ingress and egress from the affected or adjacent properties and rights-of-way. The Traffic Control Plan shall conform to the "Manual on Uniform Traffic Control Devices, Latest Edition" and the manual entitled "Nevada Work Zone Traffic Control Handbook, Latest Edition."

ii. Compliance

(a) Any applicant with an approved permit not maintaining barricades or signage in conformance with their approved Construction Traffic Control Plan within right-of-way which, upon notification, has not corrected the situation and requires the placing of

barricades, warning lights or signs by the Director of Public Works, in the interest of public safety shall be charged a construction traffic control violation fee for each occasion in which the Director of Public Works finds it necessary to place or maintain the traffic control devices in the construction zones on behalf of the contractor.

(b) Any traffic control device left in County right-of-way beyond the time limits established on the Construction Traffic Control Plan may be confiscated by the County. The permittee, after providing sufficient proof of ownership, may, at any time up to, and including, the thirtieth day after confiscation, obtain a return of the traffic control device upon payment of the Construction Traffic Control Plan violation fee.

6. Off-Site Inspections

i. All construction or work within a right-of-way or easement for which a permit is required shall be subject to inspection by the Director of Public Works.

(a) The permittee shall notify the Director of Public Works, one working day prior to requested inspection, that such work is ready for inspection.

(b) Any permitted work shall not be done beyond each successive stage of construction as indicated in specifications without first obtaining an inspection and approval of the Director of Public Works.

(c) The Director of Public Works, upon notification shall, within a reasonable time frame, make the requested inspections and shall either indicate that portion of the construction is satisfactory as completed or shall notify the permittee or their agent where the work fails to comply with this Title. Any portions which do not comply shall be corrected and such portion shall not be covered until authorized.

(d) A re-inspection fee may be assessed for each re-inspection of work if any one of the following conditions occur:

(1) Work for which an inspection has been requested is not complete.

(2) Corrections identified in a previous inspection are not complete.

(3) Work for which inspection has been requested has been covered.

(4) Work which requires approval prior to the requested inspection has not been approved.

(e) There shall be a final inspection and approval on all construction when completed and ready for acceptance by the Director of Public Works and all necessary re-inspection, construction traffic control violation, night work and/or overtime fees have been paid as required by the County fee schedule.

ii. The following inspection provisions are required for grading work permitted under the "Uniform Regulations for the Control of Drainage" to verify compliance with approved plans, specifications, and computations, as approved by the local administrator and permitted by the Designated Official. The Designated Official shall ensure that inspections are conducted by qualified individuals and reports are filed to verify compliance by one of the following methods, based upon the project circumstances.

(a) Certification by a Nevada Licensed Professional Engineer who designed the project that work is in substantial compliance with the approved plans, computations, specifications and required testing or certification by a quality control testing and/or inspection agency under this Title or inspection report filed by a County Inspector.

(b) Certifications by a Nevada Licensed Professional Land Surveyor may be required to ensure finish grades comply with the approved plans. No final inspection shall be approved,

certificate of completion accepted, or certificate of occupancy issued without such compliance.

7. Any proposed utility line not shown to be underground shall not be approved unless the Director of Public Works approves the installation, contingent upon the approval as described in §30.06.06F, *Waiver of Development Standards.*

8. In the State of Nevada Hydrographic Basin 212, commonly known as the Las Vegas Valley PM10 non-attainment area of the County, whenever any work is in a public right-of-way that is unpaved, and there is no existing permitted obligation to pave the right-of-way by another applicant, the applicant is required to provide:

i. An agreement executed by the utility company that they will provide dust control of the right-of-way disturbed by the applicant and compliance with Clark County Air Quality regulations until the right-of-way is paved in accordance with Clark County standards;

ii. Paved roadway access improvements in accordance with Clark County Code in the right-of-way disturbed by the applicant; or

iii. A cash payment to the Clark County Capital Improvement Fund in the amount equal to the estimated cost of constructing the paved access roadway improvements within the right-of-way disturbed. The cost will be established by the Department of Public Works and will be based upon the square feet of the right-of-way disturbed by the applicant. Such funds shall be used specifically for paving the roadway in the area of the work covered by the permit.

H. Utility Improvements

The developer and the utility companies are responsible for complying with the requirements of this Chapter, and the developer shall make the necessary arrangements with the utility companies involved for the design plans and for the installation of said utility lines. It shall be the responsibility of the property owner to provide utility easements as may be required.

I. Time Restrictions on Work in Streets

1. Except for emergency work, as defined in Chapter 30.07, no work may be performed in any travel lanes, on any street listed on Table 30.06-3, except during the time periods specified in said schedule.

Table 30.06-3: Time Restrictions on Work in Streets

Legend (Time Restrictions)			
RESTRICTION LEVEL	**PERMITTED WORK PERIODS**		
A	7:00 p.m. to 6:00 a.m., 7 days per week		
A	7:00 p.m. to 6:00 a.m., 7 days per week		
B	9:00 p.m. to 6:00 a.m., 7 days per week		
C	9:00 p.m. to 6:00 a.m., except no work on holidays and Friday night through Sunday morning		
D	9:00 a.m. to 3:00 p.m. and 9:00 p.m. to 6:00 a.m., Monday through Friday		
E	Work is permitted Monday through Friday, excluding national holidays, from 2:00 a.m. to 10:00 a.m.		
All Other Streets	7:00 a.m. to 5:00 p.m., 7 days per week		
STREET	**FROM**	**TO**	**LEVEL**
Arville Street	Tropicana Avenue	Flamingo Road	C
Arville Street	Russell Road	Tropicana Avenue	D
Buffalo Drive	Tropicana Avenue	Sahara Avenue	D

Table 30.06-3: Time Restrictions on Work in Streets

Legend (Time Restrictions)			
Cameron Street	Tropicana Avenue	Flamingo Road	A
Cameron Street	Russell Road	Tropicana Avenue	D
Casino Drive (Laughlin)	Thomas Edison Drive	Colorado River Bridge/SR 163	E
Charleston Boulevard	Clark County 215	Hualapai Way	B
Charleston Boulevard	Nellis Boulevard	Hollywood Boulevard	D
Clark County 215 & Frontage Roads	1-15 south of Russell Road	1-15 northeast of Craig Road	B
Clark County 215	I515/US 95	Warm Springs Road	B
Convention Center Drive	Las Vegas Boulevard South	Paradise Road	D
Craig Road	Lamb Boulevard	Las Vegas Boulevard South	D
Dean Martin	Wigwam	Frank Sinatra Drive	C
Decatur Boulevard	Warm Springs Road	Sahara Avenue	B
Decatur Boulevard	Cactus Avenue	Clark County 215	D
Desert Inn Road	Arville Street	Boulder Highway	B
Desert Inn Road	Red Rock Ranch	Arville Street	D
Durango Drive	Blue Diamond Road	Desert Inn Road	D
Eastern Avenue	St. Rose Parkway	Sahara Avenue	D
Flamingo Road	Boulder Highway	Nellis Boulevard	B
Flamingo Road	900' West of Las Vegas Boulevard South	Paradise Road	C
Flamingo Road	Hualapai Way	Rainbow Boulevard	D
Fort Apache Road	Hacienda Avenue	Flamingo Road	A
Frank Sinatra Drive	Sammy Davis Jr. Drive	Russell Road	E
Giles Street	Hacienda Avenue	Reno Avenue	C
Harmon Avenue	Swenson	Aldebaran Avenue	D
Harmon Avenue	Wynn Road	Valley View Boulevard	A
Joe W. Brown Drive	Desert Inn Road	Sahara Avenue	A
Jones Boulevard	Warm Springs Road	Tropicana Avenue	D
Jones Boulevard	950 Feet North of Sahara Avenue	O'Bannon Drive	D
Jones Boulevard	Tropicana Avenue	Sahara Avenue	D
Karen Avenue	Paradise Road	Joe W. Brown Drive	C
Koval Lane	Reno Avenue	Sands/Twain Avenue	C
Lamb Boulevard	Boulder Highway	Charleston Boulevard	A
Lamb Boulevard	Owens Avenue	Las Vegas Boulevard North	A
Las Vegas Boulevard	Russell Road	Sahara Avenue	E
Las Vegas Boulevard	St. Rose Parkway	Russell Road	C
Mandalay Bay Road	Las Vegas Boulevard South	Giles Street	C
Maryland Parkway	Russell Road	Sahara Avenue	D
Paradise Road	Tropicana Avenue	Sahara Boulevard	C
Pebble Road	Las Vegas Boulevard South	Eastern Avenue	D
Pecos Road	Warm Springs Road	Flamingo Road	D
Pecos/McLeod Drive	Flamingo Road	Desert Inn Road	D
Rainbow Boulevard	Blue Diamond Road	Tropicana Avenue	B
Reno Avenue	Las Vegas Boulevard South	Koval Lane	C

Table 30.06-3: Time Restrictions on Work in Streets

Legend (Time Restrictions)			
Russell Road	Decatur Boulevard	Las Vegas Boulevard South	C
Russell Road	Paradise Road	Spencer Street	B
Russell Road	Spencer Street	City of Henderson Limits	D
Sahara Avenue	Boulder Highway	Nellis Boulevard	D
Sahara Avenue	Nellis Boulevard	Hollywood Boulevard	D
Sahara Avenue	Hualapai Way	Clark County 215	D
Sahara Avenue	Durango Drive	Rainbow Boulevard	B
Sahara Avenue	Northbridge Lane/Tam Drive	Boulder Highway	C
Sahara Avenue	Rainbow Boulevard	Decatur Boulevard	B
Sammy Davis Jr. Drive	Frank Sinatra Drive	Sahara Avenue	E
Sandhill Road	Sunset Road	Boulder Highway	D
Sands/Twain Avenue	Las Vegas Boulevard South	Paradise Road	C
Sands/Twain Avenue	Paradise Road	Maryland Parkway	D
Serene Avenue	Spencer Street	Eastern Avenue	D
Silverado Ranch Boulevard	Dean Martin Drive	Eastern Avenue	D
Spring Mountain Road	Durango Drive	Valley View Boulevard	B
Spring Mountain Road	Hualapai Way	Durango Drive	D
Spring Mountain Road	Valley View Boulevard	Las Vegas Boulevard South	C
Sunset Road	Decatur Boulevard	Las Vegas Boulevard South	B
Swenson Street	Hacienda Avenue	Desert Inn Road	D
Tropicana Avenue	Hualapai Way	Rainbow Boulevard	D
Tropicana Avenue	Las Vegas Boulevard South	Maryland Parkway	C
Tropicana Avenue	Rainbow Boulevard	Frank Sinatra Drive	B
Twain Avenue	Valley View Boulevard	Dean Martin Drive	C
Valley View Boulevard	Flamingo Road	Sirius Avenue	C
Valley View Boulevard	Tropicana Avenue	Clark County 215	A
Warm Springs Road	Dean Martin Drive	Pecos Road	D
Windmill Lane	Las Vegas Boulevard South	Eastern Avenue	D
Wynn Road	Tropicana Avenue	Harmon Avenue	A

2. The Director of Public Works may waive the time restrictions as set forth in this Section if the general prosperity, health, safety, or welfare of the public is not adversely affected and if the work to be performed:

i. Is not within 250 feet of a residential dwelling.

ii. Will not unnecessarily disrupt traffic flow.

iii. Requires materials that are not readily available during the restricted time periods.

iv. Would not significantly disrupt traffic flow during the restricted time periods any more than during the unrestricted time periods.

v. Necessitates that such work be accomplished at different time periods than those specified herein.

vi. Can be completed in whole, or in part, with more intense construction activity that shortens the overall length of the traffic disruption.

3. Where the applicant is aggrieved by the decision of the Director of Public Works, the applicant may file an appeal in the form of a *Waiver of Development Standards* application to the Commission as provided in §30.06.06F.

J. Notice of Public Street Project Commencement

1. Whenever the County or any other party proposes to construct, reconstruct, or resurface a street, the County shall provide the owners of the properties as identified on the current Clark County Tax Assessor's Records that abut the street, or proposed street that is scheduled for such improvement, utility owners or operators, and any governmental entities affected by the scheduled construction, reconstruction or resurfacing with a notice that:

   i. Advises them of the proposed improvement.

   ii. Affords them the opportunity to place, expand, relocate, modify, or connect utilities in such street or proposed street before the work of improvement commences.

   iii. Advises them that, if they fail to do so, they will be restricted from excavating in the street that is to be constructed, reconstructed, or modified for the purpose of making utility placement, expansion, relocation, modification, or connections for a period of 5 years after the work of improvement is completed.

2. At least 180 calendar days prior to the commencement of the work of construction, reconstruction, relocation, or resurfacing, notice to owners of property identified in subsection 1 above shall be filed and recorded in the Office of the County Recorder with respect to each of such properties. Owners/operators of utilities or governmental entities shall receive notice by certified mail.

K. Utility Connections to be Made with Public Street Project

For any notice provided to the owners of the property, public utilities, or government entities, in accordance with the preceding subsection, §30.06.11J, *Notice of Public Street Project Commencement,* except as otherwise provided by the Nevada Revised Statutes or by a franchise agreement with the County, the following conditions apply:

1. The notice shall be binding upon the owner or affected entity and upon any successor in interest in, and to, such property or entity.

2. All utility connections, expansions, relocations, modifications, or placements must be made within 180 days of notification, or in conjunction with, the work of improvement on the street or proposed street. Failure to make any such improvement(s) within 180 days of notification, or in conjunction with the construction, reconstruction or modification of the street, shall be restricted from excavating in the constructed, reconstructed or modified street for any reason for a period of five years after the work is completed and accepted by the County for maintenance, except as provided by §30.06.11J, *Notice of Public Street Project Commencement.*

L. Exceptions to Restrictions Against Cutting Streets

1. Alternate Methods

In the event that any owner specified above, upon which notice is binding, seeks to work in a public street for the purpose of making a utility connection, expansion, relocation, modification, or placement, may request approval from the Director of Public Works, subject to the following conditions.

i. Alternative methods of providing utility placements, connections, expansions, relocations or modifications, other than by cutting the subject street, must be considered and may be required by the Director of Public Works. Such alternative methods may include, but are not limited to,

underground jacking, boring or tunneling under the street surface or by excavating in unpaved alternative alignments or paved alternative alignments not covered by this Chapter. Such alternatives shall also consider the construction of the connection, expansion, relocation or modification from another direction or street in the vicinity, and must conform to the utility's standards and service rules.

ii. When the alternative methods specified above in subsection i cannot be performed, cuts will be allowed and the restoration of pavement shall meet, or may exceed, the minimum requirements described in §30.04.08H.1, *Utility Improvement Requirements*, and may require additional resurfacing of the streets after repairs are made to maintain a uniform pavement appearance.

2. Emergency Work

The restrictions against cutting streets contained in this subsection §30.06.11L shall not apply to emergency work. Emergency work shall be accomplished in accordance with §30.06.11G.2.ii.

Chapter 30.07 Rules of Construction & Definitions

30.07.01 Rules of Construction of Language

A. Meanings and Intent

1. All provisions, terms, phrases, and expressions contained in this Title shall be construed in accordance with the general purpose statement set forth in §30.01.03 and the specific purpose statements set forth throughout this Title. When, in a specific Section of this Title, a different meaning is given for a term defined for general purposes in this Title, the specific Section's meaning and application of the term shall control.
2. Words not included in this Title but defined in other Titles within the Clark County Code shall be construed as defined in such other Titles.
3. Terms not defined within this Title or the International Building Code shall have the meaning customarily assigned to them.
4. Terms defined within this Title may be otherwise defined by other Chapters of the Clark County Code or in any other adopted plans, policies, regulations, or supplements thereto. A property owner and applicant have the sole responsibility to review each Title for respective requirements.
5. Nothing within this Chapter 30.07 may be waived or varied.

B. Headings, Illustrations, and Text

In the case of any difference of meaning or implication between the text of this Title and any heading, caption, drawing, table, figure, or illustration, the text shall control.

C. Lists and Examples

Unless otherwise specifically indicated, lists of items or examples that use terms such as "for example," "including," "such as," or similar language are intended to provide examples and not to be exhaustive lists of all possibilities.

D. Computation of Time

1. References to days are calendar days unless otherwise stated. The time in which an act is to be done shall be computed by excluding the first day and including the last day. If the last day is a Friday, Saturday, Sunday, or holiday observed by Clark County, that day shall be excluded.
2. If a required date of action falls on a Friday, Saturday, Sunday, holiday observed by Clark County, or other day County offices are closed, the required date of action shall be the day after the one where County offices are closed.

E. External References

Reference to a resolution, ordinance, statute, regulation, or document shall be construed as a reference to the most recent edition or amendment of such, unless otherwise specifically stated.

F. Tenses, Plurals, and Gender

1. Words used in one tense (past, present, or future) include all other tenses, unless the context clearly indicates the contrary.
2. Words used in the singular include the plural and the plural includes the singular.
3. Words in the masculine gender include the feminine, and words in the feminine gender include the masculine.

G. Mandatory and Discretionary Terms

The words "shall," "will," "must," "is not," and "is" are always mandatory. The words "may" and "should" are advisory and discretionary terms. The word "prohibited" means anything forbidden, not allowed, and which cannot be waived or varied.

H. Conjunctions

Unless the context clearly suggests the contrary, conjunctions shall be interpreted as follows:

1. "And" indicates that all connected items, conditions, provisions, or events apply.
2. "Or" indicates that one or more of the connected items, conditions, provisions or events may apply.

I. Public Officials

All public officials, bodies, and agencies referenced are those of Clark County, unless otherwise indicated.

J. Designees

Whenever this Title refers to the Director of Aviation, Director of Building, Director of Comprehensive Planning, Director of Public Works, Building Official, Code Enforcement Manager, County Surveyor, County Engineer, County Recorder, Director of Business License, Director of Environment and Sustainability, Sheriff, and/or District Attorney, it shall also include any person designated by that authority to act in his or her place.

30.07.02 Defined Terms

A.

Abandoned
To cease or suspend from developing or maintaining a building, use, or site feature such as a sign.

Abandonment
See "Vacation and Abandonment."

Abutting
Having a common border with, or being separated from such a common border by a public or private street, alley, or easement (see also, "Adjacent" and "Contiguous").

Access
A way or means to provide pedestrian or vehicular physical ingress or egress to a property.

Accessory Agricultural Building
An accessory building for housing livestock or materials necessary to maintain the animals.

Accessory Building
A subordinate building clearly incidental to, and located upon, the same lot as the primary building with no interior access to the primary building and shall not be used as a dwelling. Examples include but are not limited to garage, workshop, shed, game room, pool house or cabana, which may include a balcony or deck.

Accessory Commercial
A commercial use designed to be accessory to and integrated into a residential development, including group living facilities, or recreational vehicle park and established only for the convenience of residents and guests.

Accessory Living Quarters
A subordinate dwelling unit designed for one family, used for residential purposes (i.e., living, sanitation, sleeping, and may include cooking areas), including rental for occupancy by others, in a portion of the primary dwelling without interior access, or a separate structure located on the same lot as the primary dwelling. An Accessory Living Quarters shall not be considered an additional dwelling unit when calculating density.

Accessory Vehicle and Watercraft Storage
The storage of a recreational vehicle, trailer, watercraft, and/or off-highway vehicles at a residence or within a residential development.

Accessory Use
A use or activity, subordinate in area, extent, and purpose, incidental to the primary use of the property, on the same lot.

Acre
An area of 43,560 square feet.

Gross Acre

The total area within the boundary lines of a lot before public streets, flood control channels or basins, or other areas to be dedicated or reserved for a public use are deducted from such lot. County or other government held property previously dedicated shall not be included in calculating total acreage.

Nominal Acre

An area based on the aliquot part of a Section.

Action

The decision of the decision-making body on an application submitted in accordance with this Title, including the determination made and any conditions of approval. For the purposes of NRS 278.0235 only, final action occurs on the date the Board, Commission, or Director approves or denies an application.

Adjacent

Having a common border with another property, including the intersection of property lines at property corners, with no street or other property between.

Adult Business

An establishment characterized by material having as a dominant theme and emphasis on matter depicting, describing, or relating to "specified sexual activities" or "specified anatomical areas" as detailed in Titles 6, 7, and 8 (Business License & Liquor and Gaming) or otherwise herein. Adult Bookstores, Adult Motion Pictures, Adult Mini-Motion Picture, Adult Entertainment Cabaret, Adult and Picture Arcade Theater are as defined in Titles 6, 7, and 8. Nothing in this Section shall be construed to apply to the non-obscene presentation, showing, or performance of any play, dance, erotic dance, drama, ballet, concert, or similar performance in any theater, concert hall, fine arts academy, school, institution of higher education, business or similar establishment as a form of expression of opinion or communication of ideas or information, as differentiated from the promotion or exploitation of sex for the purpose of advancing the economic welfare of a commercial or business enterprise. This definition also does not apply to professional services by a “provider of health care” as defined in NRS 629.031.

Advertising

Any writing, printing, painting, display, emblem, drawing, sign or other device, designed, used or intended to be used to advertise products, goods, services, or promote the sale of objects, or attract attention to a place, or lettering for the purpose of making anything known.

Affordable Housing

Any project certified as such by the Community Housing Office.

Agriculture and Animal-Related

This category includes agricultural and animal-related uses involving the boarding and care of animals on a commercial basis, farming, dairying, pasturage, apiculture, horticulture, floriculture, viticulture, animal husbandry, and the processing and selling of agricultural products.

Agricultural Fence

See “Fence.”

Animal Byproducts

An indoor facility where animals are killed, dressed, and/or processed in preparation for consumption or where animal remains are processed for other purposes.

Animal Care Project

The keeping of animals, including hogs and pigs, in conjunction with a multi-membership animal husbandry society that provides participants with direction and guidance in the raising of animals and an opportunity to exhibit the animals at an off-site location at the end of the project.

Animal Hospital

A facility for the examination, medical or surgical treatment, overnight care, and/or observation of animals.

Apiary

A place where beehives of honey bees are kept to produce honey or to pollinate plants.

Aquaculture

The farming or rearing of aquatic life or the cultivation of aquatic plants.

Aviary

An enclosure for keeping and rearing of 4 or more domesticated birds not normally raised for consumption in confinement, but not including young birds under 6 months of age.

Community Garden

An area of land maintained by a group to grow and harvest food or non-food crops or non-food crops for consumption or donation. Community Gardens may contain separate plots for cultivation by one or more individuals or may be farmed collectively by members of the group and may include common areas maintained and used by group members.

Exotic/Wild Animals

Exotic and wild animals, including those considered to be inherently dangerous, are regulated and defined by Chapter 10.04 of the Clark County Code.

Farm or Garden

An indoor or outdoor area used for the cultivation of any plant, food, or flower crop, but not for raising animals.

Guest Ranch

A working farm or ranch where guests are provided transient lodging and may be instructed in agricultural and/or animal husbandry practices.

Hogs and Pigs

The raising or keeping of swine.

Household Pet

Household pets are defined in Chapter 10.04 of the Clark County Code and include Breeder or Pet Fancier. Household pets can also include potbellied pigs which are not defined in Chapter 10.04 of the Clark County Code.

Kennel

A building, structure, or premises on which Household Pets are kept for an indefinite period, typically for compensation.

Livestock

The raising or keeping of domesticated animals (other than household pets) traditionally bred for food or transport.

Livestock, Large

This may include camels, cattle, horses, ostriches, and similar animals whose weight at maturity generally exceeds 250 pounds.

Livestock, Medium

This may include emus, goats, miniature ponies, rheas, sheep, and similar animals whose weight at maturity is generally between 50 and 250 pounds.

Livestock, Small

This may include chickens, chinchillas, ducks, fish, geese, peafowl, rabbits (excluding pets), turkeys, and similar animals whose weight at maturity does not generally exceed 50 pounds.

Plant Nursery

An establishment for the growth, display, and/or sale of plants, shrubs, or trees, which may also include the accessory sale of materials and tools, such as decorative rock and riding lawn mowers.

Stable

A facility for the housing, keeping, and/or riding and training of horses and similar animals, open to the general public, including animal rental or instruction in horseback riding. Any horse or similar animal greater than six months old, kept on site for the purpose of training, shall be considered a boarded animal.

Stable, Residential

A facility for the housing, keeping, and/or riding and training of horses and similar animals, regardless of compensation, which shall include the owner/proprietor's personal horses or similar animals. This use shall not include animal rental or instruction in horseback riding to the general public. Any horse or similar animal greater than six months old, kept on site for training, shall be considered a boarded animal.

Airport Definitions

The following definitions apply to the requirements listed in §30.02.26B, *Airport Airspace Overlay (AAO*), and §30.02.26C, *Airport Environs Overlay (AEO),* unless the context otherwise requires.

Aircraft Hangar

A facility for the storage of aircraft and airport-supporting materials.

Airport or Airstrip

A public or private landing area, runway, or other facility designed or used for the landing and taking off of fixed wing aircraft, including taxiways, aircraft storage, and tie-down areas, hangars, and other necessary buildings, including incidental commercial uses, and open spaces.

Airport Elevation

The highest point of an airport's usable landing area measured in feet above mean sea level.

Aviation-Flight

A use of land which allows for the landing and/or departure of vehicles or objects into the air and is not defined elsewhere in code. This definition includes spaceport uses which is defined herein as a place designed for the launch of a vehicle or reentry vehicle and any payload from Earth in a suborbital trajectory, in Eart orbit in out space, or otherwise in outer space, and/or the purposeful return of a reentry vehicle and its payload, if any, from Earth orbit or from outer space to Earth.

Director of Aviation

The Director of the Clark County Department of Aviation.

Federal Aviation Regulations (FAR)

The federal regulations governing aeronautics and space codified at Title 14 of the United States Code of Federal Regulations.

Hazard to Air Navigation

An obstruction determined to have a substantial adverse effect on the safe and efficient utilization of the navigable airspace.

Height

To determine height limits in all zones in this Title and/or shown on an Airspace Zoning Map, the datum shall be the North American Vertical Datum of 1988, and the North American Horizontal Datum of 1983, or any subsequent revision.

Obstruction

Any structure, growth, or other object, including a mobile object, which exceeds a limiting height set forth in §30.02.26B, *Airport Airspace Overlay (AAO)*, and §30.02.26C, *Airport Environs Overlay (AEO)*.

Public Use Airport

Any of the following airports in Clark County, Nevada: Harry Reid International Airport, Overton Municipal Airport (Perkins Field), Searchlight Airport, Jean Airport, North Las Vegas Airport, Boulder City Airport, Echo Bay Airport, Henderson Executive Airport, Sky Ranch Estates, and Kidwell Airport.

Runway

A defined area on an airport prepared for landing and takeoff of aircraft along its length.

Runway Protection Zone

A trapezoidal area at ground level, created for the purpose of protecting the safety of approaches and keeping the area clear of the congregation of people. Formerly referred to as Runway Clear Zone.

Structure

An object, including a mobile object, constructed, or installed by humans including, but not limited to, buildings, towers, cranes, smokestacks, earth formations, signs, and overhead transmission lines.

Tree

Any vegetation object of natural growth.

Alley

A drivable surface, primarily for vehicular use, with a width of 20 feet minimum, which affords a secondary means of access to abutting properties. An alley is not a street for the purpose of this Title.

Alteration

Any change, addition, or modification in construction, or occupancy, of an existing structure.

Alternative Fuels Processing

The processing of alternative transportation fuels, including biodiesel, natural gas, ethanol, hydrogen, and propane to be distributed.

Amenity

A natural or man-made, constructed, or created feature that enhances the aesthetic quality, visual appeal, or attractiveness of a property, place, or area including, but not limited to, open space.

Ammunition
In reference to this Title, ammunition or cartridge cases, primers, bullets, or propellant powder (including gun powder) designed for use in any firearm. The term shall not include (a) any shotgun shot or pellet not designed for use as the single, complete projectile load for one shotgun hull or casing, nor (b) any unloaded, non-metallic shotgun hull or casing not having a primer as defined by United States Code; or (c) non-combustible components of ammunition.

Amusement Device, Inflatable
An air-filled device that incorporates a structural and mechanical system and employs a high-strength fabric or film that achieves its strength, shape, and stability by tensioning from internal air pressure; is intended for use by a person to bounce, play, slide, climb or otherwise interact for outdoor recreation; and includes, without limitation, a constant air bounce house, inflatable slide or water slide, obstacle course, pool or enclosed inflatable trampoline, as defined in NRS 597.

Amusement Ride
A bungee or mechanical device which carries or conveys passengers along, around, or over a fixed or restricted route or course. This use does not include slides, playground equipment, or coin-operated devices.

Antenna
Any system of wires, poles, rods, reflecting discs or similar devices used to transmit or receive electromagnetic waves external to or attached to the exterior of, any building or mounted upon the ground.

Applicant
Person with authority to submit an application in accordance with §30.06.03C.1, *Initiating Authority,* or correspondent listed on application if different than applicant.

Approvable Form
Off-site improvement plans that have been reviewed and all required corrections made to the satisfaction of the Director of Public Works.

Architectural Enclosure
Any part of a building that encloses space such as bay windows, fireplaces, media nooks, room overhangs, which extend past any wall. Second story enclosures may be supported by foundation or support columns, except for room overhangs.

Architectural Intrusion
Any part of a building or structure, such as, awnings, belt courses, canopies, cornices, column, eaves, parapet walls, railings, roof lines, sills, stoops, wall and projecting signs, and other similar features which extend past any wall of a building or structure. The intrusion may be supported by a foundation but may not enclose space below ceiling height.

Assisted Living
A commercial building or building complex used or maintained to provide living quarters, which may also provide nursing, dietary, and other personal services, to more than 10 people with disabilities or elderly persons who, without the assistance of any other person, may be physically or mentally capable of moving himself/herself from the room in which he/she sleeps to outside the facility in 4 minutes or less, or as provided for by federal, state, and local regulations. NAC 449 and NRS 449. This use shall not include community residences.

Auction
An establishment where merchandise is sold more than twice in any calendar month, or more than one consecutive month, in a competitive bidding process, but shall not include auctions to liquidate inventory when going out of business.

Automobile
A motor vehicle designed for passenger or light cargo transportation, including sedans, pick-up trucks, vans, motorcycles, and sport utility vehicles (see also, “Commercial Vehicle”).

Automotive, Transportation and Airspace.
This category includes a broad range of uses for the operation, maintenance, storage, sale, or rental of motor vehicles and related equipment.

Avocational or Vocational Training Facility
The instruction of students; or an institution or facility for avocational or vocational instruction, incidental to the operation of a business or organization on the operation of machinery, power equipment, tools, driving, or teaching of construction techniques. This does not include other Educational Facility uses.

Awning

A roof-like cover that projects from the wall of a building for the purpose of shielding a doorway or window from the elements and is an architectural feature of the building.

B.

Balcony

An exterior floor system 3 feet or greater above grade. A balcony may be attached to a primary or accessory building.

Banquet Facility

A facility typically for rent to accommodate functions including, but not limited to, banquets, weddings, and other similar celebrations or an institution used or intended to be used for an association of persons for some common purpose such as Lions, Elks, Rotary, Shriners, or similar. A facility may include kitchen facilities, and the sale of alcoholic beverages for on-premises consumption during scheduled functions, not open to the general public.

Basement

A portion of a building which is partly (more than 50%) or completely underground. A basement is not considered a story of the building.

Batch Plant, Permanent or Temporary

A manufacturing facility for the production of concrete or asphalt.

Bathhouse

Any place, including a private club or organization, where baths are given or furnished, with or without an attendant present, within the bathing area including, but not limited to, Japanese, Swedish, Russian, Turkish, hot air, vapor, mineral, sweat, salt, or electric baths. This use does not include massage and is not to be confused with a gym, fitness center, or health club for athletic training and exercise.

Bed and Breakfast

An establishment, typically in a residential dwelling, having up to 4 guest rooms that provide guests with transient accommodations and incidental eating and drinking service.

Bedroom

A habitable room in a dwelling unit planned and intended for sleeping, typically separated from other rooms by a doorway. To calculate required parking, the term shall include all rooms within the dwelling unit except for kitchens, bathrooms, the room from which the main exterior access to the dwelling unit is taken, or any other room having less than 90 square feet of floor area.

Berm

Soil artificially built up or placed so as to form a barrier or buffer.

Block

A parcel or parcels of land bounded by streets, or by streets and a natural or artificial barrier.

Board

The Board of County Commissioners, the governing body of Clark County, Nevada, or when sitting as another political subdivision or entity.

Brewery, Distillery, or Bottling Plant

A facility that manufactures, bottles, and distributes beverages to retailers or wholesalers for resale, including the mechanized assembly line production of such goods. This does not include a craft brewery, craft distillery, winery, or any other non-food processing facility.

Buffer

A perimeter area around a lot, or portion thereof, which—through landscape planting, distance, or structures—is designed to ameliorate nuisances between adjacent land uses or between a land use and a street.

Building

Any structure, other than a tent, having a single or common roof supported by columns or walls (see also, “Primary Building” and “Public Building”).

Building Area or Buildable Area

The portion of a building site, not including the required setback areas, in which a structure or building improvements may be erected.

Building Code

The Building Administrative Code of Clark County, Chapter 22.02 of the Clark County Code, and the technical codes identified therein.

Building Elevation
The view of any building or other structure from any one of four sides showing features such as construction materials, design, height, dimensions, windows, doors, other architectural features, and the relationship of grade to floor level.

Building Face
Any exterior wall of a building which is 4 feet or more in length. Walls off-set by 4 feet from each other count as a separate face.

Building Height
The average of the height of all building faces, taking said measurement from ground level at the center of each face to the highest point of the structure. See Airport Definitions for the purpose of determining the height limits in the AAO.

Building Mass
The combined height, width, and depth of a building.

Building Material
Substances used in construction such as wood, lime, gypsum, brick, block, cement, concrete, tile, terra cotta, stone and plaster, and other materials deemed appropriate by the Building or Fire Codes.

Building Official
The person designated by the Director of the Department of Building to perform functions as specified in Chapter 2.02 of the Clark County Code. The Building Official may also designate qualified staff to act in their place relative to the performance of these functions.

Building Permit
An official authorization by the Building Official to commence specific phases of work on a construction project.

Building Separation
The distance from one building to another, measured from the closest point of each building, exclusive of architectural intrusions.

Business Day
Any calendar day except Sunday, or the following business holidays: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Independence Day, Juneteenth, Labor Day, Nevada Day, Veterans Day, Thanksgiving Day and Christmas Day, per the Nevada Revised Statutes Chapter 236.

C.

Campground
An outdoor area designated for temporary occupancy in cabins, tents, or other temporary or mobile shelters. This use is primarily used for recreational purposes, retains an open air or natural character, and is not a recreational vehicle park.

Cannabis
This category includes uses that are engaged in the consumption, cultivation, manufacturing, processing, sale, and testing of medical and/or retail (recreational) cannabis. Specific use types include:

Cannabis Consumption Lounge
A facility that shall have the meaning ascribed to "Cannabis Consumption Lounge" per NRS 678A.

Cannabis Cultivation Facility
A facility that shall have the meaning ascribed to "Cannabis Cultivation Facility" per NRS 678A.

Cannabis Distributor
A use that shall have the meaning ascribed to "Adult-use Cannabis Distributor" per NRS 678A.

Cannabis Independent Testing Laboratory
A facility that shall have the meaning ascribed to "Cannabis Testing Facility" per NRS 678A.

Cannabis Production Facility
A facility that shall have the meaning ascribed to "Cannabis Production Facility" per NRS 678A.

Cannabis Retail Store
A facility that shall have the meaning ascribed to "Adult-Use Cannabis Retail Store" or “Medical Cannabis Dispensary” per NRS 678A.

Caretaker Unit
A self-contained dwelling unit located on the same lot as a primary use or structure, or within the development of a primary use, and which provides residential accommodations for property management or security personnel. A Caretaker Unit shall not be considered a dwelling unit for purposes of calculating density or a residential use of the property.

Carport
An accessory structure consisting of a covered parking space, not completely enclosed by walls or doors, and for the accommodation of an automobile.

Catering
An establishment that prepares, stores, and delivers food and food utensils for off-premises consumption.

Cemetery
Land used or intended to be used for the burial of the dead and may include mausoleums and columbaria when operated in conjunction with and within the boundary of such cemetery.

Certificate of Amendment
A document that corrects an error or omission in, or amends any recorded subdivision plat, record of survey, parcel map, division of land into large parcels, or reversionary map if the correction or amendment does not change, or purport to change the physical location of any survey monument, property line or boundary line.

Certificate of Land Division
See "Division of Land into Large Parcels."

Childcare Home
A facility where overnight living quarters and developmental guidance are provided to children.

Citizens Advisory Council (CAC)
See "Town Board."

Cluster
A development design technique that concentrates buildings in specific areas on a site to allow the remaining land to be used for recreation, open space, or the preservation of environmentally sensitive areas.

Code Enforcement Manager
The person appointed by the Board to enforce this Title.

Commence
Any of the following actions provided that actual construction is diligently carried on until the completion of the building or structure involved.

1. The actual placing of construction materials in their permanent position fastened in a permanent manner;
2. Basement excavation;
3. Demolition or removal of an existing building or structure preparatory to rebuilding;
4. Grading of the site;
5. The recording of a subdivision map; or
6. Where a building permit is not required, a business license is issued when in compliance with all conditions of approval.
7. Where a building permit or business license is not required, the actual start of an approved use when in compliance with all conditions of approval.

Commerce
The purchase, rental, sale, or other transaction involving the handling, or disposition, of any article, substance or commodity for profit or livelihood, or the ownership or management of office buildings, offices, recreational or amusement enterprises, motels, garages, hotels, outdoor advertising and outdoor advertising structures, or shops conducted for the sale of personal services and other similar enterprises.

Commercial Complex
A commercial or industrial development with more than one user which shares common parking and/or vehicular access.

Commercial Development
Development in which the uses conducted are listed in the Commercial Uses category in Table 30.03-1: *Summary Table of Allowed Uses,* regardless of the district in which it is located.

Commercial Vehicle

Any vehicle requiring a Commercial Driver's License to operate which may include the following, but not any manufactured or tiny home or recreational vehicle:

1. A single vehicle or combination of motor vehicles with a gross vehicle weight rating (GVWR) of more than 26,000 pounds
2. A single truck tractor or trailer with a GVWR of more than 10,000 pounds, such as semi- or tow-trucks;
3. A vehicle designed to transport 16 or more passengers, including the driver; or
4. Any size vehicle that requires hazardous material placards.



Commission

The Clark County Planning Commission.

Communication Antenna

A structure intended for wireless transmission or relaying of any portion of the electromagnetic spectrum, including television, radio, telephonic, or any other type of communicative transmission affixed to another building or structure, including the equipment necessary for its operation, but not including structures for signal reception only.

Communication Provider

Any entity that provides a communicative service via transmission lines within easements established for such a purpose or by electronic transmission via wireless service, such as radio, television, microwave, or any other means of communicative transmission.

Communication Tower

A freestanding structure designed to accommodate one or more communication antennas. Communication towers shall be considered to mean the tower plus any antenna(s) affixed to the tower. A C.O.W. (cellular tower on wheels) is not included in this definition.

Communication Utility Building

A building used by a communication provider to house communication equipment such as, but not limited to, computer network servers, connections, and electronic cabling systems. This does not include communication antennas and towers or offices for permanent staff.

Community Facility

A licensed child care facility as defined in NRS 432A, public park, playground as defined in NRS 453, public swimming pool as defined in NRS444, recreational center for youths as defined in NRS 678B, video arcade as defined in NRS 453, place of religious worship as defined in NRS 678B, private school as defined in NRS 394, and public school as defined in NRS 385; per NRS 678B.

Community Residence

A residential family-like living arrangement for 5 to 10 unrelated individuals with disabilities in need of the mutual support furnished by other residents of the community residence, as well as the support services, if any, provided by the operator of the community residence. Residents may be self-governing or supervised by a sponsoring entity or its staff, which furnishes habilitative or rehabilitative services related to the disabilities of the residents. Inter-relationships between residents are an essential component of a community residence. A community residence shall be considered a residential use of property for purposes of all zoning and building codes. This term does not include Facilities for the Treatment of Alcohol or Other Substance Use Disorders, Modified Medical Detoxification Facilities, Transitional Living Facilities for Released Offenders, Facility for Treatment with Narcotics or Community Triage Center, as each of those terms are defined within Chapter 449 of the Nevada Revised Statutes. The term also does not include any other group living arrangement for unrelated individuals who are not disabled. The term includes 2 categories as follows:

1. **Family Community Residence** including but not limited to "residential facilities for groups" of more than 4 residents as defined by NRS 449.017. Relatives of the residents may reside in the residence; however, cannot exceed 10 individuals.

2. **Transitional Community Residence** including but not limited to "halfway house for recovering alcohol or other substance use disorders" for more than 4 residents as defined by NRS 449.008.

Compatible Use

The characteristics of different land uses that allow them to be harmoniously located near or adjacent to each other with minimal impacts. Compatible use considerations may include a range of activities and design features related to existing and proposed development, such as but not limited to height, mass, density, architecture, landscaping, hours of operation, and environmental impacts.

Complete or Completion

Any one of the following:

1. The recording of a subdivision map creating lots which do not conform to the regulations of the underlying zoning district or a commercial or industrial map.
2. Completion of construction of at least 50% of the total building area as shown on the plans for any land use application and the related on-site parking and access, as well as 100% of the required landscaping adjacent to development, required screen walls and off-site improvements. Off-site improvements shall not be determined to be complete until they are physically constructed and accepted by the Board, unless waived by the Board or Commission. The Director shall verify completion with the conditions, stipulations or limitations required for any land use application for part or all the land included in the application.
3. When construction is not required, the issuance of a business license shall constitute completion.

Composting Facility

A facility that processes compostable material as regulated by the Southern Nevada Health District (SNHD) per NAC 444.670.

Concept Specific Plan

The first step in the Specific Plan process, where general plans are proposed and potential impacts are identified.

Condominium

A common-interest community in which portions of the real estate are designated for separate ownership and the remainder of the real estate is designated for common ownership solely by the owners of those portions. The undivided interests in the common elements are vested in the units' owners.

Congregate Care Facility

Any commercial building or building complex used or maintained to provide continuous nursing, dietary and other personal services to more than 10 people with disabilities or elderly persons who, without the assistance of any other person, are not physically or mentally capable of moving himself/herself from the room in which he/she sleeps to outside the facility in 4 minutes or less, but excluding cases of contagious or communicable diseases, surgery or primary treatments such as those customarily provided in sanitariums and hospitals, community residences, and as otherwise provided for by federal, state, and local regulations.

Convention Facility

A facility that hosts conferences, exhibitions, events, large meetings, seminars, and training facilities.

Contiguous

Any parcel that shares any common property line other than a corner or is separated only by a public right-of-way dedicated by fee or grant of easement having a width of less than 60 feet except as specified in this Title. For the purpose of land use application acceptance, lots are considered contiguous that:

1. Are within a subdivision under the same ownership;
2. Are separated by a dedicated public right-of-way of 100 feet or less; or
3. Share a common property line or corner.

Cooperative Management Agreement Area (CMA)

The area described by the Southern Nevada Public Lands Management Act depicting public lands transferred to Clark County for disposition, and which is affected by aircraft operations (Interim Cooperative Management Agreement between the U.S. Department of the Interior, Bureau of Land Management, and Clark County dated November 4, 1992). For more information contact the Clark County Department of Aviation.

Corral

A pen, building or structure for the enclosure or confinement of animals.

County
That portion of Clark County, Nevada outside the incorporated cities.
County Engineer
A Nevada registered professional engineer appointed by the Board to hold the position of County Engineer.
County Surveyor
A Nevada professional land surveyor appointed by the Board to hold the position of County Surveyor.
Court or Courtyard
An open unoccupied area, other than a yard, on the same lot with a building and bounded on two or more sides by such a building.
Craft Brewery, Distillery, or Winery
An establishment, including a brew pub, that manufactures malt beverages (and similar fermented beverages), distilled spirits, or wine, and may also blend, age, store, bottle, and sell beverages for both on- and off-premises consumption per NRS 597.
Crematory
A facility for the reduction of remains by incineration or alkaline hydrolysis.
Cul-De-Sac
A street with only one outlet, designed with a radius that provides for an adequate turning area for vehicular traffic at its terminus.
Current Planning Division
A division of the Clark County Department of Comprehensive Planning.
D.
Day
See §30.07.01D, *Computation of Time.*
Daycare
A facility where intermittent care, protection, and supervision is provided, for a fee, at least twice a week to more than 6 children or adults at one time.
Dayclub/Nightclub
An establishment that primarily provides live entertainment such as live music and acts including bands, disc jockeys, dance, and may include the service of food and/or alcohol, but excludes adult businesses.
Daytime Hours
Between 6:00 a.m. and 10:00 p.m.
Deck
An exterior floor system which extends less than 3 feet above grade. A deck may be attached to a primary or accessory building.
Decorative
A special treatment or application such as texture, finish, or design which may be used in building materials, walls, concrete finishes, and roofing, etc.
Dedication
The transfer of land in fee simple or by easements, as required by the County or by the owner, for the use of the public, and accepted by the County for such use by, or on behalf of, the public.
Deed Restrictions
See "Restrictive Covenants Running with the Land."
Default
Failing, neglecting, or refusing to complete the work in the public right-of-way, within the time stated on the permit, not maintaining construction traffic controls in conformance with this Title, or not paying any applicable overtime, reinspection, or construction traffic control violation fees.
Density
The number of residential dwelling units occupying a given area, expressed in terms of dwelling units per gross acre of land.
Design

The design elements of a development site, including the planning and engineering of alignments, grades and widths of streets, drainage, sanitary facilities and utilities, and location, size and configuration of easements, rights of way, lots, traffic access, grading, building location, landscaping, open space, buffering and other specific physical requirements.

Design Capacity

The maximum permitted occupancy per building or fire codes, whichever is greater.

Detached Building

One building on a single lot surrounded by yards or open space, or buildings in a building group that are physically detached one from the other.

Detention Facility

A facility where persons convicted or accused of a crime, or in legal custody, are confined.

Development

The division of land into two or more parcels; the recordation of a commercial/industrial subdivision map; the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any structure or site improvement; property for which an unexpired land use application approved a use; property for which a building permit is active for the appropriate use; any mining, excavation, landfill, grading, or modification of the natural landscape; and/or any use or extension of the use of land, including the addition of impervious surfaces which limit or prevent the infiltration of water into the soil mantle, or which change the characteristics of water flow (see also, "Commercial Development," "Industrial Development," "Mixed-Use Development," "Nonresidential Development," "Residential Development," and "Special Development").

Development Agreement

A written agreement, adopted pursuant to State statutes and this Title, for a specified period of time between the County and any person having a legal or equitable interest in real property for the purpose of developing such property in accordance with specified laws, ordinances, codes, resolutions, rules, regulations and plans adopted by the Board and in effect at the time such agreement is executed, in return for additional development requirements that may include, but are not limited to, provision of affordable housing, design standards, and on- and off-site infrastructure and other improvements, and which shall be approved by the Board. A Development Agreement provides assurance the property owner has committed to providing sufficient public facilities and infrastructure needs related to the development.

Negotiated Development Agreement

A negotiated, approved, recorded, and binding agreement between the property owner and the County for the development of land. A Development Agreement is negotiated for a period of time, usually corresponding to the projected build out of the project and the terms are locked in for that period of time.

Standard Development Agreement

An approved, recorded, and binding agreement between the property owner and the County for the development of land. A Standard Development Agreement provides assurance the property owner has financially committed to providing sufficient public facilities and infrastructure needs related to the development, as specified in the Southwest Las Vegas Valley Public Facilities Needs Assessment (PFNA) Report initiated and approved by the Board.

Development Standards

Regulations that govern the size, bulk, or siting conditions of particular types of buildings or uses located within any designated district. These requirements also include the standards for signage, landscaping, parking, site and building design, residential adjacency, and Common Open Space.

Developer

An individual or entity responsible for a development.

Director of Comprehensive Planning (Director)

The Director of the Clark County Department of Comprehensive Planning.

Director of Building

The Director of the Clark County Department of Building.

Director of Public Works

The Director of the Clark County Department of Public Works.

Disability

A physical or mental impairment that substantially limits one or more of an individual's major life activities, impairs an individual's ability to live independently, having a record of such an impairment, or being regarded as having such an impairment.

District

A section of the County for which the regulations governing the area, height, or use of the land and buildings are uniform.

Disturbed Area

An area which has been graded, leveled, cleared, or otherwise stripped of vegetation and natural ground cover. It does not include incidental vehicular traffic over unpaved surfaces for recreational purposes.

Division of Land into Large Parcels

A division of land into four or fewer lots, with a minimum lot size of ten nominal acres, each of which can be described by aliquot part and is not within a closing or fractional section.

Dormitory

A building or portion of a building used to provide sleeping accommodations for a group of unrelated people. A Greek life organization dormitory must be for those organizations recognized by the school. This use does not include lodging uses, hospitals, or other approved institutions or similar uses.

Drainage Impact Analysis

A study of the impact of a proposed development to on-site drainage patterns and to adjacent and downstream properties.

Drive Aisle

The primary means of vehicular access, other than a street, within a development or to lots within a development.

Driveway

The means of ingress/egress to or from a site, connecting a drive aisle, street, or access easement to or from a garage or entry of a property.

Drought

A combination of many complex factors acting and interacting with the environment resulting in water supplies not being replenished normally. In simple terms, a drought occurs when existing water supplies cannot meet established demands for a period of time.

Drought-Tolerant Tree

A tree rated by the Southern Nevada Regional Planning Coalition Plant List as having Low or Very Low water needs.

Dry Cleaning Plant

An industrial facility where fabrics are cleaned, and may be dyed, with substantially nonaqueous organic solvents or by conventional washing. The floor area utilized for dry-cleaning equipment or dry-cleaning processes including accessory tailoring and alterations exceeds 1,800 sf.

Dwelling

A building or portion thereof designed or used exclusively for residential occupancy by a family or by persons residing in a community residence and within which there is interior access to all habitable rooms. The term "dwelling" includes single-family residences, multi-family residences, factory-built homes, and manufactured or tiny homes, but does not include any other buildings where people are housed in group living arrangements, such as assisted living, rooming house, childcare home, dormitory, or any other group living arrangement for unrelated individuals that are not protected by the Fair Housing Act (FHA).

Dwelling Unit

A building or portion of a building designed as a unit for occupancy by not more than one family for living or sleeping purposes, and which contains one kitchen and one full bathroom.

Multi-Family Dwelling

A building containing three or more dwelling units when not meeting the definition of single-family attached dwelling, with three or more families living independently and the units separated by a common wall, floor and/or ceiling. Townhomes developed on a single lot, as permissible by this Title, shall be included in multi -family dwelling.

Single-Family Attached Dwelling

A single-family dwelling permanently attached to another single-family dwelling, designed or arranged to be occupied by families living independently. A townhome mapped on an individual lot where 3 or more townhomes, as permissible by this Title, have no portion of another dwelling above or below at grade or first floor level are included as a single-family attached dwelling.

Single-Family Detached Dwelling

A detached building, including a manufactured or tiny home, containing only one dwelling unit on its own individual lot.

E.

Easement

The dedication to a person, government entity, or public utility a limited right of use or interest of a property given by the property owner for a specific purpose, or a prescriptive right as determined by a court of law. Easements dedicated to the public, which are accepted by the County, shall be used by, or on behalf of, the public.

Educational Facilities

Uses in this category include public and private institutions at the primary, secondary, or post-secondary level, or vocational or trade schools.

Egress

An exit.

Electric Generation, Large-Scale

A large-scale facility generating an excess of 5 megawatts of electricity produced by waste, heat, solar, wind, gas, coal, hydroelectric power sources, or nuclear fission, or when established as the primary use of the property.

Electric Generation, Small-Scale

A small-scale power unit generating 5 megawatts or less, established as an accessory use, designed to provide power for a primary use. This use may include, but is not limited to, reciprocating engines, microturbines, industrial combustion turbines, fuel cells, photovoltaics, and wind turbines. This does not include emergency backup generators allowed per Clark County Air Quality Regulations.

Electric Vehicle Charging Station

Electric Vehicle Charging spaces or areas where electric vehicle charging services are made available to the public or for a fee, including structures, machinery, and equipment necessary and integral to support an electric vehicle, including battery charging stations, rapid charging stations, and battery exchange stations.

Elevation

The vertical distance above or below a fixed reference datum based on the North American Vertical Datum of 1988.

Emergency or Urgent Care

A facility that provides urgent or emergency medical care to the general public without appointment. An Emergency Care facility does not provide 24-hour care.

Emergency Work

Work performed by the owner or operator of a utility or any governmental entities as the case may be or by persons authorized to perform work within the County rights-of-way that will compromise the general prosperity, health, safety and welfare of the public if not performed and completed as soon as possible, even if such completion requires continuous repairs at times other than normal County business hours.

Enhanced Paving

The use of alternative paving materials to accent areas of parking lots to provide a change in color and/or texture from the asphalt.

Equipment Rental or Sales and Service

The rental, sales, or service of equipment used for home improvement and do-it-yourself projects and heavy equipment.

1. Equipment includes those items with gross unloaded weight of less than 3,000 pounds, or vehicles with a gross unloaded weight less than 8,500 pounds, typically used for cleaning, landscaping, construction, including but not limited to floor strippers and polishers, pressure washers, riding lawnmowers and tillers, post hole diggers, special or motorized saws, drills, trowels, jacks and jackhammers, compactors, and small mixers.

2. Heavy Equipment includes those items with a gross unloaded weight of 3,000 pounds or more and vehicles with a gross unloaded weight of 8,500 pounds or more. Heavy equipment includes towable generators or compressors, z-booms, lifts extending higher than 20 feet, light towers extending higher than 15 feet, and diesel-powered equipment, including but not limited to) front-end loaders, dump trucks, and various other similar equipment and vehicles.

Escort Bureau

A commercial service that, for a fee, commission, profit, payment, or other monetary consideration, furnishes, refers or offers to furnish or refer escorts, or provides or offers to introduce patrons to escorts in accordance with the restrictions listed in Chapter 8.32 of the Clark County Code.

Explosives

Gunpowder, powders used for blasting, all forms of high explosives, blasting materials, fuses other than electric circuit breakers, detonators and other detonating agents, smokeless powders, other explosive or incendiary devices and any chemical compound, mechanical mixture or device that contains any oxidizing or combustible units, or other ingredients, in such proportions, quantities or packing that ignition by fire, friction, concussion, percussion or detonation of the compound, mixture, device or any part thereof may cause an explosion. For the purpose of this Title, an explosive does not include ammunition for small arms, or any component thereof, black powder commercially manufactured in quantities that do not exceed 50 pounds, explosives used for mining activities, and percussion caps, safety and pyrotechnic fuses, quills, quick and slow matches, and friction primers that are intended to be used solely for sporting, recreation, or cultural purposes (see also, "Ammunition").

F.

Family

One or more individuals related by blood, marriage, adoption, or guardianship, or no more than 4 unrelated individuals living together as a single housekeeping unit within a dwelling unit. This definition includes unrelated individuals who reside in a dwelling under foster care; however, such individuals are not counted towards the limit of 4 unrelated individuals.

Family Daycare

Any facility, sometimes within a dwelling, where care, protection, babysitting, and supervision are provided for less than 24 hours per day without the presence of parents for up to 6 people, including children, aged or infirm persons and "facilities for the care of adults during the day" as defined in NRS 449, at one time.

Fence

Any artificial barrier other than a solid wall, greater than 36 inches in height, constructed of any material or combination of materials, erected within a required setback for the purpose of enclosing or screening areas of land. Fences not constructed within required setbacks shall be considered accessory structures and shall meet the restrictions for such structures within the respective districts. The restrictions applicable to walls apply to fences; however, a fence shall not be substituted for a wall when required by this Title.

Agricultural Fence

A wire fence, for example electrical or barbed wire, constructed to enclose agricultural uses and/or animals.

Battery-Charged Fence

A fence with a battery-powered energizer that transmits a signal to an alarm system in response to an intrusion as defined by NRS 244.

Decorative Fence

A fence constructed of decorative material which may be in combination with decorative walls and/or columns with no less than 50% of the vertical surface of the fence open. A chain link fence is not decorative.

Screen Fence

A fence designed to block the view of motorists and pedestrians into the interior of a lot to the extent that the activities conducted on the lot are indiscernible.

Security Fence

A security fence or wall erected as a barrier to persons, animals, or vehicles, to control or prevent access to an enclosed or restricted area. Security fences are not decorative and may include razor or barbed wire along the top, in accordance with §30.04.03D.

Temporary Fence

A temporary fence constructed of materials such as chain link or wood intended to be removed upon final development and use of the site.

Financial Services

An establishment whose primary service is the exchange of currency, including banks, credit unions, savings and loan associations, high-interest or vehicle title lenders, and deferred deposit providers, but excluding retail sales and offices. This use includes:

Check Cashing Service

Any establishment primarily engaged in the business of cashing checks for a fee, service charge or other consideration as defined by NRS 604A.

Deferred Deposit

Any establishment offering a transaction in which, pursuant to a written agreement, the account of the customer; and the service provides to the customer an amount of money equal to the face value of a check, less any fee charged for the transaction, and agrees not to cash the check for a specified period. Deferred-deposit services are not licensed banks, trust companies, savings and loan associations, credit unions, development corporations, mortgage brokers, thrift companies, pawn brokers, or insurance companies.

High Interest Loan

Any establishment that charges a 40% or higher interest rate for a loan including all fees associated with the transaction as defined by NRS 604A.

Incidental

Establishments primarily engaged in the retail sale of goods or services that incidentally or independently of a retail sale or service cashes checks for a fee of not more than $2, but does not advertise as a check-cashing service, or an establishment that holds a nonrestricted gaming license issued pursuant to NRS 463 while performing any act in the course of that licensed operation or while performing any act authorized by a license issued pursuant to NRS 671.

Vehicle Title Loan

Any establishment whose primary function is to lend money on the security of the title to a motor vehicle rather than on the security of the vehicle itself.

Firearm

Any pistol, rifle, shotgun, or other similar weapon permitted to be sold under state and federal law, which also includes the sale of ammunition.

Flag

Any fabric, banner, or bunting containing distinctive colors, patterns, or symbols, used as a symbol of a government or political subdivision (see “Specialty Signs”).

Floor Area

The total area enclosed within the several floors of a building as measured from the exterior faces of the walls, excluding any space where the floor to ceiling height is less than 6 feet. Floor area requirements shall be construed to be based on the gross floor area unless specified as leasable floor area (see also, “Gross Floor Area”).

Food and Beverage

A category of uses with establishments involved in serving prepared food or beverages for consumption on or off the premises.

Food Pantry

A public or charitable institution that collects and/or distributes food or edible commodities to individuals in need. This can include food banks, food pantries, soup kitchens, hunger relief centers or other food or feeding centers similar in nature.

Food Processing

The mass production for distribution to retailers or wholesalers resale on- or off-premises of food products from ready-to-use ingredients, such as but not limited to, baking, grinding and casing sausage or ice cream through the process of baking, canning, cooking, fermenting, freezing, pickling, or smoking. Fermentation shall not include any alcoholic products.

Food Scrap Management Program

A program which uses organic waste such as green materials or food scraps which are recycled through processing, composting, farming, livestock, hogs and pigs, or anaerobic digestion and which is an incidental use to a sanitary landfill if a Class I landfill permit has been issued by the Solid Waste Management Authority, is located outside the town boundaries in unincorporated Clark County and is on at least 500 contiguous acres.

Fuel Storage

The storage of petroleum products in mass quantities for wholesale or distribution. This does not include incidental fueling facilities serving a primary use or in conjunction with a gas station or truck stop.

Funeral Home

An establishment for the preparation of the deceased for burial and/or the display of the deceased and rituals connected with, and conducted before, burial or cremation. This use includes other undertaking establishments such as columbaria, and may include a facility for the permanent storage of cremated remains of the dead. This use does not include cemeteries.

G.

Gaming

All games of chance or devices and any slot or video poker machines played for money, or for checks or tokens redeemable in money except, for the purpose of this Title only, "Gaming" shall not be construed to include slot or video poker machines when such machines are operated incidental or accessory to the conduct of a business permitted under this Title (see "Hotel, Resort" or "Hotel, Rural Resort").

Garage Sale

The selling of used articles on the property of a homeowner, which may be conducted indoors or outdoors.

Gas Station

A business primarily engaged in the sale of fuels, including alternative fuels such as natural gas or hydrogen, and which may provide lubricants, tires, batteries, and other small accessories to vehicles. This use does not include vehicle repair work.

Glare

Direct or reflected light in the line of sight from adjacent properties of such contrast with ambient light level that it causes annoyance, discomfort, or loss in visual performance or visibility.

Government

Uses in this category include publicly owned buildings, structures, or facilities that provide a service.

Government Entity

Any political subdivision of the federal, state, or local government, or any regulatory agency or any utility governed by elected officials.

Government Facility

A facility operated by a federal, state, county, city agency, other public entity, or quasi-public private entity for the purpose of performing government functions that promote the general health, safety, and welfare of citizens. This use does not include government offices.

Government Facility, Temporary

A temporary facility or structure initiated and funded by a federal, state, or local governmental entity for the construction of a public project, the establishment of a temporary structures for a public use such as modular school buildings or election facilities, or to remediate an environmental hazard, including fences and security fences required to restrict access to such properties and temporary utility structures (such as power poles) needed to power related construction, use, or remediation efforts. A temporary government facility may be owned, leased, operated and/or controlled by a local, state, or federal governmental entity or a quasi-public private entity performing government functions for the remediation of environmental hazards.

Government Patent Easement

A reservation of rights for public purposes by the federal government for the benefit of the public.

Grade

The average level of the finished ground level at the center of all walls of the building.

Grading

Excavation, filling, clearing vegetation, rough grading, stockpiling, or altering the natural ground surface or its elevation.

Grand Opening
A one-time promotional activity used by newly established businesses, within 2 months after occupancy, to inform the public of their location and services available.

Gravel Pit, Permanent or Temporary
A site for extracting gravel, rock, sand, and stone.

Gross Floor Area
The total area enclosed and when referring to a use includes all floor area with interior access to the use (see also, "Floor Area").

Groundcover
Low spreading plants for the protection of soils, to prevent weeds and for aesthetic purposes, or decorative rock, bark or similar covering.

Guest Room
Any room in a dormitory, hotel, bed and breakfast, rooming house, or other lodging used and maintained to primarily provide temporary sleeping accommodations for guests.

Gunsmith
A use that repairs firearms or makes or fits special barrels, stocks, or trigger mechanisms to firearms, which may also include the sale of said firearms, including ammunition, as permitted under state and federal law per 27 CFR Part 478.

H.

Habitable
A building suitable for human occupancy as determined by the Building Official, except that habitable space for the purpose of determining the minimum area of a dwelling (or accessory residential use) shall include hallways, closets, bathrooms, basements with interior access, etc.

Hardscape
Inanimate, non-living elements of landscaping, including but not limited to sidewalks, curbs, pavement, structural foundations and permissible signage, plazas, patios, decorative courtyards, lighting walls, fences, arbors, decorative water features, and decorative masonry, woodwork, tile, and public art.

Harmonious
The design, arrangement, and location of buildings or other created or natural elements of the urban environment that are sufficiently consistent in design, scale, height, color, character, and sitting with other buildings or created or natural elements in the area to avoid abrupt or severe differences or incompatibilities.

Hazard to Air Navigation
See "Airport Definitions."

Hazardous Material or Waste
Products or waste products which have the potential to be dangerous, extremely noxious, or cause substantial environmental impacts on or beyond the boundaries of the property on which the products are used or stored and includes, but is not limited to, the materials specified in the Nevada Revised Statutes and/or the Nevada Administrative Code when present in the quantities listed, and/or the materials regulated by the Clark County Fire and International Building Codes.

Hazardous Materials or Waste Storage
A facility where explosive, highly hazardous substances designated pursuant to NRS 459.3816 are present in a quantity equal or greater than the amount designated in that same section, or a hazardous substance listed in NAC Chapter 459 will be used, manufactured, processed, transferred, or stored.

Healthcare Facilities
A category of uses that includes medical services, particularly licensed public or private institutions that provide preventative health care, primary health services, and medical or surgical care to persons suffering from illness, disease, injury, or other physical or mental conditions.

Heliport or Vertiport.
A structure or area for the landing or take-off of aircraft with vertical takeoff and landing (VTOL) capabilities helicopters, hot air balloons, or other steep gradient aircraft capable of hovering, and including the area or buildings necessary to accomplish these functions.

Hillside
A part of a hill between the summit and the foot with slopes of 12% or more, the contiguous extent of which exceeds 2 ½ acres.

Historic Neighborhood
As defined by NRS 278.0153 and regulated within §30.02.25.H, *Historic Designation Overlay (HDO)* of this Title.

Home Occupation
Any commercial enterprise conducted in a manner clearly incidental and secondary to the residential use of the dwelling.

Hospice
A facility for the treatment and care of the terminally ill.

Hospital
A building, or portion thereof, used for the accommodation and medical and/or psychological care of persons who are sick, injured, or infirm that provides 24-hour care. This includes sanitariums and institutions for the treatment of patients suffering from addiction. NRS 449.

Hotel or Motel
An establishment located within a building or group of buildings with 5 five or more guest rooms designed, used, and maintained to provide guests with less than 30 consecutive days of transient accommodations. This may include condominium hotels and motels, and resort condominiums, that are mapped as commercial condominiums which may be used for continuous or unlimited residency by a single individual group or family. This also includes long-/short-term lodging, a multi-unit commercial establishment providing both transient and long-term stays, with units having a kitchen suitable for non-transient occupancy and customary hotel services such as linen, maid service, upkeep of furniture, and a telephone. Amenities such as meeting rooms, clubhouse, and recreational facilities may be included within the development.

Housing
Housing is a structure or development that includes a residential use.

Housing for Agricultural Employees
An on-site living unit for an owner, operator, or employee of the primary use or establishment.

I.

Improvement
A public or private facility, including but not limited to, fire hydrants, sidewalks, curbs, gutters, pavement, gravel, aggregate base, streetlights, street name signs, traffic signals and signs, pavement markings, other applicable traffic control devices, survey monuments, sewers, utilities, flood control and drainage facilities, overpasses and underpasses for vehicular and pedestrian uses.

Incidental Take Permit
The permit, effective as of February 1, 2001, issued by the Secretary of Interior pursuant to Section 10(a)(1)(B) of the Federal Endangered Species Act of 1973, 16 U.S.C. Section 1539 which incorporates by reference the Multiple Species Habitat Conservation Plan and Implementing Agreement and allows the incidental taking of Threatened or Endangered Species in the course of otherwise legal activities.

Industrial Development
Development in which the uses conducted are listed in the Industrial Uses category in Table 30.03-1: *Summary Table of Allowed Uses,* regardless of the district in which it is located.

Industrial Services
This category includes facilities for the repair or servicing of agricultural, industrial, business, or consumer machinery, equipment, products, or by-products. Contractors and similar uses perform services off-site. Few customers come to the site.

Industry
The manufacture, fabrication, processing, reduction, or destruction of any article, substance or commodity, or any other treatment, in such a manner as to change the form, character or appearance or add value to the final product.

Ingress
Access or entry.

Instruction or Tutoring Facility
An establishment for the supplemental teaching or tutoring of subjects normally taught in pre-school through grade 12 without awarding degrees or diplomas.

Instructional Wine-Making Facility
A commercial facility that provides a person(s) of legal drinking age with instruction and opportunity to participate directly in the process of wine making on the premises of the facility. The term does not include the following:

1. A wine maker or winery licensed pursuant to NRS 369, and 597 if applicable;
2. “Avocational or Vocational Training Facility;”
3. Any "Manufacturing and Production” use; or
4. "School."

Intensity of Use
Land uses that are less or more intense based on the allowable uses within the zoning district, with less restrictive districts allowing a greater intensity of use.

Irrigation System
The combination of automatic controllers, meters, pressure vacuum breakers, pipes, valves, emitters, bubblers, spray heads, tubing, and other materials to transport water to landscaping.

J.
No definitions.

K.
Kitchen
Any room primarily used, intended, or designed to be used for cooking or the preparation of food. The presence of a range or oven, or utility connections suitable for servicing a range or oven, shall be considered as establishing a kitchen.

L.
Laboratory
A facility primarily intended for scientific, medical, and dental research, synthesis, analysis, development, and testing in laboratories, including the fabrication, assembly, mixing, and preparation of equipment and components.

Lamp
A generic term for a light source, including bulbs, tubes, and light emitting diodes (LED).

Land Disturbance Permit
Any permit required prior to the disturbance of land including but not limited to Building Permits and Grading permits.

Land Use Application
Any application, administrative or otherwise, filed with the Director, to approve the use of land, the design of proposed improvements to the land, the naming or vacation of streets and easements, the exception to requirements of the requirements of this Title, or for any other application required by this Title. The term does not include applications or procedures for the subdivision of land.

Landscape Area
An open area unoccupied except for landscaping that consists of groundcover and/or live planted material served with an irrigation system.

Landscaping
The combination of natural elements such as trees, shrubs, groundcovers, vines, and other living organic and inorganic material which are installed for purposes of creating an attractive and pleasing environment, screening unsightly views, reducing environmental heat, filtering particulate matter from the air, and boosting oxygen levels.

Landscape Island
A raised, landscaped area that runs parallel to parking spaces to provide vegetation, shade, and facilitate circulation breaks in parking rows (see also “Planting Strip”).

Legal Nonconforming Building, Lot, Structure or Use

The legal use of a legal nonconforming building, lot, structure or use or portion thereof, existing at the time this Title or amendments take effect, and which does not conform to all current Code requirements.

Library

A facility or area open to the public, intended for the collection and loaning of books, manuscripts, and similar materials for study and reading. This use may also include meeting rooms, offices for personnel, and similar support facilities.

Light Trespass

The encroachment of light beyond the boundaries of the property on which the light is produced.

Lighting Fixtures

Any of various devices, including all components necessary to produce light such as lamps; ballast; drivers; parts to distribute, position, and protect lamps; and to connect the lamp to the power supply.

Live-Work Dwelling

A nonresidential use with residential living space and an integrated workspace primarily used by one or more residents. The unit typically has a storefront, workspace, or studio, and public display area on the ground floor, with residential located in a segregated, separate area.

Live Entertainment

A use that includes any amusement or attention engaging activity, in furtherance of a business by performance in person including, but not limited to, the performance of acts, music, speech, dance, acrobatics, disc jockeys, karaoke, or display, but not including adult businesses or indoor performances that are inaudible or indiscernible from the exterior of the building.

Loading Space

A space or berth for the temporary parking of a vehicle while loading or unloading merchandise or materials.

Lodging

A use category that includes establishments providing lodging services for a defined period of time with incidental food, drink, and other sales and services for the convenience of guests.

Loft

A room, other than a hallway, above and open to the first floor. For the purpose of limitations on accessory buildings, a loft is an upper floor area within an accessory building open and visible to the floor below, that shall not 1) exceed 50% of the base footprint of the building, 2) include partitions other than pony walls or railings as required by the Building Official for safety purposes, and 3) provide exterior access.

Long-Term Bicycle Parking Space

A long-term bicycle parking space is one provided within a fully enclosed storage space, typically within a building.

Lot

A parcel of land, or a space within an approved manufactured or tiny home park or recreational vehicle park, occupied, or to be occupied by, a building or group of buildings and other required yards and open spaces, having frontage upon a street or other legally approved right-of-way to ensure legal access. A lot may be land so recorded on a plat of record, or considered as a unit of property and described by metes and bounds if created by deed prior to July 1, 1973, and which may include parts of or a combination of such lots, when adjacent to one another, providing such grounds are used for one improvement.

Corner Lot

A lot abutting two intersecting streets, where the interior angle of intersection does not exceed 135 degrees.

Figure 30.07-1: Corner Lot

Double-Frontage Lot
A lot, other than a corner lot, with frontage on more than one street.

Flag Lot
A lot having access to a public or private street by a narrow, private right-of-way or portion of a lot, giving the lot a flag-like shape.

Interior Lot
Any lot that is not a corner lot.

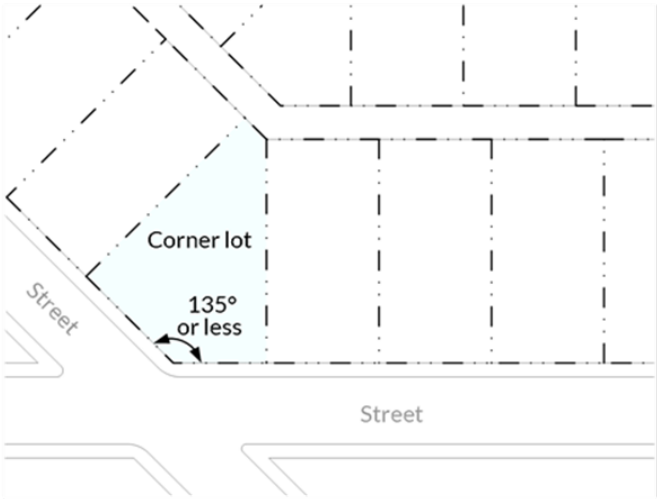
Substandard Lot
A parcel of land containing less than the zoning district minimum area requirement.

Through Lot
A lot, other than a corner lot, abutting more than one street, and having vehicular access to more than one street.

Lot Area
The total horizontal area within the lot.

Lot Coverage
The total area of the lot covered by the roof of any enclosed or unenclosed building or structure, including eaves and overhangs.

Lot Line



Any line bounding a lot, including the following:

Front Lot Line
The property line that is the legal boundary of a lot, typically adjacent to the right-of-way of a street, from which the front setback is measured.

Rear Lot Line
That boundary of a lot most parallel to the front lot line, but does not intersect the front lot line. In the case of a triangular lot, the rear lot line is a line 10 feet in length within the lot parallel to and at the maximum distance from the front lot line.

Side Lot Line
Any lot boundary other than a front or rear lot line.

M.

Maintain or Maintenance
The upkeep of buildings, structures, amenities or lots, including the repair, painting, trimming, pruning, watering, and/or replacement of required improvements, and other on-going activities required to prevent deterioration of

the improvement and to provide an attractive site appearance. Where the Building Code requires a permit for construction it shall not be considered to be "Maintenance."

Manmade Lake

Every manmade body of water including lakes, ponds, lagoons, and reservoirs (excluding tank-type reservoirs which are fully enclosed and contained) that are filled, or refilled, with water, or reclaimed wastewater from any source, for recreational, scenic or landscape purposes; except for swimming pools, ornamental water features, or recreational water parks.

Manufactured Home

Defined by NRS 461 as a structure built on a permanent chassis, designed to be used with or without a permanent foundation as a dwelling when connected to utilities, transportable in one or more sections; and 8 feet or more in body width or 40 feet or more in body length when transported, or, when erected on-site, contains 320 sf or more, including the plumbing, heating, air-conditioning and electrical systems of the structure. The manufacturer of such dwellings voluntarily files a certification required by the Secretary of Housing and Urban Development that the structure complies with the standards established under the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. §§ 5401 et seq.; or built in compliance with the requirements of Chapter 461 of NRS; including all amendments.

Manufactured or Tiny Home Park

An area or premises where space for two or more manufactured or tiny homes are rented.

Manufacturing and Production

This category of uses includes the excavation, transporting, manufacture, fabrication, processing, reduction, destruction, or any other treatment of any article, substance, or commodity, in order to change its form, character, or appearance.

Manufacturing, Artisan

A facility where artist, artisan, or craftsperson fabricates and produces custom goods by hand manufacturing or artistic endeavor. Examples include, but are not limited to, blacksmithing, ceramic studios, custom cabinet making, candle making shops, jewelry-making, textiles, leatherwork, pottery, furniture repair or refinishing, woodworking, welding, sculpting, 3D printing, and the incidental sale of these goods directly to consumers.

Manufacturing, Heavy

A facility for the creation, fabrication, or utilization of chemicals, gases, leather or other tanned goods, metal and smelting of metal, paint and similar surfacing materials and solvents, paper, plastics, and rubber.

Manufacturing, Light

A facility to assemble products with added value, including but not limited to, bones, building products/materials, clay, cork, feathers, gases, glass, glue, hair, horn, leather, non-smelted metal, paint and similar surfacing materials and solvents, paper, plastics, rubber, seeds, shell, stone, straw, textiles, wax, and wood. Cosmetic manufacturing, electroplating, appliance repair, and furniture repair shall also be included.

Manufacturing, Medium

A facility for the creation, utilization, or fabrication of building products/materials, glass (other than glass blowing), glue, textiles, and wax. This use also includes the commercial manufacturing of ammunition for small arms only, if no more than 50 pounds of black powder is stored at any time.

Massage

The physical or mechanical manipulation of soft tissue of the body by a licensed massage therapist.

Master Plan

Also referred to as "the Plan," means that plan adopted by the Board on November 17, 2021.

Mining and Extraction

The extraction and/or processing of metals, ores, or other materials. Mining and natural resource extraction activities on unpatented Bureau of Land Management claims (BLM owned property) are not regulated by this Title.

Mini-Warehouse

An establishment with storage units for rent or sale to the public with all items stored in an enclosed building. The units shall not allow on-site sale of the items, separate businesses in the units, or vehicle repair.

Mixed-Use Development

The combination of commercial and residential development on a single lot or within a single integrated development on multiple lots, or within a single building, and where the combined land uses are planned as a unified complementary whole to accommodate the functional integration of shared vehicular, parking, transit, and pedestrian areas. Mixed-use development shall be considered commercial development for the purpose of determining development standards except where specific standards are established and as otherwise required by §30.04.05H, *Design Standards for Mixed-Use Development.* Commercial components of mixed-use development shall be open and accessible to the general public.

Mobile Food Vendor

A vehicle, towed trailer, or mobile or movable stand that sells food and/or beverages, as regulated by Chapter 6.130 of the Clark County Code.

Model Residence

A residential unit for display to potential customers.

Monorail

A non-technology specific system used to transport passengers, including any system on a fixed land route installed and operated on an exclusive fixed guideway or rail, including a Monorail as defined in Chapter 705 of Nevada Revised Statutes. The term "Monorail" does not include amusement systems or people movers.

Multi-Family Dwelling

See "Dwelling."

Multiple Species Habitat Conservation Plan (MSHCP)

Clark County Multiple Species Habitat Conservation Plan approved and adopted by the Board on June 15, 1999, and as amended.

Multiple Species Habitat Conservation Plan Mitigation Fee

The fee imposed pursuant to the MSHCP.

Museum

A facility or area open to the public, operated as a repository for the collection, preservation, study, and exhibition of works of artistic, natural, scientific, literary, or historic value.

N.

NAC

Nevada Administrative Code, as amended.

Noise Attenuation

The mitigation or reduction in the level of noise between the interior and exterior of a structure through various construction methods.

Nonconforming Building, Lot, Structure, Site Feature, or Use

A legally established building, lot, structure, site feature, or use, or portion thereof, existing prior to the adoption of this Title, but no longer conforms to all current code requirements.

Nonconforming Lot or Lots of Record

A lot in separate ownership that was created in accordance with the State Law and County Code in effect at the time the parcel was created.

Nonconforming Lot

Any substandard lot legally established prior to May 5, 1970; and any substandard lot subject to a contract of sale in full force and effect prior to June 20, 1962.

Nonconforming Lot of Record

Lots created without a subdivision map prior to July 1, 1973, or created by a court order shall be considered legally created. A contract for the sale of land after June 20, 1962, or a legal description on a deed recorded prior to July 1, 1973, including the legal description of adjacent parcels, does not constitute the division of land. A lot created by the County's acceptance of the dedication of a public right-of-way 60 feet or more in width shall also be considered legally created.

Nonresidential Development

Any development that has a primary use other than a dwelling, including the lot upon which the development is located, and including any mixed-use development regardless of the primary use.

Nonresidential Use

Any development that has a primary use other than a dwelling, including the lot upon which the development is located, and including any mixed-use development regardless of the primary use.

Nonurban Area

The land outside of the outer boundary of the Las Vegas Valley Bureau of Land Management Disposal Boundary established by the Southern Nevada Public Lands Management Act as amended, enacted on October 19, 1998, plus all land extending 3 miles measured radially beyond the boundary, including Laughlin. All other areas within the County are in the Urban Area. This area is depicted on the Urban/Nonurban Area Boundary Map on file with the Department of Comprehensive Planning.

NRS

The Nevada Revised Statutes in its entirety, as amended.

O.

Obstruction

See "Airport Definitions."

Office

A use providing executive, management, administrative, professional services, or coordination of other services, including but not limited to, administrative or professional operations, government, real estate, employment, advertising, law, architecture, design, engineering, accounting, outpatient medical and dental care, call centers, and similar services, but not including escort bureau. Incidental uses, such as medical and dental testing or diagnostic services, are allowed in conjunction with medical and dental offices.

Office, Sales/Leasing

A building or room, maintained by a real estate broker licensed pursuant to NRS 645.

Office, Temporary

A building, structure, or part thereof used to conduct the business of administrative, professional or clerical operations for a limited time.

Off-Highway Vehicle

A motor vehicle designed primarily for all-terrain and off-highway use such as but not limited to all-terrain vehicles, dune buggies, snowmobiles, or all-terrain motorcycles.

Off-Site Improvement

See "Improvement."

Off-Site Parking

See "On-Site Parking."

One Hundred-Year Floodplain

The floodplain area including floodway and floodway fringe area as defined by the Federal Emergency Management Agency (FEMA) on its Flood Insurance Rate Maps.

On-Site Lighting

Any lighting, except lighting used for signs, located on a lot and is visible from outside the building(s) on the lot.

On-Site Parking

Parking provided for a specific use located on the same lot. All other parking is "Off-Site."

Operator

A manager, owner, caretaker, agent and/or employee and means the person who is in continuous, responsible charge of a recreational vehicle park or manufactured or tiny home park or any other residential, commercial, or industrial facility.

Ornamental Water Feature

Any manmade stream, fountain, waterfall, or other ornamental water feature containing water that flows or is sprayed into the air, constructed for decorative, scenic or landscape purposes, excluding swimming pools, manmade lakes and recreational water parks.

Outdoor

Not enclosed by walls and a ceiling.

Outdoor Market

A building or open area with stalls or sales areas set aside, rented, or otherwise provided for use by individuals, tenants, or businesses engaged in the sale of items, including but not limited to secondhand items, specialty items, hand crafted items, vegetables, fruits, or other agricultural products.

Outdoor Storage and Display

Areas not within an enclosed building dedicated to the storing and/or display of goods, materials, merchandise, vehicles, or equipment, which may also include incidental maintenance and repair of such items.

Outdoor Display

The showing of goods, material, and/or merchandise for sale, not within an enclosed building.

Outdoor Storage

The keeping of any goods, material, merchandise, or equipment, not within an enclosed building, including incidental maintenance and repair of the material which is being stored.

Outdoor Dining, Drinking, and Cooking

An area outside of an establishment for the cooking, drinking, eating, seating, and/or preparing food for patrons only.

Overlay District

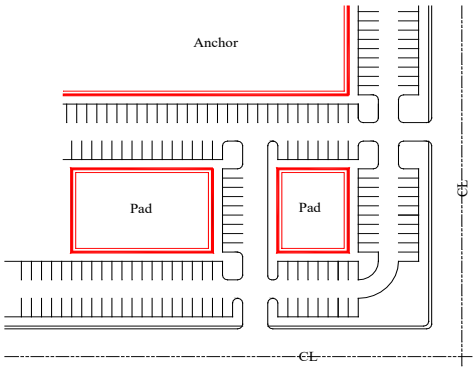
A zoning district that imposes additional requirements, limitations, or restrictions beyond those of the underlying zoning district.

P.

Pad Site

A freestanding building or prepared building area within a commercial complex typically located significantly closer to the street or freeway than any other adjacent commercial buildings.

Figure 30.07-2: Commercial Pad Site



Paddock

A fenced animal enclosure, maximum 8 feet tall, with sides at least 90% open, allowing a covered area up to 50% of the enclosure, up to a maximum 1,000 sf of roofed area.

Parcel

See “Lot.”

Park

A large public green area which may include areas for recreational uses including playing fields, playgrounds, ball courts, and paths. This use may include amenities such as a community center, picnic tables or shelters, restrooms, drinking fountains, parking lots, wildlife viewing blinds, observation decks, and similar facilities.

Parking Lot

Any outdoor area, or partially enclosed building, for the parking of motor vehicles, including any spaces, aisles, and driveways necessary for the function of the movement and parking of vehicles for the convenience of patrons.

Parking Space

Space within a building, lot, or parking lot, but not on a street, unless specifically designated, for the parking or storage of one vehicle.

Particulate Matter
Air pollutants, including smoke, dust, soot, salts, organic material, carbon, sulfates, nitrates, and heavy metals, consisting of fine particles, 10 microns in diameter or smaller (about 1/7 the size of a human hair).

Passenger Terminal
An area or facility for the staging and transportation of passengers, including bus and rail depots, and air terminals.

Patio Cover
A structure not used for habitation designed to provide sheltered outdoor space and that may be partially enclosed, if 2 of the 3 walls have an open area equal to 65% of the total surface area of the 3 walls. Screens and readily removable transparent plastic windows are permissible. This does not include balconies.

Pedestrian Connection
A continuous, unobstructed, direct route between two points intended for pedestrian use that may include but is not limited to sidewalks, walkways, stairways, pedestrian bridges, and trails.

Pedestrian Orientation
Site design and building scale with a primary emphasis on streetscape functionality and pedestrian access to a site, rather than vehicular access and parking concerns, which are limited. Pedestrian oriented buildings are typically constructed close to the street with windows and display features facing the street and main entrances designed to accommodate access from the sidewalk.

Pedestrian Scale
Site and building design components proportionally smaller than those intended to accommodate vehicular traffic and large-scale buffering concerns. Pedestrian scale considerations may include but are not limited to reduced height for ornamental lighting, use of bricks, pavers, or other enhanced paving materials, variety of landscape materials, awnings that reduce perceived wall heights, and signage designed for short-distance viewing.

Person
An individual, firm, partnership, corporation, company, association, joint stock association, or similar organization, and includes a trustee, a receiver, an assignee, or a similar representative of any of them. A person does not include a governmental entity.

Personal Services
An establishment that provides individual services, or the repair, care, maintenance, or customization of personal items, apparel services, or other types of personal articles or grooming and personal care services, including but not limited to, body piercing, beauty salons and /barber shops, laundry and dry cleaning, gyms, wellness studios, fitness centers and health clubs, locksmiths, permanent makeup and tattoos, psychic arts, day spas, reflexology, and tanning salons.

Pharmacy
The business of an apothecary, or druggist where drugs or medicines are compounded or dispensed by state-licensed pharmacists.

Place of Worship
A building or portion of a building that people regularly attend to participate in or hold religious services, meetings, and other activities including a residence on the premises for the religious leader and family, or a community of religious persons living apart from the general community.

Planned Unit Development (PUD)
An area of land to be developed as a single entity for one or more residential units, or one or more public, quasi-public, commercial or industrial areas, or both. The plan for the development requires Board approval, because some aspect does not comply with the current regulations of this Title. Variations from regulations may include, but are not limited to, lot size, bulk, or type of dwelling, lot coverage and required common open space. Increased density shall not be considered within a Planned Unit Development. (See also NRS 278A.065 – 070).

Planning Commission
See “Commission.”

Planting Strip
A raised, landscaped area that runs perpendicular to parking spaces, separating two facing parking rows, to provide vegetation, shade, and sometimes facilitate pedestrian circulation (see also “Landscape Island”).

Primary Building
The main building or one of the main buildings upon a lot, or a building housing a primary use.

Primary Use
The primary use of land or structures, as distinguished from an accessory use.

Project of Regional Significance
For the purposes of this Title, as defined in the Policies for Projects of Regional Significance adopted by the Southern Nevada Regional Planning Coalition, means:

1. A Special Use Permit (not including those to modify a specific use within Chapter 30.03), as described in §30.06.05D, within 500 feet of a local government's jurisdiction; and
2. A project within ½ mile of the boundary of a local government's jurisdiction for any of the following:
    a. Tentative maps or planned unit developments of 500 units or more;
    b. Tourist accommodations of 300 units or more;
    c. A commercial or industrial facility generating more than 6,250 average daily vehicle trips, as defined by the Institute of Transportation Engineers or its successor;
    d. A nonresidential development encompassing more than 160 acres; or
    e. Any Rezone (Zone Change) or Master Plan Amendment that could result in development that exceeds the threshold criteria identified above.

Property
A lot, parcel, or tract of land together with any building and structure (see also "Real Property").

Property Owner
1. Any individual, firm, governmental entity, association, syndicate, partnership or corporation, or its authorized agent, having sufficient proprietary interest in real property other than a leaseholder.
2. In terms of development, the term shall include any person accompanied by a letter from the governmental entity owning the property indicating the entity is aware of the application and does not object.

Protective Covenants
See "Restrictive Covenants Running with the Land."

Public Art
Objects such as sculpture, water feature(s) or other multi-dimensional design that would be viewed by the general public as an attractive amenity in public or private development. These object(s) to be located in spaces visible and/or accessible to the public in general for the enjoyment of the community at large, and shall not be considered a sign.

Public Building
A building owned and operated, or owned and intended to be operated, by a public agency of the United States of America, of the State of Nevada, or any of their subdivisions.

Public Facility
Any infrastructure facility, building, structure, service, or combination thereof, intended for use by general public or land approved for such use, owned, leased, operated and/or controlled by a local, state, or federal governmental entity. Public facilities may be community-serving for local neighborhood communities, including facilities such as reservoirs, flood control basins, trails systems, fire and police stations, public schools and libraries, neighborhood parks, playgrounds, swimming pools, and athletic fields; or they may be regionally-serving for extended geographic regions, including facilities such as airports, bus barns, golf courses, convention centers, and universities.

Public Facilities Needs Assessment (PFNA)
An analysis that identifies existing public facilities and services within the project, including, but not limited to, transportation, fire and police protection, flood control and drainage, parks and open space, schools, and water and sewer services, and evaluates the need for and phasing of additional facilities and services required.

Public Hearing
A meeting, announced and advertised in advance and open to the public, in which members of the public have an opportunity to participate.

Public Improvement
See "Improvement."

Public Notice

The advertisement of a public hearing as required, either in a paper of general circulation, through the mail, by electronic means, and/or the posting of a sign on property, each designed to indicate the time, date, place, and nature of a public hearing.

Public Right-Of-Way

See "Right-Of-Way."

Public Utility

Water, sanitary or storm sewers, telecommunications, traffic signal and street lighting systems, petrochemical pipelines, electric power, gas, cable television systems or facilities, irrigation water company systems, or other facilities allowed to be within County rights-of-way or the companies operating such facilities, and including the meaning ascribed under Section 704.020 of the Nevada Revised Statutes ("Public Utility" or "Utility" defined), but not including the offices for such which shall be considered an "Office."

Public Utility Structures

A utility that meets the definition of "public utility" or "utility" in NRS 704.020, including but not limited to aboveground utility lines, utility poles, pipelines, irrigation infrastructure, battery storage, and similar buildings and structures owned and operated by a public or quasi-public private utility provider.

Public Waste Storage Bin Facility

A facility, generally located in a remote area, that provides one or more portable waste containers used for the collection of solid waste for transport to a solid waste disposal site. Also known as a convenience center, the term does not include residential or commercial waste containers that are located on or near a site of waste generation. (See also "Refuse Transfer Station").

Public Works

The Clark County Department of Public Works.

Q.

Quasi-Public Facility

A facility under private ownership or control which is similar in services provided to a public facility.

R.

Real Property

1. All permanently attached houses, buildings, fences, ditches, structures, erections, railroads, toll roads and bridges, or other improvement built or erected upon any land, whether such land is private or public property.
2. Any manufactured home or factory-built housing which meets the requirements of NRS 361.244 (Classification of Mobile Homes and Factory-built Housing as Real Property).
3. The ownership of, claim to, possession of, or right of possession to any lands within this State.
4. The claim by or the possession of any person to any land.

Reclaimed Wastewater

Water that has been used and then treated by physical, chemical and/or biological processes so that it meets the criteria for reuse as approved by local, state, and federal agencies, as appropriate. Such water has received at least Secondary Wastewater Treatment as defined by NRS 445A, and is reused after flowing out a wastewater treatment facility. It may also mean water discharged by one unit and used by other units in the same plant. Also referred to as Reuse, Recycled, or Recirculated Water and Wastewater Reclamation. (Also see "Reclamation Facility")

Reclamation Facility

A facility designed and used to capture and treat wastewater for beneficial reuse in compliance with federal, state, and local regulations.

Reconsideration

A formal request by a member of the Board who voted on the prevailing side of a land use application action to bring the action back before the Board to reexamine the action and determine whether a subsequent public hearing shall be held.

Reconveyance of Public Property

The relinquishment of any interest on the part of the County for property owned by the County but no longer required for public purposes in accordance with Section 244.290 of the Nevada Revised Statutes (Reconveyance, Sale or Exchange of Land Donated, Dedicated or Condemned for Public Purposes; Notice; Hearing).

Recreation and Entertainment
This category includes indoor and outdoor recreation and entertainment activities. Accessory uses may include limited retail, concessions, parking, and maintenance facilities.

Recreational or Entertainment Facility
A commercial facility or area used for entertainment, games of skill, recreation by the public, or sports. The use may be indoors or outdoors, or a combination. Examples of outdoor recreation include, but are not limited to, amphitheaters, amusement rides, arenas, driving ranges, fairgrounds, interactive entertainment, miniature golf, racetracks, game courts, go-cart tracks, roller- rinks, shooting ranges, and swimming pools, but does not include adult business or personal services. Examples of indoor recreation include, but are not limited to, arcades, amusement rides, arenas, billiard halls, bowling alleys, roller- and ice-skating rinks, game courts, swimming pools, miniature golf, interactive entertainment, indoor shooting ranges, and go-cart tracks, but does not include adult business or personal services.

Recreational Park Trailer
A vehicle primarily designed to provide temporary living quarters for recreational, camping, or seasonal use and that:

1. Is built on a single chassis mounted on wheels;
2. Has a gross trailer area not exceeding 400 square feet in the set-up mode; and
3. Is certified by the manufacturer as complying with Standard No. A119.5 of the American National Standards Institute (see also, “Recreational Vehicle” and “Travel Trailer”).

Recreational Vehicle
A vehicle designed and/or used for living or sleeping and/or recreational purposes and equipped with wheels to facilitate movement from place to place, including pick-up coaches (campers), motorized homes, and camping trailers, none of which meet the specifications required for a manufactured or tiny home. This also includes “Recreational Park Trailer” which is a vehicle built on a single chassis, mounted on wheels with a gross trailer area not exceeding 400 square feet in the set-up mode, and is certified by the manufacturer as complying with Standard No. A119.5 of the American National Standards Institute. This further includes “Travel Trailer” which is a portable structure on wheels, consisting of a vehicular chassis primarily designed as temporary living quarters for recreational, camping or travel use and designed to be drawn by another vehicle, and designated by the manufacturer as a travel trailer.

Recreational Vehicle Park
An establishment for the accommodation of two or more recreational vehicles for temporary use (not to exceed 9 months, or 180 days if located within a FEMA flood zone). This does not include overnight parking of and sleeping within recreational vehicles within the parking lot of a resort hotel with the express permission of the resort hotel management.

Recreational Vehicle Site or Space
A plot of land in a recreational vehicle park used, or intended to be used, for the accommodation of not more than one recreational vehicle and one towed motor vehicle which is not a recreational vehicle.

Recreational Water Park
Any manmade bodies of water in combination, including streams, fountains, waterfalls, swimming pools, water slides or other ornamental water features, used primarily for contact recreational purposes and existing as the primary use of the property and open to the general public.

Recyclable Collection
An unmanned site or facility where recyclable materials are deposited into designated containers, and where no processing activities are conducted.

Recyclable Material
Waste that can be processed and returned to the economic mainstream in the form of raw materials or products as determined by the solid waste management authority (ref. NRS 444A.013). Recyclable material includes, but is not limited to: newspaper, corrugated cardboard, aluminum, yard debris (i.e. vegetation, green waste), office paper, glass, tin and steel cans, metal, motor oil, plastic, antifreeze, wood and food waste as defined by the Southern Nevada Health District.

Recycling Center
A facility, defined as a recycling center or materials recovery facility by the Southern Nevada Health District and Chapter 9.04 of the Clark County Code, that receives, stores, or processes recyclable material and may comingle recyclable materials with construction or demolition waste. The term may also include facilities involved in commercial destruction of documents.

Refuse
Discarded or abandoned materials that have no useful physical, chemical, or biological properties after serving their original purpose and which cannot, therefore, be reused or recycled for the same or other purpose.

Refuse Transfer Station
A facility that temporarily stores and compacts refuse in preparation for shipment to a sanitary landfill pursuant to NRS 444.

Remuneration
Compensation, money, rent, or other bargained for consideration given in return for occupancy, possession or use of real property, personal property or services.

Residential Development
Any residential use in a residential zoning district, and a manufactured or tiny home park, regardless of the district in which it is located.

Residential Use
Structures which are built for, and occupied by, private households; any activity of a private household conducted in a private dwelling.

Resort Hotel
An establishment located within a building or group of buildings meeting the definition of "Resort Hotel" in Title 8.04.010. This use must include at least 300 guest rooms, except for resort hotels meeting the following criteria for Neighborhood Casinos, which must provide at least 200 guest rooms as described below:

1. The use is outside any portion of the Las Vegas Boulevard Gaming Corridor designated as Entertainment Mixed-Use (EM) by the Clark County Master Plan; and
2. The use is outside any portions of Jean, Primm, and Laughlin designated as Entertainment Mixed-Use (EM) by the Clark County Master Plan.

The establishment shall include food service and amenities directly connected to the complex or building and the proposed or existing gaming operation and operated in such a manner as to form a part of the same operation and complex. Liquor and Gaming licenses shall be approved separately pursuant to NRS.

Resource Extraction
This category includes activities relating to the mining or removal of materials from the natural environment including mining rocks, soils, minerals, and other similar materials.

Restaurant and Related Facilities
A commercial establishment where consumable products, food, and/or beverages are prepared, served, and consumed on- or off-premises, but not including the incidental sale of prepared food when operated in conjunction with a convenience or grocery store.

Restrictive Covenant Running with the Land
Also known as a deed restriction, for the purposes of this Title shall mean:

1. A list of restrictions and covenant properly recorded in the County Recorder's Office which run with the land, binding all property owners, their successors and assigns for any improvements to said property deferred for construction until such time as said deferred improvements may be called upon to be installed in the future by Clark County;
2. Restrictions on the development of land recorded to create lots which do not have adequate ground water sources available and for which a water commitment from the local water purveyor has not been obtained, but which will at a future date provide water from the municipal water purveyor, if available; or
3. Restrictions recorded in conjunction with development imposing private restrictions on the use and development of property. Such restrictions shall not be enforced by Clark County.

Retail
The sale, lease, or rent of products directly to the final consumer.

Retail and Services
This category includes establishments involving the sale, lease, or rent of new or used products directly to the final consumer, but not specifically or exclusively for the purpose of resale; establishments that provide executive, management, administrative, governmental, or professional services; and services related to personal needs directly to customers at the site of the business, or that receive goods from or return goods to the customer, which have been treated or processed at that location or another location.

Retail, Last Mile
A retail establishment with warehouse/storage areas exceeding the threshold for an accessory use that is designed as a last mile hub for fulfillment and delivery of orders.

Retreat
A facility used primarily for relaxation, rejuvenation, or spiritual healing where sleeping accommodations for patrons may be provided. Physical activities such as hiking, biking, swimming, ball field activities, meditation, yoga, and other similar uses may be included.

Right-of-Way
Property established by dedication, easement, prescription or condemnation and intended to be occupied by a street, sidewalk, water line, sanitary sewer, drainage, and/or other utility or facility.

Right-of-Way Permit
A permit issued by the Director of Public Works authorizing work within public rights-of-way, easements, and private streets.

Road or Roadway
See “Street.”

Roadway Improvements and Utility Equipment
A structure placed by a public utility, public entity, or person within a required yard for the purpose of providing utility service to the immediate neighborhood or the specific site upon which the equipment is located. The term shall include, but is not limited to, streetlights, roadway improvements and related structures.

Rock Crushing
A site or facility where boulders or large rocks are reduced into smaller rocks.

Roof
The materials and structural support for those materials which cover the top of a building.

Rooming House
A facility that may provide meals, transient and non-transient lodging, including homeless shelters and lodging houses, but not including other lodging uses, dormitories, or community residences.

Run-Off
Water run-off from streets, gutters, parking lots, roof tops, construction sites, landscape areas, agricultural lands, and other diffused sources that usually contains litter, pesticides, organic and bacterial waste.

Runway
A defined area on an airport prepared for landing and takeoff of aircraft along its length.

Runway Protection Zone
See “Airport Definitions.”

Rural Resort Hotel
An establishment located within a building or group of buildings that are designed, used, and maintained as a hotel or motel. This use shall include at least 200 guest rooms, be located in an unincorporated town having a population between 300 and 2,500 people, and be located in an unincorporated town that has fewer than 3 unrestricted gaming licenses.

S.

Salvage Yard
A facility or area for storing, or processing scrap, discarded material, or equipment. Materials include, but are not limited to, metal, paper, rags, tires, glass, motor vehicle parts, machinery, structural steel, equipment, and appliances, including any premises used to dismantle motor vehicles and trailers including premises used in the storing, keeping,

buying, selling, or dealing in dismantled wrecked, inoperative or disabled vehicles or integral parts or components, and the storage, sale or dumping of inoperative vehicles and trailers, or parts thereof.

Sanitary Landfill

A permanent site disposing of refuse to minimize environmental hazards by spreading, compacting to the smallest volume, and applying cover material over all exposed waste. A landfill may operate a salvage yard or a food scrap management program to reduce the volume of waste.

School

An academic institution offering instruction in several branches of learning, either as a public or private entity for pre-school through grade 12, or post-secondary academic institutions that grants degrees beyond grade 12. This use does not include other Educational Facility uses.

Screen Fence

See "Fence."

Seasonal Sales

The temporary outdoor sale and display of holiday goods during the following nationally recognized holidays: Christmas, Halloween, Independence Day, Valentine's Day, and Mother's Day.

Security Fence

See "Fence."

Senior Housing

Housing with all units intended for, and occupied by, at least 1 person 55 years of age or older. Senior housing includes facilities and services specifically designed to meet the physical or social needs of persons 55 years of age or older.

Separation

A separation required between uses, unless otherwise specified, is the distance from the space occupied by a particular use to the property line of another use.

Setback

The distance between a structure and the property lines of the lot, parcel, or tract on which it is located.

Front Setback

The setback applies to the full frontal width of a lot or site, measuring from the future right-of-way, street, or property line, and extending onto the lot for the minimum depth in feet as specified in the applicable zoning district, excluding allowable projections set forth in this Title.

Rear Setback

The setback applies to the full rear width of a lot or site, measuring from the rear lot line and extending onto the lot for the minimum depth in feet as specified in the applicable zoning district, excluding allowable projections set forth in this Title.

Side Interior Setback

The setback on the side portion of a lot not adjacent to a private or public street. The length is measured from the rear line of the required front setback, or the front property line if no front setback is required, to the front line of the required rear setback, or the rear property line if no rear setback is required, and the width measured from the side lot or property line and a line parallel to the site.

Side Street Setback

The setback on the side portion of a lot adjacent to a private or public street. The length is measured from the rear line of the required front setback, or the front property line if no front setback is required, to the front line of the required rear setback, or the rear property line if no rear setback is required, and the width measured from the side lot or property line and a line parallel to the site.

Sewerage

The entire system of sewage collection, treatment, and disposal.

Sex Club

Any business operated and maintained for the purpose of allowing one or more persons to view or participate in a live sex act for consideration. A sex club is prohibited and is a public nuisance per se.

1. Consideration means the payment of money or the exchange of any item of value for:
    a. The right to enter the business premises, or any portion thereof; or
    b. The right to remain on the business premises, or any portion thereof; or

c. The right to purchase any item permitting the right to enter, or remain on, the business premises, or any portion thereof, or
d. The right to a membership permitting the right to enter, or remain on, the business premises, or any portion thereof.

2. Live sex act means any act whereby one or more persons engage in a live performance or live conduct which contains oral sexual contact or sexual intercourse.
3. Operate and maintain means to organize, conduct the affairs of, manage, run or control. Operate and maintain includes providing financial support by paying utilities, rent, maintenance costs or advertising costs, supervising activities or work schedules, and directing or furthering the aims of the enterprise.
4. Oral sexual contact means oral contact with the penis, vulva or anus.
5. Sexual intercourse means penetration into the penis, vulva or anus by any part of the body or by any object or manual masturbatory contact with the penis or vulva.

Nothing in this Section shall be construed to apply to the non-obscene presentation, showing, or performance of any play, dance, erotic dance, drama, ballet, concert, or similar performance in any theater, concert hall, fine arts academy, school, institution of higher education, business or similar establishment as a form of expression of opinion or communication of ideas or information, as differentiated from the promotion or exploitation of sex for the purpose of advancing the economic welfare of a commercial or business enterprise. This definition also does not apply to professional services by a "provider of health care" as defined in NRS 629.031.

Shallow Groundwater Aquifer

A region of elevated groundwater caused by secondary recharge, for which the state engineer has issued a permit in accordance with NRS 534.050, to pump water to alleviate potential nuisances or hazards to persons or property resulting from the rise of groundwater.

Shed

One-story detached accessory building used as a tool or storage shed, playhouse, or similar structure not exceeding 200 square feet with no electrical, mechanical, or plumbing installed.

Shielded

A lighting fixture that allows no light emission above a horizontal plane through the fixture, typically with a solid barrier at the top of the fixture in which the lamp is located. The fixture is angled so the lamp is not visible below the horizontal angle.

Shopping Center

Any structure or group of structures housing any assemblage of commercial and/or retail with a minimum 25,000 square feet of gross floor area upon a single lot, or upon contiguous parcels of land which have common ingress and egress, shared parking, and cross access.

Short-Term Bicycle Parking Space

A short-term bicycle parking space is one provided outside of a building.

Sight Zone

The area adjacent to street intersections or driveways required to be unobstructed to ensure pedestrians and motorists have an unimpeded view of traffic.

Sign-Related Definitions

A-Frame Sign

A freestanding, specialty, or movable device usually constructed of two separate sign faces attached at or near the top.

Awning Sign

Figure 30.07-3: A-Frame Sign



Figure 30.07-5: Canopy Sign



A sign painted, stamped, perforated, stitched, or otherwise applied on an awning without projecting from the awning.

Balloon Sign

See Inflated Sign.

Banner

A Specialty Sign intended to be secured at the top, or by all corners, made of plastic, fabric or similar lightweight material.

Figure 30.07-4: Banner



Cabinet Sign

A sign that contains all the text, artwork, logos and/or other information in an enclosed cabinet or box and may house the internal lighting source or equipment.

Canopy

An attached or detached structure, open on at least one side, designed to provide overhead shelter from the sun or weather. Canopies include, but are not limited to, gas station canopies, carports, porte-cochères, arcades, and pergolas. A canopy is not covered with fabric or flexible material, whereas awnings may include such items.

Canopy Sign

Copy painted or otherwise made part of the canopy structure.

Carried Sign

A sign held or carried by a person.

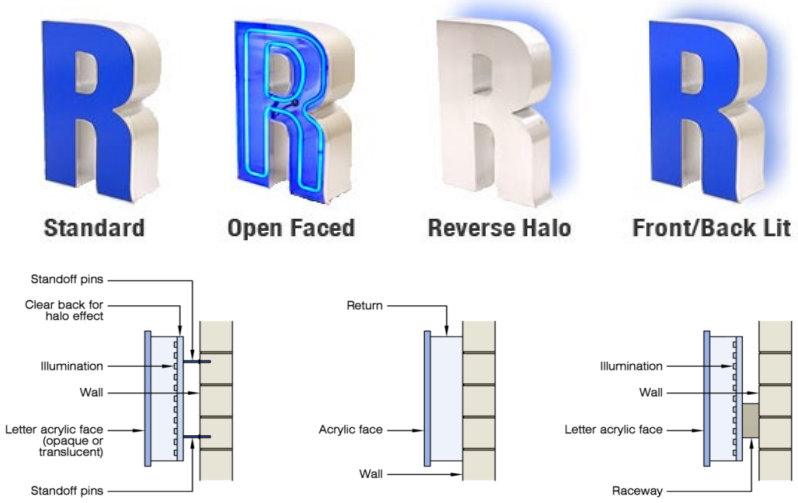
Change of Copy

The change of a logo, and/or message upon the face or faces of a legal sign.

Channel Letters

A sign with dimensional letters, numbers, or symbols without a background other than the background provided by the building or structure to which it is attached, mounted directly on the building or structure. Types of channel letters include: Standard/Front Lit (Face Lit), Open Faced, Reverse Halo and Front and

Figure 30.07-6: Channel Letters



Backlit (Dual). The letters may be Pin Mounted, Flush Mounted, or placed on a Raceway.

Pin Mount **Flush Mount** **Raceway Mount**

Cladding

A non-structural covering designed to conceal the structural supports of a sign.

Commercial Speech (or Message)

Expression by a speaker for the purposes of commerce, where the intended audience is actual or potential consumers, and where the content of the message is commercial in character. Commercial speech typically advertises a business, business activity, or proposed commercial transaction and may be further defined by a court of appropriate jurisdiction.

Commercial Sign

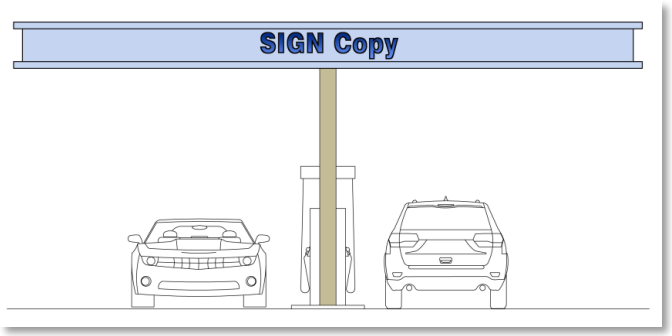
A sign that advertises a business, commercial services rendered, good or products sold, the sale or lease of property or other business or commercial activity or objective.

Copy/Sign Copy

Those letters, numbers, language, symbols, or pictures on a sign surface, either in permanent, changeable, or removable form.

Damaged Sign

Figure 30.07-7: Sign Copy



Any sign that, for any reason, has received less than 50% damage to any combination of the copy area or sign structure.

Destroyed Sign

Any sign that, for any reason, has received more than 50% damage to any combination of the copy area or sign structure.

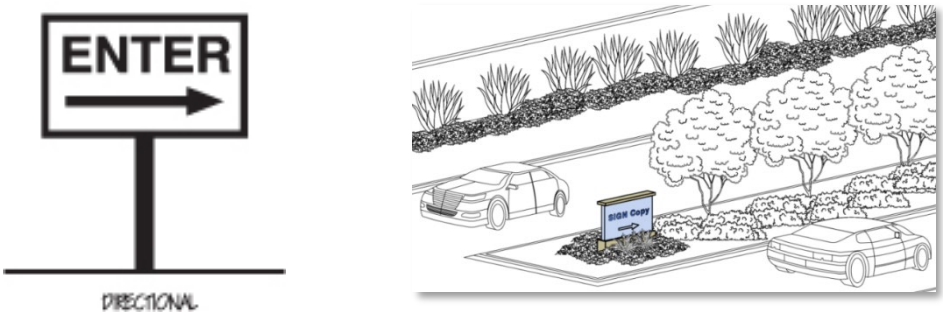
Directional Sign

A sign located at a vehicular entrance or exit.

Electronic Signs

Electronic signs are categorized as follows:

Figure 30.07-8: Directional Sign



1. Mechanically Activated: Animation characterized by repetitive motion activated by a mechanical system powered by electric motors or other mechanically induced means.
1. Electrically Activated: Animation using individual lights to produce flashing or the illusion of movement through a repetitive or patterned cycle of lights.

The electronic signs category includes following types of signs and sign elements:

1. Animation: A sign element with blinking or flashing lights or raceways of traveling lights.
2. Electronic Message Unit: A sign capable of displaying static or video copy that can be changed by remote or automatic means.

Figure 30.07-9: Electronic Message Unit



3. Multi-Vision Sign: A sign constructed of simultaneously rotating panels that can display different messages.
4. Projection Image Display: A sign that displays copy using projection technology onto the surface of a wall, building, fence, screen, or other physical surface. This also includes the projection of videos, holographic images, spatial augmented reality, and other similar 3-D computer generated displays.
5. Revolving Sign: A sign which revolves or appears to revolve 360 degrees.

Flashing

A sign element using individual lights to produce flashing or the illusion of movement through a repetitive or patterned cycle of lights.

Flag
A piece of cloth or similar material, typically oblong or square, attachable by one edge to a pole or rope.

Footcandle
A unit of measure of the intensity of light falling on a surface equal to 1 lumen per square foot (ex. 15 footcandles considered to be minimum ambient light).

Freestanding Sign
A sign anchored to the ground or supported by post(s), column(s), or other vertical structure(s), and not attached to or dependent on to support from any building.

Government Sign
Any portable, specialty or permanent sign erected and maintained by the city, county, state, or federal government.

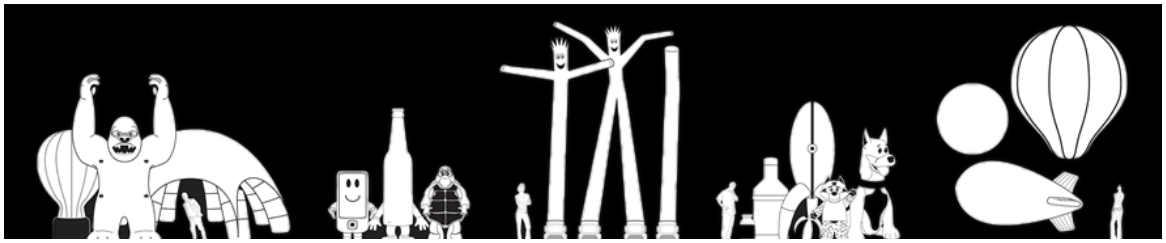
Illumination, External
Illuminating a sign from the outside of a sign structure.

Illumination, Internal
Lighting inside or behind a sign face with no visible lighting source, except in the case of tubular lighting where the lighting source is visible. This may include lighting sources with raised letters, awnings, or sign cabinets.

Inflated Sign
A specialty device, inflated or supported by heated air, forced air or lighter than air nonflammable gases, such as a balloon or other air driven event sign. The phrase inflatable sign does not include balloons that are less than 18 inches in all dimensions. Inflatable signs do not include hot-air balloons used for air travel.

Internal Sign

Figure 30.07-10: Inflated Signs



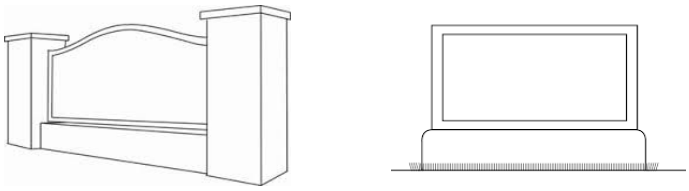
A sign internal or interior to a property or development not directed outward for external view or readily legible from the public right-of-way.

Mobile Sign
A sign supported by a sign framework mounted on wheels, skids, trailer, panels or another device making the framework conveniently movable. This includes any such movable sign used by a licensed mobile billboard business.

Monument Sign
A freestanding sign with a base not less than 50% of the sign's width, that is consistent with the architectural style of the top of the sign. Any sign exceeding the permissible height or area of a monument sign or with a base less than 50% of the sign structure width shall be considered a freestanding sign.

Nit
A measure of light described as one candela per square meter (cd/m2). The unit is based on the candela, the modern metric unit of luminous intensity and the square meter.

Figure 30.07-11: Monument Signs



Noncommercial Sign

A sign displaying noncommercial speech.

Noncommercial Speech

Any speech or message that does not meet the definition of commercial speech.

Nonconforming Sign

A sign that does not meet one or more of the requirements of this Title, but which was erected in conformance with any adopted standards and procedures in existence at that time.

Off-Premises Sign

A sign that displays any message directing attention to a business, product, service, profession, commodity, activity, event, person, or institution, or other commercial message which is generally conducted, sold, manufactured, produced, offered, or occurs elsewhere than on the premises where the sign is located.

On-Premises Sign

A sign that does not meet the definition of an off-premises sign. A sign located on an access drive that is the primary means of vehicular access to a development from a dedicated street shall be considered an on-premises sign even if it is located on or through an adjacent property to a dedicated street.

Pennant

A Specialty Sign constructed of lightweight plastic, fabric or other material suspended from a rope, wire, string, or similar material, usually in a series, designed to move in the wind. All pennants within the series shall be considered as one display.

Figure 30.07-12: Pennant



Perimeter

Any shape enclosing a sign's area.

Portable Sign

A temporary sign, in place for a limited duration (e.g., for a garage sale, open house, or election), and which must be immediately removed after completion of the event, or in the case of elections, shall follow NRS time guidelines for removal.

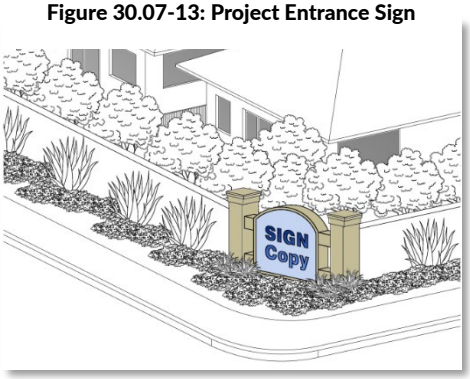
Premises

The structure(s) and land upon which a sign or signs are displayed.

Project Entrance Sign

A monument sign or a sign architecturally integrated into the entry landscape features, constructed of materials and color accents consistent with the project's overall design theme, located at primary entrance(s) or street corner(s) of residential, commercial, or industrial projects. These signs facilitate traffic and emergency services.

Figure 30.07-13: Project Entrance Sign



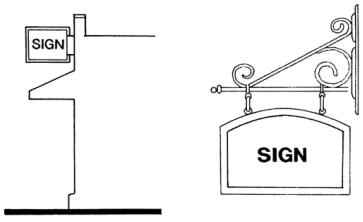
Projection

The distance a sign extends.

Projecting Sign

A sign attached to and projecting from a wall(or suspended/hanging from a supporting frame attached to a wall or ceiling) of a building and not on the same plane as the wall.

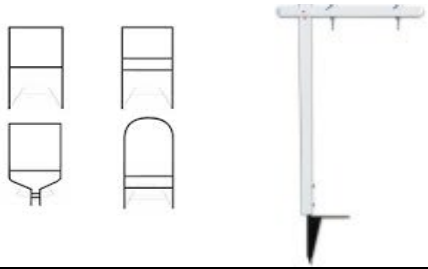
Figure 30.07-14: Projecting Sign



Property/Yard Sign

A Specialty Sign placed in the ground with metal, wood, or similar material.

Figure 30.07-15: Property/Yard Sign

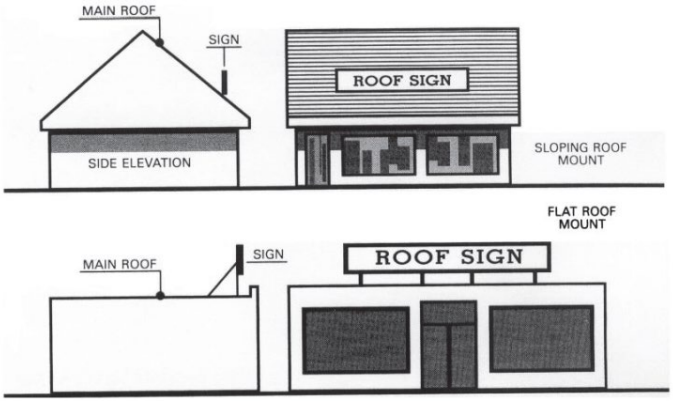


Raceway
A mounting structure for channel letters that also encloses electrical components.

Revolving Sign
See "Electronic Sign."

Roof Sign
A sign erected above a roof or wall.

Figure 30.07-17: Roof Sign



Separation
The horizontal distance between the leading edge of signs measured parallel with the street or curb.

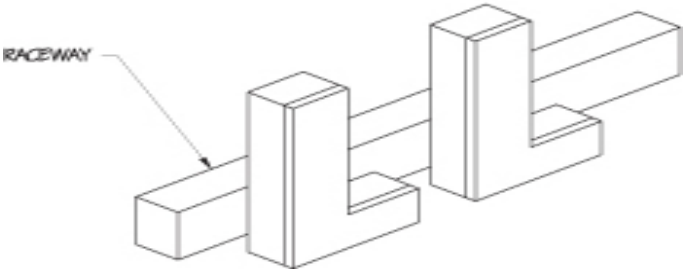
Sign
Any writing, printing, lettering, painting, display, emblem, or drawing used to advertise products, goods, services, or events, or to make anything known. Signs include but are not limited to flags, pennants, propellers, streamers, wheels, or other artificial devices, figures, shapes, colors, lights, exhibits, and all specialty banners, portable and mobile signs.

Sign Area
The total area of a sign visible, excluding support structure, architectural embellishments, framework or which contains no written copy. See §30.05.05D, *Sign Area*, for computational methodology for sign area.

Sign Face
The area made available by the sign structure for the purpose of displaying the sign copy.

Sign Structure
Any structure supporting or capable of supporting any sign defined in this Chapter. A sign structure may be a single pole or may or may not be an integral part of the building or structure.

Figure 30.07-16: Raceway



Snipe Sign
A handbill or sign of any type adhered to, displayed on, or otherwise affixed to a tree, fence, utility pole or similar structure.

Figure 30.07-18: Snipe Sign



Specialty Sign
Specialty devices such as banners, specialty flags, inflated signs, pennants, streamers and wind sails or signs other than the permanent signs described in Chapter 30.05, *Signs.*

Supergraphic
A sign, consisting of an image printed, painted, on vinyl, mesh, or other material with or without written text, supported and attached to a wall or covering a building or other structure by adhesive or stranded cable and eye-bolts or other materials or methods.

Video Message Display (VMD)

See “Electronic Message Unit.”

Wall Sign

A sign displayed on a building facade, including on a window or door.

Wind Sail

A Specialty Sign that moves when subject to wind pressure or forced air. Also referred to as feather flags, flutter flags, flying banners, vertical flags, or vertical sail signs.

Figure 30.07-19: Wind Sail



Significant Tree

An existing tree greater than 6 inches in caliper measured at 4.5 feet above ground level, rated by the Regional Plant List as having Low, Very Low, or Moderate water needs.

Similar Use

A use that has the same characteristics as the specifically cited uses in terms of the following: trip generation and type of traffic, parking and circulation, utility demands, environmental impacts, physical space needs, and clientele.

Single-Family Attached Dwelling

See “Dwelling.”

Single-Family Detached Dwelling

See "Dwelling.”

Single Development

Any business, commercial, resort, multi-family (attached) residential, industrial or agricultural development, or any commonly held areas in any single-family (detached) residential or mixed-use development, excluding only single-family detached residential lots, which are:

1. Located on a single parcel of land, or contiguous parcels under common ownership (including parent holding company), lease or management.
2. Operated as a single business enterprise doing business under the same trade name or business theme using common or shared management staff.
3. Operated in such a manner that the majority (51% or more) of the profits, or losses, of business on separate parcels, accrue to a common entity.

Solar Reflectance Index (SRI)

SRI is an indicator of a surface’s ability to return solar energy to the atmosphere. SRI is measured on a scale of 1 to 100, where higher SRI surfaces are cooler than lower SRI surfaces under the same solar exposure, especially on a sunny day.

Spandrel

The radius within or adjacent to the right-of-way on the inside of two intersecting streets.

Special Development

Development regulated as a Special Use which is not permitted or conditional in any commercial, industrial or residential district, other than special districts. Special Development includes uses such as congregate care, assisted and independent living, schools, hospitals, cemeteries, libraries, daycare, childcare, museums, and places of worship, except as otherwise noted in the definition of other types of development.

Special Event

A temporary outdoor use that includes, but is not limited to, circuses, amusements, outdoor concerts, festivals, revivals, street fairs, sidewalk/parking lot sales, outdoor arts and crafts fairs, and other organized community events, and educational, historic, religious, and patriotic displays or exhibits.

Special Use Permit

A use that, due to a special characteristics of its operation or installation, is permissible in a district subject to review by the Commission or Board pursuant to §30.06.05D, *Special Use Permit (UC).*

Specific Plan

A plan, identifying an area with specific land use categories, which shall include the total in acre and percentage amounts for each category. It addresses changes and issues identified in the Concept Plan and Public Facilities Needs Assessment/Plan, and development standards, design manual, transportation plan, and phasing plan.

Spot Zoning

The reclassification of an isolated parcel of land which is detrimental or incompatible with the uses of the surrounding area, particularly when such an act favors a particular owner.

Square Feet (sf)

The typical unit of measurement for dwelling space or lot area described in feet squared, calculated by measuring the length and width and multiplying. Ex. A room is 12 feet by 20 feet, 12x20=240 sf.

Stacking Lane

The temporary queuing of motor vehicles to a particular business or development.

Standard Conditions

The conditions approved by the Commission or Board in conjunction with the land use application process and designed to be imposed as a matter of course, as applicable, on the approval of all same application types.

Standard Development Agreement

See "Development Agreement."

State of Nevada Hydrographic Basin 212

The boundary describing Nevada Hydrographic Basins 212 (PM-10 Nonattainment area) within which the Nevada Department of Conservation and Natural Resources, Division of Environmental Protection, has determined must comply with national standards for air quality control.

Story

As defined by the International Residential Code and the International Residential Code, adopted by the Building Department.

Street

A public or private thoroughfare, including all improvements within the right-of-way or easement, to be used for passage or travel by motor vehicles, bicycles and/or pedestrians whether designated a street, road, avenue, trail or otherwise; or a thoroughfare made public by right of use which affords the primary means of access to abutting properties.

Arterial Street

A street described in the Master Plan and identified as an arterial street on the Transportation Map(s). Arterial streets also include any street having a right-of-way width of 100 feet or more and any street having a right-of-way width of 120 feet or more often located on a township or range line.

Collector Street

A street described in the Master Plan and identified as a collector street on the Transportation Map(s). Collector streets also include any street having a right-of-way width of 80 feet or more, often located on quarter section lines.

Freeway

A limited access interregional arterial route designed exclusively for unrestricted movement, having no private access and intersecting only with selected arterial highways by means of interchanges engineered for free-flowing movement. The term includes any planned, unbuilt freeway with right-of-way already acquired or where temporary frontage roads provide access to intersecting streets during construction.

Frontage Road

A street adjacent to but separated from a freeway that provides the primary means of vehicular and pedestrian access to abutting properties.

Local Street

A street, including 16th and 64th section lines, with a width a minimum of 60 feet, or as approved by the Commission or Board.

Paved Access Road

A street with a minimum width of 32 feet of pavement.

Private Street

A street designated for use and fully maintained by specified property owners and not dedicated or accessed as a public street (See §30.04.08D.5).

Residential Local Street

A street with a minimum width of 48 feet within a single-family residential subdivision.

Roadway

The portion of a right-of-way intended for vehicular traffic.

Side Street

A street bounding a corner lot.

Street Frontage

The property line abutting a street.

Structure

Any fence, tower, edifice, or building of any kind, or any piece of work artificially built up or composed of parts joined together already on the ground or that requires location on the ground extending more than 36 inches above grade. This does not include air conditioning units, propane tanks or utility equipment incidental to a permissible use. For Airport Airspace Overlay and Airport Environs Overlay, see "Airport Definitions."

Structural Alteration

Any change to alter the use of a structure or change in the supporting members of a building or structure, such as bearing walls, columns, beams and girders, floor or ceiling joists, roof rafters, foundation piles, retaining walls or similar components.

Subdivision

The division of any land or portion of land divided into lots and/or parcels of land for sale or lease, as set forth by Chapter 278 of the Nevada Revised Statutes (Planning and Zoning).

Amended Map

A subdivision map prepared and recorded to correct an error or omission in a previously recorded final map, parcel map, certificate of land division, if the correction changes or purports to change the location of any survey monument, property line or boundary line, or to revise a previously recorded map. Amended maps shall be processed the same as the original map type.

Final Map Mylar

A map prepared in accordance with NRS 278 and this Title on record in the Office of the County Recorder as the approved design for a major subdivision. The term includes a map prepared to amend or revert to acreage a previously recorded map (see also "Merger and Resubdivision").

Final Map Technical Review

A request to provide the means to analyze improvement requirements, design standards, detailed survey information, and technical correctness of a proposed or amended final map.

Major Subdivision – Tentative Map/Final Map

Any real property divided into 5 or more lots or parcels or subdividing a commercial or industrial subdivision.

Merger and Resubdivision

The automatic reversion of parcels underlying the re-division of lot(s) and/or block(s) of a previously recorded legal subdivision or portion thereof as a new subdivision map.

Minor Subdivision – Parcel Map

Any real property divided into 4 or fewer lots or parcels, including parcel maps and certificates of land division.

Parcel Map Mylar

A map created in accordance with NRS 278 and this Title, on record in the Office of the County Recorder as the approved design for a minor subdivision.

Parcel Map Review

A request to provide the means to analyze improvement requirements or design standards for a proposed or amended parcel map.

Parcel Map Technical Review

A request to provide the means to analyze improvement requirements, design standards, detailed survey information, and technical correctness of a proposed or amended parcel map.

Reversionary Map

A map prepared to revert a recorded subdivision map, parcel map, certificate of land division, or division of land into large parcels, or part thereof to acreage.

Tentative Map

A request filed with the Director of Comprehensive Planning to request a review of a proposed major subdivision.

Substantial Completion

See "Completion."

Swale

A depressed portion of land or shallow channel with gently sloping sides, either natural or human-made, that will carry runoff water from one point to another.

Swimming Pool

A permanent or temporary body of water in excess of 18 inches in depth, which includes all equipment necessary for its operation and use, used for swimming or recreational bathing including spas, hot tubs and above ground pools.

T.

Tandem Parking

Parking spaces designed without the minimum required aisle necessary to back a vehicle out of the parking space without backing through another space.

Taxidermy

An establishment that prepares, stuffs, and mounts the skins of dead animals.

Technical Impact Analysis

Any geotechnical study, drainage impact analysis, traffic impact analysis or any other impact analysis acceptable to the Department of Public Works and as required by this Title, action of the Commission or action of the Board.

Temporary Dwelling

A temporary dwelling, including a manufactured or tiny home or recreational vehicle, used for a limited period such as during the construction of a dwelling or the reconstruction of a damaged or destroyed dwelling.

Temporary Fence

See “Fence.”

Tenant

A person, persons, or business, other than the owner who holds or occupies a dwelling, lot, or commercial/ industrial location.

Tent

An air-inflated, air-supported, cable or frame-covered structure, including temporary membrane structure as defined by Section 221-T of the Uniform Fire Code.

Tiny Home

A “tiny house” pursuant to NRS 278 that meets the International Residential Code (IRC) definition of a dwelling unit that is 400 sf or less in floor area, excluding lofts.

Tour Guide or Transportation Service

A business that provides for the delivery of passengers or goods such as couriers, limousines, taxis, ride-shares, tour guide services, Transportation Network Companies (TNCs), or other similar uses, excluding freight or passenger terminals.

Town Board

A Town Advisory Board or Citizens Advisory Council is a group whose members are elected or appointed by the Board to represent a specified geographic area within the County, and after review of proposals, to make recommendations on proposed development within their area to the Commission and the Board.

Toxic Substances

See “Hazardous Materials or Waste.”

Tract

1. A subdivision;
2. A large unsubdivided parcel; or
3. A legal parcel of land identified by the results of an Independent Resurvey of the Public Lands of the United States as descriptively and locationally nonconforming, or alienated from the regular subdivision of sections.

Traffic Control Plan

A design that determines the placement of barricades, warning lights or signs for the duration of construction, in the interest of public safety.

Traffic Impact Analysis

A study that assesses the impacts of a proposed development on the existing and future multimodal transportation network.

Trail

When dedicated per §30.04.08, *Public Works Development Standards,* a trail is a corridor connected or designed to be connected to a planned regional network of trails for movement of non-motorized vehicles, such as a bicycle, and pedestrian and equestrian traffic, which typically occur along washes, in utility corridors, limited access roadways (highways & beltways), and railways in both the Urban and Nonurban Areas of Clark County, but may also be located along streets where designated by the plan. Trails are designed to provide alternative modes of transportation and recreational enjoyment in a quiet and relaxed environment.

Trail Dedication

The transfer of land in fee simple or by easements as required by the County, by the owner for the use of the public, and accepted by the County for such use by, or on behalf of the public. A trail is not a right-of-way as defined in this Title, except when located within a previously established or dedicated right-of-way.

Trailer

A cargo-carrying container designed to be pulled by motor vehicles.

Transient

A person who utilizes accommodations for a price or as a benefit of employment, with or without meals, for a period of 30 consecutive calendar days or less.

Transient Commercial Use of Residential Development

The commercial use, by any person, of any residential development, for bed and breakfast, hostel, hotel, inn, lodging, motel, resort, or other transient lodging uses where any individual transient guest occupies the property for 30 consecutive calendar days or less.

Transitional Living for Released Offenders

A group facility, as defined by NRS 449, used to house persons on parole.

Trash Enclosure

A screen around a trash container or recyclable container, to block views and to contain trash for pick-up.

Tree

1. As defined by the Southern Nevada Regional Planning Coalition's Regional Plant List.
2. In relation to Airport Airspace Overlay and Airport Environs Overlay, see "Airport Definitions."

Truck Parking or Staging

A site or building for the parking of commercial vehicles or commercial vehicle loading and unloading of cargo for transport, shipment, or distribution to an off-site area on a regular basis, and may include facilities for temporary cargo storage. The principal use of trailer parking is categorized as "Outdoor Storage".

Truck Stop

A facility which provides amenities, parking, and rest areas for truck drivers and motorists.

Turf

For the purposes of this Title, turf shall have the definition adopted within the Southern Nevada Water Authority regulations, as either non-functional turf, or functional turf. Any grassy area maintained by frequent mowing and fertilization and/or watering.

U.

Union Hall

A building or portion of a building in which a union meets or conducts its business and may include trade union the headquarters used for meetings and recruitment of union workers.

Urban Area

The land within the outer boundary of the Las Vegas Valley Bureau of Land Management Disposal Boundary established by the Southern Nevada Public Lands Management Act as amended, enacted on October 19, 1998, plus all land extending 3 miles measured radially beyond the boundary, including Laughlin. All other areas within the County are in the Nonurban Area. This area is depicted on the Urban/Nonurban Area Boundary Map on file with the Department of Comprehensive Planning.

Use

The purpose for which land or buildings are designed, occupied, maintained, or planned, including uses within another political subdivision (see also, "Compatible Use," "Development," "Mixed-Use," "Permitted Use," "Primary Use," "Similar Use," and "Temporary Use").

Utilities

This category includes antennas, towers, transmission devices, lines, buildings, easements, passageways, or structures used or intended to be used by any public or private communications and broadcasting operation or utility related to the provision, distribution, collection, transmission, or disposal of power, oil, gas, water, sanitary sewage, communication signals, or other similar public services at a local level.

V.

Vacation and Abandonment

The relinquishing of any interest of any dedicated public road, improvement or public easement of interest to Clark County, in conformance with NRS 278.480.

Vehicle Hobby Repair and Restoration

The dismantling, mechanical repair, or restoration of non-commercial motorized vehicles and related vehicle parts as a hobby, including engine or transmission replacement or overhaul, body work, upholstery, and maintenance, excluding painting. Vehicles shall not include snowmobiles, off-highway vehicles, or jet skis.

Vehicle Maintenance or Repair

A facility providing maintenance or repair of vehicles, including automobiles, motorcycles, off-highway vehicles, recreational vehicles, watercraft, and similar vehicles. Maintenance services are limited to tune-ups, oil changes, lubrication, smog check, brake and muffler maintenance, the sale and repair of tires, window repair or replacement, or other similar repair and maintenance functions. Repair services include brake, muffler and/or tire repair as primary uses and services such as mechanical repair, engine or transmission replacement or overhaul, and upholstery. Vehicle maintenance and repair does not include paint or body work.

Vehicle Paint/Body Shop

A facility designed and used for restoration, refurbishing, minor paint and body work, collision repair services, and painting. Vehicle paint/body minor repair work includes the restoration or refurbishing of automobiles for upholstery work and small dents and body work where damage exceeds more than 10% of the surface area of the automobile, including but not limited to airbrush touch up, surface scratch, color sanding and buffing, small spot repair, bumper repair, and paintless dent repair. Vehicle paint/body major repair work includes collision repair services including body, frame, or fender straightening or repair, and painting of vehicles in an appropriate paint booth.

Vehicle Rental or Sales

An establishment for the display and sale or lease of vehicles and equipment, including automobiles, construction equipment, motorcycles, off-highway vehicles, recreational vehicles, watercraft, and similar vehicles, not including those items typically rented from home improvement centers.

Vehicle Wash

A facility for cleaning, detailing, washing, or waxing of motor vehicles, by hand or mechanical means, either as a service provided or self-service.

W.

Wall

An opaque structure constructed with masonry, brick, concrete, stucco, or other similar material, greater than 36 inches high.

Block Wall

A wall in the form of rock features or concrete masonry units, or other decorative forms.

Noise Attenuation Wall

A wall constructed between adjacent uses designed to mitigate the impact of noise.

Parapet Wall

An opaque wall extending above the roof of a building which is constructed of material compatible and of the same fire resistance as the wall of the building.

Perimeter Wall

An opaque structure constructed with masonry, brick, concrete, stucco, or other similar material, constructed within a required setback to buffer property owners. Walls constructed within the "Buildable Area" not affixed to the primary building shall be considered accessory structures.

Retaining Wall

A wall where the grade on one side of the wall is greater than the grade on the opposite side. This term shall not include paving or a similar treatment of a slope to prevent erosion.

Security Wall

See "Security Fence."

Warehouse and Distribution

An enclosed structure, or a complex of warehouses, for storage and/or distribution or transfer to another location.

Warehousing and Storage

This category includes facilities for the storage or movement of goods for themselves or other businesses. Goods are generally delivered to other businesses or the final consumer, except for some will-call pickups. There are typically few customers present.

Waste and Salvage

This category includes facilities that receive solid or liquid wastes from others for on-site disposal or for transfer to another location, including but not limited to, the collection of sanitary waste, organic material, scrap, recyclables, or other waste. Uses that manufacture or produce goods or energy from the decomposition, incineration, or processing of waste material, and facilities that receive hazardous wastes from others are included.

Wastewater

A combination of liquid and water-carried pollutants from homes, businesses, industries, or farms; a mixture of water and dissolved or suspended solids. (See also "Wastewater Package Treatment Plant," "Reclaimed Wastewater," and "Reclamation Facility")

Wastewater Package Treatment Plant

A private sewerage treatment system whose capacity is 5,000 gallons or greater such as septic tanks, lagoon, mechanical plants, or any other type of system for the treatment of sewerage.

Wastewater Treatment Plant

A facility designed to receive the wastewater from domestic sources and to remove materials that damage water quality and threaten public health and safety. The substances removed may contain greases and fats, solids from human waste and other sources, dissolved pollutants from human waste and decomposition products, or dangerous microorganisms.

Wedding Chapel

A facility made available to be rented primarily for wedding ceremonies and may include a chapel, dressing rooms, offices, reception facilities, and gardens.

Wetland

An area inundated or saturated by surface water or groundwater at a frequency and duration sufficient to support vegetation adapted for life in saturated soil conditions.

Wholesale

An establishment for the sale or resale of products to anyone other than the end user of the products.

Work

With respect to work performed in a right-of-way, to construct, cut break, alter, excavate, install, remove, relocate, repair, or replace improvements, or install and maintain temporary traffic control devices and/or barricades.

Working Day

A day during which the Clark County Department of Comprehensive Planning offices are open to the public.

X.

Xeriscape

A style of landscaping that reduces or eliminates the need for irrigation. For the purposes of this Title, the term "Xeriscape" includes the concept of desert landscaping, using indigenous or adapted trees, shrubs, vines, non-turf groundcovers, succulents or other plants.

Y.

Yard An open space on a lot, other than a court, unoccupied and unobstructed from the ground to the sky above, extending across the width or depth of the lot except for permissible accessory buildings and structures, required roadway improvements, utility equipment, architectural intrusions, and additional side yard setbacks.

Front Yard

The area from the front of the building to the lot line, street or future right-of-way.

Rear Yard

The area from the rear of the building to the rear lot line.

Side Yard

The area from the side of the building to the side lot line.

Z.

Zoning District

See “District.”